

Appendix A

Form 1

R. 39

(SECTION 94 ORIGINATING SUMMONS FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Originating Summons

No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

ORIGINATING SUMMONS FOR THE DISSOLUTION OF MARRIAGE PURSUANT TO SECTION 94 OF THE WOMEN'S CHARTER (CAP. 353)

To:

[*Defendant*]

[*Defendant's address*]

The Plaintiff applies for the following orders

1. That the Plaintiff be at liberty to file a writ of summons for dissolution of the marriage notwithstanding that 3 years have not passed since the marriage was registered on [*date of registration of marriage*].

[*Please specify if any other order(s) is/are sought*]

*This Summons is taken out by [*to state name*], solicitor for the abovenamed Plaintiff whose particulars are as follows [*to state address*].

*(*If the Plaintiff is unrepresented*) This Summons is taken out by the abovenamed Plaintiff who resides at [*to state address*]/(*and if the Plaintiff does not reside within the jurisdiction*) whose address for service is [*to state address*].

*Delete where inapplicable.

Registrar.

Note:

1. This originating summons may not be served more than 6 months after the above date unless renewed by order of the Court.
2. If a defendant does not attend personally or by his counsel or solicitor at the time and place abovementioned, the Court may make such order(s) as it deems just and expedient.
3. Unless otherwise provided in any written law, where the plaintiff intends to adduce evidence in support of an originating summons, he must do so by affidavit, and must file the affidavit or affidavits and serve a copy thereof on every defendant not later than 7 days after the service of the originating summons.

Form 2

R. 39

(NOTICE OF SECTION 94 ORIGINATING SUMMONS FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Originating Summons

No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

NOTICE TO DEFENDANT OF ORIGINATING SUMMONS
FOR THE DISSOLUTION OF MARRIAGE

Take Notice that the Plaintiff has taken out an Originating Summons in court seeking an order that he/she* be at liberty to file a writ of summons for dissolution of the marriage notwithstanding that 3 years have not passed since the date of the marriage.

You are required to complete the acknowledgment below and send it to the Plaintiff's solicitor/Plaintiff*.

If you wish to be heard on the application, you must attend at the time and place specified on the front cover of the Originating Summons. If you do not attend, the court may proceed to hear the application in your absence and make such order as it thinks just and expedient.

Acknowledgment

I, the Defendant, acknowledge that I have received a copy of the Originating Summons and the affidavit filed in support of the Originating Summons.

Signed (Defendant):

Name:

ID No.:

Date:

*Delete where inapplicable.

Form 3

R. 41

(WRIT FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Writ No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

WRIT FOR

DIVORCE/PRESUMPTION OF DEATH AND DIVORCE/JUDICIAL
SEPARATION/NULLITY OF MARRIAGE/RESCISSION OF JUDGMENT
OF JUDICIAL SEPARATION*

The Defendant

[*Defendant's name*]

[*Defendant's address*]

*Defendant is a person under disability

[*To state particulars of disability*]

THIS WRIT OF SUMMONS has been issued against you by the Plaintiff in respect of the claim endorsed herein. Copies of the following documents are delivered with this Writ:

- (a) Statement of Claim
- (b) Statement of Particulars
- (c) Acknowledgment of Service
- (d) Memorandum of Appearance
- (e) Agreed/Proposed* Parenting Plan*
- (f) Agreed/Proposed* Matrimonial Property Plan (For Housing Development Board flats only)*
- (g) Instructions to the Defendant on obtaining the relevant CPF statement and additional CPF information (if applicable)*

[Plaintiff's Solicitor's name]

Registrar

[Plaintiff's Law Firm's name]

Family Justice Courts

Solicitor for the Plaintiff

Singapore

This Writ may not be served more than 12 calendar months after the date of its issue unless renewed by order of court.

Notice to Defendant

1. You must complete the following documents which are annexed to this Writ:
 - (a) the *Acknowledgment of Service (Defendant) Form* and return it immediately to the Plaintiff's solicitor or the Plaintiff (if unrepresented).

- (b) the *Memorandum of Appearance (Defendant) Form* (MOA), and file** it in court within 8/21* days from the day on which you have received this Writ. If you do not file the MOA within the time-frame above, you are NOT entitled to be heard in these proceedings. This means that the court may, without notice to you, proceed to hear the action and pronounce judgment in your absence, and make all further orders in the proceedings without further reference to you.
- 2. If you intend to defend the Writ, you must file a Defence or a Defence and Counterclaim in court within 22/35* days from the day on which you have received this Writ. You must serve a copy of the said document on the Plaintiff's solicitor or the Plaintiff (if unrepresented) within 2 working days after filing the Defence or Defence and Counterclaim.
- 3. *You have been served with a *Plaintiff's Proposed Parenting Plan*. You must complete one of the following:
 - (a) If you agree to the arrangements set out in the *Plaintiff's Proposed Parenting Plan*, you should sign the appropriate section in the form set out in Annex A [*Defendant's Agreement (Parenting Plan) Form*]. You must return the signed relevant page to the Plaintiff's solicitor or the Plaintiff (if unrepresented) within 22/35* days from the day on which you have received it.
 - (b) If you do not agree to the arrangements set out in the *Plaintiff's Proposed Parenting Plan*, you must file a *Defendant's Proposed Parenting Plan* (in the form set out in Annex B) to state your proposed arrangements for the children of the family. Your plan must be filed in court within 22/35* days from the day on which you have received this Notice. If you do so, you must serve a copy of the said document on the Plaintiff's solicitor or the Plaintiff (if unrepresented) within 2 working days after filing it in court.
- 4. *You have been served with a *Plaintiff's Proposed Matrimonial Property Plan (for Housing Development Board flats only)*. You must comply with the following:
 - (a) You must obtain the relevant CPF statements and additional CPF information (if applicable) within 22/35* days from the day on which you have received it. Please read the instructions delivered with this Writ on how to do this.
 - (b) If you agree to the arrangements set out in the *Plaintiff's Proposed Matrimonial Property Plan (for Housing Development Board flats only)*, you should sign the appropriate section in the form set out in Annex A [*Defendant's Agreement (Matrimonial Property Plan) Form*]. You must return the said document to the Plaintiff's solicitor or the Plaintiff (if unrepresented) within 14 days from the day on which you have obtained the relevant CPF statements and additional CPF information (if applicable).
 - (c) If you do not agree to the arrangements set out in the said *Plaintiff's Proposed Matrimonial Property Plan (for Housing Development Board flats only)*, you must file a *Defendant's Proposed Matrimonial Property Plan* to state your proposed arrangements in respect of the matrimonial property. Your plan must be filed in court, within 14 days from the day on which you have obtained the relevant CPF statements and additional CPF information (if applicable). If you do so, you must serve a copy of the said document on the Plaintiff's solicitor or the Plaintiff (if unrepresented) within 2 working days after filing it in court.
- 5. If you intend to instruct a solicitor to act for you, you should at once give him all the documents which have been served on you, so that he may complete the relevant forms on your behalf within the time specified in paragraphs 1/2/3/4* above.

Plaintiff's Address for Service

[The Plaintiff's address for service, if the Plaintiff sues by a solicitor, shall be the solicitor's name or firm and address, or, if the Plaintiff sues in person, shall be his place of residence as given under paragraph 2(a) of the Statement of Claim or, if no place of residence in Singapore is given, the address of a place in Singapore at or to which documents for him may be delivered or sent.]

*Delete where inapplicable.

**All references to the filing of documents in court shall refer to filing by using the electronic filing service.

Form 4

R. 41, 42

(SUMMONS FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Case No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

SUMMONS (EX-PARTE*)

1. Orders Applied For
2. Grounds of application
[*Choose one of the following.*]
 - (a) The grounds of the application are set out in the affidavit(s)* filed in support of this application.
 - (b) The grounds of the application are set out herein.
3. Party Filing this Summons (e.g. Plaintiff, Defendant, Co-Defendant, etc.)
4. Party/Parties* to be Served with this Summons (e.g. Plaintiff, Defendant, Co-Defendant, etc.)
5. Consent*

I hereby consent to this Summons. I acknowledge that I have considered the terms of the agreement and have been informed of my right to seek independent legal advice./We hereby consent to this Summons.*

Signature:

Name and ID No. of Party consenting to this Summons/Name of the Solicitor of Party consenting to this Summons*:

Date:

This Summons is taken out by [*to state name of party taking out this summons*]
[*to state Plaintiff's solicitor's name and name and address of law firm (if Plaintiff represented by solicitor) or Plaintiff's address for service in Singapore*]

*Delete where inapplicable.

Form 5

R. 43

(NOTICE OF RENEWAL FORM)

NOTICE OF RENEWAL OF WRIT OF SUMMONS/ORIGINATING
SUMMONS*

Renewed for [*to state number*] months from [*to state date*] by an order of court dated
[*to state date*].

*Solicitor for the Plaintiff/Name of Plaintiff (if unrepresented)**

*Name and address of Law Firm/Address of Plaintiff**

*Delete where inapplicable.

Form 6

R. 44, 48, 83

(STATEMENT OF CLAIM (DIVORCE/JUDICIAL SEPARATION) FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Writ No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

STATEMENT OF CLAIM FOR NULLITY*/DIVORCE*/JUDICIAL SEPARATION*/PRESUMPTION OF DEATH AND DIVORCE*

1. The Marriage between Plaintiff and Defendant (the marriage)

- (a) Date and place of solemnization of the marriage:
- (b) Date and place of registration of the marriage:
- (c) *Marriage Certificate Number (for marriage registered in Singapore):
- (d) *The date of the marriage is less than 3 years before the date of filing of this Writ. The court has granted leave to the Plaintiff to file this Writ before the said 3 years have passed on [*to state date*] in Originating Summons Number [*to state number*]*.

[*The Statement of Particulars shall annex a copy of the marriage certificate.*]

2. Particulars of Parties

(a) Plaintiff

Age:		Citizenship:	
Religion:		Education Level:	
Occupation:		Current address:	

(b) Defendant

Age:		Citizenship:	
Religion:		Education Level:	
Occupation:		Current address:	

- (c) The last address at which the parties to the marriage have lived together as husband and wife:

[*to state address*]

3. Jurisdiction

- (a) *The court has jurisdiction based on domicile. [*Choose one of the following*]

- (i) The Plaintiff/The Defendant/Both the Plaintiff and the Defendant* is a/are* Singapore citizen(s).
- (ii) Neither the Plaintiff nor the Defendant is a Singapore citizen. [*The Statement of Particulars shall set out the reasons for which the court has jurisdiction based on domicile.*]
- (b) *The court has jurisdiction based on habitual residence. [*Choose one of the following*]
- (i) The Plaintiff has been habitually resident in Singapore for a period of 3 years immediately preceding the date of the filing of the writ.
- (ii) The Defendant has been habitually resident in Singapore for a period of 3 years immediately preceding the date of the filing of the writ.
- [*The Statement of Particulars is to state the relevant details in either case, including:*
- (A) *Address(es) of the place(s) of residence; and*
- (B) *The length of residence at each place.*]

4. Children

[*To state, in respect of each living child of the marriage*]

S/N	Name of child:	BC/ID number:
	Date of Birth:	Gender:
	Any disability or illness?	[<i>If the child is suffering from serious disability or chronic illness or from the effects of that illness, state the nature of the disability or illness and in the Statement of Particulars, attach a copy of any up-to-date medical report which is available.</i>]
	Child over 21 (whether in educational institution, national service, or mentally/physically disabled)	[<i>In the case of a child above the age of 21 years, to state whether he is receiving instruction at an educational establishment or undergoing training for a trade, profession or vocation and whether he is suffering from a mental or physical disability and whether he is or will be serving full-time national service.*</i>]
	Is child under care?	[<i>If the child is under the care or custody of an approved school or approved home established under the Children and Young Persons Act (Cap. 38), give details, and state the date of any order for care or custody and the circumstances which gave rise to its being made.</i>]

The following child(ren) are born to the wife during the marriage:

S/N.	Name of child:		BC/ID number:	
	Date of Birth:		Gender:	
	Is there a dispute whether the living child is a child of the marriage?			

5. Related Proceedings

To state if there are or have been other proceedings in [*Singapore/elsewhere (to specify)*] with reference to the marriage, or to any children of the marriage, or between the Plaintiff and the Defendant with reference to maintenance or to any property of either or both of them.

If there are or have been such proceedings, to complete the following section:

S/N	Nature of proceedings:			
	Suit number:		Date of Decree/order/judgment:	
	Date of application		Country where proceedings filed:	
	Details of Order applied/made:			
	Status of Proceedings if no Decree/order/judgment made:			
	Plaintiff Bankruptcy Details:			
	Pending Bankruptcy Details:	[The Statement of Particulars is to state details of the pending bankruptcy proceedings.]		

6. Ground on which Relief is Sought [*Choose one of the following*]

The marriage is void

- (a) *(For marriages that took place after 1st June 1981) The marriage is not valid under section 105 of the Women's Charter: [*Choose one or more of the following*]
- (i) by virtue of section 3(4)/5/9/10/11/12/22* of the Women's Charter
 - (ii) (*for marriages celebrated outside Singapore*) for the lack of capacity

- (iii) *(for marriages celebrated outside Singapore)* under the law of the place in which the marriage was celebrated.
- (b) *(For marriages that took place on or before 1st June 1981) The marriage is not valid for the reasons stated in the Statement of Particulars.
- (c) *(For marriages that took place on or after 1 July 2016) The marriage is not valid by virtue of s11A of the Women's Charter.

OR

The marriage is voidable

- (a) *(For marriages that took place after 1st June 1981) The marriage is voidable under section 106 of the Women's Charter on the following ground(s): *[Choose one or more of the following]*
 - (i) That the marriage has not been consummated owing to the incapacity of either party *[please specify]* to consummate it.
 - (ii) That the marriage has not been consummated owing to the wilful refusal of the Defendant to consummate it.
 - (iii) That the Plaintiff/Defendant* did not validly consent to the marriage, in consequence of duress and/or mistake* and/or unsoundness of mind/lack of capacity* and/or the facts stated in the Statement of Particulars *[please specify in the Statement of Particulars]*.
 - (iv) That at the time of the marriage the Plaintiff/Defendant* though capable of giving a valid consent, was suffering (whether continuously or intermittently) from mental disorder within the meaning of the Mental Health (Care and Treatment) Act (Cap. 178A) of such a kind or to such an extent as to be unfit for marriage.
 - (v) That at the time of the marriage the Defendant was suffering from venereal disease in a communicable form, and the Plaintiff was at the time of the marriage ignorant of the facts alleged.
 - (vi) That at the time of the marriage the Defendant was pregnant by some person other than the Plaintiff and the Plaintiff was at the time of the marriage ignorant of the facts alleged.
- (b) *(For marriages that took place on or before 1st June 1981) The marriage is voidable for the reasons stated in the Statement of Particulars.
[Full particulars of the individual facts relied on but not the evidence by which they are to be proved, and any other relevant information, to be stated in the Statement of Particulars.]

OR

The marriage has broken down irretrievably*

Fact(s) relied upon for the irretrievable breakdown of the marriage (for the purposes of section 95A of the Women's Charter): *[Choose one or more of the following]*

- (a) That the Defendant has committed adultery and the Plaintiff finds it intolerable to live with the Defendant.
- (b) That the Defendant has behaved in such a way that the Plaintiff cannot reasonably be expected to live with the Defendant.

- (c) That the Defendant has deserted the Plaintiff for a continuous period of at least 2 years immediately preceding the filing of the writ.
- (d) That the parties to the marriage have lived apart for a continuous period of at least 3 years immediately preceding the filing of the writ and the Defendant consents to a judgment being granted. [*The Statement of Particulars is to annex a copy of the Defendant's consent if available.*]
- (e) That the parties to the marriage have lived apart for a continuous period of at least 4 years immediately preceding the filing of the writ.
- (f) That the parties to the marriage agree that the marriage has irretrievably broken down.

[Full particulars of the individual facts relied on but not the evidence by which they are to be proved, and any other relevant information, to be stated in the Statement of Particulars.]

OR

That the Defendant be presumed dead and the divorce be granted*

- (a) Circumstances in which Parties Ceased to Cohabit
[To state the circumstances in which the parties ceased to cohabit, and the last place at which they cohabited.]
- (b) Last Contact with Defendant
 - (i) Date when the Defendant was last heard of:
 - (ii) Place where the Defendant was last seen:
- (c) Steps Taken to Trace the Defendant
[To state particulars of steps taken to trace the Defendant and any other relevant information in the Statement of Particulars.]

In the circumstances, from [*to state date*] until now, the Defendant has been continually absent from the marriage life with the Plaintiff and the Plaintiff has no reason to believe that the Defendant has been living within this time.

7. Relief Claimed

To state the particulars of relief claimed by the Plaintiff, including any claim for ancillary relief. [*Choose one or more of the following*]

- (a) That the marriage be declared null and void*.

OR

That the marriage be dissolved*.

OR

That a judgment of judicial separation be granted*.

OR

That a judgment of presumption of death and divorce be granted*.

- (b) Custody* of and/or care and control* of the child/children* of the marriage
That the Plaintiff/Defendant* be granted sole/joint* custody of the child/children* of the marriage with care and control to the Defendant/Plaintiff*.
- (c) Access to the child/the children* of the family

That the Plaintiff/Defendant* be granted reasonable/liberal* access to the child/children* of the marriage or access as follows: *[to state terms of access]*

(d) Division of the matrimonial home

That the matrimonial home at *[to state the address of the matrimonial home]* be sold in the open market and the sale proceeds/loss*, after deducting the outstanding loan and costs and expenses of sale are to be divided *[to state the manner of division]*. Parties are to refund moneys into their respective CPF accounts from their own share of the sale proceeds.

OR

That Plaintiff's/Defendant's* right, title and interest in the matrimonial flat at *[to state the address of the matrimonial home]* shall be transferred (other than by way of a sale) to the Defendant/Plaintiff* upon the Plaintiff/Defendant* *[to state the consideration for the transfer]*. The Plaintiff/Defendant* is to bear the cost and expenses of the transfer.

OR

That Plaintiff's/Defendant's* right, title and interest in the matrimonial flat at *[to state the address of the matrimonial home]* shall be sold to the Defendant/Plaintiff* upon the Plaintiff/Defendant* *[to state the consideration for the sale]*. The Plaintiff/Defendant* is to bear the cost and expenses of the sale.

OR

That the matrimonial home at *[to state the address of the matrimonial home]* be surrendered to the Housing Development Board and any proceeds/loss* to be divided *[to state the manner of division]* between the parties.

OR

Others *[please specify]*

(e) Division of the matrimonial assets (other than the matrimonial home)

[To specify the asset and the nature of division]

(f) Maintenance for the wife / incapacitated husband*

That the Plaintiff/Defendant* shall pay \$*[to state the amount]* each month as maintenance for the Plaintiff/Defendant* with effect from *[date]* and thereafter on the *[day of the month]* of each month. Payment into the Plaintiff's/Defendant's *[to state name of bank]* bank account number *[to state the bank account number]*.

OR

That there be no maintenance for Plaintiff/Defendant*.

OR

Others *[please specify]*

(g) Maintenance for the child/children* of the marriage

That the Plaintiff/Defendant* shall pay \$*[to state the amount]* each month as maintenance for the child/children* of the marriage with effect from *[date]* and thereafter on the *[day of the month]* of each month. Payment into the Plaintiff's/Defendant's/Child's *[to state the name of the child]* *[to state name of bank]* bank account number *[to state the bank account number]*.

(h) Costs

That there is no order as to costs.

OR

That the Defendant pay costs of the divorce proceedings fixed at
[*to state amount of costs*].

(i) Others [*please specify*]:

8. Housing and Development Board (HDB) flat

One of the matrimonial assets in respect of which relief is being sought is an HDB flat.

(a) The Agreed/Proposed* Matrimonial Property Plan (For Housing and Development Board flats only) is filed together with this Writ.

(b) The Plaintiff/Plaintiff's Solicitor* has made enquiries with HDB/HDB and the Central Provident Fund Board (CPFBoard)* on [*to set out respective dates*] and has not received any reply from HDB/CPFBoard/HDB and CPFBoard*. [*The Statement of Particulars shall annex copies of the said letters.*]

*Delete where inapplicable.

Form 7

R. 44, 48

(STATEMENT OF CLAIM (RESCISSION OF JUDGMENT OF JUDICIAL
SEPARATION) FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Writ No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

STATEMENT OF CLAIM FOR THE RESCISSION OF JUDGMENT OF
JUDICIAL SEPARATION (BY SPOUSE AGAINST WHOM JUDGMENT
OF JUDICIAL SEPARATION IS MADE)

1. Proceedings in which the Plaintiff is seeking the Rescission of Judgment of Judicial Separation
 - (a) Petition/Divorce Suit* Number:
 - (b) Date of Grant of Judgment of Judicial Separation:
2. Grounds for Rescission of Judgment of Judicial Separation
 - (a) *Judgment of Judicial Separation obtained in the absence of the Plaintiff.
 - (b) *The ground of the Judgment of Judicial Separation was desertion and the Plaintiff had reasonable cause for the alleged desertion.

[Full particulars of the individual facts relied on but not the evidence by which they are to be proved, together with any other relevant information, to be stated in the Statement of Particulars.]

3. Relief Claimed

To state the particulars of relief claimed by the Plaintiff, including any claim for ancillary relief.

- (a) That the Judgment of Judicial Separation be rescinded
- (b) Costs
- (c) Others [*please specify*]:

*Delete where inapplicable.

Form 8

R. 44, 48, 83

(STATEMENT OF PARTICULARS FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Writ No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

STATEMENT OF PARTICULARS

1. The particulars of paragraph(s) [*to state the relevant paragraphs*] of the Statement of Claim are set out below:
[*to state particulars*]
2. *If there are any pending bankruptcy proceedings stated in paragraph 5 of the Statement of Claim, to state the following particulars of the bankruptcy proceedings:
 - (a) The suit number:
 - (b) Whether creditor's bankruptcy application or debtor's bankruptcy application:
 - (c) Name of Creditor:
 - (d) Amount of debt claimed:
 - (e) Status of proceedings:
3. The following documents are annexed herein:
 - (a) Copy of the Marriage Certificate (Exhibit [*to state number*])
 - (b) *Consent of the Defendant to a judgment being granted on the ground of 3 years' separation (Exhibit [*to state number*])
 - (c) Copy of the Ministry of Law Insolvency Office bankruptcy search results on information relating to bankruptcy proceedings against the Plaintiff and the Defendant pending as at (*to state date, which shall not be later than 7 days immediately preceding the date of filing of this Writ*). (Exhibit [*to state number*])
 - (d) *Any relevant up-to-date medical report for a maintenance claim by an incapacitated husband (Exhibit [*to state number*])
 - (e) Any other document(s) [*please specify*] (Exhibit [*to state number*])
4. The Plaintiff is aware of*, or has been informed by the solicitor acting for him about*, the options of family mediation or counselling, before filing the writ.

Signature:

Name of Plaintiff/Plaintiff's Solicitor*

Date:

*Delete where inapplicable.

Form 9

R. 44, 47, 48, 60, 84

(NOTICE OF PROCEEDINGS (OTHER PARTY) FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Writ No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

NOTICE TO A CO-DEFENDANT/DEFENDANT IN
COUNTERCLAIM/PERSON ENTITLED TO
INTERVENE/OTHER PARTY

(TO SPECIFY)*

(in the case of a Writ of Summons and Statement of
Claim/Defence/Counterclaim based on adultery or improper association)

1. NOTICE OF PROCEEDINGS
 2. ACKNOWLEDGMENT OF SERVICE/MEMORANDUM OF APPEARANCE
- To: [*state name and ID number of Co-Defendant/Defendant in Counterclaim/Person Entitled to Intervene/Other Party (To specify)**]

1. NOTICE OF PROCEEDINGS
 - (a) Take Notice that a Writ of Summons and Statement of Claim/Defence/Defence and Counterclaim/Other Document [*please specify*]* has been filed in the Family Justice Courts by [*Plaintiff's/Defendant's Name*].
 - (b) A copy of the Writ of Summons and Statement of Claim/Defence/Defence and Counterclaim/Other Document [*please specify*]* is delivered with this Notice.
 - (c) Please read the instructions set out in Part 2 of this Notice carefully.

*Delete where inapplicable.

2. ACKNOWLEDGMENT OF SERVICE/MEMORANDUM OF
APPEARANCE

- (a) You must complete the form in Annex A which is known as the *Acknowledgment of Service (Other Party) Form* and return it immediately to the Plaintiff's solicitor or the Plaintiff (if unrepresented).

- (b) You must also complete the form in Annex B which is known as the *Memorandum of Appearance (Other Party) Form* (MOA), and file** it within 8/21* days from the day on which you have received this Writ/Defence/Defence and Counterclaim/Other Document [*please specify*]*. If you do not file the MOA within such time, you are NOT entitled to be heard in these proceedings. This means that the court may, without notice to you, proceed to hear the action and pronounce judgment in your absence, and make all further orders in the proceedings without further reference to you.
- (c) If you intend to instruct a solicitor to act for you, you should at once give him all the documents which have been served on you, so that he may complete the relevant forms on your behalf within the time specified in paragraphs (a) and (b) above.

*Delete where inapplicable.

**All references to the filing of documents in court shall refer to filing by using the electronic filing service.

[Attach Annexes A and B to this form on separate pages.]

Annex A — Acknowledgment of Service (Other Party) Form

[Set out Form 15]

Annex B — Memorandum of Appearance (Other Party) Form

[Set out Form 16]

Form 10

R. 45

(AGREED PARENTING PLAN FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Writ No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

AGREED PARENTING PLAN

1. Particulars of the child/children* of the Marriage

[*to state, in respect of each child*]:

(a) Name:

(b) Birth Certificate/ID Number:

2. Agreement in Respect of Arrangements for the child/children*

(a) The following arrangements have been agreed for the children:

[*to state, in respect of each child*]

(i) Residence [*state where the child is to live with particulars of accommodation and what other persons live there, with their names and relationship to the child stated*]

(ii) Care giver [*state who is to look after the child during the day, at night, during weekends and school holidays*]

(iii) Education, etc. [*state the school or other educational establishment which the child will attend, or if he is working, his place of employment, the nature of his work and details of any training he will receive*]

(b) Orders Sought

I am seeking, with the Defendant's consent, the following orders to be made by the court:

(i) [*Set out details of any agreement between parties regarding custody, care and control of and access to the children of the marriage.*

If orders for split care and control of the children of the marriage are being sought, e.g. for care and control of one child to be granted to one parent, and for care and control of the other child to be granted to the other parent, to set out the reasons why such orders for split care and control are in the best interests of the children of the marriage in an affidavit, which should be attached to this Parenting Plan]

(ii) [*Set out details of any agreement between parties regarding maintenance for the children of the marriage*]

3. Defendant's Agreement

[The Defendant's agreement can be confirmed by completing either option (a) or option (b) below.]

- (a) I, the Defendant, agree with the arrangements set out in this paragraph.

Signature of Defendant:

Name:

ID No.:

Date:

Signed by the Defendant before me, a Commissioner for Oaths:

- (b) The Defendant agrees with the arrangements set out in this paragraph.

Signed on behalf of the Defendant by the Defendant's solicitor:

Signed (Plaintiff/Plaintiff's Solicitor*):

Date:

*Delete where inapplicable.

Form 11

R. 45

(PLAINTIFF'S PROPOSED PARENTING PLAN FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Writ No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

PLAINTIFF'S PROPOSED PARENTING PLAN

1. Particulars of the Child/Children* of the Marriage

[*to state, in respect of each child*]:

(a) Name:

(b) Birth Certificate/ID Number:

2. Current Arrangements

The current arrangements for the child/children* of the marriage are as follows:

[*to state, in respect of each child*]

(a) Residence [*state where the child is currently living with particulars of accommodation and what other persons live there, with their names and relationship to the child stated*]

(b) Care arrangements (this section need not be completed if the child is already working at the present time)

(i) *If the child is presently not attending school on a daily basis, to complete the following section:

(A) Are both parents working?

(B) Who looks after the child during the day and at night?

(i.e. father/mother/maid/elder siblings/relatives [*to specify nature of relationship to the child*]/a combination of the above/others [*to specify*]*)

(C) Where is the child cared for during the day and at night?

(i.e. at the matrimonial home/childcare centre/babysitter/relative's home [*to specify nature of person's relationship to the child*]/others [*to specify*]*)

(D) For how long has this arrangement been in place?

[*State estimated period of time, i.e. from which date till the present date*]

(ii) *If child is presently attending school on a daily basis, to state:

(A) The child's school hours.

(B) Where and by whom is the child being cared for before and after school hours?

(iii) *Where parties are no longer residing at the same address, to state:

(A) Who is the parent who does NOT live with the child (the non-custodial parent)?

(B) When was the last time the non-custodial parent visited the child?

(C) How often does the non-custodial parent visit the child?

(D) Does the child sometimes stay overnight with the non-custodial parent?

(c) Education/Employment* *[state the school or other educational establishment which the child has been and is currently attending, or if he is working, his place of employment, the nature of his work and details of any training he is receiving]*

(d) Financial provision *[state who has been and is presently supporting the child or contributing to his support and the extent thereof]*

(e) Access *[state what are the current arrangements for access and the extent to which access has been given]*

(f) Other relevant information

[State any other information which is relevant to the matters concerning the arrangements for the child, for example, whether the Plaintiff or Defendant is suffering from any physical or mental disability, whether the Plaintiff or Defendant has any previous convictions and if so, the nature of the conviction, and whether the Plaintiff or Defendant has been committed to a drug rehabilitation centre and if so, when and for how long.]

3. Proposed Arrangements

The proposed arrangements for the child/children* of the marriage are as follows:

[State, in respect of each child, for those matters which have not been agreed]

(a) Residence *[state where the child is to live with particulars of accommodation and what other persons live there, with their names and relationship to the child stated]*

(b) Care giver *[state who is to look after the child during the day, at night, during weekends and school holidays]*

(c) Education, etc. *[state the school or other educational establishment which the child will attend, or if he is working, his place of employment, the nature of his work and details of any training he will receive]*

4. Orders Sought

I am seeking the following orders to be made by the court:

(a) *[Set out details of any orders sought regarding custody, care and control of and access to the children of the marriage.*

If orders for split care and control of the children of the marriage are being sought, e.g. for care and control of one child to be granted to one parent, and for care and control of the other child to be granted to the other parent, to set out the reasons why such orders for split care and control are in the best interests of the children of the marriage.]

(b) *[Set out details of any orders sought regarding maintenance for the children of the marriage.]*

I confirm that all the matters set out in this Proposed Parenting Plan are true and correct.

Signed (Plaintiff):

Name:

ID Number:

Date:

*Delete where inapplicable.

[Attach Annexes A and B to this form on separate pages.]

Annex A — Defendant's Agreement (Parenting Plan) Form

[Set out Form 23]

Annex B — Defendant's Proposed Parenting Plan Form

[Set out Form 24]

Form 12

R. 46, 48

(AGREED MATRIMONIAL PROPERTY PLAN FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Writ No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

AGREED MATRIMONIAL PROPERTY PLAN (FOR HOUSING AND DEVELOPMENT BOARD FLATS ONLY)

1. Particulars of the Property

- (a) Address of matrimonial property (the Flat):
- (b) Sales Registration Number* [*if there is only an Agreement for Lease and the buyers have not taken possession of the flat*]:
- (c) Name of lessee(s):
- (d) Names of permitted occupiers and relationship with each lessee:
- (e) Sole tenancy/Joint tenancy/Tenancy in common [*please specify shares*]*:
- (f) Type of flat [*i.e. whether 3-room, 4-room, 5-room, Executive, etc.*]:

2. Agreed Arrangements

The parties' agreement with respect to the Flat is as follows:

[*Choose one of the following*]

- (a) Option 1: The Flat will be surrendered to the HDB.
- (b) Option 2: The Agreement for Lease with the HDB will be terminated.
- (c) Option 3: The Flat will be sold in the open market.
- (d) Option 4: The Plaintiff's share in the Flat will be sold/transferred* to:
 - (i) The Defendant
 - (ii) The Defendant and [*state name and relationship with the Defendant*]
 - (iii) [*state name and relationship with the Plaintiff/the Defendant*]
- (e) Option 5: The Defendant's share in the Flat will be sold/transferred* to:
 - (i) The Plaintiff
 - (ii) The Plaintiff and [*state name and relationship with the Plaintiff*]
 - (iii) [*state name and relationship with the Defendant/the Plaintiff*]
- (f) Option 6: Others [*please state brief details*]

Particulars of the agreement are attached as Annex [*to state number*].

[*To fill in the details of Option 1, 2, 3, 4, 5 or 6 as set out in Form 108, and to attach only the relevant pages to this form.*]

3. Defendant's Agreement

[The Defendant's agreement can be confirmed by completing either option (a) or option (b) below.]

- (a) I, the Defendant, agree with the arrangements set out in this paragraph.

Signature of Defendant:

Name:

ID No.:

Date:

Signed by the Defendant before me, a Commissioner for Oaths:

- (b) The Defendant agrees with the arrangements set out in this paragraph.

Signed on behalf of the Defendant by the Defendant's solicitor:

4. HDB's Approval for Option

The agreed arrangements between parties have been approved by the HDB.

5. CPF Information

The relevant CPF statement and additional CPF information (if applicable) of each party are annexed to this plan as Annex *[to state number]*.

Signed (Plaintiff/Plaintiff's Solicitor*):

Date:

*Delete where inapplicable.

Form 13

R. 46, 56

(PARTICULARS OF HOUSING ARRANGEMENT FORM) PARTICULARS OF ARRANGEMENTS FOR HOUSING

Plaintiff's/Defendant's*

Particulars of Proposed/Agreed* Arrangements for Housing

Housing and Development Board (HDB) Flat — List of Options

Select one or more options and complete the details in the following pages for the option(s) selected.

- ☐ **Option 1:** The flat will be surrendered to the HDB.
- ☐ **Option 2:** The Agreement for Lease with the HDB will be terminated.
- ☐ **Option 3:** The flat will be sold in the open market.
- ☐ **Option 4:** The Plaintiff's share in the flat will be sold/transferred* to:
 - ☐ the Defendant
 - ☐ the Defendant and a third party
 - ☐ a third party
- ☐ **Option 5:** The Defendant's share in the flat will be sold/transferred* to:
 - ☐ the Plaintiff
 - ☐ the Plaintiff and a third party
 - ☐ a third party
- ☐ **Option 6:** Others:

Plaintiff*

Defendant*

Date: _____

Date: _____

*Delete where inapplicable.

Option 1: The flat will be surrendered to the HDB.

1. The compensation for the surrender of the flat will be used to [please tick if applicable]:

- ☐ (a) repay the outstanding HDB mortgage loan and all moneys due to the HDB.
- ☐ (b) refund the Plaintiff's CPF moneys used for the flat and the accrued interest*.
- ☐ (c) refund the Defendant's CPF moneys used for the flat and the accrued interest*.
- ☐ (d) others [please specify] _____.

2. [If 1(a) above is not selected and there is an outstanding mortgage loan or moneys due to the HDB]. The outstanding mortgage loan or moneys due to the HDB will be borne by:

Plaintiff \$ _____ *
_____ %

Defendant \$ _____ *
_____ %

3. If 1(b) or (c) above is not selected and the CPF moneys of the Plaintiff and/or the Defendant have been used for the flat [please tick if applicable]:

- ☐ (a) The Plaintiff/The Defendant* will refund the Plaintiff's CPF moneys used for the flat and the accrued interest.
- ☐ (b) The Plaintiff/The Defendant* will refund the Defendant's CPF moneys used for the flat and the accrued interest.

4. The conveyancing, stamp, registration and administrative fees of the surrender will be borne by:

Plaintiff \$ _____ *
_____ %

Defendant \$ _____ *
_____ %

5. The balance or shortfall will be divided in the following manner:

Plaintiff \$ _____ *
_____ %

Defendant \$ _____ *
_____ %

Time Frame

The parties will apply to the HDB to surrender the flat:

- ☐ by [please specify the date] _____;
- ☐ within _____ weeks/months of the order of court on the HDB flat;
- ☐ within _____ weeks/months of the grant of the Final Judgment;
- ☐ others [please specify] _____.

Plaintiff*

Date: _____

Defendant*

Date: _____

*Delete where inapplicable.

Option 2: The Agreement for Lease will be terminated.

1. The deposit to be refunded by the HDB will be used to [please tick if applicable]:
 - ☐ (a) pay all moneys due to the HDB.
 - ☐ (b) refund the Plaintiff's CPF moneys used for the flat and the accrued interest*.
 - ☐ (c) refund the Defendant's CPF moneys used for the flat and the accrued interest*.
 - ☐ (d) others [please specify] _____.
2. [If 1(a) above is not selected and there are moneys due to the HDB]. The moneys due to the HDB will be borne by:

Plaintiff _____ %	\$ _____	*
Defendant _____ %	\$ _____	*
3. If 1(b) or (c) above is not selected and the CPF moneys of the Plaintiff and/or the Defendant have been used for the flat [please tick if applicable]:
 - ☐ (a) The Plaintiff/The Defendant* will refund the Plaintiff's CPF moneys used for the flat and the accrued interest.
 - ☐ (b) The Plaintiff/The Defendant* will refund the Defendant's CPF moneys used for the flat and the accrued interest.
4. The conveyancing, stamp, registration and administrative fees of the termination of the Agreement for Lease will be borne by:

Plaintiff _____ %	\$ _____	*
Defendant _____ %	\$ _____	*
5. The balance or shortfall will be divided in the following manner:

Plaintiff _____ %	\$ _____	*
Defendant _____ %	\$ _____	*

Time Frame

The parties will apply to the HDB to terminate the Agreement for Lease:

- ☐ by [please specify the date] _____;
- ☐ within _____ weeks/months of the order of court on the HDB flat;
- ☐ within _____ weeks/months of the grant of the Final Judgment;
- ☐ others [please specify] _____.

Plaintiff*

Date: _____

Defendant*

Date: _____

*Delete where inapplicable.

Option 3: The flat will be sold in the open market.

1. The selling price shall be determined in the following manner [please tick where appropriate]:
 - ☐ By mutual agreement;
 - ☐ Not lower than \$ _____;
 - ☐ Not lower than _____% of the valuation and the valuation is to be determined by:
 - ☐ A valuer appointed by the HDB on a loan basis;
 - ☐ Others [please specify] _____ on:
 - ☐ An open market basis;
 - ☐ A loan basis;
 - ☐ others [please specify] _____.
2. The sale proceeds will be used to [please tick if applicable]:
 - ☐ (a) repay the outstanding mortgage loan;
 - ☐ (b) pay all moneys due to the HDB (including resale levy and upgrading levy, if applicable, but excluding the conveyancing, stamp, registration and administrative fees of the sale);
 - ☐ (c) refund the Plaintiff's CPF moneys used for the flat and the accrued interest*;
 - ☐ (d) refund the Defendant's CPF moneys used for the flat and the accrued interest*;
 - ☐ (e) others [please specify] _____.
3. If 2(a) or (b) above is not selected and there is an outstanding mortgage loan or moneys due to the HDB [please tick if applicable]:
 - ☐ The outstanding mortgage loan will be repaid by:
Plaintiff _____% \$ _____*
Defendant _____% \$ _____*
 - ☐ The moneys due to the HDB will be repaid by:
Plaintiff _____% \$ _____*
Defendant _____% \$ _____*
4. If 2(c) or (d) above is not selected and the CPF moneys of the Plaintiff and/or the Defendant have been used for the flat [please tick if applicable]:
 - ☐ (a) The Plaintiff/The Defendant* will refund the Plaintiff's CPF moneys used for the flat and the accrued interest.
 - ☐ (b) The Plaintiff/The Defendant* will refund the Defendant's CPF moneys used for the flat and the accrued interest.

5. The conveyancing, stamp, registration and administrative fees of the sale will be borne by:

Plaintiff \$ _____ *
_____ %
Defendant \$ _____ *
_____ %

6. The balance of the proceeds/shortfall will be divided in the following manner:

Plaintiff \$ _____ *
_____ %
Defendant \$ _____ *
_____ %

Time Frame

The parties will apply to the HDB to sell the flat in the open market:

- ☐ by [*please specify the date*] _____;
- ☐ within _____ weeks/months of the order of court on the HDB flat;
- ☐ within _____ weeks/months of the grant of the Final Judgment;
- ☐ others [*please specify*] _____.

Plaintiff*

Defendant*

Date: _____

Date: _____

*Delete where inapplicable.

Option 4: The Plaintiff's share in the flat will be sold/transferred* to the Defendant and/or other(s).

1. The sale/transfer* is [please tick one]:

- ☐ with no cash consideration.
- ☐ with cash consideration and the Defendant will pay the Plaintiff [please tick where applicable]:

☐ \$ _____

☐ _____ % of the net value:

(a) the net value is:

\$ _____ /the valuation/others [*please specify*]*
_____ less the following:

- ☐ Plaintiff's CPF moneys used for the flat;
- ☐ Plaintiff's accrued interest on CPF moneys used;
- ☐ Defendant's CPF moneys used for the flat;
- ☐ Defendant's accrued interest on CPF moneys used;

- ☐ the amount of outstanding mortgage loan;
- ☐ the moneys due to the HDB;
- ☐ the conveyancing, stamp, registration and administrative fees of the sale/transfer*;
- ☐ others [please specify] _____.

(b) *the valuation is to be determined by:

- ☐ a valuer appointed by the HDB on a loan basis;
- ☐ others [please specify] _____ on:
 - ☐ an open market basis;
 - ☐ a loan basis;
 - ☐ others [please specify] _____.

2. ☐ The Plaintiff/Defendant* will refund the Plaintiff's CPF moneys used for the flat.
- ☐ The Plaintiff/Defendant* will refund the accrued interest on the Plaintiff's CPF moneys used for the flat.

3. The outstanding mortgage loan will be borne by:

Plaintiff	\$ _____ *
_____ %	
Defendant	\$ _____ *
_____ %	

4. All moneys due to the HDB, if any, will be borne by:

Plaintiff	\$ _____ *
_____ %	
Defendant	\$ _____ *
_____ %	

5. The conveyancing, stamp, registration and administrative fees of the sale/transfer* will be borne by:

Plaintiff	\$ _____ *
_____ %	
Defendant	\$ _____ *
_____ %	

6. Other details [please specify] _____.

Time Frame

The parties will apply to the HDB to sell or transfer the Plaintiff's share in the flat:

- ☐ by [please specify the date] _____;
- ☐ within _____ weeks/months of the order of court on the HDB flat;
- ☐ within _____ weeks/months of the grant of the Final Judgment;
- ☐ others [please specify] _____.

Plaintiff*

Defendant*

Date: _____ Date: _____

Date: _____

*Delete where inapplicable.

Option 5: The Defendant's share in the flat will be sold/transferred* to the Plaintiff and/or other(s).

1. The sale/transfer* is [please tick one]:

- ☐ with no cash consideration.
- ☐ with cash consideration and the Plaintiff will pay the Defendant [please tick where applicable]:
- ☐ \$ _____
- ☐ _____ % of the net value:

(a) the net value is:

\$ _____/the valuation/others [please specify]*
less the following:

- ☐ Plaintiff's CPF moneys used for the flat;
- ☐ Plaintiff's accrued interest on CPF moneys used;
- ☐ Defendant's CPF moneys used for the flat;
- ☐ Defendant's accrued interest on CPF moneys used;
- ☐ the amount of outstanding mortgage loan;
- ☐ the moneys due to the HDB;
- ☐ the conveyancing, stamp, registration and administrative fees of the sale/transfer*;
- ☐ others [*please specify*] _____.

(b)* the valuation is to be determined by:

- ☐ a valuer appointed by the HDB on a loan basis;
- ☐ others [*please specify*] _____ on:
 - ☐ an open market basis;
 - ☐ a loan basis;
 - ☐ others [*please specify*] _____.

2. ☐ The Plaintiff/Defendant* will refund the Defendant's CPF moneys used for the flat.

☐ The Plaintiff/Defendant* will refund the accrued interest on the Defendant's CPF moneys used for the flat.

3. The outstanding mortgage loan will be borne by:

Plaintiff	%	\$	*
-----------	---	----	---

Defendant	%	\$	*
-----------	---	----	---

4. All moneys due to the HDB, if any, will be borne by:

Plaintiff _____ % \$ _____ *

Defendant _____ % \$ _____ *

5. The conveyancing, stamp, registration and administrative fees of the sale/transfer* will be borne by:

Plaintiff _____ % \$ _____ *

Defendant _____ % \$ _____ *

6. Other details [*please specify*] _____.

Time Frame

The parties will apply to the HDB to sell or transfer the Defendant's share in the flat:

- ☐ by [*please specify the date*] _____;
- ☐ within _____ weeks/months of the order of court on the HDB flat;
- ☐ within _____ weeks/months of the grant of the Final Judgment;
- ☐ others [*please specify*] _____.

Plaintiff*

Date: _____

Defendant*

Date: _____

*Delete where inapplicable.

Option 6: Others

Please state the full details of the agreement.

Time Frame

The parties will apply to the HDB to surrender/sell in the open market/sell or transfer a party's share in* the flat:

- ☐ by [*please specify the date*] _____;
- ☐ within _____ weeks/months of the order of court on the HDB flat;
- ☐ within _____ weeks/months of the grant of the Final Judgment;
- ☐ others [*please specify*] _____.

Plaintiff*

Date: _____

Defendant*

Date: _____

*Delete where inapplicable.

Form 14

R. 46

(PLAINTIFF'S PROPOSED MATRIMONIAL PROPERTY PLAN FORM)
IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE
Divorce Writ No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

PLAINTIFF'S PROPOSED MATRIMONIAL PROPERTY PLAN
(FOR HOUSING AND DEVELOPMENT BOARD FLATS ONLY)

1. Particulars of the Property

- (a) Address of matrimonial property (the Flat):
- (b) Sales Registration Number*: [*if there is only an Agreement for Lease and the buyers have not taken possession of the flat*]:
- (c) Name of lessee(s):
- (d) Names of permitted occupiers and relationship with each lessee:
- (e) Sole tenancy/Joint tenancy/Tenancy in common [*please specify shares*]*:
- (f) Type of flat [*i.e. whether 3-room, 4-room, 5-room, Executive, etc.*]:
- (g) Date of purchase of flat:
- (h) Purchase price of flat:

2. Proposed Arrangements

- (a) Payments made by each lessee towards the purchase of the Flat.
[*To state in respect of each lessee*]
 - (i) Initial capital payment [*derived from the difference between the purchase price and HDB loan amount (where applicable). To also state whether in Central Provident Fund (CPF) moneys or cash*]:
 - (ii) Conveyancing, stamp, registration and administrative fees [*to state whether in CPF moneys or cash*]:
 - (iii) Instalments per month [*to state whether in CPF moneys or cash*]:
 - (iv) Indirect contributions:
- (b) Amount of loan granted by the HDB/Financial institution:
- (c) Amount of outstanding loan due to the HDB/Financial institution as at date of enquiry with HDB (via "my HDBpage")/Financial institution, i.e. [*to state exact date*]:
- (d) The relevant CPF statements and additional CPF information (if applicable) dated [*to state date*] are annexed to this plan as Annex [*to state number*].

- (e) **(For Plaintiffs who are above the age of 55) I am/The Plaintiff is* above the age of 55 years and the amount required to be refunded into my/his/her* CPF account in the event of a sale of the flat/transfer in ownership of the flat:*
- (f) Parties are required/not required* to surrender the Flat to the HDB. [*If parties are required to surrender the Flat to the HDB, state the estimated surrender value of the Flat (if known)*]
- (g) Parties are eligible/not eligible* to sell the Flat on the open market. [*If parties are not eligible to sell the Flat on the open market, state the reasons why*].
- (h) Valuation of the Flat
The estimated value of the Flat is: [*to state estimated value of the Flat and the basis of the valuation*]
- (i) Plaintiff's proposal with respect to the Flat

The Plaintiff's proposal with respect to the Flat is as follows:

(Choose one or more of the following options. If more than one option is chosen, state the order of preference in brackets beside the option.)

- (i) Option 1: The Flat will be surrendered to the HDB.
- (ii) Option 2: The Agreement for Lease with the HDB will be terminated.
- (iii) Option 3: The Flat will be sold in the open market.
- (iv) Option 4: The Plaintiff's share in the Flat will be sold/transferred* to:
 - (A) The Defendant
 - (B) The Defendant and [*state name and relationship with the Defendant*]
 - (C) [*state name and relationship with the Plaintiff/the Defendant*]
- (v) Option 5: The Defendant's share in the Flat will be sold/transferred* to:
 - (A) The Plaintiff
 - (B) The Plaintiff and [*state name and relationship with the Plaintiff*]
 - (C) [*state name and relationship with the Defendant/the Plaintiff*]
- (vi) Option 6: Others [*please state brief details*]

Particulars of my/the Plaintiff's* proposal (for each option selected) are attached as Annex [*to state number*]. [*To fill in Option 1, 2, 3, 4, 5 or 6 as set out in Form 89, and to attach only the relevant pages to this form.*]

3. Confirmation Statement

I confirm/The Plaintiff confirms* that enquiries have been made with the HDB/HDB and the Central Provident Fund Board (CPFBoard)* on [*to state date*], and that the contents of this document are a true and accurate reflection of the information obtained from the HDB/CPFBoard/HDB and CPFBoard* on [*to state date*].

Signature (Plaintiff/Plaintiff's Solicitor*):

Date:

*Delete where inapplicable.

Form 15

R. 47, 48, 49, 51, 60, 84

(ACKNOWLEDGMENT OF SERVICE (OTHER PARTY) FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Writ No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

ACKNOWLEDGMENT OF SERVICE

(CO-DEFENDANT/DEFENDANT IN COUNTERCLAIM/PERSON
ENTITLED TO INTERVENE/OTHER PARTY [TO SPECIFY]*)

1. I acknowledge that I am [*state name*]
2. I acknowledge that I have received the following documents: (*Choose one or more of the following*)
 - (a) Writ of Summons
 - (b) Statement of Claim
 - (c) Statement of Particulars
 - (d) Defence/Defence and Counterclaim
 - (e) Other documents [*please specify*]*(Collectively, the documents)
3. I received the documents on [*to state date*] at [*to state address*].

Signed (Co-Defendant/Defendant in Counterclaim/Person Entitled to Intervene/Other Party [*to specify*]*):

Name:

ID No.:

Date:

*Delete where inapplicable.

Form 16

R. 47, 48, 54, 56, 60, 84

(MEMORANDUM OF APPEARANCE (OTHER PARTY) FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Writ No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

MEMORANDUM OF APPEARANCE

(CO-DEFENDANT/DEFENDANT IN COUNTERCLAIM/PERSON ENTITLED
TO INTERVENE/OTHER PARTY [TO SPECIFY]*)

1. I am the Co-Defendant/Defendant in Counterclaim/Other Party [*to specify*]* and I intend/do not intend* to defend the action by denying the following allegations:
 - (a) adultery*
 - (b) any other allegation [*to specify*]*

OR

I am the person entitled to intervene in this matter, and I intend/do not intend* to intervene in this matter and defend the action by denying the following allegations:

- (a) adultery*
 - (b) any other allegation [*to specify*]*
2. I received the Writ of Summons and Statement of Claim/Defence/Defence and Counterclaim/Other Document [*please specify*]* on [*to state date*] at [*to state address*].

(Note: You must, within 22/35 days after receiving the Writ and Statement of Claim, file a Defence in court and serve a copy of the same on all the other parties to these proceedings within 2 working days of filing the Defence, unless you do not intend to defend the action.)*

3. I wish/do not wish* to be heard on the claim for costs against me.
4. The address to which communications to me should be sent is:

(Note: This must be an address in Singapore. If a solicitor is acting for you, give the name and address of your solicitor. If you do not give an address in Singapore, you will have no right to be heard in these proceedings.)

5. My other contact particulars are:

Telephone:

Handphone Number:

Fax:

Signed (Co-Defendant/Defendant in Counterclaim/Person Entitled to Intervene/Other Party [*please specify*]*):

Name:

ID No.:

Date:

*Delete where inapplicable.

Form 17

R 48, 49, 51

(ACKNOWLEDGMENT OF SERVICE (DEFENDANT) FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Writ No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

ACKNOWLEDGMENT OF SERVICE (DEFENDANT)

1. I acknowledge that I am [*state name*]
2. I acknowledge that I have received the following documents: [*Choose one or more of the following*]
 - (a) Writ of Summons
 - (b) Statement of Claim
 - (c) Statement of Particulars
 - (d) Agreed/Proposed* Parenting Plan (By Plaintiff)*
 - (e) Agreed/Proposed* Matrimonial Property Plan (By Plaintiff)*
 - (f) Other documents [*please specify*]

(Collectively, the documents)
3. I received the documents on [*to state date*] at [*to state address*]

Signed (Defendant):

Name:

ID No.:

Date:

*Delete where inapplicable.

Form 18

R. 48, 54, 56,

(MEMORANDUM OF APPEARANCE (DEFENDANT) FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Writ No.

Between

[Plaintiff's Name] (ID No.) *Plaintiff*

And

[Defendant's Name] (ID No.) *Defendant*

MEMORANDUM OF APPEARANCE (DEFENDANT)

1. I am the Defendant and I intend/do not intend* to defend the action.

I am/am not* a bankrupt.

I received the Writ of Summons (Writ) and Statement of Claim on *[to state date]*
at *[to state address]*:

2. *The Statement of Claim alleges that there has been 3 years' separation and that you the Defendant consent to a judgment being granted. I consent/do not consent* to a judgment being granted.

(Note: Before you answer this question, you should understand that —

- (a) if the Plaintiff satisfies the court that the Plaintiff and you have lived apart for 3 years immediately before the filing of the Writ and that you consent to a judgment being granted, the court will grant one unless it considers that the marriage has not broken down irretrievably; and*
- (b) a final judgment will end your marriage and may have consequences in your case depending on your particular circumstances. If you are unsure about the consequences, you should consult a lawyer.*

If after consenting you wish to withdraw your consent, you must immediately inform the court and give notice to the Plaintiff.)

3. *The Plaintiff is also making various claims for relief in this Writ. I wish to be heard on all these claims/some of these claims*.

(To choose one or more of the following, circle the relevant item(s))

- (a) Custody* of and/or care and control* of the child/children* of the marriage*
- (b) Access to the child/children* of the marriage. I will be filing my Agreement to Plaintiff's Proposed Parenting Plan/Defendant's Proposed Parenting Plan**
- (c) Division of the matrimonial home. I will be filing my Agreement to Plaintiff's Proposed Matrimonial Property Plan/Defendant's Proposed Matrimonial Property Plan**
- (d) Division of the matrimonial assets (other than the matrimonial home)*
- (e) Maintenance for the wife / incapacitated husband**
- (f) Maintenance for the child/children* of the marriage*

(g) Costs

(h) Others [to specify]:

(Please note that you may be heard on these claims even if you do not defend the action and do not file a Defence or Defence and Counterclaim in court.)

4. *I wish to make claims for relief in the following matters, which have not been dealt with in the Writ:

(To choose one or more of the following, circle the relevant item(s))

(a) Custody* of and/or care and control* of the child/children* of the marriage

(b) Access to the child/children* of the marriage

(c) Division of the matrimonial home

(d) Division of the matrimonial assets (other than the matrimonial home)

(e) Maintenance for the wife

(f) Maintenance for the child/children* of the marriage

(g) Costs

(h) Others [to specify]:

5. *I am a wife Defendant /incapacitated husband Defendant*.

I wish to/do not wish to* make a claim for maintenance for myself.

6. The address to which communications to me should be sent is:

(Note: This must be an address in Singapore. If a solicitor is acting for you, give the name and address of your solicitor in Singapore. If you do not give an address in Singapore, you will have no right to be heard in these proceedings.)

7. My other contact particulars are:

Telephone:

Handphone Number:

Fax:

Signed (Defendant/Defendant's solicitor*):

Name:

ID No.:

Date:

*Delete where inapplicable.

Form 19

R. 50

(NOTICE OF PROCEEDINGS (ADVERTISEMENT) FORM)

NOTICE OF PROCEEDINGS FOR ADVERTISEMENT IN THE NEWSPAPERS

NOTICE OF PROCEEDINGS

To: *[State name and ID number of the Defendant/Co-Defendant/Defendant in Counterclaim/Person Entitled to Intervene/Other Party [to specify]*]*

1. Take Notice that a Writ of Summons and Statement of Claim/Defence/Defence and Counterclaim/other document *[to specify]** in Divorce Writ No. *[to state number]* has been filed in court by *[Plaintiff's/Defendant's Name]* on *[date]*. You are the Defendant/Co-Defendant/Defendant in Counterclaim/Person Entitled to Intervene/Other Party *[to specify]** in these proceedings.
2. It has been ordered that service of the abovementioned document on you be effected by this advertisement. If you intend to defend this action, you must file the Memorandum of Appearance (Defendant) Form/Memorandum of Appearance (Other Party) Form* (MOA) within 8/21* days from the publication of this advertisement. If you do not file the MOA within such time, you are NOT entitled to be heard in these proceedings. This means that the court may, without notice to you, proceed to hear the action and pronounce judgment in your absence, and make all further orders in the proceedings without further reference to you.

Contact particulars of Plaintiff/Plaintiff's Solicitor*:

1. Name and ID Number of Plaintiff/Plaintiff's Solicitor*:
2. Contact Particulars of Plaintiff/Plaintiff's Solicitor's Firm*:

Firm name*:

Address:

Telephone Number:

Fax Number*:

File Reference Number*:

*Delete where inapplicable.

Form 20

R. 51

(AFFIDAVIT OF SERVICE FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Writ No.

Between

[Plaintiff's Name] (ID No.) *Plaintiff*

And

[Defendant's Name] (ID No.) *Defendant*

AFFIDAVIT OF SERVICE

***Affidavit of Personal Service**

I, *[to state name and ID No.]* of *[to state address]*, make oath and say/affirm* as follows:

The following document(s) was/were* duly served by me on *[to state name of recipient of documents]* by delivering to him/her* personally a copy/copies* of the same on *[to state date and time of service]* at *[to state address]*:

(Please choose one or more of the following)

- (a)* Writ of Summons
- (b)* Statement of Claim
- (c)* Statement of Particulars
- (d)* Notice to a Co-Defendant/Defendant in Counterclaim/Person Entitled to Intervene/Other Party *[to specify]**
- (e)* Agreed/Proposed* Parenting Plan (By Plaintiff)*
- (f)* Agreed/Proposed* Matrimonial Property Plan (For Housing Development Board flats Only) (By Plaintiff)*
- (g)* Defence
- (h)* Defence and Counterclaim
- (i)* Other documents *[please specify]*

The person served with the document(s), *[to state name of recipient of documents]*, is known to me/was pointed out to me by *[to state name]*/admitted to me that he/she* was *[to state name of recipient of documents]**.

[Sworn (or affirmed) as in Form 132 in Appendix A of the Practice Directions.]

OR

***Affidavit of Substituted Service by Post or other Process (Excluding Newspaper Advertisement)**

I, *[to state name and ID No.]* of *[to state address]*, make oath and say/affirm* as follows:

The following document(s) was/were* duly served by me on [*to state name of recipient of documents*] by [*to state mode of service and date and time of service*], in accordance with the order for substituted service dated [*to state date of substituted service order*]:

- (a) Order of Court for Substituted Service of Documents
- (b) Writ of Summons
- (c) Statement of Claim
- (d) Statement of Particulars
- (e) Notice to a Co-Defendant/Defendant in Counterclaim/Person Entitled to Intervene/Other Party [*to specify*]*
- (f) Agreed/Proposed* Parenting Plan (By Plaintiff)*
- (g) Agreed/Proposed* Matrimonial Property Plan (For Housing Development Board flats Only) (By Plaintiff)*
- (h) Defence
- (i) Defence and Counterclaim
- (j) Other documents [*please specify*]

[Sworn (or affirmed) as in Form 132 in Appendix A of the Practice Directions.]

OR

*Affidavit of Service by Advertisement

I, [*to state name and ID No.*] of [*to state address*], make oath and say/affirm* as follows:

The Writ of Summons and Statement of Claim/Defence/Defence and Counterclaim* and Order of Court for Substituted Service were duly served by me on [*to state name of recipient of documents*] by causing to be inserted in [*name of paper or papers as ordered*] an advertisement on [*to state date*].

A copy of the said advertisement is annexed to this affidavit.

[Sworn (or affirmed) as in Form 132 in Appendix A of the Practice Directions.]

*Delete where inapplicable.

Form 21

R. 56

(DEFENCE AND/OR COUNTERCLAIM FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Writ No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

DEFENCE* AND COUNTERCLAIM*

1. Particulars of Defendant

Age:

Citizenship:

Religion:

Educational Level:

Current occupation:

Current address:

2. Defence

- (a) To deny or admit the paragraphs of the Statement of Claim (and Statement of Particulars). To state full particulars of the facts relied on but not the evidence by which they are to be proved.
- (b) To state whether any, and if so what, agreement or arrangement has been made or is proposed to be made between the parties for the support of the wife or any child of the marriage.
- (c) If any statements set out in the Statement of Claim concerning the living children of the marriage are disputed, full particulars of the facts relied on are to be stated in the Defence.
- (d) If any information on the following matters has not been provided in the Statement of Claim, or if any statement set out in relation to the following matters in the Statement of Claim is disputed, the Defence is to furnish information on the same, with the details as set out in sub-paragraphs (i) and (ii) below:

Whether there are or have been other proceedings in Singapore or elsewhere with reference to the marriage, or to any children of the marriage, or between the Plaintiff and the Defendant with reference to maintenance or to any property of either or both of them.

- (i) Nature of the proceedings, i.e. whether:
 - (A) Matrimonial proceedings; and/or

- (B) Family violence (between the Plaintiff, Defendant and any children of the marriage); and/or
 - (C) Custody, care and control and/or access to the children of the marriage; and/or
 - (D) Proceedings in youth court in respect of the children of the marriage; and/or
 - (E) Maintenance (for wife and any children of the marriage); and/or
 - (F) Matrimonial Property; and/or
 - (G) Other proceedings which may be relevant to the present proceedings (such as bankruptcy proceedings).
- (ii) Details of the proceedings
- [to state in relation to each of the proceedings set out in paragraph (i) above]*
- (A) The suit number:
 - (B) The date of any decree or order or judgment:
 - (C) Decree or order or judgment made:
 - (D) If no decree or order or judgment has been made, the status of the proceedings:
- (iii) There are bankruptcy proceedings against the Defendant pending as at *[to state date, which shall not be later than 7 days immediately preceding the filing of the Defence and/or Counterclaim]*:
- (A) The suit number:
 - (B) Whether creditor's bankruptcy application or debtor's bankruptcy application:
 - (C) Name of Creditor:
 - (D) Amount of debt claimed:
 - (E) Status of proceedings;

3. Counterclaim*

The Defendant is required to attend a parenting programme by the Ministry of Social and Family Development before filing a Counterclaim.

*The Defendant has participated in a parenting programme and has been issued with a Certificate of Completion by the Ministry of Social and Family Development, before filing the Counterclaim.

A copy of the Certificate of Completion is annexed herein (Annex *[to state number]*)

OR

*The Defendant has not participated in a parenting programme but:

- (a) has been issued with a Note of Exclusion by the Ministry of Social and Family Development; or
- (b) has obtained an Order of Court allowing the Defendant to file the Counterclaim pursuant to section 94A(4) of the Women's Charter.

A copy of the Note of Exclusion/Order of Court* is annexed herein (Annex [to state number]).

- (1) The Defendant repeats paragraph(s) [to state the numbers of the relevant paragraphs] of the Statement of Claim.
- (2) The Defendant is/is not* a bankrupt.
- (3) Ground on which Relief is Sought.

The marriage is void

- (a) *(For marriages that took place after 1st June 1981) The marriage is not valid under section 105 of the Women's Charter: (*Choose one or more of the following*)
 - (i) by virtue of section 3(4)/5/9/10/11/12/22* of the Women's Charter
 - (ii) (*for marriages celebrated outside Singapore*) for the lack of capacity
 - (iii) (*for marriages celebrated outside Singapore*) under the law of the place in which the marriage was celebrated.
- (b) *(For marriages that took place on or before 1st June 1981) The marriage is not valid for the reasons stated in the Counterclaim.
- (c) *(For marriages that took place on or after 1 July 2016) The marriage is not valid by virtue of s11A of the Women's Charter.

OR

The marriage is voidable

- (a) *(For marriages that took place after 1st June 1981) The marriage is voidable under section 106 of the Women's Charter on the following ground(s): (*Choose one or more of the following*)
 - (i) That the marriage has not been consummated owing to the incapacity of either party [*please specify*] to consummate it.
 - (ii) That the marriage has not been consummated owing to the wilful refusal of the Plaintiff to consummate it.
 - (iii) That the Plaintiff/Defendant* did not validly consent to the marriage, in consequence of duress* and/or mistake* and/or unsoundness of mind/lack of capacity* and/or the facts stated in the Statement of Particulars [*please specify in the Statement of Particulars*]*.
 - (iv) That at the time of the marriage the Plaintiff/Defendant* though capable of giving a valid consent, was suffering (whether continuously or intermittently) from mental disorder within the meaning of the Mental Health (Care and Treatment) Act (Cap. 178A) of such a kind or to such an extent as to be unfit for marriage.
 - (v) That at the time of the marriage the Plaintiff was suffering from venereal disease in a communicable form, and the Defendant was at the time of the marriage ignorant of the facts alleged.
 - (vi) That at the time of the marriage the Plaintiff was pregnant by some person other than the Defendant and the Defendant was at the time of the marriage ignorant of the facts alleged.

- (b) *(For marriages that took place on or before 1st June 1981) The marriage is voidable for the reasons stated in the Counterclaim.

[Full particulars of the individual facts relied on but not the evidence by which they are to be proved.]

OR

The marriage has broken down irretrievably

Fact(s) relied on for the irretrievable breakdown of the marriage (for the purposes of section 95A of the Women's Charter):

(Choose one of the following)

- (a) That the Plaintiff has committed adultery and the Defendant finds it intolerable to live with the Plaintiff.
- (b) That the Plaintiff has behaved in such a way that the Defendant cannot reasonably be expected to live with the Plaintiff.
- (c) That the Plaintiff has deserted the Defendant for a continuous period of at least 2 years immediately preceding the filing of the writ.
- (d) That the parties to the marriage have lived apart for a continuous period of at least 3 years immediately preceding the filing of the writ and the Plaintiff consents to a judgment being granted. The Plaintiff's consent is exhibited at Annex *[to state number]** (if available).
- (e) That the parties to the marriage have lived apart for a continuous period of at least 4 years immediately preceding the filing of the writ.
- (f) That the parties to the marriage agree that the marriage has irretrievably broken down.

[Full particulars of the individual facts relied on to be stated but not the evidence by which they are to be proved.]

4. Relief Claimed

[To state the particulars of relief claimed by the Defendant.]

- (a) That the claim be dismissed
- (b) Costs
- (c) Others *[please specify]*

For cases where a Counterclaim has been filed*:

(Choose one or more of the following, providing particulars of the relief claimed where possible.)

- (a) That the claim be dismissed.
- (b) On the Counterclaim: That the marriage be declared null and void*.

OR

That the marriage be dissolved*.

OR

That a judgment of judicial separation be granted*.

- (c) Custody* of and/or care and control* of the child/children* of the marriage
- (d) Access to the child/children* of the marriage

- (e) Division of the matrimonial home
- (f) Division of the matrimonial assets (other than the matrimonial home)
- (g) Maintenance for the wife/incapacitated husband*
- (h) Maintenance for the child/children* of the marriage
- (i) Costs
- (j) Others [*please specify*]

5. Persons to be served with this Defence/Defence and Counterclaim*

(a) Plaintiff

Name:

Address: Plaintiff is a person under a disability*.

[*To state particulars of Plaintiff's disability*]

(b) Co-Defendant/Defendant in Counterclaim/Other Party (*please specify*)*

Name:

Address:

Co-Defendant/Defendant in Counterclaim/Other Party (*please specify*)* is a person under a disability*.

[*To state particulars of Co-Defendant's/Defendant in Counterclaim's/Other Party's disability*]

6. The Defendant is aware of*, or has been informed by the solicitor acting for him about*, the options of family mediation or counselling, before filing the defence.

Signature:

Name of Defendant/Defendant's Solicitor*:

Date:

*Delete where inapplicable.

Form 22

R. 56, 57

(OTHER PLEADING FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Writ No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

DEFENCE TO COUNTERCLAIM*/REPLY*/REPLY AND DEFENCE TO
COUNTERCLAIM*/REPLY TO DEFENCE TO
COUNTERCLAIM*/OTHER PLEADING (TO SPECIFY)*

1. [*To deny or admit the paragraphs of the previous pleading. To state full particulars of the facts relied on but not the evidence by which they are to be proved.*]
2. Persons to be served with this pleading*

(a) Plaintiff/Defendant*

Name:

Address:

Plaintiff/Defendant* is a person under a disability*.

[*To state particulars of Plaintiff's/Defendant's* disability.*]

(b) Co-Defendant/Defendant in Counterclaim/Other Party [*please specify*]*

Name:

Address:

Co-Defendant/Defendant in Counterclaim/Other Party [*please specify*]* is a person under a disability*.

[*To state particulars of Co-Defendant's/Defendant in Counterclaim's/Other Party's disability*]

Signature:

Name of Party/Party's Solicitor*:

Date:

*Delete where inapplicable.

Form 23

R. 56

(DEFENDANT'S AGREEMENT (PARENTING PLAN) FORM)
IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE
Divorce Writ No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

DEFENDANT'S AGREEMENT TO PLAINTIFF'S PROPOSED
PARENTING PLAN

Defendant's Agreement

[*The Defendant's agreement can be confirmed by completing either option (a) or option (b) below.*]

- (a) I, the Defendant, agree with the following order(s) sought in paragraph 4 of the Plaintiff's Proposed Parenting Plan

[*to state the specific order(s) agreed to*]

Signature (Defendant):

Name:

ID No.:

Date:

- (b) The Defendant agrees with the following order(s) sought in paragraph 4 of the Proposed Parenting Plan (By Plaintiff).

[*to state the specific order(s) agreed to*]

Signed on behalf of the Defendant by the Defendant's solicitor:

Form 24

R. 56

(DEFENDANT'S PROPOSED PARENTING PLAN FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Writ No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

PROPOSED PARENTING PLAN (BY DEFENDANT)

I, the Defendant, do not agree with the orders sought in paragraph 4 of the Proposed Parenting Plan (by Plaintiff), and I wish to be heard by the court on the issues of custody, care and control and access. I set out my position on the current arrangements as well as my proposed arrangements for the children of the marriage below.

1. Current Arrangements

The current arrangements for the child/children* of the marriage are as follows:

[*to state in respect of each child*]

(a) Residence [*state where the child is currently living with particulars of accommodation and what other persons live there, with their names and relationship to the child stated.*]

(b) Care arrangements (this section need not be completed if the child is already working at the present time)

(i) *If the child is presently not attending school on a daily basis, to complete the following section:

(A) Are both parents working?

(B) Who looks after the child during the day and at night?

(i.e. father/mother/maid/elder siblings/relatives [*to specify nature of relationship to the child*]/a combination of the above/others [*to specify*]*)

(C) Where is the child cared for during the day and at night?

(i.e. at the matrimonial home/childcare centre/babysitter/relative's home [*to specify nature of person's relationship to the child*]/others [*to specify*]*)

(D) For how long has this arrangement been in place?

[*State estimated period of time, i.e. from which date till the present date*]

(ii) *If child is presently attending school on a daily basis, to state:

(A) The child's school hours.

- (B) Where and by whom is the child being cared for before and after school hours?
- (iii) *Where parties are no longer residing at the same address, to state:
 - (A) Who is the parent who does NOT live with the child (the non-custodial parent)?
 - (B) When was the last time the non-custodial parent visited the child?
 - (C) How often does the non-custodial parent visit the child?
 - (D) Does the child sometimes stay overnight with the non-custodial parent?
- (c) Education/Employment* [*state the school or other educational establishment which the child has been and is currently attending, or if he is working, his place of employment, the nature of his work and details of any training he is receiving.*];
- (d) Financial provision [*state who has been and is presently supporting the child or contributing to his support and the extent thereof.*]; and
- (e) Access [*state what are the current arrangements for access and the extent to which access has been given.*]
- (f) Other relevant information
[State any other information which is relevant to the matters concerning the arrangements for the child, for example, whether the Plaintiff or Defendant is suffering from any physical or mental disability, whether the Plaintiff or Defendant has any previous convictions and if so, the nature of the conviction, and whether the Plaintiff or Defendant has been committed to a drug rehabilitation centre and if so, when and for how long.]

2. Proposed Arrangements

The proposed arrangements for the child/children* of the marriage are as follows:

[State in respect of each child for those matters which have not been agreed]

- (a) Residence [*state where the child is to live with particulars of accommodation and what other persons live there, with their names and relationship to the child stated.*]
- (b) Care giver [*state who is to look after the child during the day, at night, during weekends and school holidays.*]
- (c) Education, etc. [*state the school or other educational establishment which the child will attend, or if he is working, his place of employment, the nature of his work and details of any training he will receive.*].

3. Orders Sought

I am seeking the following orders to be made by the court:

- (a) *[Set out details of any orders sought regarding custody, care and control of and access to the children of the marriage. If orders for split care and control of the children of the marriage are being sought, e.g. for care and control of one child to be granted to one parent, and for care and control of the other child to be granted to the other parent, to set out the reasons why such orders for split care and control are in the best interests of the children of the marriage.]*
- (b) *[Set out details of any orders sought regarding maintenance for the children of the marriage]*

I confirm that all the matters set out in this Proposed Parenting Plan are true and correct.

Signed (Defendant):

Name:

ID Number:

Date:

*Delete where inapplicable.

Form 25

R. 56

(DEFENDANT'S AGREEMENT
(MATRIMONIAL PROPERTY PLAN) FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Writ No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

DEFENDANT'S AGREEMENT TO PLAINTIFF'S PROPOSED
MATRIMONIAL PROPERTY PLAN
(FOR HOUSING AND DEVELOPMENT BOARD FLATS ONLY)

1. Defendant's Agreement

[*The Defendant's agreement can be confirmed by completing either option (a) or option (b) below.*]

- (a) I, the Defendant, agree with the proposed arrangements set out in the Plaintiff's Proposed Matrimonial Property Plan (For Housing Development Board flats Only).

[*to state the exact arrangements agreed to*]

Signature (Defendant):

Name:

ID No.:

Date:

- (b) The Defendant agrees with the proposed arrangements set out in the Plaintiff's Proposed Matrimonial Property Plan (For Housing Development Board flats Only).

[*to state the exact arrangements agreed to*]

Signed on behalf of the Defendant by the Defendant's solicitor.

2. The Defendant's relevant CPF statement and additional CPF information (if applicable) dated [*to state date*] are annexed to this plan as Annex [*to state number*].

Form 26

R. 56

(DEFENDANT'S PROPOSED
MATRIMONIAL PROPERTY PLAN FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Writ No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

DEFENDANT'S PROPOSED MATRIMONIAL PROPERTY PLAN
(FOR HOUSING AND DEVELOPMENT BOARD FLATS ONLY)

1. I, the Defendant, disagree with the proposed arrangements set out in the Plaintiff's Proposed Matrimonial Property Plan (For Housing Development Board flats Only).
2. The relevant CPF statements and additional CPF information (if applicable) dated [*to state date*] are annexed to this plan as Annex [*to state number*].
3. **(For Defendants who are above the age of 55 years)* I am above the age of 55 years and the amount required to be refunded into my CPF account in the event of a sale of the flat/transfer in ownership of the flat is:
4. My proposal in relation to the matrimonial property is as follows*:

(Choose one or more of the following options. If more than one option is chosen, state the order of preference in brackets beside the option.)

- (i) Option 1: The Flat will be surrendered to the HDB.
- (ii) Option 2: The Agreement for Lease with the HDB will be terminated.
- (iii) Option 3: The Flat will be sold in the open market.
- (iv) Option 4: The Plaintiff's share in the Flat will be sold/transferred* to:
 - (A) The Defendant
 - (B) The Defendant and [*state name and relationship with the Defendant*]
 - (C) [*state name and relationship with the Plaintiff/the Defendant*]
- (v) Option 5: The Defendant's share in the Flat will be sold/transferred* to:
 - (A) The Plaintiff
 - (B) The Plaintiff and [*state name and relationship with the Plaintiff*]

(C) *[state name and relationship with the Defendant/the Plaintiff]*

(vi) Option 6: Others (please state brief details)

Particulars of my proposal (for each option selected) are attached as Annex *[to state number]*.

[To fill in Option 1, 2, 3, 4, 5 or 6 as set out in Form 32, and to attach only the relevant pages to this form.]

Signature (Defendant):

Name:

ID No.:

Date:

*Delete where inapplicable.

Form 27

R. 61

(NOTICE OF DISCONTINUANCE FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Writ No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

NOTICE OF DISCONTINUANCE

Take Notice that the Plaintiff wholly discontinues this action.

Dated this day of 20 .

Solicitor for the Plaintiff/Name of Plaintiff (if unrepresented)

Name and address of Law Firm/Address of Plaintiff

The Defendant/Co-Defendant*/Other Party [to specify]* hereby consents to the discontinuance of this action.*

Solicitor for the Defendant/Co-Defendant*/Other Party [to specify]**

*Delete where inapplicable.

Form 28

R. 82

(REQUEST FOR SETTING DOWN FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Writ No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

REQUEST FOR SETTING DOWN ACTION FOR TRIAL

1. Request for Setting Down

- (a) I request that the Plaintiff/Defendant* be at liberty to set down this action for trial.
- (b) The duration of the trial is estimated to be [*to state number of days*], and the matter will be contested/uncontested*.

2. Mediation/Counselling Statement**

- (a) I have informed my client about*/I, the Plaintiff/Defendant*, am aware of* the options of mediation and counselling services at the court.
- (b) Parties do not have any child*/have children* who are ____ years old.
- (c) The Plaintiff and/or Defendant have:
 - (i) *been notified to attend/are attending counselling/mediation at Child Focused Resolution Centre (the CFRC);
 - (ii) *not been notified to attend counselling/mediation at the CFRC and have child/children below 21 years old;
 - (iii) *completed counselling/mediation at the CFRC or have been exempted from counselling/mediation at the CFRC*.

3. Particulars of Bankruptcy (if applicable)

[*State if either the Plaintiff or the Defendant is a bankrupt and if so, furnish details concerning the bankruptcy proceedings and whether the Official Assignee has been notified of the proceedings.*]

- (a) The Plaintiff* and/or Defendant* is a bankrupt.
- (b) Date of bankruptcy order and bankruptcy number [*please specify*].
- (c) The Official Assignee has been notified of these proceedings in writing on [*to state date*].

Signature:

Name of Party/Party's Solicitor*:

Party Type (i.e. Plaintiff or Defendant):

Date:

*Delete where inapplicable.

**If there are any outstanding issues between the parties as at the date of the filing of this Request for Setting Down Action for Trial, this section must be completed by the party filing this Request for Setting Down Action for Trial.

Form 29

R. 83

(REQUEST FOR SETTING DOWN FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Writ No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

REQUEST FOR SETTING DOWN ACTION FOR TRIAL

The Plaintiff confirms and requests the following:

1. Both the Plaintiff and the Defendant have agreed on the divorce and the ancillary matters prior to the filing of this action.
2. The Plaintiff be at liberty to set down this action for trial on an uncontested basis in chambers.
3. Facts relied on for Divorce
 - (i) adultery by Plaintiff and/or Defendant*
 - (ii) unreasonable behaviour by Plaintiff and/or Defendant*
 - (iii) 2 years' desertion by Plaintiff/Defendant*
 - (iv) 3 years' separation with consent*
 - (v) 4 years' separation*
 - (vi) mutual agreement*
4. Ancillary Matters

All of the ancillary matters have been agreed and the signed Draft Consent Order is exhibited in the Statement of Particulars.
5. I confirm that parties will not be making any further applications (e.g. abridgment of time, cost, withdrawal or amendment of pleadings etc.).
6. Parties understand that the Court may not make the required orders as requested if any of the papers are not in order, in which case a further hearing (in court or in chambers with counsel present) will be scheduled.

Signature:

Name of Party/Party's Solicitor*:

Party Type (i.e. Plaintiff or Defendant):

Date:

*Delete where inapplicable.

Form 30

R. 95

(INTERIM JUDGMENT FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Writ No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

INTERIM JUDGMENT

1. Particulars of Marriage to which this Interim Judgment Relates (the Marriage)

(a) Date and place of solemnization of marriage:

(b) Date and place of registration of marriage:

2. Interim Judgment Granted in Open Court/Chambers*

(a) Parties present: [*Choose one or more of the following*]

(i) Plaintiff*

(ii) Plaintiff's Counsel*

(iii) Defendant*

(iv) Defendant's Counsel*

(v) Other Party [*to specify*]*

(b) Pronouncement by the Judge:

(i) *That the Plaintiff has sufficiently proven the contents of the Statement of Claim;

*That the Defendant has sufficiently proven the contents of the Counterclaim;

*That the Plaintiff has sufficiently proven the contents of the Statement of Claim and that the Defendant has sufficiently proven the contents of the Counterclaim; and

(ii) that the Marriage is dissolved by reason that/is declared void by virtue of*:

[*To set out ground of divorce in the Statement of Claim/Counterclaim/Statement of Claim and Counterclaim* respectively*]

OR

That the Defendant be presumed dead and that the Marriage is dissolved* unless sufficient cause be shown to the court within [*to set out the number of weeks/months*] from the date of this Judgment why the said Judgment should not be made Final.

3. Further Orders Made (if applicable) (By Consent*)

[To set out any further orders which were made at the hearing of the Interim Judgment, including consent orders on ancillary matters]

[Insert Form 136 in Appendix A of the Practice Directions, if necessary.]

*Delete where inapplicable.

Form 31

R. 95

(JUDGMENT OF JUDICIAL SEPARATION FORM)
IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF
SINGAPORE

Divorce Writ No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

JUDGMENT OF JUDICIAL SEPARATION

1. Particulars of Marriage to which this Judgment of Judicial Separation relates (the Marriage)
 - (a) Date and place of solemnization of marriage:
 - (b) Date and place of registration of marriage:
2. Judgment of Judicial Separation Granted in Open Court/Chambers*
 - (a) Parties present: [*Choose one or more of the following*]
 - (i) Plaintiff*
 - (ii) Plaintiff's Counsel*
 - (iii) Defendant*
 - (iv) Defendant's Counsel*
 - (v) Other Party [*to specify*]*
 - (b) Pronouncement by the Judge:
 - (i) *That the Plaintiff has sufficiently proven the contents of the Statement of Claim;
*That the Defendant has sufficiently proven the contents of the Counterclaim;
*That the Plaintiff has sufficiently proven the contents of the Statement of Claim and that the Defendant has sufficiently proven the contents of the Counterclaim; and
 - (ii) that a Judgment of Judicial Separation be granted by reason that:

[*To set out ground(s) of judicial separation in the Statement of Claim/Counterclaim/Statement of Claim and Counterclaim* respectively*]
3. Further Orders Made (if applicable) (By Consent*)

[*To set out any further orders which were made at the hearing of the Judgment of Judicial Separation, including consent orders on ancillary matters*]

[Insert Form 136 in Appendix A of the Practice Directions, if necessary.]

*Delete where inapplicable.

Form 32

R. 95

(ORDER OF COURT FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF
SINGAPORE

Divorce Writ No.

Date of Order:

Made by:

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

ORDER OF COURT

1. Nature of Hearing (in Open Court/Chambers*)
Ancillary Matters*/Summons* No./Nos.: [*to state number*]
2. Parties Present at the Hearing
[*Choose one or more of the following*]
 - (a) Plaintiff*
 - (b) Plaintiff's Counsel*
 - (c) Defendant*
 - (d) Defendant's Counsel*
 - (e) Other Party [*to specify*]*
3. Orders Made (By Consent*)
[*Insert Form 136 in Appendix A of the Practice Directions, if necessary.*]

*Delete where inapplicable.

Form 33

R. 96

(CERTIFICATE OF FINAL JUDGMENT FORM)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF
SINGAPORE

Divorce Writ No.

Between

[*Plaintiff's Name*] (ID No.) *Plaintiff*

And

[*Defendant's Name*] (ID No.) *Defendant*

CERTIFICATE OF FINAL JUDGMENT (NULLITY/DIVORCE/
PRESUMPTION OF DEATH AND DIVORCE*)

As no sufficient cause has been shown to the court within [*to state number of months*] months from the Interim Judgment granted on [*to state date of Interim Judgment*], why the said Interim Judgment should not be made final, it is certified that:

[*choose one of the following*]

Nullity

1. The marriage solemnized on [*to state date of marriage*] at [*to state place of solemnization of marriage*] between [*to state the Plaintiff's name and ID Number*], and [*to state the Defendant's name and ID Number*] is void in law and the Plaintiff/Defendant* was and is free from all bond of marriage with the Defendant/Plaintiff*.

OR

Divorce

The marriage solemnized on [*to state date of marriage*] at [*to state place of solemnization of marriage*] between [*to state the Plaintiff's name and ID Number*], and [*to state the Defendant's name and ID Number*] is dissolved.

OR

Presumption of Death and Divorce

The Defendant is presumed dead and the marriage solemnized on [*to state date of marriage*] at [*to state place of solemnization of marriage*] between [*to state the Plaintiff's name and ID Number*], and [*to state the Defendant's name and ID Number*] is dissolved.

2. The Interim Judgment granted on [*to state date of Interim Judgment*] is made final on this date.

Signed: [signature of Registrar]

Registrar: [name of Registrar]

Date: [date of order]

Form 34

R. 121

**GARNISHEE ORDER TO SHOW CAUSE
IN THE FAMILY JUSTICE COURTS OF THE
REPUBLIC OF SINGAPORE**

MSS No.)

of 20)

Between

Applicant

and

Defendant

and

Garnishee

Upon the application of and upon hearing

It is ordered by the Judge that all debts due or accruing due from the abovementioned garnishee to the abovementioned defendant (in the sum of \$) be attached to answer an order made in the Family Division of the High Court/Family Court on the day of 20 ordering payment by the defendant of the sums of \$ as maintenance (together with the costs of the garnishee proceedings) on which order the sum of \$ remains due and unpaid.

And it is ordered that the garnishee attend before the Judge in Court on the day of 20 at am/pm, on an application by the said applicant that the garnishee do pay to the applicant, or such person as the Court may direct, the debt due from the garnishee to the defendant, or so much thereof as may be sufficient to satisfy the order, together with the costs of the garnishee proceedings.

Dated this day of 20 .

(Seal)

Judge

To the abovenamed garnishee and defendant.

Form 35

R. 124

GARNISHEE ORDER

(Title as in Form 73)

- (a) Garnishee order absolute where garnishee owes more than the outstanding maintenance.

Upon hearing the application of on the day of 20 , and upon reading the order to show cause made herein dated the day of 20 , and upon hearing (counsel for) the applicant and the garnishee, whereby it was ordered all debts due or accruing due from the abovenamed garnishee to the abovenamed defendant should be attached to answer an order made in the Family Justice Courts dated the day of 20 ordering payment by the said defendant of the sum of \$ as maintenance to and \$ costs (together with the costs of the garnishee proceedings) on which order the sum of \$ remained due and unpaid.

It is ordered that the said garnishee do forthwith pay to the applicant (or such person as the Court may direct) (or into Court if the applicant is resident outside the scheduled territories as defined in the Exchange Control Act (Cap. 99), or would receive payment of the said sum on behalf of a person so resident, unless the permission of the Monetary Authority of Singapore under that Act has been given unconditionally or upon conditions which have been complied with) \$ being so much of the debt due from the garnishee to the defendant as is sufficient to satisfy the outstanding maintenance and costs, together with \$ the costs of the garnishee proceedings, and that the garnishee be at liberty to retain \$ for his costs of this application out of the balance of the debt due from him to the defendant.

Dated this day of 20 .

(Seal)

Judge

GARNISHEE ORDER

(Title as in Form 73)

- (b) Garnishee order absolute where garnishee owes less than the outstanding maintenance.

Upon hearing (as above)

It is ordered that the said garnishee (after deducting therefrom \$ for his costs of this application) do forthwith pay to the said applicant (or such person as the Court may direct) (or into Court if the applicant is resident outside the scheduled territories as defined in the Exchange Control Act (Cap. 99), or would received payment of the said sum on behalf of a person so resident, unless the permission of the Monetary Authority of Singapore under that Act has been given unconditionally or upon conditions which have been complied with) \$ the debt due from the garnishee to the defendant. And that the sum of \$ the costs of the applicant of this application be added to the outstanding maintenance and be retained out of the money recovered by the applicant under this order and in priority to the amount of the outstanding maintenance.

Dated this day of 20 .

(Seal)

Judge

Form 36

R. 125

ORDER FOR ISSUE BETWEEN APPLICANT AND GARNISHEE

(Title as in Form 73)

Upon reading the application of filed the day of 20 , and the order nisi herein, dated the day of 20 , and upon hearing (counsel for) the applicant, the garnishee and the defendant.

It is ordered that the applicant and the garnishee proceed to the trial of an issue wherein the said applicant shall be plaintiff and the said garnishee shall be defendant, and that the question to be tried shall be whether there was any debt due or accruing due in any and what amount from the garnishee to the defendant against whom the maintenance order was made at the time the said order nisi was served. And it is further ordered that the question of costs and all further questions be reserved to the Judge trying the same issue.

Dated this day of 20 .

(Seal)

Judge

Form 37

R. 133

ORIGINATING SUMMONS FOR ADOPTION
IN THE FAMILY JUSTICE COURTS OF
THE REPUBLIC OF SINGAPORE

O.S. No.)
of 20)

In the Matter of the Adoption of Children Act (Cap. 4)

And

In the Matter of (to be called), an infant.

The Applicant(s) apply for the following orders:

- (a) The Director-General of Social Welfare be appointed as the guardian in adoption of the infant, (original name of infant) to be called .
- (b) The consent of the following persons be dispensed with:
- (c) The service of the Originating Summons, Notice to Hear Originating Summons and all subsequent documents filed in these proceedings on the following persons be dispensed with:
- (d) [*Where the child is born in Singapore*]
The applicant(s) be authorised to adopt the said infant, (original name of infant) to be called born on , which date is identical with the entry numbered and made on in the Register of Births for the Republic of Singapore.
[*Where the child is born outside Singapore*]
The applicant(s) be authorised to adopt the infant, (original name of infant) to be called born on .
- (e) The applicant(s) pay(s) the cost of these proceedings to the Director-General of Social Welfare.
- (f) (To specify if any other orders sought.)

3. A copy of the affidavit and Adoption Statement in support of this application is filed together with the Originating Summons.

Signed:

Registrar:

Date:

*This summons is taken out by _____, solicitor for the abovenamed applicants whose address is _____.

[If applicant is unrepresented]

*This summons is taken out by the abovenamed applicant who resides at _____ *[and if applicant does not reside within the jurisdiction]* and whose address for service is (to state address in Singapore).

(*Delete as appropriate)

Form 38

R.135

ADOPTION STATEMENT

(Title as in Form 37)

The Applicant(s) and , his wife,
of state as follows:

1. Particulars of Male Applicant:

- (a) Name:
- (b) Age:
- (c) NRIC No.:
- (d) Residential address:
- (e) Occupation:
- (f) Relationship to child (if any):

2. Particulars of Female Applicant:

- (a) Name:
- (b) Age:
- (c) NRIC No.:
- (d) Residential address:
- (e) Occupation:
- (f) Relationship to child (if any):

3. The Applicant(s) is (are) resident in Singapore at Singapore and domiciled in Singapore.

4. The Male Applicant married the Female Applicant at on .

5. The Applicant(s) has (have) resident with him (her) (them) the following persons:

6. Particulars of infant to be adopted ("the said infant"):

- (a) Original name:
- (b) New name (if any):
- (c) Date of birth:
- (d) Age:
- (e) Gender:
- (f) Nationality:
- (g) Race:
- (h) Marital status:
- (i) Present address:
- (j) The said infant is entitled/not entitled* to any property (state particulars if infant is entitled to property).
- (k) The said infant is/is not* in the actual custody (or under the guardianship) of the Applicant(s) (state whereabouts of the said infant if he is not in the actual custody of the Applicant(s)).

(l) The Applicant(s) have/have not* been supporting the said infant since (date on which support commenced).

(m) The said infant has/has not* been subject to an adoption order or of any application for an adoption order. (State particulars if the said infant has been subject to an adoption order or an application for an adoption order.)

7. Particulars of Natural Father of infant to be adopted:

(a) Name:

(b) I.D. No.:

(c) Address:

(d) Nationality:

(e) Religion:

(f) Consent to the Originating Summons has/has not* been obtained.

8. Particulars of Natural Mother of infant to be adopted:

(a) Name:

(b) I.D. No.:

(c) Address:

(d) Nationality:

(e) Religion:

(f) Consent to the Originating Summons has/has not* been obtained.

9. The Applicant(s) undertakes (undertake) if an order is made on this Originating Summons, to provide maintenance and education for the said infant. The Applicant(s) will, if required, secure the above provision by bond or otherwise as the Court may require.

10. The Applicant(s) has not (have not nor has either of them) received or agree to receive, and no person has made or given or agreed to make or give to the Applicant(s) (or either of them) any payment or reward in consideration of the adoption of the said infant except as follows:

(State the nature of the payment or reward made or received in consideration of the adoption.)

11. The Applicant(s) shall provide for the costs of this Originating Summons including the costs of the Director-General of Social Welfare if he is appointed guardian in adoption of the said infant or such person as may be appointed by this Court.

(*Delete as appropriate)

Form 39

R.135

**CONSENT TO ADOPTION
ORDER AND DISPENSATION
OF SERVICE OF DOCUMENTS**

(Title as in Form 37)

I (We), _____, of _____ (and of _____) being (the parent of the abovenamed infant) (or guardian of the abovenamed infant) (or the person having actual custody of the abovenamed infant) (or a person liable to contribute to the support of the abovenamed infant) state as follows:

1. I (We) understand the nature and effect of the adoption order which is applied for in these proceedings and that in particular I (we) understand that the effect of the order will be to permanently deprive me (us) of my (our) parental rights.

2. I (We) hereby consent to the making of an adoption order in favour of the Applicant(s).

3. I (We) consent to the dispensation of service of the Originating Summons, Request for Further Hearing of Originating Summons and all other subsequent documents filed in these proceedings on me (us).

)

Signed by the abovenamed _____

)

in the presence of: _____

)

)

*Advocate and Solicitor
(or Commissioner for Oaths).*

Form 40

R.139

**REQUEST FOR FURTHER HEARING OF
ORIGINATING SUMMONS**

(Title as in Form 37)

1. Name of Applicant(s):

2. Order(s) sought:

(a) *[Where child is born in Singapore]*

The Applicant(s) be authorised to adopt the said infant,
(original name of infant) to be called born
on , which date is identical with the entry
numbered and made on in the
Register of Births for the Republic of Singapore;

[Where child is born outside Singapore]

The Applicant(s) be authorised to adopt the
infant, (original
name of infant) to be called born on .

(b) The Applicant(s) pay(s) the costs of these proceedings to the
Director-General of Social Welfare.

(c) (To specify if any other orders sought.)

3. The grounds of the application are set out in the affidavit(s) filed in
support of this application.

4. Party/Parties* to be served with this summons: (e.g. natural parents)

This form requires sealing by the Court and the signature of the Registrar.

(*Delete as appropriate)

Form 41

R.146

INTERIM ADOPTION ORDER

(Title as in Form 37)

1. Parties present at the hearing:

- (a) Male/Female applicant(s)*:
- (b) Applicant(s)'s solicitor*:
- (c) Natural mother/father*:
- (d) Natural mother's/father's solicitor*:
- (e) Guardian in adoption (name of Child Welfare Officer)*:

2. Orders made pending the final determination of the Originating Summons:

- (a) The Applicant(s) shall have the custody of the said infant for
(duration of interim adoption order) with effect
from (date of
commencement of probationary period).
- (b) The Applicant(s) shall be subject to the supervision of
and who shall be at liberty at all reasonable times to visit and
interview the infant alone and to make all necessary inquiries as to
the comfort and well-being of the infant.
- (c) The guardian in adoption shall submit to the Court a further
affidavit to report on the interim adoption order
by (submission of date of report).
- (d) This order shall be reviewed on (date of
review).
- (e) As regards costs, .
- (f) Any of the parties including the guardian in adoption of the
said infant may apply to the Court for further orders.
- (g) (To specify if any other orders given.)

This form requires sealing by the Court and the signature of the Registrar.

(*Delete as appropriate)

Form 42

R.146

ADOPTION ORDER

(Title as in Form 37)

(Order where child is born in Singapore)

1. Parties present at the hearing:

- (a) Male/Female applicant(s)*:
- (b) Applicant(s)'s solicitor*:
- (c) Natural mother/father*:
- (d) Natural mother's/father's solicitor*:
- (e) Guardian in adoption (name of Child Welfare Officer)*:

2. Orders made:

- (a) The Applicant(s) be authorised to adopt the said infant (original name of infant) to be called _____ born on _____, which date is identical with the entry numbered _____ and made on _____ in the Register of Births for the Republic of Singapore.
- (b) The Applicant(s) pay(s) the costs of these proceedings to the Director-General of Social Welfare.
- (c) (To specify if any other orders given.)

This form requires sealing by the Court and the signature of the Registrar.

(*Delete as appropriate)

SCHEDULE

CHILD'S PARTICULARS	Full name before adoption					Full name conferred by Adoption Order	
Natural Parents/ Previous Adopters	Sex	Date of birth	Day	Month	Year	Place of birth	Birth Register No./Entry No. of Previous Adoption
Name of Father						Citizenship of Father at the time of the child's birth	Singapore NRIC No.
Name of Mother						Citizenship of Mother at the time of the child's birth	Singapore NRIC No.
ADOPTIVE PARENTS	Father		Name and Surname			Date of birth	Country of birth
			Race/Dialect Group			Nationality/Citizenship	Singapore NRIC No.
			Occupation			Address	
	Mother		Maiden name			Date of birth	Country of birth

Race/Dialect Group	Nationality/Citizenship	Singapore NRIC No.
--------------------	-------------------------	-----------------------

Occupation	Address
------------	---------

Date of Adoption Order

Description of Court by which made

In the case of adoption by a single adopter, whether adopter wishes his or her name to appear as adoptive father or adoptive mother on the child's new birth certificate.

Yes/No*

Form 43

R.146

ADOPTION ORDER

(Title as in Form 37)

(Order where child is born outside Singapore)

1. Parties present at the hearing:

- (a) Male/Female applicant(s)*:
- (b) Applicant(s)'s solicitor*:
- (c) Natural mother/father*:
- (d) Natural mother's/father's solicitor*:
- (e) Guardian in adoption (name of Child Welfare Officer)*:

2. Orders made:

- (a) The Applicant(s) be authorised to adopt the said infant
(original name of infant) to be called born on .
- (b) The Applicant(s) pay(s) the costs of these proceedings to the Director-General of Social Welfare.
- (c) (To specify if any other order given.)

This form requires sealing by the Court and the signature of the Registrar.

(*Delete as appropriate)

SCHEDULE

CHILD'S PARTICULARS	Full name before adoption	Full name conferred by Adoption Order	
	Sex Date Day Month Year of birth	Place of birth	Birth Register No./Entry No. of Previous Adoption
Natural Parents/ Previous Adopters	Name of Father	Citizenship of Father at the time of the child's birth	Singapore NRIC No.
	Name of Mother	Citizenship of Mother at the time of the child's birth	Singapore NRIC No.
ADOPTIVE PARENTS	Father	Name and Surname	Date of birth Country of birth
		Race/Dialect Group Nationality/Citizenship	Singapore NRIC No.
		Occupation	Address

Mother	Maiden name	Date of birth	Country of birth
	Race/Dialect Group	Nationality/Citizenship	Singapore NRIC No.
	Occupation	Address	
	Date of Adoption Order		
	Description of Court by which made		
In the case of adoption by a single adopter, whether adopter wishes his or her name to appear as adoptive father or adoptive mother on the child's new birth certificate.			
Yes/No*			

1. No. of Entry:
2. Date and country of birth of child:
3. Name and surname of child:
4. Sex of child:
5. Name and surname, address and occupation of adopter or adopters:
6. Date of adoption order and description of Court by which made:
7. Date of Entry:
8. Signature of officer deputed by Registrar-General to effect the entry:

Form 44

R.146

ORDER OF COURT

(Title as in Form 37)

1. Parties present at the hearing:

- (a) Applicant(s)'s solicitor:
- (b) Natural mother's/father's* solicitor:
- (c) Guardian in adoption (name of Child Welfare Officer):

2. Orders made: (To specify orders given).

This form requires sealing by the Court and the signature of the Registrar.

(*Delete as appropriate)

Form 45

R.147

SUMMONS

(Title as in Form 37)

1. Name of applicant:
2. Order(s) sought: (Set out orders applied for.)
3. Grounds of application: (Choose one of the following.)
 - (a) The grounds of the application are set out in the affidavit(s)/consent(s)* filed in support of this application.
 - (b) The grounds of the application are set out herein.
4. Party/Parties* to be served with this summons:
5. Consent*: I/We* consent to this summons.

Signature: (Signature of consenting party.)

Name: (Name of solicitor for party consenting to this summons/
If in person, name of party consenting to this summons.)

NRIC No.:

This summons is taken out by: (To state name and party taking out this summons.)

This form requires sealing by the Court and the signature of the Registrar.

(*Delete as appropriate)

Form 45A

R.148A(2)

**NOTICE OF MOTION
(SECTIONS 405 AND 407)**

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Motion No. _____ of 20 ____

**IN THE MATTER OF SECTIONS 405 AND 407 OF
THE CRIMINAL PROCEDURE CODE (CAP. 68)**

And

[NAME AND IDENTIFICATION OF CHILD / YOUNG PERSON]

Between

... Applicant

And

... Respondent

NOTICE OF MOTION

TAKE NOTICE that this Honourable Court will be moved on the ____ day of _____
20__ at _____ a.m./p.m. or soon thereafter for [the Applicant to be heard in person/counsel
for the Applicant to be heard] for an Order that:

The grounds for the application are set out in the supporting affidavit of _____
dated _____ filed herein.

Applicant/ Solicitors for the Applicant

Dated this ____ day of _____ 20 ____.

The address for service of the abovenamed Applicant is _____.

To: The Respondent
[Address]

Form 45B

R.148D(1)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

IN THE MATTER OF THE CHILDREN AND YOUNG PERSONS ACT (CAP.38)

AND

IN THE MATTER OF A CHILD OR YOUNG PERSON

**APPLICATION BY DIRECTOR-GENERAL / PROTECTOR / APPROVED WELFARE
OFFICER***

The above-mentioned applicant hereby applies to the Youth Court under the undermentioned provision(s) for the appropriate orders to be made under the Children and Young Persons Act (Cap 38):

2. Name of Child or Young Person:

BC No. / NRIC No.:

Order Number: CPO/ECPO/BPC/FGO* _____

Date of Order:

3. Provision(s) under which the order(s) is/are applied for:

- ☐ s49(1F) – Application for order on appropriate fit person or place of safety or place of temporary care and protection after 3 variations
- ☐ s49(9) – Application for variation or discharge of Care and Protection Order
- ☐ s49A(2) – Application for order for Director-General or protector or care-giver to decide on Category 2 matter for child or young person under Care and Protection Order
- ☐ s49A(3) – Application for order in respect of making of decisions affecting child or young person under existing Care and Protection Order
- ☐ s49A(4) – Application for additional order for Director-General or protector to decide on a Category 3 matter for child or young person under Care and Protection Order
- ☐ s49B(10) – Application for variation or discharge of Enhanced Care and Protection Order
- ☐ s49D(2) – Application for additional order for Director-General or protector to decide on Category 3 matter for child or young person under Enhanced Care and Protection Order
- ☐ s50(10) – Application for order on appropriate fit person or place of safety after 3 variations
- ☐ s50(15) – Application for variation or discharge of Family Guidance Order
- ☐ Others – *[Insert section number and type of application]*

4. Reasons in support of application (Please attach supporting affidavit / documents, if any)

Name of applicant:

Designation:

Address for service:

E-mail address:

I hereby consent/do not consent* for any notice or document to be served on me by way of electronic mail transmitted to the above e-mail address.

Signature of applicant: _____

Date:

** Delete where inapplicable*

Form 45C

R.148D(2)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

IN THE MATTER OF THE CHILDREN AND YOUNG PERSONS ACT (CAP.38)

AND

[NAME AND IDENTIFICATION OF CHILD / YOUNG PERSON]

NOTICE OF APPLICATION

To (Name of Parent / Guardian)

Of (Address)

WHEREAS the Youth Court has dealt with / made a Care and Protection Order/Enhanced Care and Protection Order/Family Guidance Order* in respect of the above-named child/young person*.

AND WHEREAS the Director-General/Protector/Approved Welfare Officer* has made an application for the appropriate orders under the following provision(s):

[Specify section number(s) of the above-mentioned Act and type of application(s)]

YOU ARE HEREBY GIVEN NOTICE of the above application and that you are to appear before the Youth Court _____ at 3 Havelock Square Singapore 059725 on (date) at (time) to be heard on the application.

TAKE NOTICE that if you do not appear as stipulated above, the Court may proceed to hear and determine the application without further reference to you.

** Delete where inapplicable*

Dated this _____ day of _____, 20 _____.

Court Seal

.....
Clerk

Department

.....
District Judge / Magistrate

Received the duplicate of this process on the _____ day of _____, 20 _____.

.....
Name & Signature

Form 45D

R.148D(3)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

IN THE MATTER OF THE CHILDREN AND YOUNG PERSONS ACT (CAP.38)

AND

IN THE MATTER OF A CHILD OR YOUNG PERSON

APPLICATION BY PARENT / GUARDIAN* OF CHILD OR YOUNG PERSON

I, _____ (NRIC No./ID No: _____) the parent/guardian* of the undermentioned child/young person hereby apply to the Youth Court under the undermentioned provision(s) for the appropriate orders to be made under the Children and Young Persons Act (Cap 38) :

2. Name of Child or Young Person:

BC No. / NRIC No.:

Case Number: CPO/ECPO/BPC/FGO/* _____

Date of Order:

3. Provision(s) under which the order(s) is/are applied for:

- ☐ s49(1D) – Application for review of determination or variation of determination by Director-General or protector
- ☐ s49A(5) – Application for determination of decision by Director-General or protector or care-giver for child or young person under Care and Protection Order
- ☐ s49B(10) – Application for variation or discharge of Enhanced Care and Protection Order
- ☐ s49B(11) – Application for leave to apply for variation or discharge of Enhanced Care and Protection Order
- ☐ s49D(3) – Application for determination of decision by Director-General or protector or care-giver for child or young person under Enhanced Care and Protection Order
- ☐ s50(15) – Application for variation or discharge of Family Guidance Order
- ☐ Others – [*Insert section number and type of application*]

4. Reasons in support of application (Please attach supporting affidavit / documents, if any)

Name of applicant:

Address for service:

E-mail address:

I hereby consent/do not consent* for any notice or document to be served on me by way of electronic mail transmitted to the above e-mail address.

Signature of applicant: _____

Date:

* *Delete where inapplicable*

Form 45E

R148D(4)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

IN THE MATTER OF THE CHILDREN AND YOUNG PERSONS ACT (CAP.38)

AND

[NAME AND IDENTIFICATION OF CHILD / YOUNG PERSON]

NOTICE OF APPLICATION

To (Director-General of Social Welfare / Protector)

Of (Address)

WHEREAS the Youth Court has made a Care and Protection Order / Enhanced Care and Protection Order / Family Guidance Order* in respect of the above-named child/young person*.

AND WHEREAS the parent or guardian has made an application for the appropriate orders under the following provision(s):

[Specify section number(s) of the above-mentioned Act and type of application(s)]

YOU ARE HEREBY GIVEN NOTICE of the above application and that you are to appear before the Youth Court _____ at 3 Havelock Square Singapore 059725 on (date) at (time) to be heard on the application.

TAKE NOTICE that if you do not appear as stipulated above, the Court may proceed to hear and determine the application without further reference to you.

** Delete where inapplicable*

Dated this _____ day of _____, 20 _____.

Court Seal

.....

Clerk

Department

.....

District Judge / Magistrate

Received the duplicate of this process on the _____ day of _____, 20 _____.

.....

Name & Signature

Form 46

R.153

**NOTICE OF COMMENCEMENT
OF PROCEEDINGS IN THE
SYARIAH COURT**

(Title as in action)

Take notice that *proceedings for divorce between have been commenced in the Syariah Court on (state the date) under (state the proceedings number)/a decree or order for divorce between has been made by the Syariah Court on (state the date)/a divorce between has been registered under section 102 of the Administration of Muslim Law Act (Cap. 3) on (state the date).

Dated this day of 20 .

Solicitors for the

*Delete whichever is inapplicable.

Form 47

R.163, 168, 176, 179,
193, 197, 273,
277,301

ORIGINATING SUMMONS
IN THE FAMILY JUSTICE COURTS OF
THE REPUBLIC OF SINGAPORE

O.S. No.)
of 20)
(Seal))
(In the matter of)

Between

Plaintiff.

And

Defendant.

To THE DEFENDANT(S) [name]
of [address]

The Plaintiff applies for the following orders:

- 1.
- 2.

*This Summons is taken out by [*to state name*], solicitor for the abovenamed Plaintiff whose particulars are as follows [*to state address*].

*(*If the Plaintiff is unrepresented*) This Summons is taken out by the abovenamed Plaintiff who resides at [*to state address*]/(*and if the Plaintiff does not reside within the jurisdiction*) whose address for service is [*to state address*].

*Delete where inapplicable.

Registrar.

Note:

1. This originating summons may not be served more than 6 months after the above date unless renewed by order of the Court.
2. If a defendant does not attend personally or by his counsel or solicitor at the time and place abovementioned, the Court may make such order(s) as it deems just and expedient.
3. Unless otherwise provided in any written law, where the plaintiff intends to adduce evidence in support of an originating summons, he must do so by affidavit, and must file the affidavit or affidavits and serve a copy thereof on every defendant not later than 7 days after the service of the originating summons.

Form 48

R.163, 273, 277,
288, 301

EX PARTE ORIGINATING SUMMONS
IN THE FAMILY JUSTICE COURTS OF
THE REPUBLIC OF SINGAPORE

O.S. No. _____)
of 20 ____ . _____)
(Seal)
(In the matter of _____)

Applicant/Plaintiff.

The Plaintiff applies for the following orders:

1.

*This Summons is taken out by [to state name], solicitor for the abovenamed Plaintiff whose particulars are as follows [to state address].

*(If the Plaintiff is unrepresented) This Summons is taken out by the abovenamed Plaintiff who resides at [to state address]/(and if the Plaintiff does not reside within the jurisdiction) whose address for service is [to state address].

*Delete where inapplicable.

Registrar.

Note:

1. Unless otherwise provided in any written law, the applicant intending to adduce evidence in support of the hearing of the originating summons must do so by affidavit or affidavits, and such affidavit(s) must be filed with the Court at the time of filing of the originating summons.

Form 49

R.202

FORM OF OATH

(a) In the case of persons under section 4(1)(a) of the Oaths and Declarations Act (Cap. 211).

I swear by Almighty God that

[the evidence I shall give in this Court/tribunal/inquiry (or such other hearing) shall be]

OR

[the contents of this affidavit are]

the truth, the whole truth, and nothing but the truth. So help me God.

Taken and subscribed before me at , this day
of 20 .

Officer Administering the Oath

(b) In the case of Interpreters under section 4(1)(b) of the Oaths and Declarations Act (Cap. 211).

I, , having been appointed an Interpreter of the , do solemnly swear that I will faithfully interpret, translate and transcribe from the language into the English language and from the English language into the language to the best of my knowledge, skill and ability and without fear or favour, affection or ill-will.

Taken and subscribed before me at , this day
of 20 .

Officer Administering the Oath

Form 50

R.203

FORM OF AFFIRMATION

(a) In the case of persons under section 4(1)(a) read with section 5 of the Oaths and Declarations Act (Cap. 211).

I solemnly and sincerely declare and affirm that [the evidence I shall give
in this Court/tribunal/inquiry (or such other hearing) shall be]

OR

[the contents of this affidavit are]

the truth, the whole truth, and nothing but the truth.

Taken and subscribed before me at , this day of 20 .

Officer Administering the Affirmation

(b) In the case of Interpreters under section 4(1)(b) read with section 5 of the Oaths and Declarations Act (Cap. 211).

I, , having been appointed an Interpreter of the , do
solemnly affirm that I will faithfully interpret, translate and transcribe from
the language into the English language and from the English language into
the language to the best of my knowledge, skill and ability and without fear
or favour, affection or ill-will.

Taken and subscribed before me at , this day of 20 .

Officer Administering the Affirmation

Form 51

R.208

STATEMENT FOR
PROBATE
OR
ADMINISTRATION

IN THE FAMILY JUSTICE COURTS OF
THE REPUBLIC OF SINGAPORE

HCF/FC/P. No.)

of 20)

In the Matter of the Probate and Administration Act (Cap. 251)

And

In the Estate of deceased

And

In the matter of an Application by (names of Applicant(s))

(a) For Probate.

(A) Particulars of Deceased:

The particulars of the Deceased are as follows:

1. Name:
2. ID Number:
3. Address:
4. Date of Death:
5. Place of Death:
6. Domicile:
7. Gender:

(B) Particulars of Applicant(s):

The particulars of the Applicant(s) are as follows:

1. Name:

ID Number:

Address:

Gender:

(C) General Details:

The Applicant(s) state(s) as follows:

1. The paper writing filed is a certified true copy of the original last Will and Testament (with Codicil annexed) of the deceased.
2. The Applicant is the sole executor (or one of the executors) named in the Will.
3. The application for a grant is filed within 6 months from the death of the deceased./The application for a grant is filed after the lapse of 6 months from the death of the deceased. [state reasons for the delay]*.

(D) Particulars of Executor(s) (other than Applicant(s)):

The particulars of the executor(s) other than the Applicant(s) are as follows:

1. Name:

Status:

Date of Renunciation/Death:

(b) For Administration.

(A) Particulars of Deceased:

The particulars of the deceased are as follows:

1. Name:

2. ID Number:

3. Address:

4. Date of Death:

5. Place of Death:

6. Domicile:

7. Nationality: (1)

8. Religion: (2)

9. Marital Status: (3)

10. Gender:

(B) Particulars of Applicant(s):

The particulars of the Applicant(s) are as follows:

1. Name:

ID Number:

Address:

Gender:

Relationship to the Deceased/Capacity: (4)

(C) General Details:

The Applicant(s) state(s) as follows:

1. The application for a grant is filed within 6 months from the death of the deceased./The application for a grant is filed after the lapse of 6 months from the death of the deceased. [state reasons for the delay]*.

(D) Particulars of Beneficiaries:

The beneficiaries of the estate are as follows:

1. Name: (5)

Gender:

Age or Date of Birth:

Relationship to the Deceased:

There are no beneficiaries who lack capacity within the meaning of the Mental Capacity Act (Cap. 177A)./* Beneficiary lacks capacity within the meaning of the Mental Capacity Act (Cap. 177A)

(E) Particulars of Spouse and Other Next-of-kin who are Deceased:

The spouse or next-of-kin who are deceased are as follows:

1. Name:

Gender:

Date of Death:

Relationship to the Deceased:

(F) Particulars of the Person(s) with Prior/Equal Rights:

The following persons have prior right to the Applicant or an equal right to a grant but the rights have been cleared off in the manner stated:

1. Name:

Manner of clearing off:

Date of clearing off:

(G) Particulars of Minor(s):

There is no minority interest in the estate./There are minority interests in the estate as follows*:

1. Name: (6)

Share Entitlement:

(H) Particulars of Co-Administrator(s):

The Applicant applies for the following person to be appointed co-administrator of the estate of the deceased:

1. Name:

2. ID Number:

3. Address:

4. Gender:

5. Relationship to the Deceased: (7)

The consent in writing of the said [name of co-administrator] to be appointed is filed with this application.

(c) Administration with Will.

In addition to Section C in (b) above, state -

2. The paper writing filed is a certified true copy of the original last Will and Testament (with Codicil annexed) of the deceased.

(a) The Testator did not in the Will name any executor. / The executors named in the Will have died./The executors named in the Will have renounced probate and execution of the Will./The testator did not in the Will name any residuary legatee*.

(b) For Administration — Unadministered estate.

Insert the following additional section to (b) above –

(c) **Particulars of Administrator/Executor in Previous Grant:**

Probate/Letters of Administration of the estate of the said deceased was (were) granted to the following person(s) but the person(s) died leaving (part of) the estate unadministered:

Name:

Capacity:

Date of Death:

Previous Probate Case No:

Date of Grant:

Grant Issued By:

(d) *Administration by a trust company.*

Proceed as in (b) above but replace Section B with the following –

(B) Particulars of Applicant(s):

The particulars of the Applicant(s) are as follows:

Name:

UEN:

Registered Office Address:

Name of Authorised Officer:

ID Number of Authorised Officer:

The Applicant is a Trust Company licensed under the Trust Companies Act (Cap. 336). The Applicant company by a resolution of their board of directors have authorised the abovenamed officer to make this Statement and to make, swear and sign the Affidavit in support of the Originating Summons on their behalf. A copy of the resolution under the Seal of the Applicant company is filed with this application.

The Applicant company has been authorised in writing by [name], the [relationship and capacity] to apply for Letters of Administration of the estate of the deceased. The written authorisation is filed with this application.

Note: In an Application for probate where there is one executor or executrix only named in the Will, he or she should be described as the sole executor or the sole executrix and in an Application for Letters of Administration all persons entitled to any part of the estate should be disclosed.

At —

(1) State country e.g. Singapore, Malaysia.

(2) Religion e.g. Christian, Buddhist, Hindu, Muslim (if a Muslim state Madzhab to which he belonged).

(3) A widower, widow, spinster or bachelor.

(4) Descriptions to be used where the person applying for Letters of Administration is:

a widow

...

“the lawful widow” or, if the deceased was of a religion allowing polygamy, as “the

		only lawful widow” or “one of the lawful widows” as the case may be;
a husband	...	“the lawful husband”;
a father	...	“the lawful father and next-of-kin”;
a mother	...	“the lawful mother and next-of-kin” or “the lawful mother and only next-of-kin”;
a child	...	“the lawful and only child and only next-of-kin” or “one of the lawful children and next-of-kin”;
a brother	...	“the lawful brother”;
a sister	...	“the lawful sister”; the brother or sister shall further be described as “one of the next-of-kin” or the “only next-of-kin”;
a nephew	...	“the lawful nephew” and “one of the” or “only next-of-kin”;
a niece	...	“the lawful niece” and “one of the” or “only next-of-kin”; if a brother or sister is living and the nephew or niece being the child of a brother or sister of the intestate who died in his lifetime applies for administration, he or she shall be described as “one of the persons entitled in distribution to the estate and effects of the deceased”;
a grandparent	...	grandchild, cousin, etc., shall be described as “lawful” and “one of the next-of-kin” or “only next-of-kin”.

- (5) His only or one of the lawful widows (or her lawful husband) and state the next-of-kin (in case of children state name, sex, and age or date of birth).
- (6) Set out the minority or life interest stating the name and interest of each minor entitled.
- (7) State relationship, if any, to deceased.

(e) *For Resealing in the Family Division of the High Court.*

(f) Particulars of Deceased:

The particulars of the Deceased are as follows:

1. Name:
2. ID Number:
3. Address:
4. Date of Death:
5. Domicile:
6. Marital Status:
7. Gender:

(B) Particulars of Applicant(s):

The particulars of the Applicant(s) are as follows:

1. Name:

ID Number:

Address:

Gender:

Filing Capacity:

(Add the following paragraph if the applicant is an attorney –

“The Applicants have been duly authorised to make this application. The Power of Attorney has been deposited in the Supreme Court under the provisions of section 48 of the Conveyancing and Law of Property Act (Chapter 61) and a certified true copy is filed with this application. The details of the Power of Attorney are as follows:

Donor’s Name:

Date of Power of Attorney:

Entered No. of Power of Attorney:)

€ Particulars of Foreign Grant & Original Grantee(s):

The particulars of Foreign Grant and Original Grantee(s) are as follows:

1. Nature of Foreign Grant:

2. Foreign Grant Description: [Select one of the following –

The said deceased died intestate and Letters of Administration of the estate and effects, of which a true copy is filed with this application, were duly granted to the said original grantee(s) by the foreign court.

Or The said deceased duly executed his/her last Will and Testament dated [date], and Probate, of which a true copy is filed with this application, was duly granted to the said original grantee(s) by the foreign court.

Or The said deceased duly executed his/her Last Will and Testament dated [date], and Letters of Administration with such Will

and Testament annexed, of which Letters and Will a true copy is filed with this application, was duly granted to the said original grantee(s) by the foreign court.

3. Foreign Court:
4. Original Grantee:
5. Date of Grant:

(D) Other Details:

1. The said deceased [did not reside or did not carry][resided or carried] on business in Singapore within 12 months prior to [his / her] death.
2. The Applicant(s) are aware that there are [or no] debts due from the estate of the deceased to creditors residing in Singapore.

€ The Deceased died possessed of properties in Singapore, namely:

1. [Description of Property]

(g) Probate as in (a) above, for remaining executor(s) where more than one executor.

In addition to Section C in (a) above, state –

Probate of the estate and effects of the said deceased was granted on [date of grant], to [name of executor] as [one / two / three] of the executors named in the said Will in [previous probate case number] power being reserved of making the like grant to [name of other executor] the other executor(s) named in the said Will. (A certified true copy of the grant is filed with this application.)

Form 52

[deleted]

Form 53

R.233

RENUNCIATION

(Title as in Form 51)

(a) Of Letters of Administration.

I, _____, state as follows:

1. The abovenamed deceased _____ of _____, who at the time of his(her) death had property within Singapore, died on [date], at _____ intestate leaving me _____ (insert name) his(her) _____ and next-of-kin.
2. I renounce all my right and title to Letters of Administration of the estate of the deceased.

Signed by the said _____ this _____ day of _____ 20____.

Before me,
Solicitor
(or Commissioner for Oaths).

(b) Of Probate.

I, _____, state as follows:

1. The abovenamed deceased _____ of _____, who at the time of his(her) death had property within Singapore, died on [date], at _____ made and duly executed his(her) Last Will and Testament dated [date] (with a Codicil dated [date])) and appointed me the sole (or) one of the executor(s).
2. I declare that I have not intermeddled in the estate of the deceased and will not hereafter intermeddle with intent to defraud creditors; and I renounce all my right and title to the Probate and execution of the Will.

Signed by the said _____ this _____ day of _____ 20____.

Before me,
Solicitor
(or Commissioner for Oaths).

Form 54

R.235

ADMINISTRATION OATH

(Title as in Form 51)

I (We), _____ of _____, do make oath (or affirm) and say that:

1. I (we) will faithfully administer the estate and effects of _____ deceased by paying his debts so far as his estate and effects will extend and the law requires;
2. I (we) will distribute the residue of his estate and effects according to law; and
3. I (we) will render a just and true account of my (our) administration when I (we) am (are) lawfully required.

Sworn (or affirmed) as in Form 132.

Form 55

R.236

ADMINISTRATION BOND

WE (I)

of

of

of

, and

of

are jointly and severally bound unto the Registrar of the Family Justice Courts, in the sum of Dollars (\$) to be paid to the said Registrar for which payment we (I) bind ourselves (myself) and each of us our (my) heirs, executors and administrators sealed with our (my) seals this [date].

THE CONDITION of this obligation is that if the abovenamed the Administrator of the Estate and Effects of late of deceased who died on the day of 20 , do administer according to law the movable and immovable property of the said deceased which has or shall come to hands, possession or knowledge or into the hands and possession of any other person for then this obligation to be void and of no effect but otherwise to remain in full force and effect.

Truly translated to the)

Obligors)

Through the interpretation)

of)

(Seal)

(Seal)

(Seal)

(Seal)

Before me,
Commissioner for Oaths.

Form 56

R.237

GRANTS

(Title as in Form 51)

(a) *Of Probate.*

Probate of the Last Will and Testament (dated [date of will]) (with codicils if such is the case) (dated [date of codicil]) of _____ late of _____, deceased who died on [date] at _____, is granted by this Court to _____ as the sole executor (or one of the executors or as the case may be) named in the Will.

Dated:

Date of issue:

Registrar.

This form requires sealing by the Court and the signature of the Registrar.

(b) *Of Letters of Administration.*

Letters of Administration of the estate and effects of _____ late of _____, deceased who died on [date] are granted to (insert the name and character in which the Grant is taken).

Dated:

Date of issue:

Registrar.

This form requires sealing by the Court and the signature of the Registrar.

(c) *Of Letters of Administration for unadministered estate.*

late of _____ deceased died intestate on [date].

Letters of Administration of his estate and effects were previously granted by the High Court/Family Justice Courts/State Courts/Subordinate Courts to (insert the name and character in which the Grant was taken) _____ who after taking such administration died on [date], leaving part of the estate unadministered.

Letters of Administration of the said estate and effects so left unadministered were granted by this Court on [date] to (insert the name and character in which Grant was taken).

Dated:

Date of issue:

Registrar.

This form requires sealing by the Court and the signature of the Registrar.

(d) Of Letters of Administration for unadministered estate with will annexed.

The Last Will and Testament (dated [date of will]) (with codicils if such is the case) (dated [date of will]) of _____ late of _____ deceased, was on [date] proved in the Family Justice Courts/High Court/State Courts and Probate was previously granted to the Executor (or one of the executors) named in the will who after taking such Probate died leaving the administration of the estate of the deceased incomplete and without having by his will appointed any executor.

Letters of Administration with the will annexed of the estate and effects of the deceased left unadministered were on [date], granted by this Court to (insert the name and character in which the Grant was taken).

Dated:

Date of issue:

Registrar.

This form requires sealing by the Court and the signature of the Registrar.

(e) To an Attorney.

As in (b) above inserting after “granted to _____” the duly constituted attorney of _____ (one of the lawful children and next-of-kin of the deceased or as may be) for the use and benefit of _____ until he shall obtain a grant of Letters of Administration to himself.

(f) To a Guardian.

As in (b) above inserting after “granted to _____” as the legal guardian of _____ the lawful infant children and next-of-kin of the deceased, limited until one of the infants shall obtain a grant to himself.

(g) Of Double Probate.

On [date], the Last Will and Testament (dated [date of will]) (with codicil(s) if such is the case) (dated [date of codicil]) _____ of _____ late of _____, deceased who died on [date] at _____ was proved before this Court, and Administration of the estate was previously granted by this Court to _____ as _____ of the executors named in the Will, power being reserved of making the like grant to the other executor(s) named in the Will.

On the date stated below, the Will of the deceased (with Codicil annexed) was also proved in this Court, and that the like administration of the estate and effects of the deceased was granted by this Court to _____ the other executor(s) named in the Will.

Dated:

Date of issue:

Registrar.

This form requires sealing by the Court and the signature of the Registrar.

Form 57

R.239

CAVEAT

(Title as in Form 51 or as may be)

Let no grant be sealed in the estate of late of deceased, who
died on [date] at without notice to of having
interest as (here describe the nature of the interest).

Dated:

Issued by:

Caveator

(or Solicitor for the Caveator)

My address for service is

Form 58

R.239

WARNING TO CAVEATOR

(Title as in the action)

To of .

You are hereby warned within 8 days after service upon you to file an Appearance to Warning either in person or by your solicitor at the Registry of the Family Justice Courts:

- (1) setting forth what interest you have in the estate of the abovenamed of deceased, contrary to that of the party at whose instance this warning is issued; or
- (2) setting forth your brief grounds if you have no contrary interest but wish to show cause against the sealing of a grant to such party.

And take notice that in default of your so doing the Court may proceed to issue a grant of probate or administration in the said estate notwithstanding your caveat.

Dated:

Issued by: (Set out the name and interest including the date of the will, if any, under which the interest arises) of the party warning, (the name of his solicitor and the address for service). (If the party warning is acting in person, this must be stated.)

This form requires sealing by the Court and the signature of the Registrar.

Form 59

R.239(9), (11), (12), (14)
R.243(7), R.244(5)

**APPEARANCE TO
WARNING OR CITATION**
(Title as in action)

To: The Registrar and the person warning (or citor)

Appearance is entered for the following party in this matter —

Appearing party type: Caveator (or person cited)

Appearing party's name:

Appearing party's contact details:

For an appearance to warning

Appearance is entered in respect of the following warning to caveator —

Caveat No.:

Caveat dated:

in respect of the estate of _____, deceased

of (address of deceased).

Name of person warning:

Contact details of person warning:

Appearing party is claiming an interest contrary to that of the person warning (or showing cause against the making of a grant to the person warning).

(To state particulars of contrary interest or brief grounds for showing cause.)

For an appearance to citation

Appearance is entered in respect of the following citation —

Citation No.: (if any)

Citation dated:

in respect of the estate of _____, deceased

of (address of deceased).

Name of the citor:

Contact details of the citor:

Dated:

Issued by: _____ (Solicitors for the _____).

Form 60

R.243

CITATIONS

(Title as in Form 51 or as may be)

(a) *Citation by brother to father to accept or refuse Administration.*

To _____ of _____

Whereas it appears by an affidavit of _____ filed on [date] that _____ of _____ died there on [date] a bachelor without a mother and intestate, leaving you, _____ his lawful father and next-of-kin:

And whereas it also appears that _____ is the lawful brother of the deceased, and lawful son of you _____ :

Now this is to require you, _____ that, within 8 days after service, you do cause an appearance to be entered by you in the Registry of the Family Justice Courts, and accept or refuse Letters of Administration of the estate of the deceased or show cause why the same should not be granted to _____ .

And take notice that in default of your so appearing and accepting and extracting the said Letters of Administration the Court will proceed in the premises according to law, your absence notwithstanding.

Dated: _____

Contact details of _____ :

This form requires sealing by the Court and the signature of the Registrar.

(b) *Citation to accept or refuse Probate.*

To _____ of _____

Whereas it appears by the affidavit of _____ filed on [date] that, _____ of _____, deceased, died on [date], at _____ having made and duly executed his Last Will and Testament bearing [date] and therein appointed you, _____, the sole executor (or sole executor and residuary legatee and devisee or as may be):

And whereas it further appears by the said affidavit that _____ is a creditor (or a legatee named in the Will or as may be):

Now this is to require you, _____, that, within 8 days after service, you do cause an appearance to be entered by you in the Registry of the Family Justice Courts, and accept or refuse probate and execution of the Will (or as may be) of the said deceased, or show cause why the same should not be granted to _____ as creditor of the deceased (or as may be):

And take notice that in default of your so appearing and accepting and extracting the said probate of the Will, the Court will proceed in the premises according to law, your absence notwithstanding.

Dated: _____

Contact details of _____ :

This form requires sealing by the Court and the signature of the Registrar.

(c) *Citation to bring in Probate (Another Will set up).*

To _____ of _____

Whereas it appears by an affidavit of _____ filed on [date] that probate of the alleged Last Will and Testament of _____ of _____, deceased, was, granted to you by the Court on [date]:

And whereas it is alleged in the affidavit that the deceased made and duly executed his Last Will and Testament, dated [date], and appointed _____, executor (or as may be) and that probate ought to be called in, revoked, and declared null and void at law:

Now this is to require you, _____ that, within 8 days after service on you, you do bring into and leave in the Registry of the Family Justice Courts, the probate in order that _____ may proceed in due course of law for the revocation of the same.

Dated: _____

Contact details of _____ :

This form requires sealing by the Court and the signature of the Registrar.

(d) *Citation to bring in Probate (Intestacy alleged).*

To _____ of _____

Whereas it appears by the affidavit of _____, filed on [date] that probate of the alleged Last Will and Testament of _____ of _____, deceased, was granted to you by the Court on [date], and that the deceased died a bachelor, leaving _____, his lawful father and next-of-kin:

And whereas it is alleged in the affidavit that the deceased died intestate, and that the probate ought to be called in, revoked, and declared null and void at law:

Now this is to require you, _____ that, within 8 days after service on you, you do bring into and leave in the Registry of the Family Justice Courts, the probate in order that _____ may proceed in due course of law for the revocation of the same.

Dated: _____

Contact details of _____ :

This form requires sealing by the Court and the signature of the Registrar.

(e) *Citation to bring in Letters of Administration (Will set up).*

To _____ of _____

Whereas it appears by the affidavit of _____, filed on [date] that Letters of Administration of all the estate of _____ of _____, deceased, were granted to you by the Court on [date]:

And whereas it is alleged in affidavit that the deceased made and duly executed his Last Will and Testament, dated [date], and appointed _____, executor (or as may be), and that the Letters of Administration ought to be called in, revoked and declared null and void at law:

Now this is to require you, _____, that, within 8 days after service on you, you do bring into and leave in the Registry of the Family Justice Courts, the Letters of Administration in order that _____ may proceed in due course of law for the revocation of the same.

Dated:

Contact details of _____ :

This form requires sealing by the Court and the signature of the Registrar.

(f) *Citation to bring in Letters of Administration (Administrator alleged not to be entitled).*

To _____ of _____

Whereas it appears by the affidavit of _____, filed on [date], that _____ Letters of Administration of all the estate of _____ of _____, deceased, were granted to you by the Court, as the lawful brother and one of the next-of-kin of the said deceased on [date]:

And whereas it is alleged in the affidavit that you are not one of the next-of-kin of the deceased, and that _____ is the lawful son and only next-of-kin (or as may be) and that the Letters of Administration ought to be called in, revoked, and declared null and void in law:

Now this is to require you, _____, that, within 8 days after service on you, you do bring into and leave in the Registry of the Family Justice Courts, the Letters of Administration in order that _____ may proceed in due course of law for the revocation of the same.

Dated:

Contact details of _____ :

This form requires sealing by the Court and the signature of the Registrar.

(g) *Citation to see proceedings.*

To _____ of _____

Whereas it appears by the affidavit of _____, filed on [date], that there is now pending in the Court, Probate suit entitled _____ and another against _____, No. _____ of 20 _____, where the plaintiffs are proceeding to prove in solemn form of law the alleged Last Will and Testament, dated [date], at _____.

And whereas it further appears by the affidavit that you are the lawful _____ and one of the next-of-kin of the deceased (or a legatee under the alleged will, dated _____ or as may be).

Now this is to give notice to you, _____, to appear in the suit either personally or by your solicitor, should you think it for your interest so to do, at any time during the dependence of the suit and before final judgment shall be given.

And take notice that, in default of your so doing, the said Court will proceed to hear the Will proved in solemn form of law and pronounce judgment in the suit, your absence notwithstanding.

Dated:

Contact details of _____ :

This form requires sealing by the Court and the signature of the Registrar.

(h) *Citation against executor who has intermeddled.*

To _____ of _____

Whereas it appears by the affidavit of _____, filed on [date] that, _____ of _____, deceased, died on [date] at _____ having made and duly executed his Last Will and Testament bearing [date] and appointed you, _____, the sole executor (or sole executor and residuary legatee and devisee or as may be):

And whereas it is alleged in the affidavit that you _____ have intermeddled in the estate of the deceased:

Now this is to require you, _____ that, within 8 days after service on you, you do cause an appearance to be entered by you in the Registry of the Family Justice Courts and show cause why you should not be ordered to take probate of the Will under pain of the law and contempt thereof.

And take notice that in default of your so appearing and complying with the requirements of this citation the Court will proceed in the premises according to law, your absence notwithstanding.

Dated: _____

Contact details of _____ :

This form requires sealing by the Court and the signature of the Registrar.

(i) *Citation to propound a Will.*

To _____ of _____

Whereas it appears by the affidavit of _____ filed on [date] that _____ of _____ died on [date] at _____, intestate a widower leaving _____, his lawful son the only person entitled to his estate:

And whereas it is alleged in the affidavit that the deceased left a certain paper writing dated [date], purporting to be a will where he appointed you _____ sole executor (or sole executor and residuary legatee and devisee or as may be):

Now this is to require you, _____ that, within 8 days after service on you, you do propound the will or paper writing should you think it in your interest to do so.

And take notice that in default of your complying with the requirements of this citation the Court will proceed to grant Letters of Administration of the estate to _____, your absence notwithstanding.

Dated: _____

Contact details of _____ :

This form requires sealing by the Court and the signature of the Registrar.

Form 61

R.251

MEMORANDUM OF RESEALING

(Title as in action)

The applicant [] having filed a certified true copy of the [foreign grant] with this Court, the Grant is now sealed on [date] pursuant to the Probate and Administration Act (Cap 251).

This form requires sealing by the Court and the signature of the Registrar.

Form 62

R.251

FORM FOR NOTICE OF RESEALING

REGISTRY, FAMILY JUSTICE COURTS, SINGAPORE, 20 .

HCF/P. No.)

of 20 .)

NOTICE OF RESEALING OF GRANT

SIR,

Notice is hereby given that the undermentioned Grant, which was issued under the seal of your Court, was, on the date stated, resealed in the Family Division of the High Court of the Republic of Singapore.

Name of Deceased	Nature and Date of Grant	Date of Resealing

*Registrar,
Family Justice Courts,
Republic of Singapore.*

Form 63

R.276

**STATEMENT
(FOR DETERMINATION OR
DECLARATION OF PARENTHOOD)**

(Title as in action)

1. Particulars of Applicant/Plaintiff:
 - (a) Name:
 - (b) Nationality:
 - (c) Race:
 - (d) Dialect group:
 - (e) Date of birth:
 - (f) Country/Place of birth:
 - (g) Singapore NRIC No./Passport No.*:
 - (h) Residential address:
 - (i) Occupation:
2. Particulars of person (other than Applicant/Plaintiff) who is treated or claiming to be treated as parent of the relevant child**:
 - (a) Name:
 - (b) Nationality:
 - (c) Race:
 - (d) Dialect group:
 - (e) Date of birth:
 - (f) Country/Place of birth:
 - (g) Singapore NRIC No./Passport No.*:
 - (h) Residential address:
 - (i) Occupation:
3. Where section 9 of the Status of Children (Assisted Reproduction Technology) Act 2013 applies, particulars of person whose egg, sperm or embryo was used in the fertilisation procedure undergone by gestational mother by reason of any mistake, negligence, recklessness or fraud**:
 - (a) Name:
 - (b) Nationality:
 - (c) Race:
 - (d) Dialect group:
 - (e) Date of birth:
 - (f) Country/Place of birth:
 - (g) Singapore NRIC No./Passport No.*:
 - (h) Residential address:
 - (i) Occupation:

4. Particulars of gestational mother of the relevant child**:

- (a) Name:
- (b) Nationality:
- (c) Race:
- (d) Dialect group:
- (e) Date of birth:
- (f) Country/Place of birth:
- (g) Singapore NRIC No./Passport No. *:
- (h) Residential address:
- (i) Occupation:

5. Particulars of relevant child**:

- (a) Name:
- (b) Date of birth:
- (c) Gender:
- (d) Country/Place of birth:
- (e) Time of birth:
- (f) Birth registration no.:

(*Passport number to be stated where person is not a citizen or permanent resident of Singapore)

(**To fill in particulars if known)

Form 64

R.283

ORDER OF COURT (FOR DETERMINATION OR DECLARATION OF PARENTHOOD)

(Title as in action)

1. Parties present at the hearing:
2. Orders made:

This form requires sealing by the Court and the signature of the Registrar.

THE SCHEDULE

PARENTHOOD DETERMINED OR DECLARED UNDER SECTION 10 OR 15 OF STATUS OF CHILDREN (ASSISTED REPRODUCTION TECHNOLOGY) ACT 2013

CHILD'S PARTICULARS	Full name	Sex	Date of birth	Day	Month	Year	Place of birth	Birth Register No.
Parents before Order made under section 10 or 15 of the Act	Name of Father						Citizenship of Father at the time of the child's birth	Singapore NRIC No./ Passport No.*
	Name of Mother						Citizenship of Mother at the time of the child's birth	Singapore NRIC No./ Passport No.*
PARENTS DETERMINED OR DECLARED	Father	Name and Surname				Date of birth		Country of birth
		Race/Dialect Group				Nationality/Citizenship		Singapore NRIC No./ Passport No.*
		Occupation				Address		
	Mother	Maiden Name				Date of birth		Country of birth
		Race/Dialect Group				Nationality/Citizenship		Singapore NRIC No./ Passport No.*
		Occupation				Address		
Date of Order made under section 10 or 15 of the Act								
Description of Court by which made								
(* Passport number to be stated where person is not a citizen or permanent resident of Singapore)								

Form 64-1

R. 286C

(LIMITED CIVIL RESTRAINT ORDER)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Case No.

Date of Order:

Made By:

Between

*Plaintiff/Appellant**

And

*Defendant/Respondent**

Nature of Hearing in Open Court

Parties Present at the Hearing

Orders Made:

1. The (party) is restrained from making any further application in (the legal proceedings in respect of which this order is made) without the leave of the Court.
2. The (party) may apply to amend, vary or discharge this order, only if the (party) has the leave of the Court to make the application.
3. This order remains in force for the duration of (the legal proceedings in respect of which this order is made) / until (date).
4. (state the order on costs or any other orders made by the Court).

Important Message:

1. You must obey the directions contained in this order. If you disobey any direction contained in this order, you will be guilty of contempt of court and may be sent to prison or fined.
2. If you apply for leave to make an application in the legal proceedings mentioned in this order, you must serve the application for leave, and the supporting affidavit, on every intended respondent to the application and, if this order was made on the application of the Attorney-General, on the Attorney-General.
3. If you apply for leave to make an application to amend, vary or discharge this order, you must serve the application for leave, and the supporting affidavit, on every party to the application pursuant to which this order was made.
4. If you attempt to make an application in the legal proceedings mentioned in this order, or attempt to make an application to amend, vary or discharge this order, without first obtaining the leave of the Court, your application will be treated as dismissed without the Court having to make any further order, and without the need for any other party to be heard on the merits of your application.
5. If you do not understand anything in this order, you should consult a solicitor as soon as possible.

This form requires sealing by the Court and the signature of the Registrar.

*Delete as appropriate

Form 64-2

R. 286C

(EXTENDED CIVIL RESTRAINT ORDER)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Case No.

Date of Order:

Made By:

Between

*Plaintiff/Appellant**

And

*Defendant/Respondent**

Nature of Hearing in Open Court

Parties Present at the Hearing

Orders Made:

1. The (party) is restrained from commencing any action or making any application, in (specify the court), concerning any matter involving, relating to, touching upon or leading to (the legal proceedings in respect to which this order is made) without the leave of the Court.
2. The (party) may apply to amend, vary or discharge this order, only if the (party) has the leave of the Court to make the application.
3. This order remains in force until (date).
4. (state the order on costs or any other orders made by the Court).

Important Message:

1. You must obey the directions contained in this order. If you disobey any direction contained in this order, you will be guilty of contempt of court and may be sent to prison or fined.
2. If you apply for leave to commence an action or make an application, in a court specified in this order, concerning any matter involving, relating to, touching upon or leading to the legal proceedings mentioned in this order, you must serve the application for leave, and the supporting affidavit, on every intended defendant to the action or every intended respondent to the application (as the case may be) and, if this order was made on the application of the Attorney-General, on the Attorney-General.
3. If you apply for leave to make an application to amend, vary or discharge this order, you must serve the application for leave, and the supporting affidavit, on every party to the application pursuant to which this order was made.
4. If you attempt to commence an action or make an application in a court specified in this order, concerning any matter involving, relating to, touching upon or leading to the legal proceedings mentioned in this order, or attempt to make an application to amend, vary or discharge this order, without first obtaining the leave of the Court, your action or application will be treated as struck out or dismissed (as the case may be) without the Court having to make any further order, and without the need for any other party to be heard on the merits of your application.
5. If you do not understand anything in this order, you should consult a solicitor as soon as possible.

This form requires sealing by the Court and the signature of the Registrar.

*Delete as appropriate

Form 64-3

R. 286C

(GENERAL CIVIL RESTRAINT ORDER)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Case No.

Date of Order:

Made By:

Between

*Plaintiff/Appellant**

And

*Defendant/Respondent**

Nature of Hearing in Open Court

Parties Present at the Hearing

Orders Made:

1. The (party) is restrained from commencing any action or making any application, in (specify the court), without the leave of the Court.
2. The (party) may apply to amend, vary or discharge this order, only if the (party) has the leave of the Court to make the application.
3. This order remains in force until (date).
4. (state the order on costs or any other orders made by the Court).

Important Message:

1. You must obey the directions contained in this order. If you disobey any direction contained in this order, you will be guilty of contempt of court and may be sent to prison or fined.
2. If you apply for leave to commence an action or make an application in a court specified in this order, you must serve the application for leave, and the supporting affidavit, on every intended defendant to the action or every intended respondent to the application (as the case may be) and, if this order was made on the application of the Attorney-General, on the Attorney-General.
3. If you apply for leave to make an application to amend, vary or discharge this order, you must serve the application for leave, and the supporting affidavit, on every party to the application pursuant to which this order was made.
4. If you attempt to commence an action or make an application in a court specified in this order, or attempt to make an application to amend, vary or discharge this order, without first obtaining the leave of the Court, your action or application will be treated as struck out or dismissed (as the case may be) without the Court having to make any further order, and without the need for any other party to be heard on the merits of your application.
5. If you do not understand anything in this order, you should consult a solicitor as soon as possible.

This form requires sealing by the Court and the signature of the Registrar.

*Delete as appropriate

Form 64-4

R. 286H

(ORDER UNDER SECTION 74(1) OF SUPREME COURT OF JUDICATURE ACT)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Case No.

Date of Order:

Made By:

Between

*Plaintiff/Appellant**

And

*Defendant/Respondent**

Nature of Hearing in Open Court

Parties Present at the Hearing

Orders Made:

1. No legal proceedings are to be instituted without the leave of the Family Division of the High Court by (the person against whom this order is made) in (specify the court or subordinate court).
2. Any legal proceedings instituted by (the person against whom this order is made) in (specify the court or subordinate court) before the making of this order must not be continued by him/her/it* without the leave of the Family Division of the High Court.
3. (state the order on costs or any other orders made by the Court).

Important Message:

1. You must obey the directions contained in this order. If you disobey any direction contained in this order, you will be guilty of contempt of court and may be sent to prison or fined.
2. If you apply for leave to institute any legal proceedings, or to continue any legal proceedings instituted by you before the making of this order, you must serve the application for leave, and the supporting affidavit, on the Attorney-General and on every party to the legal proceedings to be instituted or continued.
3. If you attempt to institute any legal proceedings, or to continue any legal proceedings instituted by you before the making of this order, without first obtaining the leave of the Family Division of the High Court, any other party to those legal proceedings, or to the application pursuant to which this order was made, may apply for those legal proceedings to be struck out. The Court may also on its own motion strike out those legal proceedings.
4. If you do not understand anything in this order, you should consult a solicitor as soon as possible.

This form requires sealing by the Court and the signature of the Registrar.

*Delete as appropriate

Form 64A

R. 295G(2)

- (i) **For applications for Orders under sections 14 or 15 by a person mentioned in section 12(2)(a)(i) Vulnerable Adults Act**

MENTAL CAPACITY ASSESSMENT REPORT

To be filled in by a mental capacity assessor as appointed by the Director-General of Social Welfare under the Vulnerable Adults Act 2018

(A) INDIVIDUAL'S PARTICULARS

Name (as in NRIC):		Gender:	☐ Male ☐ Female
NRIC / FIN / Passport no.:	☐ NRIC (Pink) ☐ NRIC (Blue) ☐ FIN ☐ Passport ☐ Other (please specify: _____)	Date of Birth:	___ / ___ / ___ DD MM YYYY
		Place of Assessment:	
		Date of assessment:	___ / ___ / ___ DD MM YYYY

(B) ASSESSOR'S PARTICULARS

Name (as in NRIC):		Contact no.:	
MCR/SRP no.:			
Designation and Department:			

Assessor's qualifications and experience in assessing mental capacity:	
Hospital / clinic / organisation and address:	
Relationship with VA: (please tick where applicable)	☐ <i>I have been seeing the VA regularly over a period of time</i> Date of first consultation/assessment: _____ Frequency of consultation/assessment: _____ Date of last examination/assessment: _____ ☐ <i>I am seeing the VA for this mental capacity assessment only.</i>
(C) INDIVIDUAL'S MEDICAL INFORMATION	
Past medical history (if any)	Past Diagnosis: Date of assessment: Source of information: ☐ Medical records/report – please specify doctor & clinic/hospital: _____ ☐ Vulnerable adult ☐ Others – please specify: Name: _____ Relationship: _____
Current Diagnosis:	Please state what the individual is suffering from.

Symptoms in relation to mental capacity:	Is there a current impairment of or disturbance in the functioning of the person's mind or brain? <i>(e.g., symptoms of alcohol or drug use, delirium, concussion, head injury, conditions associated with mental illness, dementia, significant learning disability, brain damage, confusion, drowsiness, or loss of consciousness due to a physical or medical condition)</i> <u>Note: If there is no indication of impairment of or disturbance in the functioning of the person's mind or brain, the person will not lack capacity within the meaning of s4 of the Mental Capacity Act.</u>	
(D) ASSESSMENT OF VULNERABLE ADULT'S MENTAL CAPACITY		
<i>A person lacks mental capacity in relation to a matter if at the material time he is unable to make a decision for himself in relation to the matter, because of an impairment of, or a disturbance in the functioning of, the mind or brain.</i> <i>A person is unable to make a decision for himself if he is unable –</i> (a) <i>To understand the information relevant to the decision;</i> (b) <i>To retain that information;</i> (c) <i>To use or weigh that information as part of the process of making the decision; <u>or</u></i> (d) <i>To communicate his decision (whether by talking, using sign language or any other means).</i> <i>The information relevant to a decision includes information about the reasonably foreseeable consequences of –</i> (a) <i>Deciding one way or another; <u>or</u></i> (b) <i>Failing to make the decision.</i> <i>A person's capacity must not be judged simply on the basis of their age, appearance, condition or an aspect of their behaviour. A person is not to be deemed as unable to make a decision unless all practicable steps to help him to do so have been taken without success.</i>		
Mental capacity to consent	<i>Does the Vulnerable Adult have the mental capacity to consent to the court interventions indicated in sub-sections _____:</i>	
	i. To be committed to a place of temporary care and protection or the care of a fit person for a period not exceeding six months;	☐ Yes ☐ No ☐ Unable to understand information relevant to decision ☐ Unable to retain information

		☐ Unable to use or weigh information for decision making ☐ Unable to communicate his/her decision
	ii. To be committed to a place of safety or the care of a fit person for a specified period exceeding six months;	☐ Yes ☐ No ☐ Unable to understand information relevant to decision ☐ Unable to retain information ☐ Unable to use or weigh information for decision making ☐ Unable to communicate his/her decision
	iii. For a person to produce him/her at a medical or dental facility for such medical or dental treatment as may be necessary to enable his/her committal to a place of temporary care and protection, the care of a fit person or a place of safety;	☐ Yes ☐ No ☐ Unable to understand information relevant to decision ☐ Unable to retain information ☐ Unable to use or weigh information for decision making ☐ Unable to communicate his/her decision
	iv. To be placed under the supervision of protector, approved welfare officer or a person appointed by the Court, for a specified period;	☐ Yes ☐ No ☐ Unable to understand information relevant to decision ☐ Unable to retain information ☐ Unable to use or weigh information for decision making ☐ Unable to communicate his/her decision
	v. To make his/her place of residence a safe living	☐ Yes

	environment, including removing him/her temporarily for this purpose and disposing of articles or things in the residence;	☐ No ☐ Unable to understand information relevant to decision ☐ Unable to retain information ☐ Unable to use or weigh information for decision making ☐ Unable to communicate his/her decision
	vi. To restrain another person from abusing or further abusing him/her; and	☐ Yes ☐ No ☐ Unable to understand information relevant to decision ☐ Unable to retain information ☐ Unable to use or weigh information for decision making ☐ Unable to communicate his/her decision
	vii. To be granted exclusive right of occupation of the premises where he/she ordinarily resides, or part thereof, to the exclusion of another person; and	☐ Yes ☐ No ☐ Unable to understand information relevant to decision ☐ Unable to retain information ☐ Unable to use or weigh information for decision making ☐ Unable to communicate his/her decision
	viii. To prohibit a person from entering and remaining in a specific area outside his/her place of residence or any other place he/she frequents; and	☐ Yes ☐ No ☐ Unable to understand information relevant to decision ☐ Unable to retain information

		☐ Unable to use or weigh information for decision making ☐ Unable to communicate his/her decision
	ix. To prohibit a person from visiting or communicating with him/her; and	☐ Yes ☐ No ☐ Unable to understand information relevant to decision ☐ Unable to retain information ☐ Unable to use or weigh information for decision making ☐ Unable to communicate his/her decision
	x. To be required to attend counselling or any other court directed programmes	☐ Yes ☐ No ☐ Unable to understand information relevant to decision ☐ Unable to retain information ☐ Unable to use or weigh information for decision making ☐ Unable to communicate his/her decision
	xi. To be placed under the custody, charge and care of the Director-General of Social Welfare/ protector until an application to court under Section 12 is made and determined	☐ Yes ☐ No ☐ Unable to understand information relevant to decision ☐ Unable to retain information ☐ Unable to use or weigh information for decision making ☐ Unable to communicate his/her decision

Basis of opinion	<i>Supporting information / clinical observations:</i>
(E) PROGNOSIS	
Where “No” is indicated in any or all of the above: Do you consider there is a prospect that the person might regain or acquire capacity in the future in respect of the decisions to which the application relates? ☐ Yes. Please state why and given an indication of when this might happen: ☐ No. Please state why:	
(F) ANY OTHER INFORMATION / REMARKS	
G) DECLARATION	
I believe in the correctness of the assessment set out herein. I do not have any family members or friends who have any interest (financial or otherwise) in any matter concerning the person to whom the application relates. I understand that this report may be used by the Director-General of Social Welfare or protector in the exercise of statutory powers under the Vulnerable Adults Act, or submitted to the Court in an application for a court order under the Vulnerable Adults Act.	

The assessment of mental capacity is only for decisions covered under this form and cannot be used for any other transactions or purposes at present or in future, whether or not related to the Vulnerable Adults Act.

Signature: _____

Date: _____

Time: _____

- (ii) *For applications for Orders under sections 14 and 15 by a person mentioned in section 12(2)(a)(ii) or (iii)*

MENTAL CAPACITY ASSESSMENT REPORT

(For use in support of a Court application under the Vulnerable Adults Act)

Date: _____

Full name of Patient: _____

NRIC No.: _____

Age of Patient at last birthday: _____

This is to certify that:

- a) the above-named patient does not have the mental capacity to give consent to either an approved welfare officer or his/her donee/deputy (if any) or a family member to make an application for any of the Court Orders stated below.
- b) [Optional] Medical diagnosis
- _____

ASSESSMENT OF VULNERABLE ADULT'S MENTAL CAPACITY		
Mental capacity to consent	<i>Does the Vulnerable Adult have the mental capacity to consent to the following court interventions:</i>	
	i. Section 14(1)(e) To restrain another person from abusing or further abusing him/her; and/or	☐ Yes ☐ No ☐ Unable to understand information relevant to decision ☐ Unable to retain information ☐ Unable to use or weigh information for decision making ☐ Unable to communicate his/her decision
	ii. Section 14(1)(f) To be granted exclusive right of occupation of the premises where he/she ordinarily resides, or part thereof, to the exclusion of another person; and/or	☐ Yes ☐ No ☐ Unable to understand information relevant to decision ☐ Unable to retain information ☐ Unable to use or weigh information for decision making

ASSESSMENT OF VULNERABLE ADULT'S MENTAL CAPACITY		
		☐ Unable to communicate his/her decision
	iii. Section 14(1)(g) To prohibit a person from entering and remaining in a specific area outside his/her place of residence or any other place he/she frequents; and/or	☐ Yes ☐ No ☐ Unable to understand information relevant to decision ☐ Unable to retain information ☐ Unable to use or weigh information for decision making ☐ Unable to communicate his/her decision
	iv. Section 14(1)(h) To prohibit a person from visiting or communicating with him/her.	☐ Yes ☐ No ☐ Unable to understand information relevant to decision ☐ Unable to retain information ☐ Unable to use or weigh information for decision making ☐ Unable to communicate his/her decision

Name of Doctor:
Clinic/Hospital:
Medical Registration Number:

Guidance Notes:

A person lacks mental capacity in relation to a matter if at the material time he is unable to make a decision for himself in relation to the matter, because of an impairment of, or a disturbance in the functioning of, the mind or brain.

A person is unable to make a decision for himself if he is unable –

- (a) To understand the information relevant to the decision;*
- (b) To retain that information;*
- (c) To use or weigh that information as part of the process of making the decision; or*
- (d) To communicate his decision (whether by talking, using sign language or any other means).*

The information relevant to a decision includes information about the reasonably foreseeable consequences of

- (a) Deciding one way or another; or*
- (b) Failing to make the decision.*

A person's capacity must not be judged simply on the basis of their age, appearance, condition or an aspect of their behaviour. A person is not to be deemed as unable to make a decision unless all practicable steps to help him to do so have been taken without success.

Form 64B

R. 295I(1)(a)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

In the Matter of Section 11(2)/14(1)/17(1) of the

VULNERABLE ADULTS ACT 2018

and

[Name & identification of Vulnerable Adult]

Director-General of Social Welfare/protector... Applicant

NOTICE OF APPLICATION

To (Name of Vulnerable Adult)

Of (Address)

WHEREAS the Director-General of Social Welfare/protector has reason to believe that you, the abovenamed vulnerable adult, has experienced, or is experiencing or at risk of, abuse, neglect or self-neglect.

AND WHEREAS an application by the Director-General/protector has been made for an order under [specify which order under section 11(2)/14(1)/17(1)] of the above-mentioned Act, namely [state nature of order].

YOU ARE HEREBY GIVEN NOTICE of the above application. If you wish to object to the application, you are to:

- (a) File a Notice of Objection with the Family Justice Courts at 3 Havelock Square Singapore 059725 within seven (7) days of the service of this Notice of Application on you. Upon acceptance of your Notice by the Court, serve a copy of the Notice on the Director-General/protector at 512 Thomson Road, #10-00 MSF Building, Singapore 298136, and
- (b) Appear at (Court Room) of the Family Justice Courts, 3 Havelock Square Singapore 059725 on (date) at (time) to be heard on the application.

TAKE NOTICE that if you do not appear as stipulated above, the Court may proceed to hear and determine the application without further reference to you.

Dated this _____ day of _____, 20 ____.

Court Seal

.....

Clerk

Department

.....

District Judge / Magistrate

Received the duplicate of this process on the _____ day of _____, 20 ____.

.....

Name & Signature

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

In the Matter of Section 11(2)/14(1)/17(1) of the

VULNERABLE ADULTS ACT 2018

and

[Name & identification of Vulnerable Adult]

Director-General of Social Welfare/protector... Applicant

NOTICE OF APPLICATION

To (Name)

Of (Address)

WHEREAS the Director-General of Social Welfare/protector has reason to believe that the above-named vulnerable adult has experienced, or is experiencing or at risk of, abuse, neglect or self-neglect.

AND WHEREAS an application by the Director-General/protector has been made for an order under [specify which order under section 11(2)/14(1)/17(1)] of the above-mentioned Act, namely [state nature of order].

YOU ARE HEREBY GIVEN NOTICE of the above application. If you wish to object to the application, you are to:

- (a) File a Notice of Objection with the Family Justice Courts at 3 Havelock Square Singapore 059725 within seven (7) days of the service of this Notice of Application on you. Upon acceptance of your Notice by the Court, serve a copy of the Notice on the Director-General/protector at 512 Thomson Road, #10-00 MSF Building, Singapore 298136, and
- (b) Appear at (Court Room) of the Family Justice Courts, 3 Havelock Square Singapore 059725 on (date) at (time) to be heard on the application.

TAKE NOTICE that if you do not appear as stipulated above, the Court may proceed to hear and determine the application without further reference to you.

Dated this _____ day of _____, 20 ____.

Court Seal

.....

Clerk

Department

.....

District Judge / Magistrate

Received the duplicate of this process on the _____ day of _____, 20 ____.

.....

Name & Signature

Form 64B-1

R. 295I(1A)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

In the Matter of Section 22(4) of the

VULNERABLE ADULTS ACT 2018

and

[Name & identification of Vulnerable Adult]

Director-General of Social Welfare/protector... Applicant

and

[Name & identification of Respondent]

... Respondent

NOTICE OF APPLICATION

To (Name of Respondent)

Of (Address)

WHEREAS the Director-General of Social Welfare/protector that you have, without the Director-General's approval, on [specify date] on [specify platform], in contravention of [specify section 22(1) / (2)]* of the above-mentioned Act, published, or broadcast, information or picture(s) that identify(ies) or is/are likely to lead to the identification of:

[to insert the applicable sub-paragraph of 22(1) or 22(2) as the case may be:

22(1) (a) an individual who has been or is the subject of any investigation, examination, assessment or treatment under this Act relating to whether the individual is a vulnerable adult experiencing or at risk of abuse, neglect or self-neglect;

(b) a vulnerable adult who has been committed to a place of temporary care and protection or place of safety or to the care of a fit person under this Act; or

(c) a vulnerable adult who is the subject of an order made by a court under this Act.

22(2) (a) a place of temporary care and protection or place of safety in which an individual or a vulnerable adult mentioned in subsection (1)(a), (b) or (c) is committed, or the location of such a place of temporary care and protection or place of safety; or

(b) a fit person under whose care an individual or a vulnerable adult mentioned in subsection (1)(a), (b) or (c) is placed, or the location of the premises of such a fit person.]

AND WHEREAS an application by the Director-General/protector has been made for an order under section 22(4) of the above-mentioned Act that you remove the publication, or cease the broadcast, of such information or picture(s);

YOU ARE HEREBY GIVEN NOTICE of the above application. If you wish to object to the application, you are to:

- (a) File a Notice of Objection with the Family Justice Courts at 3 Havelock Square Singapore 059725 within seven (7) days of the service of this Notice of Application on you. Upon acceptance of your Notice by the Court, serve a copy of the Notice on the Director-General/protector at 512 Thomson Road, #10-00 MSF Building, Singapore 298136, and
- (b) Appear at (Court Room) of the Family Justice Courts, 3 Havelock Square Singapore 059725 on (date) at (time) to be heard on the application.

TAKE NOTICE that if you do not appear as stipulated above, the Court may proceed to hear and determine the application without further reference to you.

Dated this _____ day of _____, 20 ____.

Court Seal

.....

Clerk

Department

.....

District Judge / Magistrate

Received the duplicate of this process on the _____ day of _____, 20 ____.

.....

Name & Signature

**delete where inapplicable*

Form 64C

R. 295I(2)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

In the Matter of the Section 7(3)/10(4) of the

VULNERABLE ADULTS ACT 2018

and

[Name & identification of Vulnerable Adult]

Director-General of Social Welfare/protector... Applicant

NOTICE OF APPLICATION

To (Name of Vulnerable Adult)

Of (Address)

WHEREAS the Director-General of Social Welfare/protector has reason to believe that you have experienced, or is experiencing or at risk of, abuse, neglect or self-neglect.

AND WHEREAS an application by the Director-General/protector has been made for an order under [specify which order under section 7(3)/10(4)] of the above-mentioned Act, namely [state nature of order].

YOU ARE HEREBY GIVEN NOTICE of the above application. If you wish to object to the application, you are to:

- (a) File a Notice of Objections with the Family Justice Courts at 3 Havelock Square Singapore 059725 within seven (7) days of the service of this Notice of Application on you. Upon acceptance of your Notice by the Court, serve a copy of the Notice on the Director-General/protector at 512 Thomson Road, #10-00 MSF Building, Singapore 298136, and
- (b) Appear at (Court Room) of the Family Justice Courts, 3 Havelock Square Singapore 059725 on (date) at (time) to be heard on the application.

TAKE NOTICE that if you do not appear as stipulated above, the Court may proceed to hear and determine the application without further reference to you.

Dated this _____ day of _____, 20 ____.

Court Seal

.....

Clerk

Department

.....

District Judge / Magistrate

Received the duplicate of this process on the _____ day of _____, 20 ____.

.....

Name & Signature

Form 64D

R. 295I(4)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

In the Matter of the
VULNERABLE ADULTS ACT 2018
and

[Name & identification of Vulnerable Adult]

Director-General of Social Welfare/protector... Applicant

NOTICE TO DISPUTE MENTAL CAPACITY

To: Director-General of Social Welfare/protector

Of (Address)

1. Whereas an application has been made by the above applicant for an Order under Section 14 of the abovementioned Act; and the abovementioned vulnerable adult had received the Notice of Application from the Director-General of Social Welfare/protector on [date] at [state address, email etc. where the Notice of Application was received].

2. I, [state name] [Identification Number], the [state nature of relationship to the vulnerable adult (e.g., father, daughter)] of the vulnerable adult hereby gives notice that I wish to dispute that the vulnerable adult has mental capacity to consent to the application(s) made by the Director-General of Social Welfare/protector under the above-mentioned Act and wish to be heard on the same.

[Facts/Documents in support]

3. The address to which communications should be sent to me is:

[Note: this must be an address in Singapore. If a solicitor is acting for you, give the name and address of your solicitor in Singapore.]

4. My other contact particulars are:

Handphone & Email:

5. I understand that upon filing this Notice and if accepted, the Court will fix a case conference for which my attendance is required for the Court to give directions on the matter.

Signature: _____ Name _____ &

Date of birth: _____

Form 64E

R. 295J(1)

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

In the Matter of the
VULNERABLE ADULTS ACT 2018
and

[Name & identification of Vulnerable Adult]

Director-General of Social Welfare/protector... Applicant

NOTICE OF OBJECTIONS

To:

I) Family Justice Courts

II) Director-General of Social Welfare/protector

1. Whereas an application has been made by the above applicant for an Order under section 14 of the abovementioned Act and that a Notice of Application was served on me/the Respondent*.

2. I, [state name] [Identification Number (for Respondent) / Practicing Certificate Number (for solicitor)]*, the [state nature of relationship to the vulnerable adult (e.g., father, daughter)] of the vulnerable adult hereby give notice that I/the Respondent* intend to object to the application and wish to be heard on the same.

[Brief Grounds/Reasons for objections]

3. The address to which communications should be sent to me/the Respondent* is:

[Note: This must be an address in Singapore. If a solicitor is acting for you, give the name and address of your solicitor in Singapore.]

[If the Respondent is a minor (i.e. below 21 years of age), a Litigation Representative is to appear on his/her behalf and a solicitor is to be appointed to represent the Litigation Representative. Forms 133 and 134 of these Practice Directions are to be filed together with this Notice.]

4. My other contact particulars are:

Handphone & Email:

5. Particulars of solicitor appointed by the Litigation Representative (*if applicable*)

Name of Law Firm:

Address of Law Firm:

Email & contact number of solicitor:

6. I understand that after the Notice of Objections has been filed and accepted by the Family Justice Courts, the Notice of Objection is to be served on the Director-General of Social Welfare/protector, Ministry of Social and Family Development (MSF) and a case conference will be fixed where the Court may give such directions as it deems fit.

Signature: _____

Name _____ &

Date of birth (of Respondent): _____

**delete where inapplicable*

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

In the Matter Section 22(4) of the
VULNERABLE ADULTS ACT 2018

and

[Name & identification of Vulnerable Adult]

Director-General of Social Welfare/protector... Applicant

and

[Name & identification of Respondent]

... Respondent

NOTICE OF OBJECTION

To:

I) Family Justice Courts

II) Director-General of Social Welfare/protector

1. Whereas an application has been made by the above applicant for an Order under section 22(4) of the abovementioned Act and that a Notice of Application was served on me/the Respondent*.

2. I, [state name] [Identification Number (for Respondent) / Practicing Certificate Number (for solicitor)]*, the [state nature of relationship to the vulnerable adult (e.g., father, daughter)] of the vulnerable adult hereby give notice that I/the Respondent* intend to object to the application and wish to be heard on the same.

i) Brief Grounds/Reasons for objections:

3. The address to which communications should be sent to me/the Respondent* is:

[Note: This must be an address in Singapore. If a solicitor is acting for you, give the name and address of your solicitor in Singapore.]

[If the Respondent is a minor (i.e. below 21 years of age), a Litigation Representative is to appear on his/her behalf and a solicitor is to be appointed to represent the Litigation Representative. Forms 133 and 134 of these Practice Directions are to be filed together with this Notice.]

4. My other contact particulars are:

Handphone & Email:

5. Particulars of solicitor appointed by the Litigation Representative (if applicable)

Name of Law Firm:

Address of Law Firm:

Email & contact number of solicitor:

6. I understand that after the Notice of Objection has been filed and accepted by the Family Justice Courts, the Notice of Objection is to be served on the Director-General of Social Welfare/protector, Ministry of Social and Family Development (MSF) and a case conference will be fixed where the Court may give such directions as it deems fit.

Name & Signature: _____

Date of birth (of Respondent): _____

**delete where inapplicable*

Form 64F

R. 295K

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

In the Matter of the

VULNERABLE ADULTS ACT 2018

and

[Name & identification of Vulnerable Adult]

Director-General of Social Welfare/protector... Applicant

CONSENT OF VULNERABLE ADULT

1. I, [name] [Identification number] of [address], hereby give my consent to [Director-General of Social Welfare/protector/approved welfare officer/done/deputy/family member] to make an application under the Vulnerable Adults Act 2018 for the following orders [circle where applicable]:

- a. To be removed from the place where I am residing to be committed to a place of temporary care and protection, or the care of a fit person, for a period not exceeding 6 months [section 14(1)(a)];
- b. To be removed from the place where I am residing to be committed to a place of safety or the care of a fit person [section 14(1)(b)];
- c. To be produced for medical/dental assessment and/or treatment (specify treatment: _____) that is necessary to enable my committal to a place of temporary care and protection, place of safety or care of a fit person [section 14(1)(c)];
- d. To be placed under the supervision of a protector, an approved welfare officer or another person appointed by the Court [section 14(1)(d)];
- e. To restrain another person (name _____) from abusing or further abusing me [section 14(1)(e)];
- f. To be granted exclusive right of occupation of the premises where I ordinarily reside, or part thereof, to the exclusion of another person (name _____) [section 14(1)(f)];
- g. To prohibit a person (name _____) from entering and remaining in a specific area outside my place of residence or any other place I frequent [section 14(1)(g)];
- h. To prohibit a person (name _____) from visiting or communicating with me [section 14(1)(h)];
- i. To be required to attend counselling [section 14(1)(i)],
- j. To make my place of residence a safe living environment, including removing me temporarily for this purpose and disposing of articles or things in the residence [section 14(1)(j)];

- k. To file an application for contempt of court against [name of respondent] [section 16];
- l. To file an application to vary, suspend or revoke an earlier order made [section 17(4)].

Signature of the Vulnerable Adult

Witnessed before me)

Signature of Commissioner for Oaths / Notary Public / Advocate & Solicitor / Registered Medical Practitioner / Psychiatrist / Psychologist*

Registration No. (if any):

If witness is not one of above:

Name of Witness:

NRIC:

Address:

I confirm that I am 21 years of age and have no interest in the case.

Signature

*delete where inapplicable

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

In the Matter of

Section 14(1)(j) of the

VULNERABLE ADULTS ACT 2018

and

[Name & identification of Vulnerable Adult]

Director of Social Welfare/protector...Applicant

CONSENT OF OWNER OF RESIDENCE UNDER SECTION 14(1)(J)

OF THE VULNERABLE ADULTS ACT 2018

1. I, [name] [Identification number] of [address], hereby give my consent to [the Director-General of Social Welfare/protector] to make an application under section 14(1)(j) of the Vulnerable Adults Act 2018 for an order authorising the Director-General/protector/[state the name of other person/company] to make my residence at [state address of the residence] a safe living environment and authorising the disposal by the Director-General/protector/[state the name of other person/company] of any article or thing in the said residence to make the said residence a safe living environment.

Signature of the Owner

Witnessed before me)

Signature of Commissioner for Oaths / Notary Public / Advocate & Solicitor / Registered Medical Practitioner / Psychiatrist / Psychologist*

Registration No. (if any):

If witness is not one of above:

Name of Witness:

NRIC:

Address:

I confirm that I am 21 years of age and have no interest in the case.

Signature

*delete where inapplicable

Form 64G

Para 295H(1)

PHYSICAL CAPACITY ASSESSMENT REPORT *Assessment for Physical Infirmary/Disability/Incapacity of an Individual*

Section 1: Individual's Particulars

Name (as in NRIC):	Enter name here
Gender:	☐ Male ☐ Female
NRIC / FIN / Passport No.:	☐ NRIC (Pink) Enter NRIC no. here ☐ NRIC (Blue) Enter NRIC no. here ☐ FIN Enter FIN no. here ☐ Passport Enter passport no. here ☐ Others [If others, please specify. Please also include identification no.]
Date of Birth:	Enter date of birth here
Place of Assessment:	Enter location here
Date of Assessment:	Enter date of assessment here

Section 2: Assessor's Particulars

Name (as in NRIC):	Enter name here
MCR/SRP No.:	Enter MCR/SRP no here
Contact No.:	Enter contact no here
Designation and Department:	Enter Designation/Department here
Assessor's qualifications and experience:	Enter details here
Hospital / clinic / organisation and address:	Enter details here
Engagements with VA:	☐ I have been seeing the VA regularly over a period of time. Date of first consultation/assessment: Enter date here Frequency of consultation/assessment: Enter details here

	Date of last examination/assessment: Enter date here ☐ I am seeing the VA for this assessment only.
--	---

Section 3: Individual's Medical Information

Past medical history (if any):	Date of assessment: Enter date here Source of information ¹ : ☐ Medical records/report – please specify doctor & clinic/hospital: Enter details here ☐ Vulnerable adult ☐ Others – please specify name & relationship: Enter details here
Current Diagnosis:	Please state nature of physical conditions and/or disabilities the individual is suffering from
Basis of opinion:	Enter details of supporting information/ clinical observations

Section 4: Any Other Information / Remarks

¹ Select the applicable option(s).

Enter details here

Section 5: Declaration

I believe in the correctness of the assessment set out herein.

I do not have any family members or friends who have any interest (financial or otherwise) in any matter concerning the person to whom the application relates.

I understand that this report may be used for the purpose of an application for a Court order under the Vulnerable Adults Act 2018.

The assessment cannot be used for any other transactions or purposes at present or in future, whether or not related to the Vulnerable Adults Act 2018.

Signature: _____

Date: _____

Time: _____

Form 64H

Para 71B(2)

APPLICATION IN VULNERABLE ADULTS ACT PROCEEDINGS

(Title as in action)

1. I, _____ (NRIC No/Other ID No: _____) of _____ (address) the complainant/respondent*) hereby apply for the Court to make the following orders:
2. Orders applied for:
(to state nature of application, e.g. striking off affidavits)
3. Grounds of the Application
(To state the Legislation / Rules which the applicant relies on e.g. Rule 647 of the Family Justice Rules)
4. Reason in Support of Application (Please attach Supporting Affidavit, if any)

Dated ____ day of ____ 20__

Affirmed/Sworn* by

through interpretation of
_____ in (to state language)

Before me

Commissioner for Oaths

Form 64I

R. 295T

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

In the Matter Section 22(4) of the
VULNERABLE ADULTS ACT 2018

and

[Name & identification of Vulnerable Adult]

Director-General of Social Welfare/protector... Applicant

and

[Name & identification of Respondent]

... Respondent

NOTICE TO SET ASIDE AN ORDER UNDER SECTION 22(4)

To (Name of Respondent)

Of (Address)

WHEREAS an order in my/the Respondent's* absence has been made under section 22(4) of the above-mentioned Act that I/the Respondent* remove the publication, or cease the broadcast, of the information or picture(s), that was published or broadcast on [specify date] on [specify platform], in contravention of [specify section 22(1) / (2)]* of the above-mentioned Act;

1. I, [state name] [Identification Number (for Respondent) / Practicing Certificate Number (for solicitor)]*, the [state nature of relationship to the vulnerable adult if any (e.g., father, daughter)] of the vulnerable adult hereby give notice that I am/the Respondent is* applying to set aside the order. The grounds/reasons for my/the Respondent's application is set out in my/the Respondent's affidavit filed herewith.

2. The address to which communications should be sent to me/the Respondent* is:

[Note: This must be an address in Singapore. If a solicitor is acting for you, give the name and address of your solicitor in Singapore.]

[If the Respondent is a minor (i.e. below 21 years of age), a Litigation Representative is to appear on his/her behalf and a solicitor is to be appointed to represent the Litigation Representative. Forms 133 and 134 of these Practice Directions are to be filed together with this Notice.]

3. My other contact particulars are:

Handphone & Email:

4. Particulars of solicitor appointed by the Litigation Representative (if applicable)

Name of Law Firm:

Address of Law Firm:

Email & contact number of solicitor:

5. I understand that after the Notice has been filed and accepted by the Family Justice Courts, the Notice is to be served on the Director-General of Social Welfare/protector, Ministry

of Social and Family Development (MSF) and a case conference will be fixed where the Court may give such directions as it deems fit.

Name & Signature: _____

Date of birth: _____

** delete where inapplicable*

Form 65

R.296

ORDER FOR CONSOLIDATION

(Title as in action)

Upon the application of _____ the plaintiff (or the defendant) in this
action and upon reading the affidavit of _____ filed the day
of _____ 20____, and upon hearing

It is ordered that Suit/Originating Summons No. _____ be consolidated
with Suit/Originating Summons No. _____ and do proceed as one action and it is
further ordered that the title of Suit/Originating Summons No. _____ be amended by
adding to it the titles of _____ (state the numbers of the suits/originating
summonses which are being consolidated) and that all subsequent documents be filed
in Suit/Originating Summons No. _____ (state any other orders or directions given
by the Court).

Dated this _____ day of _____ 20____.

This form requires sealing by the Court and the signature of the Registrar.

Form 66

R.297

**WRIT OF SUMMONS
IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE**

Suit No. of 20 .
(Seal)

Between

Plaintiff(s)

And

Defendant(s)

To THE DEFENDANT(S) [name]
of [address]

THIS WRIT OF SUMMONS has been issued against you by the abovenamed Plaintiff(s) in respect of the claim endorsed herein. Within days after the service of this Writ on you, you must either satisfy the claim or cause an appearance to be entered for you using the electronic filing service and in default of your so doing the Plaintiff(s) may proceed with the action and judgment may be entered against you without further notice.

Dated this day of 20 .
Solicitor for the Plaintiff(s)

*Registrar
Family Justice Courts,
Singapore.*

(Note: If any defendant is outside the jurisdiction, a separate period of time for entering appearance must be inserted.)

Memorandum to be subscribed on the writ

This writ may not be served more than (a) 6 months after the above date, or (b) 12 months after the above date where leave to serve out of jurisdiction has been obtained, unless renewed by order of the Court.

The defendant(s) may enter an appearance(s) either personally or by a solicitor at the Registry of the Family Justice Courts.

Endorsements to be made on writ before issue.

Endorsement of claim/statement of claim

(Set out the endorsement or statement of claim).

(If the plaintiff's claim is for a debt or liquidated demand only, the following endorsement must be added at the foot of the claim:)

And \$ (or such sum as may be allowed on taxation) for costs, and also, if the plaintiff obtains an order for substituted service, the further sum of \$ (or such sum as may be allowed on taxation). If the amount claimed and costs be paid to the plaintiff or his solicitor within days after service hereof, further proceedings will be stayed.

Where the Writ of Summons is endorsed with a Statement of Claim the following must be added:

Note: If the defendant enters an appearance, then he must also serve a defence on the solicitor for the plaintiff within 14 days after the last day of the time limited for entering an appearance, otherwise judgment may be entered against him without further notice.

(If the plaintiff sues, or the defendant is sued, in a representative capacity, this must be stated in the endorsement of claim).

Endorsement as to solicitor and address.

This writ is issued by _____ of _____ solicitor for the said plaintiff whose address is _____ (or where the plaintiff sues in person). This writ is issued by the said plaintiff who resides at _____ and is (state occupation) and (if the plaintiff does not reside within the jurisdiction) whose address for service is _____.

Endorsement as to service.

This writ was served by _____ by way of personal service (or as may be) (state manner of service or in accordance with the terms of an order for substituted service) on the defendant (who is known to me) (or who was pointed out to me by _____) (or who admitted to me that he was _____) at (place) on the _____ day of _____ 20____.

Endorsed this _____ day of _____ 20____.

Process Server.

(Note: If any defendant is outside the jurisdiction, a separate period of time for entering appearance must be inserted.)

Memorandum to be subscribed on the writ

This writ may not be served more than (a) 6 months after the above date, or (b) 12 months after the above date where leave to serve out of jurisdiction has been obtained, unless renewed by order of the Court.

The defendant(s) may enter an appearance(s) either personally or by a solicitor at the Registry of the Family Justice Courts.

Endorsements to be made on writ before issue.

Endorsement of claim/statement of claim.

(Set out the endorsement or statement of claim).

(If the plaintiff's claim is for a debt or liquidated demand only, the following endorsement must be added at the foot of the claim:)

And \$ _____ (or such sum as may be allowed on taxation) for costs, and also, if the plaintiff obtains an order for substituted service, the further sum of \$ _____ (or such sum as may be allowed on taxation). If the amount claimed and costs be paid to the plaintiff or his solicitor within _____ days after service hereof, further proceedings will be stayed.

Where the Writ of Summons is endorsed with a Statement of Claim the following must be added:

Note: If the defendant enters an appearance, then he must also serve a defence on the solicitor for the plaintiff within 14 days after the last day of the time limited

for entering an appearance, otherwise judgment may be entered against him without further notice.

(If the plaintiff sues, or the defendant is sued, in a representative capacity, this must be stated in the endorsement of claim).

Endorsement as to solicitor and address.

This writ is issued by _____ of _____ solicitor for the said plaintiff whose address is _____ (or where the plaintiff sues in person). This writ is issued by the said plaintiff who resides at _____ and is (state occupation) and (if the plaintiff does not reside within the jurisdiction) whose address for service is _____ .

Endorsement as to service.

This writ was served by _____ by way of personal service (or as may be) (state manner of service or in accordance with the terms of an order for substituted service) on the defendant (who is known to me) (or who was pointed out to _____ me _____ by _____) (or who admitted to me that he was _____) at (place) on the _____ day of _____ 20 ____ .

Endorsed this _____ day of _____ 20 ____ .

Process Server.

Form 67

R.300

NOTICE OF RENEWAL OF WRIT

Renewed for months from the day
of 20 by an order of Court dated the day
of 20 .

Dated this day of 20 .

Solicitor for the

Form 68

R.306

MEMORANDUM OF SERVICE

(Title as in action)

Date:

To: The Registrar.

The writ of summons herein was served on —

Name of person served:

Capacity in which person is served: (The defendant) (or as may be).

On: (Day, date and time of service).

At: (Place of service).

Method of service: (State how service effected).

Issued by: (Solicitors for the).

Form 69

R.312

**AFFIDAVIT FOR LEAVE TO SERVE
ORIGINATING PROCESS OUT OF SINGAPORE**

(Title as in action)

I, (name, address and description of deponent), do make oath (or affirm)
and say as follows:

1. I am the plaintiff (or as may be) in this action.
2. This application is made pursuant to Rule 311 (specify the paragraphs).
3. The facts in support of paragraph 2 are
4. I verily believe that I have a good cause of action against the abovenamed defendant (state the facts, or refer to the Statement of Claim filed, or exhibit a copy of the proposed Statement of Claim, or refer to the originating process and any affidavits filed therein).
5. The defendant is presently residing (or carrying on business) at _____ in the State of _____.
6. _____ days will probably be sufficient for the defendant to enter an appearance in the Registry of the Family Justice Courts.
7. I apply for leave to serve the writ (or as may be) on the defendant at _____ or elsewhere as he may be found in the State of _____.
8. It is necessary/not necessary to extend the validity of this writ (and if necessary, to state how long).

Sworn (or affirmed) as in Form 132.

Form 70

R.312

**ORDER FOR SERVICE OF
DOCUMENT OUT OF SINGAPORE**

(Title as in action)

Upon the application of the plaintiff and upon reading the
affidavit of filed the day of 20 and
upon hearing ,

IT IS ORDERED THAT:

1. The plaintiff have leave to serve a sealed copy of the writ of summons on the defendant at (address at which defendant to be served) or elsewhere in the State of .
2. The time for entry of an appearance in this action by the defendant be days after service on him of the writ of summons (or as may be).

Dated this day of 20 .

This form requires sealing by the Court and the signature of the Registrar.

Form 71

R.314

**REQUEST FOR SERVICE OF DOCUMENT
OUT OF SINGAPORE**

(Title as in action)

We hereby request that the writ of summons (or as may be, describing the document including translation, if applicable) in this action be sent through the proper channel to (name of country) for service on the (defendant) , at or elsewhere in (name of country) and that it may be served —

- (i) through the government of (where the government is willing to effect service).
- (ii) through the judicial authority of .
- (iii) through a Singapore consular authority at .

(delete which methods not desired)

We hereby undertake to be responsible personally for all expenses incurred by the Minister in respect of the service requested and, on receiving due notification of the amount of those expenses, to pay that amount to the office of the said Minister and to produce a receipt for the payment to the proper officer in the Registry.

Dated this day of 20 .

Solicitors for the

Form 72

R.320, 350,
356(4),(7)

MEMORANDUM OF APPEARANCE

(Title as in action)

To: The Registrar.

Appearance is entered for the following parties in this action:

Appearing party type: (e.g. 1st Defendant)

Appearing party name:

Where appearing party is represented by solicitors

Law firm name:

Law firm address:

Solicitor's name:

Solicitor's contact particulars:

(tel.); (fax); (email).

Where appearing party is acting in person

Residential address:

Address for service within jurisdiction (if residential address is outside jurisdiction):

Other contact particulars:

(tel.); (fax); (email).

The statement of claim is (required / not required) to be filed and delivered.

Issued by: (Solicitors for the).

Form 73

R.333, R.416

REQUEST TO ENTER JUDGMENT

(Title as in action)

To: The Registrar

Request is made for judgment to be entered against the defendant, (name):

*1. For failure by the defendant to enter an appearance within the time limited for appearing.

I certify that:

(a) the writ has been duly served on the defendant, (name), on (date of service) as specified in the memorandum of service filed on (date) and properly endorsed; and

(b) I have conducted a search for appearance and no appearance has been entered by the defendant.

*2. For failure by the defendant to serve a defence on the plaintiff, within the period fixed under the Family Justice Rules for service of defence.

I certify that no defence has been served on the plaintiff by the defendant, (name), within the period fixed by the Family Justice Rules for service of defence.

Issued by: (Solicitors for the).

(*Use as appropriate)

Form 74

R.333, R.416

JUDGMENTS (Title as in action)

[Notes: R.328; R.410; R.694]

(a) Default judgment in action for liquidated demand.

No appearance having been entered (or no defence having been served) by the defendant herein, it is this day adjudged that the defendant do pay the plaintiff \$ and \$ costs (or costs to be taxed).

(The above costs have been taxed and allowed at \$ as appears by the Registrar's certificate dated the day of 20).

Dated this day of 20 .

This form requires sealing by the Court and the signature of the Registrar.

[Notes: R.329; R.411; R.694]

(b) Default judgment in action for unliquidated damages.

No appearance having been entered (or no defence having been served) by the defendant herein, it is this day adjudged that the defendant do pay the plaintiff damages to be assessed.

The amount found due to the plaintiff under this judgment having been certified at \$ as appears by the Registrar's certificate filed the day of 20 .

It is adjudged that the defendant do pay the plaintiff \$ and costs to be taxed.

The above costs, etc. (as in (a) above).

(Note: This form is a combined form of interlocutory and final judgment. The plaintiff may at his option enter interlocutory judgment by omitting the words below the line in the form and enter a separate final judgment in (f) below).

This form requires sealing by the Court and the signature of the Registrar.

[Notes: R.673]

(c) Default judgment in action relating to detention of movable property.

No appearance having been entered (or no defence having been served) by the defendant herein,

It is this day adjudged that the defendant do deliver to the plaintiff the movable property described in the writ of summons (or statement of claim) as (description of movable property) or pay the plaintiff the value of the said property to be assessed (and also damages for their detention to be assessed).

or

It is this day adjudged that the defendant do pay the plaintiff the value of the movable property described in the writ of summons (or statement of claim) to be assessed (and also damages for their detention to be assessed).

The value of the said movable property having been assessed at \$ (and damages at \$) as appears by the Registrar's certificate filed the day of 20 .

It is adjudged that the defendant do pay the plaintiff \$ and costs to be taxed.

The above costs, etc. (as in (a) above).

(Note: See the note to (b) above).

This form requires sealing by the Court and the signature of the Registrar.

[Notes: R.330; R.412; R.673]

(d) Default judgment in action for possession of immovable property.

No appearance having been entered (or no defence having been served) by the defendant herein, it is this day adjudged that the defendant do give the plaintiff possession of the immovable property described in the writ of summons (or statement of claim) as and pay the plaintiff \$ costs (or costs to be taxed).

The above costs, etc. (as in (a) above).

This form requires sealing by the Court and the signature of the Registrar.

[Notes: R.330; R.413; R.673]

(e) Judgment in default in action for possession of immovable property, damages and costs.

No appearance having been entered (or no defence having been served) by the defendant herein, it is this day adjudged that the defendant do give the plaintiff possession of the immovable property described in the writ of summons (or statement of claim) as .

And it is further adjudged that the defendant do pay the plaintiff (mesne profits) (damages) to be assessed.

The amount found due to the plaintiff under this judgment having been certified at the sum of \$ as appears by the Registrar's finding filed the day of 20 .

It is adjudged that the defendant do pay the plaintiff \$ and costs to be taxed.

The above costs, etc. (as in (a) above).

(Note: See the note to (b) above).

This form requires sealing by the Court and the signature of the Registrar.

[Note: R.673]

(f) Final judgment after assessment of damages, etc.

The day of 20 .

The plaintiff having on the day of 20 obtained interlocutory judgment herein against the defendant for damages (or as may be) to be assessed, and the amount found due to the plaintiff having been certified at \$ as appears by the Registrar's certificate filed the day of 20 .

It is this day adjudged that the defendant do pay the plaintiff \$ and costs to be taxed.

The above costs, etc. (as in (a) above).

This form requires sealing by the Court and the signature of the Registrar.

[Notes: R.337; R.673]

(g) *Judgment under Order 14.*

The day of 20 .

The defendant having entered appearance herein and the Court having under Order 14, Rule 3, ordered that judgment as hereinafter provided be entered for the plaintiff against the defendant,

It is this day adjudged that the defendant do pay the plaintiff
\$ and \$ costs (or costs to be taxed).

or

pay the plaintiff damages to be assessed and costs to be taxed.

or

deliver to the plaintiff the movable property described in the writ of summons (or statement of claim) as _____ (or pay the plaintiff the value of the said movable property to be assessed) (and also damages for their detention to be assessed) and costs to be taxed.

or

give the plaintiff possession of the immovable property described in the writ of summons (or statement of claim) as _____ and costs to be taxed.

The above costs, etc. (as in (a) above).

This form requires sealing by the Court and the signature of the Registrar.

[Notes: R.339; R.673]

(h) *Judgment for the Defendant under Order 14.*

The day of 20 .

The Court having under Order 14, Rule 5, ordered that judgment be entered for the defendant against the plaintiff on the counterclaim for \$ _____ and costs of the counterclaim.

It is this day adjudged that the plaintiff do pay the defendant \$ _____ and costs of the counterclaim to be taxed.

The above costs, etc. (as in (a) above).

This form requires sealing by the Court and the signature of the Registrar.

[Note: R.673]

(i) Judgment after trial before Judge.

The day of 20 .

This action having been tried before Justice on the day
of 20 .

It is adjudged that the defendant do pay the plaintiff \$ and his costs
of action to be taxed (or that this action be dismissed and that the plaintiff do
pay the defendant his costs to be taxed) (or as may be according to the Judge's
order).

(It is further adjudged that execution be stayed for days) (and if within
that time the gives notice of appeal, execution be further
stayed until the determination of the appeal or as may be according to the
Judge's direction).

The above costs, etc. (as in (a) above).

This form requires sealing by the Court and the signature of the Registrar.

[Notes: R.571; R.673]

(j) Judgment of Dismissal.

Dated and entered the day of 20 .

This action having on the day of 20 , been called on
for hearing before Justice , and the plaintiff having failed
to appear, and the defendant having thereupon become entitled under Rule
571(2), to judgment dismissing the action and the
said having ordered that judgment be entered
accordingly.

Therefore it is adjudged that this action do stand dismissed out of this Court
with costs.

And it is further adjudged that the plaintiff do pay the defendant his costs
to be taxed.

The above costs, etc. (as in (a) above).

This form requires sealing by the Court and the signature of the Registrar.

[Note: R.673]

(k) Judgment in pursuance of Order.

Pursuant to the Order of dated 20 ,
whereby it was ordered and default having been made,

It is this day adjudged that the defendant do pay the plaintiff \$ and costs
to be taxed.

The above costs, etc. (as in (a) above).

This form requires sealing by the Court and the signature of the Registrar.

[Note: R.673]

(l) *Judgment after trial before Registrar.*

Dated and entered the day of 20 .

This action by an order dated the _____ day of _____, 20____ having been ordered to be tried before _____, Registrar of the Family Justice Courts and the said Registrar having tried the said action and having by his certificate dated the _____ day of _____, 20____ directed that judgment as hereinafter provided be entered for the plaintiff (or defendant),

It is adjudged that (as in (i) above according to the Registrar's certificate).

This form requires sealing by the Court and the signature of the Registrar.

[Notes: R.563; R.673]

(m) *Judgment after decision of preliminary issue.*

Dated and entered the day of 20 .

The issue (or question) arising in this cause (or matter) by the order dated the day of 20 ordered to be tried before Justice having on the day of 20 been tried before the said and the said having found and having ordered that judgment as hereinafter provided be entered for the (or having dismissed the cause or matter),

It is this day adjudged that (the defendant do pay the plaintiff \$) (and his costs of action to be taxed) (the plaintiff do pay the defendant his costs of defence to be taxed) (or as may be according to the order made).

Dated this day of 20 .

This form requires sealing by the Court and the signature of the Registrar.

[Note: R.673]

(n) *Judgment for liquidated sum against personal representative.*

Dated and entered the day of 20 .

(Recital as in (a) or (f) to (n) according to the circumstances in which judgment was obtained),

It is adjudged that the defendant as executor (or administrator) of the abovenamed deceased do pay the plaintiff \$ and costs to be taxed, the said sum and costs to be levied of the real and personal estate within the meaning of the Probate and Administration Act (Cap. 251) of the deceased at the time of his death come to the hands of the defendant as such executor (or administrator) to be administered, if he has or shall hereafter have so much thereof in his hands to be administered, and if he has not so much thereof, in his hands to be administered, then, as to the costs aforesaid, to be levied of the movable property of the defendant authorised by law to be seized in execution (or as may be according to the order made).

The above costs, etc. (as in (a) above).

This form requires sealing by the Court and the signature of the Registrar.

[Note: R.861]

(o) Judgment for defendant's costs on discontinuance.

The day of 20 .

The plaintiff having by a notice in writing dated the day of 20 , discontinued this action (or withdrawn his claim in this action for) and the defendant's costs of the action (or of the claim withdrawn) having been taxed and allowed at \$ as appears by the Registrar's certificate dated the day of 20 , and the plaintiff not having paid the sum within 4 days after taxation,

It is this day adjudged that the plaintiff do pay the defendant \$ the said taxed costs.

Dated this day of 20 .

This form requires sealing by the Court and the signature of the Registrar.

[Notes: R.861(3), (4)]

(p) Judgment for costs after acceptance of money paid into Court.

The day of 20 .

The defendant having paid into Court in this action the sum of \$ in satisfaction of the plaintiff's cause(s) of action (or in satisfaction of the plaintiff's cause of action for), and the plaintiff having by his notice dated the day of 20 accepted that sum in satisfaction of his cause(s) of action (or in satisfaction of his cause of action for , ; abandoned his other cause(s) of action), and the plaintiff's costs herein having been taxed and allowed at \$ as appears by the Registrar's certificate dated the day of 20 , and the defendant not having paid the sum within 48 hours after taxation,

It is this day adjudged that the defendant do pay the plaintiff \$ the said taxed costs.

Dated this day of 20 .

This form requires sealing by the Court and the signature of the Registrar.

Form 75

R.350

**NOTICE TO BE ENDORSED ON
COPY OF COUNTERCLAIM**

To

Take notice that, if you intend to defend this counterclaim, an appearance must be entered to the counterclaim on your behalf within 8 days (or if the counterclaim is to be served out of the jurisdiction, insert here the time fixed by the order giving leave to serve the counterclaim out of the jurisdiction) using the electronic filing service after the service of this defence and counterclaim on you, otherwise judgment may be given against you without further notice.

Directions for entering appearance.

The person served with this counterclaim may enter an appearance in person or by a solicitor at the Registry of the Family Justice Courts using the electronic filing service.

Form 76

R.362

NOTICE OF ACTION

(Title as in action)

To _____ of _____

TAKE NOTICE THAT:

(1) An action has been begun in the Family Courts / Family Division of the High Court* in accordance with the writ of summons/originating summons attached hereto.

(2) You are or may be one of the persons who is interested in the action.

(3) You may within 8 days after service of this notice enter an appearance using the electronic filing service and thereby become a party to the action.

(4) If you do not enter an appearance you will be bound by any judgment given in the action as if you were a party to it.

Dated this _____ day of _____ 20__.

To

Solicitor for

Directions for entering appearance.

(As in FORM 77)

* to delete accordingly.

R.367

IN THE FAMILY JUSTICE COURTS OF
THE REPUBLIC OF SINGAPORE

Third Party

The person served with this notice may enter an appearance in person or by a solicitor at the Registry of the Family Justice Courts using the electronic filing service.

Form 78

R.367

THIRD PARTY NOTICE WHERE QUESTION OR ISSUE TO BE DETERMINED

(Title etc., as in Form 77 down to end of first paragraph)

The defendant requires that the following question or issue, viz., (state the question or issue required to be determined) should be determined not only between the plaintiff and the defendant but also between either or both of them and yourself.

(*Note:* In an action begun by writ, the following notice must be inserted.)

And take notice that if you wish to be heard on the said question or issue or to dispute the defendant's liability to the plaintiff or your liability to the defendant, an appearance must be entered on your behalf within 8 days (or if the notice is to be served out of the jurisdiction, insert the time for appearance fixed by the order giving leave to issue the notice and serve it out of the jurisdiction) using the electronic filing service after the service of this notice on you, otherwise you will be bound by any judgment or decision given in the action in so far as it is relevant to the said question or issue, and the judgment may be enforced against you in accordance with Div.10 of Part 18 of the Family Justice Rules.

Dated this day of 20 .

Solicitor for the defendant.

Directions for entering appearance.

(As in Form 77).

Form 79

R.368

**SUMMONS FOR LEAVE TO ISSUE
A THIRD PARTY NOTICE**

(Title as in action)

To:

Let all parties concerned attend before the Court on the date and time to be assigned for the hearing of an application for the following order(s):

1. Leave to issue a third party notice, a copy of which is attached herein.
2. The costs of this application be .

Grounds of application: (State the grounds here) or (As set out in the affidavit of [name]).

Issued by: (Solicitors for the).

This form requires sealing by the Court and the signature of the Registrar.

Form 80

R.370

**SUMMONS FOR THIRD
PARTY DIRECTIONS**

(Title as in Form 77)

To: The third party (and his solicitors).

Let all parties concerned attend before the Court on the date and time to be assigned for the hearing of an application for the following order(s):

1. The defendant serve a statement of claim on the said third party within days from this date, who shall plead thereto within days.
2. (State any other directions as may be required).
3. The said third party be at liberty to appear at the trial (or hearing) of this action, and take such part as the Judge shall direct, and be bound by the result of the trial (or hearing).
4. The question of the liability of the said third party to indemnify the defendant be tried at the trial (or hearing) of this action, but subsequent thereto.
5. The costs of this application be costs in the cause and in the third party proceedings.

Grounds of application: (To set out grounds) or (As set out in the affidavit of [name]).

Issued by: (Solicitors for the).

This form requires sealing by the Court and the signature of the Registrar.

Form 81

R.370

ORDER FOR THIRD PARTY DIRECTIONS

(Title as in Form 77)

Upon the application of and upon
hearing and for the plaintiff and for the
defendant and for the third party.

(In an action begun by writ) It is ordered that the defendant serve a statement of his claim on the said third party within days from this date, who shall plead thereto within days.

(State any other directions that had been ordered).

And that the said third party be at liberty to appear at the trial (or hearing) of this action, and take such part as the Judge shall direct, and be bound by the result of the trial (or hearing). And that the question of liability of the said third party to indemnify the defendant be tried at the trial (or hearing) of this action, but subsequent thereto.

And that the costs of this application be

Dated this day of 20 .

Form 82

R.378

**NOTICE BY CLAIMANT OF PROPERTY
TAKEN IN EXECUTION**

(Title as in action)

And

Claimant.

Take notice that I of claim the
following property that has been taken in execution in this action at (state
address) on the day of 20 :

(State the money, goods or other movable property claimed
and the grounds for the claim).

Dated this day of 20 .

Claimant.

My address for service is:

To the Sheriff/bailiff and the execution creditor (or solicitor for execution
creditor).

Form 83

R.378

**NOTICE BY SHERIFF/BAILIFF OF PROPERTY
TAKEN IN EXECUTION**

(Title as in Form 82)

Take notice that _____ of _____ has claimed the following property (specify the property claimed) _____ taken in execution by me under the writ of seizure and sale issued in this action.

If within 4 days after receiving this notice, you give notice to me that you admit the claim of the said _____ to the said property or request me to withdraw from possession in Form 84 you will not be liable for any costs incurred after the receipt by me of your notice.

Dated this _____ day of _____ 20 ____ .

Sheriff/bailiff.

To the execution creditor (or solicitor for execution creditor).

Form 84

R.378

NOTICE BY EXECUTION CREDITOR OF
PROPERTY TAKEN IN EXECUTION

(Title as in Form 82)

Take notice that I admit (or dispute) the claim of _____ to the
property seized by you (or I request you to withdraw from possession) under the
writ of seizure and sale issued in this action.

Dated this _____ day of _____ 20 ____ .

Execution Creditor
(or solicitor for execution creditor).

To the Sheriff/bailiff and the claimant (or solicitor for the claimant).

Form 85

R.379

INTERPLEADER SUMMONS

(Title as in Form 82)

(a) *To Execution Creditor.*

Whereas the above claimant has made a claim to certain property taken in execution under process issued out of this Court at your instance:

You are hereby summoned to appear before the Family Court / Family Division of the High Court* on (date/time) when the said claim will be adjudicated upon and such order made thereon as the Court shall think just.

Dated this day of 20 .

This form requires sealing by the Court and the signature of the Registrar.

Entered No. of 20 .

Clerk.

To:

The execution creditor (or solicitor for execution creditor).

Form 86

R. 379

STATEMENT IN SUPPORT OF
AN INTERPLEADER SUMMONS:

BY SHERIFF/BAILIFF

(Title as in Form 82)

1. On (date), _____ of _____ gave me notice that he claimed the following property (specify the property claimed) taken by me in execution under (the writ of seizure and sale) issued in this action.

2. On (date), I notified the execution creditor of the said claim. He does not admit the claim and has not requested me to withdraw from possession of the property claimed.

3. I value the property claimed at approximately \$ _____. I claim no interest in the subject-matter in dispute other than commission fees and expenses of execution.

4. I do not in any manner collude with any of the parties herein.

Sheriff/bailiff.

Form 87

R.379

**AFFIDAVIT IN SUPPORT OF AN
INTERPLEADER SUMMONS BY A PERSON
UNDER LIABILITY**

(In a pending action application as in Form 118,
in any other case by an originating summons)

I, _____ of _____ (if in an action, the abovenamed
defendant) do make oath (or affirm) and say as follows:

1. (If in an action.) This action is brought to recover (state what) claimed
by the plaintiff but I have received a claim adverse to that of the plaintiff
from _____ of _____ (or, if no action), I have received adverse
claims from _____ of _____ and _____ of _____ to (state
what) which is of the approximate value of \$ _____.

I expect to be sued on these claims by the said claimant.

2. I claim no interest in the subject-matter in dispute (other than the sum
of \$ _____ for costs or charges) (or as the case may be). I do not in any manner
collude with either (or any) of the said claimants.

3. I am ready and willing to bring into Court or to pay or dispose of the
subject-matter in dispute in such manner as the Court may direct.

Sworn (or affirmed) as in Form 132.

Form 88

R.387

**JUDGMENT (OR ORDER)
ON INTERPLEADER SUMMONS**

(Title as in Form 82)

(Recital)

Upon this Interpleader Summons (or Originating Summons) coming up for hearing before His Honour on the day of 20 and upon hearing the evidence adduced and what was alleged by the parties (or their counsel) (Insert the appropriate Operative Part).

(Operative Parts)

(a) Under execution.

It is adjudged touching the claim of to (specify the property) (or to the proceeds of sale (or value) of (specify the property)) taken in execution under process issued out of this Court at the instance of execution creditor, that the said (specify the property) (or proceeds of sale) (or value) (or part of the said property) (or proceeds of sale (or value)) namely (specify same) is (or are) not the property of the claimant.

And it is ordered that the said do pay to the said the sum of \$ for costs (and the sum of \$ for extra expenses of execution and keeping possession occasioned by the claim). [Insert directions as to disposal of any money in Court.]

(b) In a pending action.

It is this day adjudged touching the claims of the plaintiff and the claimant to (part of) the subject-matter of this action that the claim of the plaintiff (or claimant) is valid and that the claimant (or plaintiff) has no claim thereto.

(And it is further adjudged that the plaintiff (or claimant) do recover against the defendant the sum of \$ for debt and \$ for costs amounting together to the sum of \$).

(And it is ordered — here insert any order for delivery of the property).

And it is further adjudged that the plaintiff (or claimant) do recover the sum of \$ from the claimant (or plaintiff) for costs (add if any costs awarded to the defendant against the plaintiff or claimant:

And it is further adjudged that the defendant do recover the sum of \$ for costs from the plaintiff (or claimant)).

(If the claimant fails to appear and an order is made barring his claim proceed as follows:

And the claimant not appearing, it is declared that the said and all persons claiming under him be forever barred as against the plaintiff and all persons claiming under him).

(c) In any other case.

It is this day adjudged (here set out the judgment determining the claim as between the applicant and any claimant who appears or, if all the claimants appear, the judgment determining the rights and claims of all parties and any order as to payment, or delivery of the property and costs)

This form requires sealing by the Court and the signature of the Registrar.

Form 89

R.398

**PARTICULARS SERVED PURSUANT TO
REQUEST OR ORDER**

(Title as in action)

Further and better particulars of the statement of claim (or defence or as may be).

Served pursuant to request (or order) dated the day
of 20 .

(Here set out in numbered paragraphs the particulars requested (or ordered) and the answers to them).

Dated this day of 20 .

Solicitor for the

Form 90

R.430

NOTICE OF DISCONTINUANCE

(Title as in action)

Take notice that the plaintiff wholly (or specify the part) discontinues this action (or the defendant wholly (or specify the part) withdraws the defence or discontinues his counterclaim) against the defendant (plaintiff).

Dated this day of 20 .

Solicitor for the

To the Registrar and the other parties to the action.

Form 91

R.435

NOTICE OF PAYMENT INTO COURT

(Title as in action)

To the Registrar, the plaintiff and the other defendants.

Take notice that —

The defendant has paid \$ into Court.

The said \$ is in satisfaction of (the cause of action) (all the causes of action) in respect of which the plaintiff claims (and after taking into account and satisfying the abovenamed defendant's cause of action for in respect of which he counterclaims).

or

The said \$ is in satisfaction of the following causes of action in respect of which the plaintiff claims, namely, (and after taking into account as above).

or

Of the said \$, \$ is in satisfaction of the plaintiff's cause(s) of action for (and after taking into account as above) and \$ is in satisfaction of the plaintiff's cause(s) of action for (and after taking into account as above).

Dated this day of 20 .

Solicitor for the

Form 92

R.437

NOTICE OF ACCEPTANCE OF MONEY

PAID INTO COURT

(Title as in action)

Take notice that the plaintiff accepts the sum of \$ paid in by the defendant in satisfaction of the cause(s) of action in respect of which it was paid in and in respect of which the plaintiff claims (against that defendant) (and abandons the other causes of action in respect of which he claims in this action).

Dated this day of 20 .

Solicitor for the

To the Registrar and the defendant.

Form 93

R.446

OFFER TO SETTLE

(Title as in action)

The (identify party) offers to settle this proceeding (or the following claims in this proceeding) on the following terms: (set out terms in consecutively numbered paragraphs).

Dated this day of 20 .

(Name, address, telephone and fax number of solicitor or party making offer)

To: (Name and address of solicitor or party to whom offer is made)

Form 94

R.448

NOTICE OF WITHDRAWAL OF OFFER

(Title as in action)

The (identify party) withdraws the offer to settle dated the day
of 20 .

Dated this day of 20 .

(Name, address, telephone and fax number of solicitor or party giving notice)

To: (Name and address of solicitor or party to whom notice is given)

Form 95

R.451

ACCEPTANCE OF OFFER

(Title as in action)

The (identify party) accepts your offer to settle dated the day
of 20 (on the following terms).

Dated this day of 20 .

(Name, address, telephone and fax number of solicitor or party accepting
offer)

To: (Name and address of solicitor or party whose offer is accepted)

Form 96

R.456

OFFER TO CONTRIBUTE

(Title as in action)

The defendant (name of defendant making offer) offers to contribute to a settlement of the plaintiff's claim on the following terms: (set out terms in consecutively numbered paragraphs).

Dated this day of 20 .

(Name, address, telephone and fax number of solicitor or party making offer)

To: (Name and address of solicitor or party to whom offer is made)

Form 97

R.464

LIST OF DOCUMENTS

(Title as in action)

The following is a list of the documents relating to the matters in question in this action which are or have been in the possession, custody or power of the abovenamed plaintiff (or defendant) and which is served in compliance with the order herein dated the day of 20 .

1. The plaintiff (or defendant) has in his possession, custody or power the documents relating to the matters in question in this action enumerated in Schedule 1 hereto.

2. The plaintiff (or defendant) objects to produce the documents enumerated in Part 2 of Schedule 1 on the ground that (stating the ground of objection).

3. The plaintiff (or defendant) has had, but has not now, in his possession, custody or power the documents relating to the matters in question in this action enumerated in Schedule 2 hereto.

4. Of the documents in Schedule 2, those numbered in the Schedule were last in the plaintiff's (or defendant's) possession, custody or power on (stating when) and the remainder on (stating when).

(State what has become of the said documents and in whose possession they now are.)

5. Neither the plaintiff (or defendant), nor his solicitor nor any other person on his behalf, has now, or ever had, in his possession, custody or power any document of any description whatever relating to any matter in question in this action, other than the documents enumerated in Schedules 1 and 2 hereto.

SCHEDULE 1

PART 1

(Enumerate in a convenient order the documents (or bundles of documents, if of the same nature, such as invoices) in the possession, custody or power of the party in question which he does not object to produce, with a short description of each document or bundle sufficient to identify it.)

PART 2

(Enumerate as aforesaid the documents in the possession, custody or power of the party in question which he objects to produce.)

SCHEDULE 2

(Enumerate as aforesaid the documents which have been, but at the date of service of the list are not, in the possession, custody or power of the party in question.)

Dated this day of 20 .

Notice to inspect

Take notice that the documents in the above list, other than those listed in Part 2 of Schedule 1 (and Schedule 2), may be inspected at (the office of the solicitor of the abovenamed (plaintiff) (defendant) (insert address) or as may

be) on the day of 20 , between the hours
of and .

Solicitor for the

To the defendant (or plaintiff)
and his solicitor.

Form 98

R.464

**AFFIDAVIT VERIFYING LIST OF
DOCUMENTS**

(Title as in action)

I, the above-named plaintiff (or defendant) do make oath
(or affirm) and say as follows:

1. The statements made by me in paragraphs 1, 3 and 4 of the list of
documents now produced and shown to me marked are true.

2. The statements of fact made by me in paragraph 2 of the said list are
true.

3. The statements made by me in paragraph 5 of the said list are true to
the best of my knowledge, information and belief.

4. I am aware that the failure to comply with my obligation under Rule
462 of the Family Justice Rules may result in the Court making any order(s)
under Rule 477 and Rule 857.

This affidavit is filed on behalf of the plaintiff (or defendant).

Sworn (or affirmed) as in Form 132.

FORM 99

R.470

NOTICE TO INSPECT DOCUMENTS

(Title as in action)

Take notice that you can inspect the documents mentioned in your notice
of the day of 20 (except the deed
numbered in that notice) at my office on the day
of between the hours of m. and m.

Dated this day of 20 .

Solicitor for the

FORM 100

R.471

**NOTICE TO PRODUCE DOCUMENTS
REFERRED TO IN PLEADINGS OR AFFIDAVITS**

(Title as in action)

Take notice that the plaintiff (or defendant) requires you to produce for
his inspection, the following documents referred to in your pleading (or
affidavit) namely:

(Describe documents required).

Dated this day of 20 .

Solicitor for the

To the solicitor for

Form 99

R.470

NOTICE TO INSPECT DOCUMENTS

(Title as in action)

Take notice that you can inspect the documents mentioned in your notice
of the day of 20 (except the deed
numbered in that notice) at my office on the day
of between the hours of m. and m.

Dated this day of 20 .

Solicitor for the

Form 100

R.471

NOTICE TO PRODUCE DOCUMENTS
REFERRED TO IN PLEADINGS OR AFFIDAVITS

(Title as in action)

Take notice that the plaintiff (or defendant) requires you to produce for his inspection, the following documents referred to in your pleading (or affidavit) namely:

(Describe documents required).

Dated this day of 20 .

Solicitor for the

To the solicitor for

Form 101

R.471

NOTICE WHERE DOCUMENTS MAY BE INSPECTED

(Title as in action)

Take notice that the documents mentioned in your notice of the day of 20 (except the deed numbered in that notice) may be inspected at (insert place of inspection) on the day of 20 between the hours of m. and m.

(Or, that the plaintiff (or defendant) objects to giving inspection of the documents mentioned in your notice of the day of 20 , on the ground that (state the ground)).

Dated this day of 20 .

Solicitor for the

Form 102

R.472

**ORDER FOR PRODUCTION OF
DOCUMENTS AND INSPECTION**

(Title as in action)

Upon the application of _____ and upon reading the affidavit
of _____ filed the _____ day of _____ 20____, and upon hearing

It is ordered that the _____ do, on reasonable notice, produce
at _____ (insert place of inspection), situate at _____ the
following documents, namely _____, and that the _____ be at liberty
to inspect and peruse the documents so produced, and to make notes of their
contents, and be entitled to be supplied with copies thereof on payment of the
proper charges. And it is ordered that in the meantime all further proceedings
be stayed, and that the costs of this application be

Dated this _____ day of _____ 20____.

This form requires sealing by the Court and the signature of the Registrar.

Form 103

R.480

**SUMMONS FOR DIRECTIONS
PURSUANT TO DIVISION 20**

(Title as in action)

To: The defendant (and his solicitors).

Let all parties concerned attend before the Court on the date and time to be assigned for the hearing of an application for the following order(s):

1. This action be consolidated with action(s) in the following Suit Number(s):

2. This action be referred to the Registrar. The costs of this application be costs in the cause.

3. The action be (or by consent) transferred to the . The costs of this application be in the discretion of the .

4. Unless the plaintiff gives security for the defendant's costs within days in the sum of \$ to the satisfaction of the Registrar, the action be transferred to the with stay meanwhile. The costs of this application be in the discretion of the (and if the security is paid, the directions shall be as follows:).

5. The plaintiff have leave to amend the writ by . The service of the writ and the defendant's appearance do stand. The costs incurred and thrown away by the amendment be the defendant's in any event.

6. The plaintiff have leave to amend the statement of claim as shown in the document served herewith and to re-serve the amended statement of claim in days. Thereafter the defendant have leave to serve an amended defence (if so advised) in days. The plaintiff have leave to serve an amended reply (if so advised) in days. The costs of and thrown away by the amendments be the defendant's in any event.

7. The defendant have leave to amend the defence as shown in this summons and to re-serve the amended defence in days. Thereafter, the plaintiff have leave to re-serve an amended reply (if so advised) in days. The costs of and thrown away as a result of the amendments be the plaintiff's in any event.

8. The plaintiff serve on the defendant the further and better particulars of the statement of claim specified in this summons within days.

9. The defendant serve on the plaintiff the further and better particulars of the defence specified in the document served herewith within days.

10. The plaintiff serve on the defendant the further and better particulars of the reply specified in this summons within days.

11. The plaintiff give security for the defendant's costs to the satisfaction of the Registrar in the sum of \$ on the following grounds:

In the meantime, all further proceedings be stayed.

12. The plaintiff serve on the defendant a list of documents and file an affidavit verifying such list (limited to the documents relating to the (special damage claimed) (plaintiff's industrial injury, industrial disablement or sickness benefit rights) (period from to) (issues raised in paras. of the statement of claim and paras. of the defence) (issues of)) within days.

13. The defendant serve on the plaintiff a list of documents and file an affidavit verifying such list (limited to documents relating to the (period from to) (issues raised in paras. of the statement of claim and paras. of the defence) (issues of)) within days.

14. There be inspection of documents within days of the service of the lists (filing of the affidavits).

15. The plaintiff have leave to serve on the defendant the interrogatories shown in the document served herewith. The defendant is to answer the interrogatories on affidavit within days.

16. The defendant have leave to serve on the plaintiff the interrogatories shown in the document served with this summons. The plaintiff is to answer the interrogatories on affidavit within days.

17. The plaintiff (or defendant) (retain and preserve pending the trial of the action) (upon days' notice to give inspection of) (the subject-matter of the action, to the defendant (or plaintiff) and to his legal advisers (and experts)).

18. The statements in the following documents be admissible in evidence at the trial without calling as a witness the maker of the statements:

(A certified true copy of the above documents be admissible in evidence at the trial without production of the original documents).

19. The following affidavits (in the form of the draft affidavit (served herewith)) (to be served within days) be admissible in evidence at the trial:

20. Evidence of the following fact(s), namely, be received at the trial by statement on oath of information and belief (by the production of the following documents or entries in books or copy documents or copy entries in books, namely,).

21. It be recorded that the parties ((plaintiff) (defendant) refuses to) admit for the purposes of this action that ((the truth of the statements in the document served (herewith)).

22. The affidavits of the evidence-in-chief of all witnesses shall be limited to one affidavit for each witness to be exchanged within weeks hereof.

23. Objections to the contents of the affidavit evidence shall be taken within weeks after the exchange of the affidavit evidence.

24. The evidence-in-chief or the substance thereof of all expert witnesses shall be in the form of affidavit and shall be exchanged/disclosed within weeks hereof.

25. The following witnesses on behalf of the plaintiff (or defendant) may be examined before the Registrar (or a special examiner to be agreed upon by the parties or appointed by the Registrar) upon days' notice and need not attend at the trial:

26. There shall be a discussion between the experts for the purpose of requiring the experts to identify the issues in the proceedings and where possible reach agreement on any issue not later than days before the exchange of the affidavits of evidence-in-chief. The issues which the experts are to discuss shall be limited to the following:

27. Within days of the discussion, the expert witnesses are to prepare and furnish to the parties a joint written statement indicating the agreed issues, the issues on which they disagree and a summary of the reasons for disagreement.

28. That (name) of (organisation) be appointed as assessor(s) in this action.

29. By consent, (the right of appeal be excluded) (any appeal be limited to the Appellate Division of the High Court or the Court of Appeal) (any appeal be limited to questions of law only).

30. Trial:

Estimated length: days.

Estimated no. of witnesses:

To be set down within: days.

Any other matters: (to be tried immediately after the action in Suit Number).

31. The witnesses whom the plaintiff intends if necessary to call shall be limited to the following:

Witnesses of fact: (names).

Expert witnesses: (names).

32. The witnesses whom the defendant intends if necessary to call shall be limited to the following:

Witnesses of fact: (names).

Expert witnesses: (names).

33. The costs of this application be costs in the cause.

Grounds of application: (To set out grounds) or (As set out in the affidavit of [name]).

Issued by: (Solicitors for the).

This form requires sealing by the Court and the signature of the Registrar.

**Note:*

- (a) Applicants are to indicate only those prayers for which directions are necessary.
- (b) For paragraphs 31 and 32, all witnesses must be named here or in the order of Court to be extracted on this summons for directions. Witnesses not so named shall not be allowed to testify at the trial without leave of court.

Form 104

R.482

CERTIFICATE OF
EXCHANGE OF AFFIDAVITS OF
EVIDENCE-IN-CHIEF

(Title as in action)

To the Registrar,

We, the undersigned, being all the parties to the captioned action, or their representatives or solicitors, hereby certify that **all** affidavits of evidence-in-chief ordered or required to be exchanged under Division 20 were exchanged on _____ (date). The affidavits that have been exchanged are the following:

Name of deponent	Party for whom the deponent is a witness	Date affidavit was sworn or affirmed
------------------	---	---

Dated this _____ day of _____ 20__.

Solicitors for the plaintiff(s).

Solicitors for the defendant(s).

Form 105

R.488(4), (6)

INTERROGATORIES

(Title as in action)

Interrogatories

On behalf of the abovenamed (plaintiff) or (defendant A.B.) for the examination of the abovenamed (defendants A.B. and C.D.) (defendants the X. Co. Ltd.) or (plaintiff) pursuant to the order herein dated the day of 20 .

(Here set out the interrogatories in the form of concise questions, each interrogatory to be set out in a separate paragraph and numbered consecutively).

1. Did you?

2. Did you not?

3. (a) Were you?

(b) If nay, were you not?

(The defendant A.B. is required to answer all the interrogatories numbered).

(The defendant C.D. is required to answer interrogatories numbered).

(E.F., a director (or as may be) of the defendants, the X. Co., Ltd., is required to answer the interrogatories numbered).

Served the day of 20 ,
by of solicitor for the (plaintiff) (defendant).

To the abovenamed (defendants A.B. and C.D.) (plaintiff) and (their) (his) solicitor.

Form 106

R.488(5), (7)

ANSWER TO INTERROGATORIES

(Title as in action)

The Answer

of the (defendants) or (abovenamed defendant A.B.) or (plaintiff) to the interrogatories for (their) or (his) examination by the abovenamed (plaintiff) or (defendants) pursuant to the order herein dated the day of 20 .

In answer to the said interrogatories, (we, the said A.B. and C.D. severally) or (I, the abovenamed A.B. or plaintiff), do make oath (or affirm) and say as follows:

1. To the 1st interrogatory, namely (state in full the interrogatory), that (stating the answer).
2. To the 2nd interrogatory, namely (state in full the interrogatory), that (stating the answer).
3. To the 3rd interrogatory, namely (state in full the interrogatory), that I object to answer it on the ground that (stating the ground of objection).

Sworn (or affirmed) as in Form 132.

This affidavit is filed on behalf of the (defendants) (plaintiff).

Form 107

R.488(7)

ORDER FOR INTERROGATORIES

(Title as in action)

Upon the application of _____ and upon reading the affidavit
of _____ filed the _____ day of _____ 20____, and upon
hearing _____.

It is ordered that the _____ be at liberty to serve on
the _____ interrogatories in writing as initialled by the Judge and that
the said _____ do answer the interrogatories within _____ days and
that the costs of this application be _____.

Dated this _____ day of _____ 20____.

This form requires sealing by the Court and the signature of the Registrar.

Form 108

R.490

SUMMONS FOR INTERROGATORIES

(Title as in action)

To:

Let all parties concerned attend before the Court on the date and time to be assigned for the hearing of an application for the following order(s):

The plaintiff (or defendant) (or as may be) be at liberty to serve interrogatories in writing on the defendant (or plaintiff) (or as may be) (in the form of the document attached) and for the questions to be answered in writing by way of an affidavit within days.

Grounds of application: (To set out grounds) or (As set out in the affidavit of [name]).

Issued by: (Solicitors for the).

This form requires sealing by the Court and the signature of the Registrar.

Form 109

R.501

NOTICE TO ADMIT FACTS

(Title as in action)

Take notice that the plaintiff (or defendant) in this action requires the defendant (or plaintiff) to admit, for the purposes of this action only, the several facts respectively hereunder specified; and the defendant (or plaintiff) is hereby required, within 14 days from the service of this notice, to admit the said several facts, saving all just exceptions to the admissibility of such facts as evidence in this cause.

Dated this day of 20 .

Solicitor for the

To the defendant (or plaintiff) and his solicitor.

The facts, the admission of which is required, are:

(set out admissions required, e.g.)

1. That A.B. died on the , 20 .
2. That he died intestate.
3. That C.D. was his only lawful son.
4. That E.F. died on the , 20 .
5. That E.F. never was married.

Form 110

R.501

ADMISSION OF FACTS PURSUANT TO NOTICE

(Title as in action)

The defendant (or plaintiff) in this action, for the purposes of this action only, hereby admits the several facts respectively hereunder specified, subject to the qualifications or limitations, if any, hereunder specified, saving all just exceptions to the admissibility of such facts, or any of them, as evidence in this action:

Provided that this admission is made for the purposes of this action only, and is not an admission to be used against the defendant (or plaintiff) on any other occasion, or by anyone other than the plaintiff (or defendant, or party requiring the admission).

Solicitor for the

To the plaintiff (or defendant) and
his solicitor

(example)

Facts admitted.	Qualifications or Limitations, if any, subject to which they are admitted.
1. That A.B. died on the 20 .	1. —
2. That he died intestate.	2. —
3. That C.D. was his lawful son.	3. But not that he was his only lawful son.
4. That E.F. died.	4. But not that he died on the 20 .
5. That E.F. never was married.	5. —

Form 111

R.504

NOTICE TO ADMIT DOCUMENTS

(Title as in action)

Take notice that the plaintiff (or defendant) in this action proposes to adduce in evidence the several documents hereunder specified, and that the same may be inspected by the defendant (or plaintiff), his solicitor or agent at on the day of 20 between the hours of and ; and the defendant (or plaintiff) is hereby required, within 7 days to admit that such of the documents as are specified to be originals were respectively written, signed or executed, as they purport respectively to have been; that such as are specified as copies are true copies; and such documents as are stated to have been served, sent or delivered were so served, sent or delivered respectively; saving all just exceptions to the admissibility of all such documents as evidence in this action.

And further take notice that if you do not within the aforementioned 7 days give notice that you do not admit the documents (or any of them) and that you require the same to be proved at the trial you shall be deemed to have admitted the document (or documents) unless the Court shall otherwise order.

Dated this day of 20 .

Solicitor for the

(Here describe the documents, the manner of doing which may be as follows:)

ORIGINALS.

Description of Documents.

Dates.

- 1.
- 2.
- 3.
- 4.
- 5.

COPIES.

Description of Documents.	Dates.	Original or Duplicate served, sent, or delivered, when, how, and by whom.
---------------------------	--------	---

- 1.
- 2.
- 3.

Form 112

R.504

NOTICE OF NON-ADMISSION OF DOCUMENTS

(Title as in action)

Take notice that I do not admit Numbers (e.g. 1, 2 and 5) of the documents (as the case may be) in the Notice to Admit Documents saving all just exceptions to the same as evidence.

Dated this day of 20 .

Solicitor for the

To the plaintiff (or defendant) and his solicitor.

Form 113

R.504

NOTICE TO PRODUCE

(Title as in action)

Take notice that you are hereby required to produce and show to the Court on the trial of this all books, papers, letters, copies of letters, and other writings and documents in your custody, possession, or power, containing any entry, memorandum, or minute relating to the matters in question in this and particularly —

Dated this day of 20 .

Solicitor for the

To the plaintiff (or defendant) and his solicitor.

Form 114

R.516

ORDER FOR INTERIM INJUNCTION

(Title as in action)

Upon the application of _____ and upon reading the affidavit of _____, filed the _____ day of _____ 20____, and upon hearing _____, and the plaintiff by his said _____ undertaking to abide by any order the Court or a Judge may make as to damages in case the Court or a Judge should hereafter be of opinion that the defendant _____ shall have sustained any by reason of this order which the plaintiff ought to pay. It is ordered and directed that the defendant(s) (a) _____ by himself (themselves) his (their) agents or employees or otherwise be restrained, and an Injunction is hereby granted restraining him (them) from until after the hearing of a summons returnable on the _____ day of _____ 20____ (or until after the trial of this action) or until further order.

Dated this _____ day of _____ 20____.

This form requires sealing by the Court and the signature of the Registrar.

- (a) Where the injunction is against a limited company or a corporate body, the Form should read: “that the defendants (insert name of company or corporate body) by their agents or employees or otherwise be restrained, etc.”.

Form 115

R.535

RECEIVER'S SECURITY BY UNDERTAKING

(Title as in action)

I, _____, of _____ the receiver (and manager) appointed by order dated _____ (or proposed to be appointed) in this action hereby undertake with the Court to duly account for all moneys and property received by me as such receiver (or manager) or for which I may be held liable and to pay the balances from time to time found due from me and to deliver any property received by me as such receiver (or manager) at such times and in such manner in all respects as the Court or a Judge shall direct.

And we _____ hereby jointly and severally (in the case of a Guarantee or other Company strike out "jointly and severally") undertake with the Court to be answerable for any default by the said _____ as such receiver (or manager) and upon such default to pay to any person or persons or otherwise as the Court or a Judge shall direct any sum or sums not exceeding in the whole \$ _____ : _____ that may from time to time be certified by the Registrar to be due from the receiver and we submit to the jurisdiction of the Court in this action to determine any claim made under this undertaking.

Dated this _____ day of _____ 20 _____.

(Signatures of receiver and his surety or sureties. In the case of a surety being a guarantee or other company, it must be sealed or otherwise duly executed).

Form 116

R.537

AFFIDAVIT VERIFYING RECEIVER'S ACCOUNT

(Title as in action)

I, _____, of _____, the receiver appointed in this cause, do make oath (or affirm) and say as follows:

1. The document now shown to me marked A is, as it purports to be, a full and true account of _____ for the period therein specified.

2. _____ and _____, my sureties named in the guarantee (or undertaking) dated _____ 20____, are both alive and neither of them has become bankrupt or insolvent.

or

2. The _____ Co., Ltd., my surety named in the guarantee (or undertaking) dated _____ 20____, is still carrying on business and no application or other proceeding for its winding up is pending.

Sworn (or affirmed) as in Form 132.

Form 117

R.542

CERTIFICATE OF RESULT OF SALE

(Title as in action)

I, _____, of _____, auctioneer, the person appointed to sell the estate comprised in the particulars hereinafter referred to, hereby certify as follows:

1. I did at the time and place, in the lots, and subject to the conditions specified in the particulars and conditions of sale hereto annexed and marked *A*, put up for sale by auction the estates described in the said particulars.

The result of the sale is truly set forth in the bidding paper hereto annexed and marked *B*.

2. I have received the sums set forth in the fourth column of the schedule hereto as deposits from the respective purchasers whose names are set forth in the second column of the said schedule opposite the said sums in respect of their purchase-money leaving the sums set forth in the fifth column of the said schedule due in respect thereof.

THE SCHEDULE above referred to

No. of Lot	Name of Purchaser	Amount of Purchase- Money	Amount of Deposit Received	Amount remaining due
------------------	----------------------	---------------------------------	----------------------------------	----------------------

Auctioneer.

(Date)

(Note: This form can be adapted to meet the requirements of Rule 542(1)(b), when certificate has to be given by a solicitor).

Form 118

R.546

SUMMONS
(Title as in action)

To:

Let all parties concerned attend before the Court on the date and time to be assigned for the hearing of an application for the following order(s):

- 1.
- 2.
- 3.

Grounds of application: (State the grounds here) or (As set out in the affidavit of [name]).

Issued by: (Solicitors for the).

This form requires sealing by the Court and the signature of the Registrar.

Form 119

R.566

NOTICE FOR SETTING DOWN
AN ACTION FOR TRIAL

(Title as in action)

To: The Registrar and (other parties to the action).

The plaintiff (or defendant) hereby sets down this action for trial
for days.

The requisite documents pursuant to Rule 566, are attached herewith.

Issued by: (Solicitors for the).

Form 120

R.578, R.579

CERTIFICATE AFTER TRIAL

(Title as in action)

Date:

Judge hearing the trial:

Court No.:

Parties present:

For plaintiff(s):

For defendant(s):

Any others:

The time of the Court was occupied as follows:

Hearing date	Outcome	Start time	End time
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Total time occupied: hour(s) minute(s)

Judgment/Order(s) given:

The List of Exhibits is as follows:

Number of Exhibit	Description of Exhibit	Party who put in Exhibit	Witness who proved Exhibit	Notes
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(Name of Clerk of the Court)

Form 121

R.592

NOTICE TO ADMIT NON-DOCUMENTARY HEARSAY EVIDENCE

(Title as in action)

To

Take notice that the plaintiff (or defendant) in this action, pursuant to paragraph _____ of section 32(1) of the Evidence Act (Cap. 97), intends to introduce in evidence the statement hereunder specified:

Manner in which the statement was made (whether oral or otherwise)	Name of maker of the statement and (unless he is dead) his address, if known	If the maker of the statement is dead, the date of the death of the maker*	Name and address of person who heard or otherwise perceived the statement being made	Time and place at which the statement was made	Substance of the statement or, if it was made orally and the actual words used in making it are material, the words used
1.					
2.					
3.					
4.					
5.					

*This information is to be given to the best of the information and belief of the party serving the notice.

Dated this _____ day of _____ 20__.

Solicitor for the

Form 122

R.592

**NOTICE TO ADMIT DOCUMENTARY
HEARSAY EVIDENCE**
(Title as in action)

To

Take notice that the plaintiff (or defendant) in this action, pursuant to paragraph _____ of section 32(1) of the Evidence Act (Cap. 97), intends to introduce in evidence the statement made in the document(s) hereunder specified, of which a copy of item(s) _____ is/are attached:

Description of document(s)*	Name of maker of the statement and (unless he is dead) his address, if known†	If the maker of the statement is dead, the date of the death of the maker††	Name of maker of document and (unless he is dead) his address, if known**	If the maker of the document is dead, the date of the death of the maker††	Time and place at which statement was made†
1.					
2.					
3.					
4.					
5.					

This may refer to any document in the list of documents served by the plaintiff (or defendant) pursuant to any order made by the Court under Division 21 Rule 189.

This information is to be included only if the maker of the document is different from the maker of the statement and the information is not readily apparent from the document or the relevant part of the document.

This information is to be included only if the information is not readily apparent from the document or the relevant part of the document.

This information is to be given to the best of the information and belief of the party serving the notice.

Dated this _____ day of _____ 20__ .
Solicitor for the

Form 123

R. 601

SUBPOENA TO TESTIFY⁵/
SUBPOENA TO PRODUCE
DOCUMENTS¹/ SUBPOENA
TO TESTIFY⁵ AND TO
PRODUCE DOCUMENTS¹

(Title as in action)

To: (Name of person)

You are required to attend at:

Hearing date / time:

Venue: (Family Division of the High Court / Family Court) (Court / Chamber number)

Before: Judge / Registrar

Mode of attendance:

*(a) In person (for subpoena to testify and subpoena to testify and to produce documents); or

*(b) In person or by an agent (for subpoena to produce documents)

and so from day to day until the end of the above proceedings.

Purpose of attendance:

*(a) (*Where it is a subpoena to testify*) To give evidence on behalf of the in the said proceedings.

*(b) (*Where it is a subpoena to produce documents*) To produce the documents specified hereunder on behalf of the in the said proceedings:

(Specify the documents to be produced).

*(c) (*Where it is a subpoena to testify and to produce documents*) To give evidence and produce the documents specified hereunder on behalf of the in the said proceedings:

(Specify the documents to be produced).

Issued by: (Solicitors for the).

This form requires sealing by the Court and the signature of the Registrar.

(*Use as appropriate)

Form 124

R.608

**AFFIDAVIT FOR AN ORDER FOR THE
PRODUCTION OF A PERSON IN PRISON**

(Title as in action)

I, _____, _____ of
do make oath (or affirm) and say:

1. That the above action is fixed for hearing on _____ the _____ day
of _____ 20____ and that _____ now a prisoner confined in
the _____ prison, will be a material witness for me at the hearing (or is a
party to the action).

2. That I am advised and verily believe that I cannot safely proceed to
the hearing of this action without the evidence of the
said _____ (or my evidence).

3. I hereby apply for an order under section 38 of the Prisons Act
(Cap. 247) that the said _____ may be brought before the Court.

4. I hereby undertake to pay the costs of conveyance of the
said _____ in safe custody to and from the Court and of maintenance of him
and the officers in charge of him while attending the Court.

Sworn (or affirmed) as in Form 132.

Form 125

R.608

ORDER TO PRODUCE PERSON IN PRISON

(Title as in action)

To the Commissioner of Prisons

You are hereby required

*upon tender made to you of a reasonable sum for the conveyance and maintenance of a proper officer and of now a prisoner in the in going to, remaining at and returning from

* to produce now a prisoner in the before

the Family Division of the High Court / Family Court*, to bring the said on the day of 20 at a. m./p.m. to give testimony on behalf of and after the said shall have given his testimony before the Court or the Court shall have dispensed with his further attendance you are required to cause him to be conveyed under safe and sure conduct back to the said .

Dated this day of 20 .

This form requires sealing by the Court and the signature of the Registrar.

* Delete where inapplicable

Form 126

[deleted]

Form 127

R.615

**ORDER FOR THE EXAMINATION
BEFORE TRIAL**

(Title as in action)

Upon the application of _____ and upon reading the affidavit
of _____ filed the _____ day of _____ 20____ and upon
hearing _____ and that the Court is desirous of obtaining the testimony of
(name of person).

It is ordered that _____ do attend before the Judge (or
Registrar) on _____, the _____ day of _____ 20____ at _____ m. or
such other day and time as the Judge (or Registrar) may appoint and do there
submit to be examined upon oath or affirmation touching the testimony so
required as aforesaid and do then and there produce (description of documents,
if any, required to be produced).

Dated this _____ day of _____ 20____.

This form requires sealing by the Court and the signature of the Registrar.

Form 128

R.616

**ORDER FOR ISSUE OF LETTER OF
REQUEST TO RELEVANT AUTHORITY
OUT OF JURISDICTION**

(Title as in action)

Upon the application (as in Form 127).

It is ordered that a letter of request do issue directed to the relevant authority for the examination of the following witnesses, namely:

of

of

And it is ordered that the deposition taken pursuant thereto when received be filed in the Registry of the Family Justice Court and that copies thereof may be read and given in evidence on the trial of this action, saving all just exceptions, without any further proof of the absence of the said witnesses than the affidavit of the solicitor of the party using the same as to his belief.

And it is ordered that (the trial of this action be stayed until the said depositions have been filed and that) the costs of and incidental to the application for this order and the said letter of request and examination be (costs in the cause).

Dated this day of 20 .

This form requires sealing by the Court and the signature of the Registrar.

Form 129

R.616

**ORDER FOR APPOINTMENT OF EXAMINER
TO TAKE EVIDENCE OF WITNESS
OUT OF JURISDICTION**

(Title as in action)

Upon the application of _____ and upon reading the affidavit
of _____ filed the day of _____ 20____, and upon
hearing _____.

It is ordered that the Singapore Consul or his deputy
at _____ (or Esq.) be appointed as special examiner for the purpose of
taking the examination, cross-examination and re-examination orally on oath
or affirmation, of _____ witnesses on the part
of _____ at _____
in (name of country). The examiner shall be at liberty to invite the attendance
of the witnesses and the production of documents, but shall not exercise any
compulsory powers. Otherwise such examination shall be taken in accordance
with the Singapore procedure. The _____ solicitors to give to
the _____ solicitors _____ days' notice in writing of the date on which
they propose to send out this order to _____ for execution, and
that _____ days after the service of such notice the solicitors for the plaintiff and
defendant respectively do exchange the names of their agents
at _____ to whom notice relating to the examination of the said
witnesses may be sent. And that _____ days (exclusive of Sunday) before the
examination of any witness hereunder notice of such examination shall be
given by the agent of the party on whose behalf such witness is to be examined
to the agent of the other party, unless such notice be dispensed with. And that
the depositions when taken, together with any documents referred to therein,
or certified copies of such documents or of extracts therefrom, be sent by the
examiner, under seal, to the Registrar of the Family Justice Courts (insert
address) on or before the _____ day of _____ next, or such further or
other day as may be ordered, there to be filed in the Registry. And that either
party be at liberty to read and give such depositions in evidence on the trial of
this action, saving all just exceptions. And that the trial of this action be stayed
until the filing of such depositions. And that the costs of and incidental to the
application for this order and such examination be costs in the cause.

Dated this _____ day of _____ 20____.

This form requires sealing by the Court and the signature of the Registrar.

Form 130

R.617

LETTER OF REQUEST FOR EXAMINATION OF WITNESS OUT OF JURISDICTION / LEAVE FOR EVIDENCE TO BE GIVEN BY LIVE VIDEO LINK OR LIVE TELEVISION LINK BY WITNESS OUT OF JURISDICTION

1.	Sender	
2.	Central Authority of the Requested State	
3.	Person to whom the executed request is to be returned	
4.	Specification of the date by which the requesting authority requires receipt of the response to the Letter of Request	
	Date	
	Reason for urgency*	
5.	a Requesting Authority	
	b To the Competent Authority of	
	c Names of the case and any identifying number	
6.	Names and addresses of the parties and their representatives (including representatives in the Requested State*)	
	a Plaintiff	
	Representatives	
	b Defendant	
	Representatives	
	c Other parties	
	Representatives	
7.	a Nature of the proceedings (divorce, paternity, breach of contract, product liability, etc.)	
	b Summary of complaint	
	c Summary of defence and counterclaim*	

d	Other necessary information or documents*	
8.	a Evidence to be obtained or other judicial act to be performed	
	b Purpose of the evidence or judicial act sought	
9.	Identity and address of any person to be examined*	
10.	Questions to be put to the persons to be examined or statement of the subject matter about which they are to be examined*	
11.	Documents or other property to be examined*	
12.	Any requirement that the evidence be given on oath or affirmation and any special form to be used*	
13.	Special methods or procedure to be followed (e.g., oral or in writing, verbatim transcript or summary, cross-examination, etc.)*	
14.	Request for notification of the time and place for the execution of the Request and identity and address of any person to be notified*	
15.	Request for attendance or participation of judicial personnel of the requesting authority at the execution of the Letter of Request*	
16.	Specification of privilege or duty to refuse to give evidence under the law of the Requesting State*	
17.	The fees and costs incurred which are reimbursable will be borne by*	

Dated this day of 20 .

This form requires sealing by the Court and the signature of the Registrar.

(*Omit if not applicable)

Form 131

R.617

**SOLICITOR'S UNDERTAKING AS TO
EXPENSES**

(Title as in action)

I (We) hereby undertake to be responsible for all expenses incurred an issuing authority or a transmitting authority in respect of the letter of request issued herein on the , and on receiving due notification of the amount of such expenses undertake to pay the same as directed by the Registrar of the Family Justice Courts.

The following have been appointed as agents for the parties in connection with the execution of the above letter of request.

Plaintiff's Agent:

of

Defendant's Agent:

of

Dated this day of 20 .

Party or Solicitor

Form 131A

R. 629A

**ORDER FOR ISSUE OF LETTER OF
REQUEST TO RELEVANT AUTHORITY OUT OF JURISDICTION**

(Title as in action)

Upon the application of _____ and upon reading the affidavit
of _____ filed the _____ day of _____ 20____ and upon hearing
and that the Court wishes to obtain the testimony of (name of person).

It is ordered that a letter of request do issue directed to the relevant
authority for leave for evidence to be given by live video link or live television
link by the following witnesses, namely:

of

of

And it is ordered that the costs of and incidental to the application for
this order and the said letter of request and giving of evidence be (costs in the
cause).

Dated this _____ day of _____ 20____ .

This form requires sealing by the Court and the signature of the
Registrar.

Form 132

R.642

FORMS OF ATTESTATION⁶

(Title as in action)

(a) *To an affidavit by one deponent.*

Sworn (or affirmed) on the day
of 20 at (through the interpretation
of).

Before me

Commissioner for Oaths.

(b) *To an affidavit by 2 or more deponents.*

Sworn (or affirmed) by the deponents and (or by
both (or all) of the abovenamed deponents) on the day
of 20 at (through the interpretation of).

Before me

Commissioner for Oaths.

(c) *To an affidavit by an illiterate or blind person.*

Sworn (or affirmed) on the day of 20 at .

I, having truly, distinctly and audibly read over the contents of the above affidavit (add if exhibits are referred to in the affidavit “and explained the nature and effect of the exhibits therein referred to”) to the said deponent who seemed perfectly to understand the same and who made his mark thereto in my presence (through the interpretation of).

Before me

Commissioner for Oaths.

(d) *To an affidavit by a person who does not understand English.*

Sworn (or affirmed) on the day
of 20 at through the interpretation
of (if the interpreter is not a Court Interpreter add the following:

“the said having been first sworn that he had truly, distinctly,
and audibly translated the contents of his affidavit to the
deponent and that he would truly and faithfully interpret the
oath (or affirmation) about to be administered unto him the
said ”).

Before me

Commissioner for Oaths.

Form 133

R.657

**CONSENT OF LITIGATION REPRESENTATIVE³
OF PERSON UNDER DISABILITY**

(Title as in action)

I, _____ of _____, consent to be the litigation
representative³ of the abovenamed plaintiff (or defendant), a minor (or a person
lacking _____ capacity) in _____ this _____ action, and I
authorise _____ of _____, Advocates and Solicitors, to act
on my behalf.

Dated this _____ day of _____ 20 ____.

Signed by the said _____)
the _____ day of _____ 20 _____,)
in the presence of _____)

Solicitor
(or Commissioner for Oaths).

Form 134

R.657

**CERTIFICATE BY SOLICITOR FOR PERSON
UNDER DISABILITY**

(Title as in action)

I, _____ of _____, solicitor for the litigation representative³ hereby certify that I know (or believe) that (name of minor) (or name of person lacking capacity) is (a minor) (or a person lacking capacity) (give the grounds of knowledge or belief) and that the abovenamed (name of litigation representative³) has no interest in the cause (or matter) in question adverse to that of the minor (or the person lacking capacity).

Dated this _____ day of _____ 20____.

Solicitor for the

Form 135

R.682

ORDER FOR ACCOUNTS AND INQUIRIES

(Title as in action)

Upon the application of _____ the plaintiff (or the defendant) in this action and upon reading the affidavit of _____ filed the _____ day of _____ 20____, and upon hearing _____.

It is ordered that the following accounts and inquiry be taken and made; that is to say,

1. An account of the movable property not specifically bequeathed of _____, deceased, the testator in the pleadings named, come to the hands of, etc.

2. An account of the testator's debts, (or where deceased died more than six years before judgment, (an inquiry whether there is any debt of the deceased remaining unpaid)).

3. An account of the testator's funeral expenses.

4. An account of the legacies and annuities (if any) given by the testator's will.

5. An inquiry into what parts (if any) of the testator's said movable property are outstanding or undisposed of.

And it is ordered that the testator's personal estate not specifically bequeathed be applied in payment of his debts and funeral expenses in a due course of administering, and then in payment of the legacies and annuities (if any) given by his will.

(if ordered)

And it is ordered that the following further inquiries and accounts be made and taken; that is to say,

6. An inquiry into what immovable property the testator was seized of or entitled to at the time of his death.

7. An account of the rents and profits of the testator's immovable property received by, etc.

8. An inquiry into what encumbrances (if any) affect the testator's immovable property, or any and what parts thereof.

(if sale ordered)

9. An account of what is due to such of the encumbrances as shall consent to the sale hereinafter directed in respect of their encumbrances.

10. An inquiry into what are the priorities of such last-mentioned encumbrances.

And it is ordered that the testator's immovable property be sold with the approbation of the Judge, etc.

And it is ordered that the further consideration of this cause be adjourned, and any of the parties are to be at liberty to apply as they may be advised.

Dated this _____ day of _____ 20____.

This form requires sealing by the Court and the signature of the Registrar.

Form 136

R.696

NOTICE ON CERTAIN JUDGMENTS

The endorsement should be in the following words or words to the following effect:

- (a) In the case of a judgment or order requiring a person or body corporate to do an act within a specified time:

“If you, the within-named (or) neglect to obey this judgment (or order) by the time therein limited, you will be liable to process of execution for the purpose of compelling you to obey the same.”.

- (b) In the case of a judgment or order requiring a person to abstain from doing an act:

“If you, the within-named disobey this judgment (or order), you will be liable to process of execution for the purpose of compelling you to obey the same.”.

- (c) In the case of a judgment or order requiring a body corporate to do or to abstain from doing the act, but it is sought to take enforcement proceedings against a director or other officer of that order:

“If neglect to obey this judgment (or order) by the time therein limited (or in the case of an order to abstain from doing an act), if disobey this judgment (or order), you (a director or officer of the said) will be liable to process of execution for the purpose of compelling the said to obey the same.”.

Form 137

R.702

WRIT OF SEIZURE AND SALE

(Title as in action)

To the Sheriff/bailiff,

You are directed that you cause to be levied and made out of the property liable to be seized under a writ of seizure and sale which shall be identified by or on behalf of (name of execution creditor) as belonging to (name of execution debtor) now or late of (address of execution debtor) by seizure and if it be necessary by sale thereof \$ which the said (name of execution creditor) lately in the Family Division of the High Court/Family Courts recovered against the said (name of execution debtor) by a judgment (or order or as may be) bearing the day of 20 . And in what manner you shall have executed this writ make appear to this Court immediately after the execution thereof. And have there this writ.

Dated this day of 20 .

Entered No. of 20 .

Clerk.

This form requires sealing by the Court and the signature of the Registrar.

Memorandum to be subscribed on the writ

This writ may not be served more than 12 months after the above date unless renewed by order of the Court.

Endorsement to be made on writ before issue

THIS WRIT is issued by of ,
solicitor for the execution creditor who resides at . The
execution debtor resides at .

\$ ¢

Amount of judgment and costs

Subsequent costs (if any)

Paid to account of judgment

Remaining due

Costs of this writ

Interest on \$ at % p.a. from to

Property seized on

Amount of levy paid on

Property sold on by

for Expenses of Execution —

Lotting and advertising

Auctioneers' commission

Court commission

Other Court fees

Watchmen's wages

Other legal expenses (specify
them)

Paid into Court —

Paid to credit of landlord under

Paid to credit of Writ of Distress

Paid to credit of execution creditor

Paid to credit of execution debtor

Dated this day of 20 .

Sheriff/bailiff.

Form 138

R.702

WRIT OF SEIZURE AND SALE IN RESPECT OF IMMOVABLE PROPERTY

(Title as in action)

To the Sheriff/bailiff,

Having seized the interest of (name of execution debtor) in the immovable property specified in the Schedule hereto pursuant to the Order of Court dated , you are directed to serve the Writ of Seizure and Sale together with the said Order of Court on (name of execution debtor), of and, if the execution debtor cannot be found, affix a copy of the same on some conspicuous part of the immovable property known as , and thereafter, if necessary, to sell the said interest to satisfy the sum \$ which is the sum outstanding payable to the said (name of execution creditor) pursuant to a judgment (or order as may be) dated against the said (name of execution debtor).

SCHEDULE

*CT/SSCT/SCT/ Lease	MK	TS	Whole or part lot (if part lot, to state approved new lot number or strata lot number)	Property Address
------------------------	----	----	--	---------------------

Vol** Fol**

(*Delete as appropriate)

(**If title document is a lease, to cancel the Vol No. and Fol No. and simply state the Lease No.)

This writ is issued by:

This form requires sealing by the Court and the signature of the Registrar.

Form 139

R.702

WRIT OF DELIVERY

(Title as in action)

To the Sheriff/bailiff,

You are directed that, without delay, you do seize and deliver, to the abovenamed (name of execution creditor) the following movable property, that is to say (describe the property delivery of which has been adjudged or ordered) (and \$ damages and \$ costs) which the said (name of execution creditor) lately in the Family Division of the High Court/Family Courts recovered against the said (name of execution debtor) by a judgment (or order or as may be) bearing the day of 20 .

(And you are further directed that if the said movable property cannot be found within Singapore you cause to be levied and made out of the property liable to be seized under a writ of seizure and sale belonging to the said (name of execution debtor) and if necessary by sale thereof \$, being the assessed value of the said property). And in what manner you have executed this writ make appear to this Court immediately after the execution thereof. And have there this writ.

Dated this day of 20 .

Entered No. of 20 .

Clerk.

This form requires sealing by the Court and the signature of the Registrar.

Memorandum on Writ (as in Form 137).

Endorsements on Writ (as in Form 137 or as required).

Form 140

R.702

WRIT OF POSSESSION

(Title as in action)

To the Sheriff/bailiff,

Whereas lately, by a judgment of the Family Division of the High Court/Family Courts bearing the day of 20 , it was adjudged (or ordered) that the defendant (name of defendant) do give the plaintiff (name of plaintiff) possession of (describe the immovable property delivery of which has been adjudged or ordered) and do pay him \$ and \$ costs.

You are directed that you enter the said immovable property and cause (name of plaintiff) to have possession of it.

And you are further directed that you cause to be levied and made out of the property liable to be seized under a writ of seizure and sale belonging to the said (name of defendant) and if necessary by sale thereof \$. And in what manner you have executed this writ make appear to this Court immediately after the execution thereof. And have there this writ.

Dated this day of 20 .

Entered No. of 20 .

Clerk.

This form requires sealing by the Court and the signature of the Registrar.

Memorandum on Writ (as in Form 137).

Endorsements on Writ (as in Form 137 or as required).

Form 141

R.706

**SUMMONS FOR LEAVE
TO ISSUE EXECUTION**

(Title as in action)

To:

Let all parties concerned attend before the Court on the date and time to be assigned for the hearing of an application for the following order(s):

1. The plaintiff (or as may be) be at liberty to issue execution (or writ of seizure and sale, or as may be) against the defendant (or as may be) on the judgment herein dated _____, (notwithstanding that 6 years have elapsed since such judgment, or as may be); and
2. The defendant (or as may be) do pay the costs of and occasioned by this application.

Grounds of application: As set out in the affidavit of (name).

Issued by: _____ (Solicitors for the _____).

This form requires sealing by the Court and the signature of the Registrar.

Form 142

R.707

**UNDERTAKING, DECLARATION
AND INDEMNITY**
(Title as in action)

1. I/We hereby undertake to pay all charges and fees that are imposed by the Sheriff/bailiff and to fully indemnify the Sheriff/bailiff and his officers and keep them indemnified against all actions, proceedings, liabilities, claims, damages, costs and expenses incurred in relation to or become payable by the Sheriff/bailiff in respect of or arising from the execution. Please appoint a suitable date to execute the Writ of Seizure and Sale/Delivery/Possession*.

2. **I/We hereby declare that as at the date of this undertaking, declaration and indemnity, the property the Sheriff/bailiff is requested to seize under this Writ of Seizure and Sale/Delivery/Possession* is/is not the subject-matter of a seizure or attachment under any execution or order issued by the Family Court or the Family Division of the High Court.

(State particulars of prior execution if applicable.)

3. For seizure of movable property under a Writ of Seizure and Sale/Delivery*.

I/We hereby declare that, as at the date of this undertaking, declaration and indemnity, I/we have reason to believe that the execution debtor is the owner or occupier at the address of execution or the owner of the property liable to be seized.

(State the grounds of belief.)

(*Delete as appropriate)

(**Use as appropriate)

(Signature of declarant)

NAME OF DECLARANT:

Date of filing:

Form 143

R.712

CONSENT TO ENTRY OF SATISFACTION

(Title as in action)

I, _____ of _____ being the
plaintiff (or as may be) named in, and the sole person entitled to the benefit of
the judgment herein, hereby consent to a memorandum of satisfaction of the
said judgment being recorded.

Dated this day of 20 .

Plaintiff (or as may be).

Advocate and Solicitor (or Commissioner for Oaths.)

Form 144

R.714

REQUEST⁴ FOR DATE TO BE
APPOINTED FOR EXECUTION

(Title as in action)

To the Registrar,

Please direct the Sheriff/bailiff to appoint a date for the execution of the
judgment in .

A copy of the (writ of execution or distress) is attached.

Name and address of execution creditor:

His Solicitors:

Address for service:

Dated this day of 20 .

(Signature)

Execution Creditor (or by or on behalf
of solicitors for)

Form 145

R.719

NOTICE OF SEIZURE AND INVENTORY

Take notice that I have this day seized the movable property found on or upon the premises No. pursuant to a Writ of Seizure and Sale/Writ of Distress No. of 20 for the sum of \$ and that I value the property seized at \$ approximately.

Unless you pay the amount abovementioned together with costs of this execution within 7 days from the date hereof or obtain an order of the Court to the contrary the same will be sold by public auction on the day of 20 .

Amount due under writ \$

(Rent due for months from)
the day of 20)
to the day of 20)
at \$ a month.)

Costs of writ \$

Court commission \$

Lotting and advertising \$

Auctioneers' commission \$

Other Court fees \$

Watchmen's wages at \$ a day \$

Other legal expenses \$

Dated this day of 20 .

Sheriff/bailiff.

(For Inventory see overleaf)

To

and all others whom it may concern.

Form 146

R.726

NOTICE OF SALE

(Title as in action)

Notice is hereby given that the property seized at _____ on
the _____ day of _____ 20____, under Writ of Distress/Seizure and Sale
No. _____ of 20____, will be sold by public auction on the _____ day
of _____ 20____, at _____ m. unless the amount to be levied and the
fees and expenses of execution be sooner paid.

Dated this _____ day of _____ 20____.

Sheriff/bailiff.

Form 147

R.732

**AFFIDAVIT IN SUPPORT OF
APPLICATION FOR NEW ORDER**

(Title as in action)

I, _____ of _____, the abovenamed
plaintiff (or defendant) make oath (or affirm) and say as follows:

1. I have a judgment of this Court against the defendant (or there is a
judgment of this Court against me) particulars of which are as follows:

The date of the judgment is the _____ day of _____ 20____.

The amount of the judgment including costs is \$ ____.

The amount paid to account since judgment is \$ ____.

The balance due is \$ ____.

The date of the instalment order is the _____ day of _____ 20____.

The amount of the instalment order is \$ _____ a month.

2. I verily believe that there is a change of circumstances in the affairs
of the defendant (or I say that there is a change of circumstances in my affairs)
particulars of which are as follows:

The Defendant's/My occupation was _____ and is now _____.

His/My total income from all sources was \$ _____ a month and is
now \$ _____ a month.

He/I had _____ dependants and now has/have _____ dependants.

His/My rent was \$ _____ a month and is now \$ _____ a month.

His/My regular monthly payments were _____ and are now (herein
itemise).

(State other relevant changes).

3. I now apply for an order that (here state the nature of the order
required).

Sworn (or affirmed) as in Form 132.

Form 148

R.732

**NEW ORDER FOR PAYMENT
OF JUDGMENT DEBT**

(Title as in action)

Upon the application of the abovenamed defendant (or as may be) coming on for hearing the day of 20 before His Honour , and upon reading the affidavit of filed the day of 20 , and upon hearing the parties (or as may be). It is ordered that the order dated the day of 20 be rescinded and that the defendant (or as may be) do pay the balance of the judgment debt outstanding by instalments of \$ a month, commencing the day of 20 (or that the application is dismissed) and it is further ordered that the defendant (or as may be) do pay the sum of \$ costs of this application.

Dated this day of 20 .

This form requires sealing by the Court and the signature of the Registrar.

Form 149

R.734

**ORDER OF COURT FOR THE
SEIZURE AND SALE IN RESPECT
OF IMMOVABLE PROPERTY
(Title as in action)**

Before (Name and designation of Judicial Officer):

(In court/chambers)

Date of order:

Upon the application of _____ and upon reading the affidavit
of _____ filed on _____, and upon hearing _____,
the following orders are made:

1. The interest of _____ in the immovable property specified in
the Schedule herein be attached and taken in execution to satisfy the
judgment of the abovenamed _____ dated _____.
2. (State costs orders given by the Court.)

SCHEDULE

*CT/SSCT/SCT/ Lease	MK	TS	Whole or part lot (if part lot, to state approved new lot number or strata lot number)	Property Address
------------------------	----	----	--	------------------

Vol** Fol**

(*Delete as appropriate)

(**If title document is a lease, to cancel the Vol No. and Fol No. and simply state the Lease No.)

Note: This order shall, unless registered under any written law relating to such immovable property, remain in force for 6 months from the date hereof.

This form requires sealing by the Court and the signature of the Registrar.

Form 150

R.734

NOTICE OF SEIZURE

(Title as in action)

Take notice that on the day of 20 , (date of registration under Rule 734(2)) the interest of (name of judgment debtor) in the immovable property specified in the Schedule hereto has been seized pursuant to a Writ of Seizure and Sale dated the day of 20 for the sum of \$.

Unless you pay the amount abovementioned together with costs of this execution within 7 days from the date hereof or obtain an order of the Court to the contrary, the same will be sold by public auction after the expiry of 30 days from the day of seizure.

\$ ¢

Amount due under Writ

Costs of Writ

Costs of Request⁴

Court Commission

Advertising

Auctioneer's Commission

Other Court Fees

Other Legal Fees

Dated this day of 20 .

Sheriff/bailiff

To

and all others to whom it may concern

SCHEDULE

Form 151

R.736

SHERIFF'S/BAILIFF'S NOTICE

SEIZING SECURITIES

(Title as in action)

Whereas by a writ of seizure and sale dated the day
of 20 , a copy of which is attached, I was directed to cause
to be levied and made out of the property liable to be seized under the writ of
seizure and sale belonging to the sum of \$.

Now I do give you notice that I hereby seize the securities specified in
the Schedule hereto to which the judgment debtor is beneficially entitled to
satisfy the judgment of the
abovenamed dated .

Dated this day of 20 .

Sheriff/bailiff.

SCHEDULE

Form 152

R.739

**AFFIDAVIT IN SUPPORT
OF APPLICATION FOR ORDER FOR
EXAMINATION OF JUDGMENT DEBTOR**

(Title as in action)

I, _____ of _____
do make oath (or affirm) and say as follows:

1. I _____ am _____ a _____ in _____ the _____ employ
of _____ solicitors for the plaintiff and am duly authorised to
make this affidavit on behalf of _____ .

2. On the _____ day of _____ 20____, judgment
was entered for the plaintiff for \$ _____ and \$ _____ costs (or as may
be). The said judgment remains wholly unsatisfied (or unsatisfied as to
the total sum of \$ _____, or as may be).

3. In order to enable the plaintiff to decide upon the methods to
employ to enforce the said judgment, it is desired to examine the
judgment debtor (or _____, an officer of the judgment
debtor company) on the question whether any and if so what debts are
owing to him (or the judgment debtor company) and/or means of
satisfying the judgment debt.

4. In these circumstances, I respectfully ask for an order that the
said judgment debtor (or _____) do attend before the
Registrar to be examined on the said questions, and to produce upon
such examination all books or documents in his possession relevant to
the said questions at the time and place appointed for his examination.

Sworn (or affirmed) as in Form 132.

Form 153

R.739

**ORDER FOR EXAMINATION OF
JUDGMENT DEBTOR**

(Title as in action)

Upon the application of _____ and upon reading the
affidavit _____ of _____ filed _____ the _____ day
of _____ 20____ and upon hearing _____ .

It is ordered that the abovenamed judgment debtor _____ attend
and be orally examined as to whether the said judgment debtor has any
property or means on the _____ day of _____ 20____, before the
Registrar, and that the said judgment debtor produce any books or documents
in his possession or power relating to the same before the Registrar at the time
of the examination and that the costs of this application and of the examination
thereunder be in the discretion of the Registrar conducting the examination.

Dated this _____ day of _____ 20____ .

This form requires sealing by the Court and the signature of the Registrar.

Note: This order requires personal service, and the copy served must be
endorsed as prescribed by R.696(4), when it may be enforced by
committal.

Form 154

R.742

GARNISHEE ORDER TO SHOW CAUSE
IN THE FAMILY JUSTICE COURTS
OF THE REPUBLIC OF SINGAPORE

Suit No.)
of 20)

Between

Judgment Creditor

And

Judgment Debtor

And

Garnishee.

Upon the application of _____ and upon reading the
affidavit of _____ sworn to (or affirmed) and filed
the day of _____ 20____ and upon hearing _____.

It is ordered by the Judge (or Registrar) that all debts due or accruing due from the abovementioned garnishee to the abovementioned judgment debtor (in the sum of \$) be attached to answer a judgment recovered against the said judgment debtor by the abovenamed judgment creditor in the Family Division of the High Court/Family Court on the day of 20 for the sum (or to answer an order made in the Family Division of the High Court/Family Court on the day of 20 ordering payment by the judgment debtor to the judgment creditor of the sum) of \$ (\$ debt and \$ costs) (together with the costs of the garnishee proceedings) on which judgment (or order) the sum of \$ remains due and unpaid.

And it is ordered that the garnishee attend before the Judge (or Registrar), on the day of 20 at m., on an application by the said judgment creditor that the garnishee do pay to the judgment creditor the debt due from the garnishee to the judgment debtor, or so much thereof as may be sufficient to satisfy the judgment (or order), together with the costs of the garnishee proceedings.

Dated this day of 20 .

This form requires sealing by the Court and the signature of the Registrar.
To the abovenamed garnishee and judgment debtor.

Form 155

R.743

AFFIDAVIT IN SUPPORT OF GARNISHEE ORDER

**IN THE FAMILY JUSTICE COURTS OF
THE REPUBLIC OF SINGAPORE**

Suit No.)
of 20)

Between

Judgment Creditor

And

Judgment Debtor

I, _____, of _____, the
abovenamed judgment creditor (or, state the name, the residence and the
occupation or description of the deponent), do make oath (or affirm) and say
as follows:

1. By a judgment (or order) of the Court given in this action, and
dated the _____ day of _____ 20____, it was adjudged (or
ordered) that the abovenamed judgment debtor should pay me (or the
abovenamed judgment creditor) the sum of \$ _____, and costs
\$ _____.

2. The judgment (or order) still remains unsatisfied to the extent of
\$ _____ and interest amounting to \$ _____.

3. To the best of my information or belief (state the name, address
and description of the garnishee) is indebted to the judgment debtor in
the sum of \$ _____ or thereabouts, and is within the jurisdiction of
this Court. The grounds of my information and belief are (state the
sources of the deponent's information or grounds of belief).

4. I am duly authorised by the abovenamed judgment creditor to
make this affidavit on his behalf.

Sworn (or affirmed) as in Form 132.

Form 156

R.745

GARNISHEE ORDERS

(Title as in Form 154)

(a) *Final garnishee order¹⁴ where garnishee owes more than judgment debt.*

Upon reading the affidavit of _____ filed the _____ day of _____ 20____, and the order to show cause made herein dated the _____ day of _____ 20____, and upon hearing the solicitors for the judgment creditor and the garnishee, whereby it was ordered that all debts due or accruing due from the abovenamed garnishee to the abovenamed judgment debtor should be attached to answer a judgment recovered against the said judgment debtor by the abovenamed judgment creditor in the Family Division of the High Court/Family Court on the _____ day of _____ 20____ for the sum (or to answer an order made in the Family Division of the High Court/Family Court dated the _____ day of _____ 20____ ordering payment by the said judgment debtor to the abovenamed judgment creditor of the sum) of \$ _____ (\$ _____ debt and \$ _____ costs) (together with the costs of the garnishee proceedings) on which judgment (or order) the sum of \$ _____ remained due and unpaid.

It is ordered that the said garnishee do forthwith pay to the judgment creditor (or into Court if the judgment creditor is resident outside the scheduled territories as defined in the Exchange Control Act (Cap. 99), or would receive payment of the said sum on behalf of a person so resident, unless the permission of the Monetary Authority of Singapore under that Act has been given unconditionally or upon conditions which have been complied with) \$ _____ being so much of the debt due from the garnishee to the judgment debtor as is sufficient to satisfy the said judgment debt and costs, together with \$ _____ the costs of the garnishee proceedings, and that the garnishee be at liberty to retain \$ _____ for his costs of this application out of the balance of the debt due from him to the judgment debtor.

Dated this _____ day of _____ 20____.

This form requires sealing by the Court and the signature of the Registrar.

(b) *Final garnishee order¹⁴ where garnishee owes less than judgment debt.*

Upon reading (as above)

It is ordered that the said garnishee (after deducting therefrom \$ _____ for his costs of this application) do forthwith pay to the said judgment creditor (or into Court if the judgment creditor is resident outside the scheduled territories as defined in the Exchange Control Act, or would receive payment of the said sum on behalf of a person so resident, unless the permission of the Monetary Authority of Singapore under that Act has been given unconditionally or upon conditions which have been complied with) \$ _____ the debt due from the garnishee to the judgment debtor. And that the sum of \$ _____ the costs of the judgment creditor of this application be added to the judgment debt and be retained out of the money recovered by the judgment creditor under this order and in priority to the amount of the judgment debt.

Dated this _____ day of _____ 20____.

This form requires sealing by the Court and the signature of the Registrar.

Form 157

R.746

**ORDER FOR ISSUE BETWEEN
JUDGMENT CREDITOR AND GARNISHEE**

(Title as in Form 154)

Upon reading the affidavit of _____ filed the _____ day
of _____ 20____, and the provisional order¹⁵ herein, dated
the _____ day of _____ 20____, and upon hearing counsel for the
judgment creditor, the garnishee and the judgment debtor.

It is ordered that the judgment creditor and the garnishee proceed to the
trial of an issue wherein the said judgment creditor shall be plaintiff and the
said garnishee shall be defendant, and that the question to be tried shall be
whether there was any debt due or accruing due in any and what amount from
the garnishee to the judgment debtor at the time the said provisional order¹⁵
was served. And it is further ordered that the question of costs and all further
questions be reserved to the Judge (or Registrar) trying the same issue.

Dated this _____ day of _____ 20____.

This form requires sealing by the Court and the signature of the Registrar.

Form 158

R.752

AFFIDAVIT AND NOTICE UNDER R.752

(Title as in action)

And

In the matter of (state the settlement or other document under which the deponent's interest arises giving the date and other particulars sufficient to identify the document)

And

In the matter of Rule 752 of the Family Justice Rules.

I, (or the solicitor of),
of do make oath (or affirm) and say that according to the best
of my knowledge, information and belief I am (or the said is)
beneficially entitled under the abovementioned settlement (or as may be) to an
interest in the securities specified in the notice hereto annexed.

Sworn (or affirmed) as in Form 132.

This affidavit is filed on behalf of whose address
is . Notice to be annexed to affidavit.

To the Accountant-General,

Singapore

(or as may be).

Take notice that the securities comprised in and subject to the trusts of
the settlement (or as may be) referred to in the affidavit to which this notice is
annexed consist of the following, namely (specify the stock, shares, etc.,
stating the names in which it stands).

This notice is intended to stop the transfer of the said securities and not
the payment of any dividend thereof or interest thereon (or and also the
payment of any dividend thereof or interest thereon).

Deponent.
(or solicitor of deponent
if affidavit sworn by him).

Form 159

R.756

**ORDER RESTRAINING
TRANSFER OF STOCK, ETC.**

(Title as in action)

And

In the matter of the trusts of

And

In the matter of Rule 756, of the Family Justice Rules.

Upon the hearing of the application for an injunction this day made unto this Court by counsel for the applicant.

And the applicant by his counsel undertaking to abide by any order the Court may hereafter make should it decide that the respondents (the Accountant-General or as may be) have sustained damage by reason of this Order and are entitled to damages which the applicant ought to pay:

It is ordered that the Accountant-General (or the Co. Ltd., or as may be) be restrained until the day of 20 or further order from permitting the transfer of (describe stock) standing in the name of (state name of holder of stock) in their books, or any part thereof, and from paying any dividend or interest due or to become due thereon.

Dated this day of 20 .

This form requires sealing by the Court and the signature of the Registrar.

Form 160

R.758

ORDER OF COMMITTAL

(Title as in action)

Upon application made to this Court by counsel for the plaintiff and upon reading the affidavit of filed on the day of of service on the defendant of a copy of the following:

- (1) the ex parte originating summons or summons
- (2) the statement and the affidavit in support of the application for leave
- (3) the order of Court dated the day of
- (4) the summons for an order of committal

And it appearing to the satisfaction of the Court that the said defendant has been guilty of contempt of Court in (state the contempt):

It is ordered that for his said contempt, the defendant do stand committed to prison to be there imprisoned for (or until further order) (and/or be fined \$).

(It is further ordered that this order shall not be executed if the said defendant complies with the following terms, namely,).

Dated this day of 20 .

This form requires sealing by the Court and the signature of the Registrar.

Form 161

R.766

WARRANT FOR COMMITTAL

(Title as in action)

To the Sheriff and all other police officers of Singapore.

Whereas by an order of this Court pronounced this day it was ordered that the abovenamed do stand committed to prison for his contempt mentioned in the said Order.

This is to direct you to apprehend the said and safely convey him to prison to be detained and kept in safe custody for (or until further order).

Dated this day of 20 .

This form requires sealing by the Court and the signature of the Registrar.

Form 162

R.783

ORDER FOR REVIEW OF DETENTION¹¹

(Title as in action)

To the Superintendent of Prison
at (or other person having the custody of the person
under restraint).

Take notice that you are required by this order to produce
who is detained under your custody before the Family Division of the High
Court on (date/time) in order that the Court may examine
and/or pronounce on the legality of the detention of the said .

If you default in doing so, the Court will then, or so soon thereafter as
counsel can be heard, be moved to commit you to prison for your contempt in
not obeying this order.

Dated this day of 20 .

This form requires sealing by the Court and the signature of the Registrar.

To:

Form 163

R.797

ORDER FOR POSSESSION UNDER DIVISION 54 OF PART 18

(Title as in summons)

Upon hearing _____ and upon reading the affidavit of _____ filed
the _____ day of _____ 20____, it is ordered that the plaintiff A.B. do
recover possession of the land described in the originating summons
as _____ (and the defendant _____ do give possession of the said
land on _____) (and that the defendant _____ do pay the plaintiff
\$ _____ costs (or to be taxed)).

The above costs have been taxed and allowed at \$ _____ as appears by
the Registrar's certificate dated the _____ day of _____ 20____.

Dated the _____ day of _____ 20____.

This form requires sealing by the Court and the signature of the Registrar.

Form 164

R.798

WRIT OF POSSESSION UNDER DIVISION 54 OF PART 18

(Title as in summons)

To the Sheriff/bailiff,

Whereas it was on the day of 20 ordered that the plaintiff A.B. do recover possession of (described the land recovery of which has been ordered) (and that the defendant C.D. do pay him \$ costs (or costs to be taxed, which costs have been taxed and allowed at \$ as appears by the Registrar's certificate dated the day of 20)).

You are directed that you enter the said land and cause A.B. to have possession of it.

(And you are also directed that of the goods, chattels and other property of C.D. authorised by law to be seized in execution you cause to be made (the sum(s) of \$ (and \$ for costs of execution)) and also interest on \$ at the rate of per cent per annum from the day of 20 until payment (together with Sheriff's/bailiff's expenses, costs of levying and other legal, incidental expenses) and that immediately after execution of this writ you pay A.B. in pursuance of the said judgment (or order) the amount levied in respect of the said sums and interest.)

And you are also directed that you endorse on this writ immediately after execution thereof a statement of the manner in which you have executed it and send a copy of the statement to A.B.

Dated the day of 20 .

This form requires sealing by the Court and the signature of the Registrar.

Form 165

R.814, 816,
823, 839

NOTICE OF APPEAL

(For Registrar's Appeal, Title as in Action)

District Court Appeal No. of 20 .

Between

Appellant

And

Respondent

In the matter of No. of 20 .

Between

Plaintiff

And

Defendant

NOTICE OF APPEAL

To: The Registrar and to

Take notice that an appeal has been filed by the abovenamed plaintiff (or defendant) to the (*District Judge in Chambers/Judge in Family Division of the High Court in Chambers/Family Division of the High Court).

The appeal is against the decision (to specify the whole or part of the decision, in an appeal to the Family Division of the High Court) of the (*Registrar of the Family Courts/Registrar of the Family Division of the High Court/Magistrate in Chambers/District Judge in Chambers/Magistrate/District Judge/ (name) given on , as follows:

Issued by: (Solicitors for the).

This form requires sealing by the Court and the signature of the Registrar.

(*Delete as appropriate)

Form 166

R.824

CERTIFICATE FOR SECURITY FOR COSTS

(Title as in Form 165)

This is to certify that _____ of _____ the abovenamed appellant has deposited the sum of \$ _____ by way of security for the respondent's costs of the appeal/application* in the Registry (or with the Accountant-General).

Dated this _____ day of _____ 20 _____.

Registrar.

*Delete whichever is inapplicable.

Form 167

R.824

UNDERTAKING FOR SECURITY FOR COSTS

(Title as in Form 165)

To the respondent,

We, the solicitors for the appellant, undertake to hold the sum of \$ by way of security for your costs of the appeal/application* and, if costs are payable to the respondent under any order made by the Family Division of the High Court, to release to you the said amount without set-off unless the Family Division of the High Court otherwise orders.

Dated this day of 20 .

Solicitors for the appellant(s)

*Delete whichever is inapplicable.

Form 168

R.824

**CERTIFICATE FOR SECURITY FOR COSTS
(BY WAY OF AN UNDERTAKING)
(Title as in Form 165)**

To the Registrar,

We, the solicitors for the appellant, hereby certify that we have furnished an undertaking in accordance with Rule 824 as security for the respondent's costs of the appeal/application*.

Dated this day of 20 .

Solicitors for the appellant(s)

*Delete whichever is inapplicable.

Form 169

(deleted)

Form 170

R.901

ORDER FOR SUBSTITUTED SERVICE

(Title as in action)

Upon the application of _____ the plaintiff in this action
and upon reading the affidavit of _____ filed the _____ day
of _____ 20____ and upon hearing _____ .

It is ordered that service of a copy of this order, and a copy of the writ
of summons in this action by sending the same by a prepaid ordinary post letter
addressed to the defendant _____ at _____ , (or such
other substituted service as may be ordered) shall be good and sufficient
service of the writ.

Dated this _____ day of _____ 20____ .

This form requires sealing by the Court and the signature of the Registrar.

Form 171

R.901

**AFFIDAVIT ON APPLICATION
FOR SUBSTITUTED SERVICE**

(Title as in action)

I, _____ of _____, (the abovenamed plaintiff, or solicitor for the abovenamed plaintiff, or clerk to the plaintiff's solicitor, or clerk to the plaintiff, or as may be) do make oath (or affirm) and say as follows:

1. Having been directed by _____ to serve the abovenamed defendant _____ with a copy of the writ of summons in this action which appeared to me to have been regularly issued out of and under the seal of the Family Justice Courts by the abovenamed plaintiff against the abovenamed defendant, and dated the _____ day of _____ 20____, which said writ and copy were subscribed and endorsed in the manner and form prescribed by the Family Justice Rules and a true copy of which said writ is now produced and shown to me, marked '_____', I did on _____ the _____ day of _____ 20____ attend for the purpose of serving a copy of the said writ at (describe efforts to effect service).

I have made all reasonable efforts and used all due means in my power to serve the said writ, but I have not been able to do so.

Sworn (or affirmed) as in Form 132.

Note: The affidavit should also specify the method of substituted service asked for, and state that if such service is ordered it will probably be effectual in bringing the writ (or as may be) to the knowledge of the defendant. If the defendant is evading service the affidavit should so state.

Form 172

R.906

AFFIDAVITS ON SERVICE

(Title as in action)

(a) Affidavit of Personal Service of writ of summons or other process on a person.

I, _____ of _____, do make oath (or affirm) and say as follows:

1. I did on _____ the _____ day of _____ 20____, at (state where) personally serve (the abovenamed defendant) (or one of the abovenamed defendants) (or a partner in the abovenamed defendant firm of _____ & Co.) (or the person (the insertion of the name is not essential) having at the time of such service the control or management of the said partnership business) (or as may be) with a true copy of the writ of summons (or as may be) in this action which appeared to me to have been regularly issued out of the Registry of the Family Justice Courts against (the abovenamed defendant) (or the abovenamed defendants) (or as may be) at the suit of (the abovenamed plaintiff) (or plaintiffs) (or as may be) and which was dated the _____ day of _____ 20____.
2. The defendant (or as may be) (is known to me) (or was pointed out to me by _____) (or admitted to me that he was _____).
3. At the time of the said service the said writ (or as may be) and the copy thereof were subscribed (and endorsed) in the manner and form prescribed by the Family Justice Rules.
4. I did on the _____ day of _____ 20____ endorse on the said writ the day of the month and the week of the said service on the said defendant.

Sworn (or affirmed) as in Form 132.

(b) Affidavit of Personal Service of writ of summons or other process on a body corporate.

I, _____ of _____, do make oath (or affirm) and say as follows:

1. I _____ did _____ on _____ the day of _____ 20 (date of posting), serve the abovenamed defendant (or as may be) with a true copy of the writ of summons (or as may be) in this action, which appeared to me to have been regularly issued out of the Registry of the Family Justice Courts against the abovenamed defendant (or as may be) at the suit of the abovenamed plaintiff (or as may be), and which was dated the day of _____ 20 by leaving the same at (place of service) (or sending the same) on the day of _____ 20, (by registered post) (or by post in a prepaid letter or envelope) addressed to the abovenamed defendant (or as may be) at (address), which is the registered office of the said defendant (or as may be) (and as in paragraph 3 etc. of (a) above).

Note: This form may be used with necessary alterations for a foreign company registered in Singapore under the Companies Act (Cap. 50), but the affidavit must state that the company is a foreign company registered pursuant to that Act and that service is being effected on the person authorised by registration in Singapore to accept service on behalf of the defendant under that Act.

(c) Affidavit of Substituted Service by Post of writ of summons or other process.

I, _____ of _____, do make oath (or affirm) and say as follows:

1. I did on the day of _____ 20, serve the abovenamed defendant (or as may be) with a true copy of the writ of summons (or as may be) in this action and a true copy of the order for substituted service, by posting at the Post Office at _____ in a prepaid letter or envelope (or 2 prepaid letters or envelopes each) containing a true copy of the said writ (or as may be) and of the said order, and addressed (respectively) to the defendant (or as may be) at _____ (and at _____) pursuant to the said order.
2. That the said writ of summons (or as may be) appeared to me to have been regularly issued out of the Registry of the Family Justice Courts against the abovenamed defendant (or as may be) at the suit of the abovenamed plaintiff (or as may be) and was dated the day of _____ 20 (and as in paragraph 4 etc. of (a) above).

(d) Affidavit of Service of writ of summons by Advertisement.

I, _____ of _____, do make oath (or affirm) and say as follows:

1. I did on _____ the _____ day of _____ 20____, serve the abovenamed defendant with the writ of summons in this action and of the order for service by advertisement dated the _____ day of _____ 20____, by causing to be inserted once in (names of paper or papers as ordered) an advertisement in the words following namely:

(Title, Reference Number, etc.)

The abovenamed defendant,

(As in (e) below).

2. The advertisement aforesaid appeared in the (name of paper) on the _____ day of _____ 20____, (and in the (name of paper) on the _____ day of _____ 20____).

Sworn (or affirmed) as in Form 132.

(e) Form of Advertisement.

To _____ of (or late of)

Take notice that an action has been commenced against you in the Family Justice Courts in Suit No. _____ of 20____ by _____ of _____, in which the plaintiff's claim is for (state very shortly the nature of claim and the amount (if any) claimed in the endorsement on the writ).

And that it has been ordered that service of the writ in the said action on you be effected by this advertisement. If you desire to defend the said action you must within _____ days from the publication of this advertisement, inclusive of the day of such publication, enter an appearance at the Registry of the Family Justice Courts. In default of such appearance judgment may be entered against you.

Dated this _____ day of _____ 20____.

Solicitors for the

(f) Affidavit of Personal Service of Judgment or Order.

I, _____ of _____, do make oath (or affirm) and say as follows:

1. I did on _____ the _____ day of _____ 20____, at _____ personally serve the abovenamed defendant (or plaintiff) with a true copy of the order (or judgment) dated _____ in this action, now produced and shown to me marked _____ (or recite operative part of order or judgment).
2. The copy of the said order (or judgment) so served as aforesaid had endorsed thereon when so served the words following, that is to say: "If you the within named neglect to obey this order (or judgment) by the time therein limited you will be liable to process of execution for the purpose of compelling you to obey the same order (or judgment)".

Sworn (or affirmed) as in Form 132.

Form 173

R.930

NOTICE OF CHANGE OF SOLICITOR

(Title as in action)

To the Registrar,

Take notice that (name of new solicitor), of , has (or have) been appointed to act as the solicitor of the abovenamed (plaintiff or defendant (if for one or more of several defendants, naming the defendant or defendants)) in this action, in the place of (name of original solicitor).

The address for service of the abovenamed (new solicitor) is .

Dated this day of 20 .

Solicitor.

To the abovenamed defendant (or plaintiff) or his (or their) solicitor and to (naming the former solicitor of the plaintiff (or defendant)).

Form 174

R.932

NOTICE OF INTENTION OF PARTY
TO ACT IN PERSON, IN PLACE OF SOLICITOR
(Title as in action)

To the Registrar,

Take notice that I, _____ the abovenamed plaintiff (or
defendant) intend to act in person in this action in the place
of _____ and that my address for service is _____.

Dated this _____ day of _____ 20 ____.

Party.

To the abovenamed defendant (or plaintiff) and to (naming the former
solicitor of the plaintiff (or defendant)).

Form 175

R.933

**SUMMONS TO REMOVE SOLICITOR
FROM RECORD
(Title as in action)**

To: (name of party whose solicitor has ceased to act)

Let all parties concerned attend before the Court on the date and time to be assigned for the hearing of an application for the following order(s):

1. (Name of solicitor who has ceased to act) ceases to be the solicitor acting for (name of party whose solicitor has ceased to act), plaintiff (or defendant) (or as may be) in this action (or matter); and
2. Costs of this application be .

Grounds of application: (To set out grounds) or (As set out in the affidavit of [name]).

Issued by: (Solicitors for the).

This form requires sealing by the Court and the signature of the Registrar.

Form 176

R.933

**ORDER REMOVING SOLICITOR
FROM THE RECORD**

(Title as in action)

, solicitor for in this action (or matter) having (died, become bankrupt or any other reason for removal) and the said (name of party formerly represented by solicitor) having failed to give notice of change of solicitor or notice of intention to act in person and notice of the application having been duly served upon the said (name of party formerly represented by solicitor).

Upon the application of and upon reading the affidavit of filed the day of 20 and upon hearing .

It is ordered that the said ceases to be the solicitor acting for the said (name of party formerly represented by solicitor) in this action (or matter).

Dated this day of 20 .

This form requires sealing by the Court and the signature of the Registrar.

Form 177

R.934

NOTICE OF CEASING
TO ACT AS SOLICITOR
(Title as in action)

To: The Registrar and the (plaintiff/defendant (name) or his solicitors)

Take notice that the following solicitor has ceased to act —

Name of solicitor ceasing to act:

Party for whom the solicitor has ceased to act:

Address for service of the party for whom the solicitor has ceased to act: (last known address of the plaintiff or defendant, if acting in person, or the principal or registered address of the plaintiff or defendant if a body corporate).

Issued by: (Solicitors for the).

Form 178

R.934

**SUMMONS FOR
WITHDRAWAL OF SOLICITOR**
(Title as in action)

To: (name of party whose solicitor is withdrawing)

Let all parties concerned attend before the Court on the date and time to be assigned for the hearing of an application for the following order(s):

1. (Name of solicitor withdrawing) ceases to be the solicitor acting for (name of party represented by that solicitor), the plaintiff (or defendant) (or as may be) in this action (or matter) upon compliance with the requirements of Rule 934(1) of the Family Justice Rules; and
2. Costs of this application be .

Grounds of application: (To set out grounds) or (As set out in the affidavit of [name]).

Issued by: (Solicitors for the).

This form requires sealing by the Court and the signature of the Registrar.

Form 179

R.934

ORDER FOR WITHDRAWAL OF SOLICITOR

(Title as in action)

, the solicitor for a plaintiff (or a defendant)
in this action (or matter) having duly served notice of the application on the
said .

Upon the application of and upon reading the affidavit
of filed the day of 20 and upon
hearing .

It is ordered that upon compliance with the requirements of Rule 934(1)
of the Family Justice Rules the said ceases to be the solicitor
acting for the said in this action (or matter).

Dated this day of 20 .

This form requires sealing by the Court and the signature of the Registrar.

Form 179A

R.936D(1)(a)

(Title as in action)

CONSENT TO WITHDRAWAL OF SOLICITOR

I, _____ (NRIC No. _____) of _____
(address), the abovenamed complainant/respondent*, consent to the
withdrawal of my solicitors _____ (name of solicitor) who will cease
to act for me in the above matter.

Signed by the abovenamed)

_____ (name))

On this (date))

Witnessed by)

_____ (name)

NRIC/Passport No.)

**delete where appropriate*

Form 180

R.938

**CERTIFICATE OF SERVICE
OF FOREIGN PROCESS**

I, _____, Registrar of the Family Justice Courts of the Republic of Singapore hereby certify that the documents annexed hereto are as follows:

- (1) The process received with a Request for Service; and
- (2) A copy of the evidence of service upon the person named in the process.

And I certify that such service so proved, and the proof thereof, are such as are required by the law and practice of the Family Justice Courts regulating the service of legal process in Singapore, and the proof thereof.

And I certify that the cost of effecting such service, as duly certified by me amounts to the sum of \$ _____.

Dated this _____ day of _____ 20____.

This form requires sealing by the Court and the signature of the Registrar.

Form 181

R.964

**DIRECTIONS TO ACCOUNTANT-
GENERAL**

(Title as in action)

(a) For Payments In.

Ledger Account (if the same as the cause state 'as above').

Pursuant to (insert the provision of law by which payment into Court is made), the Accountant-General is hereby directed to receive the sum of \$ (paid in on behalf of the defendant in satisfaction of the claim of the plaintiff or the funds and securities specified in the Schedule hereto or as may be).

Dated this day of 20 .

Registrar.

Note: Where funds are lodged in Court not being moneys paid in under Division 8 of Part 18 or as security for costs or in satisfaction of a judgment or order, but are to be lodged under an order comprising funds of various nature and directing lodgment by one or more persons, a single direction may be issued, and the particulars stated in a schedule to the direction, e.g.:

SCHEDULE

<i>Particulars of fund to be lodged</i>	<i>Persons to make the lodgment</i>	<i>Amount</i>	
		<i>Money</i>	<i>Securities</i>
		\$	\$

(b) For Payments Out.

Ledger Account (if the same as the cause state 'as above').

The Accountant-General is hereby directed to pay to (insert the name of person to be paid and whether as plaintiff or defendant or as solicitor to plaintiff or defendant) the sum of dollars (in words at length) \$, and any interest accrued thereon (if such is payable), lodged in Court in the above cause or matter on behalf of the defendant in satisfaction of the claim of the plaintiff (or as may be).

(c) Certificate of Ascertained Sums.

Ledger Account (if the same as the cause state 'as above').

I hereby certify that under Order dated the day of 20 the sums stated in the Schedule subjoined hereto amounting in the whole to \$ have been ascertained to be the sums payable under the said Order to the persons respectively named in respect of (state in what character paid).

Dated this day of 20 .

Registrar.

SCHEDULE

<i>Name</i>	<i>Address (if ascertained)</i>	<i>Amount to be paid</i>
		\$

Form 182

R.964

AUTHORITY TO COMPANY
TO REGISTER TRANSFER
(Title as in action)

To the Co. Ltd.,
Singapore.

Please register transfer of shares Nos. from to the
Accountant-General.

Dated this day of 20 .

Accountant-General.

CERTIFICATE OF TRANSFER

The abovementioned shares have this day been transferred as authorised.

Dated this day of 20 .

Secretary of the Co. Ltd.

Form 183

R.971

STATUTORY DECLARATION

(Title as in action)

Ledger Account (if the same as the cause state 'as above'). I (name and address of applicant) solemnly and sincerely declare that I am the (degree of relationship) and next or one of the next-of-kin of (name of deceased) and that I am entitled to take out Letters of Administration to his estate and to receive the sum of \$ directed to be paid to him by the Order dated the day of 20 . And I further declare that the total value of the assets of the deceased including the above sum does not exceed \$10,000 and I certify that the funeral and other testamentary expenses of the deceased have been paid. And I make this solemn declaration conscientiously believing the same to be true and by virtue of the provisions of the Oaths and Declarations Act (Cap. 211).

Applicant.

Declared before me this day of 20 .
(Name and designation of officer administering oath)

Form 184

R.978

ACCOUNT BOOK

RECEIPTS

Date	From whom received	No. of action or proceedings	To whose credit paid	No. of Receipt	Amount Received	Amount Banked	Date of Payment

PAYMENTS

Date	To whom paid	No. of action or proceedings	No. of cheque	Amount paid in cash	Amount paid by cheque	Page and Book No. of Account Book (Receipts)

Form 185

R.988

FAMILY JUSTICE COURTS INSTALMENT LEDGER ACCOUNT

Particulars of
Account:

Court Order No. _____

Summons No.

Date of Court Order ____ No. ____

Parties

Amount of instalment.

Date Due.

Amount of Judgment.

\$

\$

RECORD OF RECEIPTS AND PAYMENTS

Paid by J.D. on	Amount. \$ ¢.	Signature of J.D.	Total \$ ¢.	Received by †J.C. on	Amount. \$ ¢.	Signature of †J.C.	Total \$ ¢.
--------------------------	---------------------	----------------------	-------------------	-------------------------	---------------------	-----------------------	-------------------

Note: This card must be completed on each occasion a debtor pays in and on each occasion a creditor receives a payment.

J.D. = Judgment Debtor
†J.C. = Judgment Creditor

Form 186

R.989

**REQUEST FOR HEARING DATES/
FURTHER HEARING DATES**

(Title as in action)

To: The Registrar,

Request for the matter to be fixed for hearing/further hearing* before:
Judge/Registrar*

Number of hearing/further hearing* days requested: days

Number of hearing days previously expended: days

Hearing fees payable:

Issued by: (Solicitors for the).

(*Delete as appropriate).

Form 187

Para 8

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Suit)
No of 20)

Between

(NRIC No.)

... Plaintiff

And

(NRIC No.)

... Defendant

NOTICE OF ADDRESS FOR SERVICE ON CHILD REPRESENTATIVE

1. I have been appointed the Child Representative for your child(ren), namely (insert name of child) pursuant to the Order of Court dated ____.
2. Please serve on me all documents filed in Court relating to the custody care and control and access of the child(ren) by delivering a copy/copies of the same at the following address:

[insert address]

Name of Child Representative:

Law Firm/Employer Organisation:

Form 188

Para 8

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Suit)
No of 20)

Between

(NRIC No.)

... Plaintiff

And

(NRIC No.)

... Defendant

SUBMISSION BY CHILD REPRESENTATIVE

A. Date of Appointment of Child Representative:

B. Child(ren) who are subject of these proceedings:

C. Brief Facts of the Case/Chronology:

D. Documents served on the Child Representative by parties:

Description of Documents	Filed in Court on

E. Other relevant documents:

Description of Documents	Date of Document

F. Meetings/Phone Calls with the child:

	Date of meeting/Phone Call	Venue of meeting	Brief description as to what transpired at meeting	Any other person(s) present	Person who brought child to meeting	Length of meeting/phone call
1.						
2.						

G. Meetings/Interviews/Phone Calls with any other person(s):

	Date of meeting/Phone call	Name of Person	Relationship with the child	Venue of meeting	Brief description as to what transpired at interview/meeting	Length of meeting/phone call
1.						
2.						

H. Summary of Key Observations made by the Child Representative/Issues:

I. Applicable Case Law:

J. Analysis of the Issues/Basis of Proposals below

K. Proposed Orders/Recommendations:

[If CR is unable to make any proposal, to state reason(s) why]

Form 188A

R. 34C
Para 8A

**NOTICE OF ACCEPTANCE/ NON-ACCEPTANCE
BY PARENTING COORDINATOR**

To: The Registrar, Family Justice Courts

I, [state name], hereby notify the Court of the following:*

- ☐ I accept the appointment as Parenting Coordinator.
I am not aware of any conflict, circumstance, or reason that renders me unable to serve as the Parenting Coordinator in this matter and I will immediately inform the court and the parties if such arises.
- ☐ I do not accept the appointment as Parenting Coordinator.
Reason: [state reason]

Name:

Signature:

Date:

* Check one only.

Form 189

Para 9

**APPLICATION FOR THE APPOINTMENT OF EXPERT IN RESPECT OF CUSTODY
AND ACCESS ISSUES**

(Title as in action)

SUMMONS

1. Date and Time of Hearing before Judge in Chambers/Registrar* (*to be completed by the court*)

Date of Hearing:

Time of Hearing:

2. Orders Applied For

- (a) A report is to be prepared by [*to state name of expert*] (“the expert”) to assist the court in resolving the custody and/or access* issues in this matter (“the report”) in relation to the following child/children* [*to state names and dates of birth of the children*]:
- (b) The report is to be filed in court by [*to state date*], or such later time as the court may fix, upon application by any party.
- (c) The costs of preparation of the report are to be borne by [*to state party bearing costs of preparation of the report and/or other arrangements for payment*].
- (d) The issues to be addressed in the report, and the documents to be furnished to the expert, are to be as set out in the draft Letter of Instruction to Expert Witness annexed to this application (“the draft Letter”).
- (e) A letter in the form of the draft Letter shall be sent to the expert by [*to state name of party*] (“the party writing to the expert”) on or before [*to state date*], which letter shall be copied to the court and all other relevant parties [*please specify*] to these proceedings.

(f) To facilitate investigations by the expert in respect of the report:

1. Each party to these proceedings is to furnish to the party writing to the expert, upon request, any information which is necessary in order to enable that party to complete Schedule 1 of the draft Letter. If the contact particulars stated in Schedule 1 change before the report is filed in court, the parties are to update the expert on the same within 3 working days of the said change(s), if this is within their knowledge.
2. The parties are to co-operate with the expert and comply with any and all requests made by the expert in the course of his/her investigations for the purposes of the report, including, but not limited to:
 - (i) allowing the other party free access to the child/children (notwithstanding any current orders for access or interim access) for the purpose of an interview by the expert;
 - (ii) attending all appointments made with the expert punctually;
 - (iii) allowing the child/children to be interviewed alone (i.e. not in the presence of any party), or with any other person as the expert sees fit, and otherwise examined or assessed by the expert; and
 - (iv) providing any information requested by the expert, for example, on one's educational history, family members, living arrangements.

If any of the orders in paragraph (f) above are not complied with, the expert may, unless the court otherwise orders, proceed to prepare the report with details of any party's non-compliance with the said orders, for the court's information, consideration and/or directions.

3. Grounds of application

[Choose one of the following.]

- (a) The grounds of the application are set out in the affidavit(s)* filed in support of this application.
- (b) The grounds of the application are set out herein.

4. Party Filing this Summons (e.g. Plaintiff, Defendant, Co-Defendant, etc.)

5. Party/Parties* to be Served with this Summons (e.g. Plaintiff, Defendant, Co-Defendant, etc.)*

6. Consent*

I/We* hereby consent to this Summons.

Signature:

Name and NRIC No. of Party Consenting to this Summons/Name of the Solicitor of
Party Consenting to this Summons*:

Date:

This Summons is taken out by [*to state name of party taking out this summons*]

Signed:

Registrar:

Date:

* Delete where inapplicable

Form 190

Para 9

LETTER OF INSTRUCTION TO EXPERT WITNESS

Dear *[To state name of expert]*

**Re: *[Name of child/children]*
Divorce Suit No. *[to state number]*
Order for Custody/Access Evaluation Report**

Date by which report has been ordered to be filed in court: *[to state date]*

Summary of the proceedings and applications

1. The particulars of the persons concerned in the above proceedings are listed in Schedule 1 annexed to this letter, with the date(s) of birth of the child/children, and the contact numbers of all the relevant parties. The proceedings consist of:
 - ☐ Custody and/or access issues in the ancillary matters in the divorce proceedings *[to state the orders sought by each party]*
 - ☐ Applications for custody and/or access in the divorce proceedings *[to state the numbers of the relevant Summonses and the orders sought by each party]*

Issues before the Court

2. The issues before the court are:

[To state what issues the court has to decide, for example:

- ☐ *Whether the mother/father/third party [please specify] should have care and control of the child/children*
- ☐ *Whether the mother/father/third party [please specify] should have access/supervised access to the child/children]*

Orders Currently in Force

3. The following orders are currently in force:

[To set out the dates and details of all the court orders currently in force in respect of:

- ☐ *the custody and access issues;*
- ☐ *any family violence application;*
- ☐ *any maintenance issues.]*

Documents

4. We enclose with this letter:

- ☐ Schedule 1 (see paragraph 1 above);
- ☐ Schedule 2, which contains a list of the documents which you may wish to consider in preparing your report;
- ☐ A copy of the order giving leave for you to [interview] [examine] the child/children.

Your instructions

5. You have the leave of the court to interview the child/children and any relevant family member[s].

6. Please address the following issues in your report:

[Here set out the specific questions approved by the court or agreed with the other parties in an itemised list, for example:

- (1) *What is your assessment of the mother's relationship with the child and her ability to care for the child and meet his emotional needs during his childhood?*
- (2) *Would the child be at risk in the father's care during contact either on daytime visits or overnight stays?]*

7. If there are any other issues which, in your opinion, need to be addressed, please state them and explain why it is necessary for the court to consider these issues.

Contact persons

8. Please contact the parties directly to arrange for interviews. Please keep a careful record of all pertinent discussions with all the parties. The contact particulars of all the relevant parties are in Schedule 1.
9. If at any time you anticipate that you will not be able to file your report by the deadline stipulated, please inform us promptly so that we may inform the other parties and the court if appropriate.

Factual issues

10. You should express your opinion regarding your findings on the facts of the case, but you must not seek to resolve disputed facts as this is, of course, to be determined by the judge at the final hearing. Where appropriate, it will be of assistance if you are able to express your opinion on the basis of alternative findings regarding the factual dispute[s].

Your report

11. The report will be disclosed to the court and to all the other parties. Once your report has been prepared, please send a copy to:
 - ☐ The Plaintiff/Plaintiff's solicitors* at [to state address]*
 - ☐ The Defendant/Defendant's solicitors* at [to state address]*

- ☐ The court at The Family Justice Courts, No. 3 Havelock Square, Singapore 059725*
- ☐ The other party/parties [*please specify*]

Please state the case number and name of the case, i.e. [*to state the case number and name of the case*] in the title on the front page of your report.

Fees

12. The fees for your report will be borne by [*to state which party will be bearing the fees for the report and any other arrangements for payment*].

Yours etc

*Delete where inapplicable

SCHEDULE 1—Name and Contact Particulars of Relevant Parties**CASE NO.: Divorce Suit * No. [to state number]****NAMES AND CURRENT CONTACT PARTICULARS OF THE PARTIES****The Plaintiff**

	Name	Identity Card No.	Current address and contact no. during office hours*	Relationship to the child
Plaintiff			Tel:	

The Defendant

	Name	Identity Card No.	Current address and contact no. during office hours*	Relationship to the child
Defendant			Tel:	

The Child/Children for whom the report has been ordered (to be completed by parent having care and control of the child)

Name of the Child(ren)	Birth Cert. No.	Date of birth	Gender	Current address and contact no. during office hours*
1				Tel:
2				Tel:
3				Tel:

Other Relevant Persons

Name	Current address and contact no. during office hours*	Relationship to the child
	Tel:	
	Tel:	
	Tel:	

* Parties must inform the expert if the contact address or telephone number is changed during investigation.

SCHEDULE 2—List of Documents

CASE NO.: Divorce Suit No [to state number]

S/No.	Document	Party who had furnished the document (i.e. Plaintiff, Defendant or other party)	Date of document

Form 190A

Para 10A

Case No:

Request for Assistance from the Immigration and Checkpoints Authority (“ICA”)

I, [Enter name of requestor here], [Enter NRIC/Passport/Other identification document no. here], am a ☐ Plaintiff ☐ Defendant in the above matter in which there is, in force, an Order of Court from the Family Justice Courts dated [Enter date here] restraining [details of persons restrained by Court order, e.g. the Plaintiff, the Defendant; servants/agents of the Plaintiff/Defendant] from taking the child(ren) out of Singapore without an Order of Court or the consent of ☐ one party ☐ both parties to the matter. I hereby request ICA’s assistance to stop the child(ren) from being taken out of Singapore.

2. The relevant information is set out below:

Details of Parties

Name of Plaintiff:	Enter name here
☐ NRIC ☐ FIN No.:	Enter NRIC/FIN no. here
Passport No.:	Enter passport no. here
Address:	Enter address here
E-mail address:	Enter e-mail address here
Mobile number:	Enter number here
Contact details of solicitors (if any):	Enter contact details here

Name of Defendant:	Enter name here
☐ NRIC ☐ FIN No.:	Enter NRIC/FIN no. here
Passport No.:	Enter passport no. here
Address:	Enter address here
E-mail address:	Enter e-mail address here
Mobile number:	Enter number here
Contact details of solicitors (if any):	Enter contact details here

Details of Child(ren)¹

¹ Use a separate table for each child.

Full name of child involved:	Enter name here
☐ BC ☐ NRIC ☐ FIN No.:	Enter BC/NRIC/FIN no. here
Passport No.:	Enter passport no. here

Full name of child involved:	Enter name here
☐ BC ☐ NRIC ☐ FIN No.:	Enter BC/NRIC/FIN no. here
Passport No.:	Enter passport no. here

3. I hereby enclose:

- (a) copies of the NRIC/Passport of both parties, where available;
- (b) copy/copies of the birth certificate/NRIC of the child(ren), where available;
- (c) copy/copies of the passport of the child(ren), where available.

4. If there are any changes to the information and/or the documents set out in paragraphs 2 and 3, I shall inform the ICA immediately and provide a copy of each relevant document (where applicable).

5. If the ICA sustains any loss (including any damages and costs that the ICA incurs) as a result of or due to:

- (a) the ICA acting on the Court order after I notify the ICA of the Court order;
- (b) the ICA not acting on the Court order due to my failure to give timely notification to the ICA of the Court order; and/or
- (c) my breach of the terms of the Court order,

I shall indemnify the ICA, and keep the ICA indemnified at all times for that loss.

6. I understand that

- (a) due to practical limitations, the ICA may only be able to act on the Court order 1 working day after notification;
- (b) if I notify the ICA outside of the ICA's working hours, the ICA may only be able to act on the Court order after 2 working days; and
- (c) I can consult a solicitor before giving this form to the ICA.

Signature of requestor ☐ Plaintiff ☐ Defendant

Date: Enter date here

Form 190B

Para 10A

Letter of Consent for International Travel of Child(ren)**Case No:** Enter case no. here

I, [Enter full name of consenting party here] ([Enter NRIC/FIN/Passport No. here]), do state that under a Court order, I am the party having ☐ sole ☐ joint custody of the following child(ren), whom the order prohibits from leaving Singapore without my consent:

*[Note: Please insert particulars of child(ren) **travelling**. Insert table for more than 2 children.]*

1st Child

Full name of child:	Enter name here
Gender:	☐ Male ☐ Female
Date of birth:	Enter date here
Nationality:	Enter nationality here
Passport No.:	Enter passport no. here
☐ BC ☐ NRIC ☐ FIN (if applicable) No.:	Enter BC/NRIC/FIN no. here

2nd Child

Full name of child:	Enter name here
Gender:	☐ Male ☐ Female
Date of birth:	Enter date here
Nationality:	Enter nationality here
Passport No.:	Enter passport no. here
☐ BC ☐ NRIC ☐ FIN (if applicable) No.:	Enter BC/NRIC/FIN no. here

2. I confirm that the ICA was provided with a copy of the Court order dated [Enter date here] and a signed Form 190A on [Enter date here].
3. I hereby consent for the above child(ren) to be taken out of Singapore by:

Full name of restricted party / restricted party's servant or agent:	Enter name here
Gender:	☐ Male ☐ Female
Date of birth:	Enter date here
Nationality:	Enter nationality here

Passport No.:	Enter passport no. here
☐ NRIC ☐ FIN No. (if applicable):	Enter NRIC/FIN no. here
Local Handphone No.	Enter number here

4. This consent is
☐ permanent.
☐ is for any time during the period [Enter date here] to [Enter date here] (both dates inclusive).
5. If there are any questions regarding this consent, I can be contacted at [Enter handphone no. of consenting party here].
6. I declare that the particulars and information provided are true and correct. I understand that I may be liable for prosecution for any false declarations made herein.

Signature
Name: Enter name here
Date: Enter date here

Form 191

Para 11, 12

SUMMARY FOR MEDIATION

_____ (Plaintiff) vs _____ (Defendant)
(Title as in action)

Party Filing this Summary: Plaintiff / Defendant*

A. CHILDREN ISSUES:

No of Children: _____

Age of Children: _____

(1) Custody

State what this party wants regarding custody: Sole / Joint*

(2) Care and Control

State which party to be awarded care and control: Plaintiff / Defendant*

(3) Access

(a) State what this party wants regarding access if:

(i) he / she* is the parent with care and control

(ii) he/she* is not the parent with care and control

(b) Proposed handover venue and person to hand over the children:

B. DIVISION OF MATRIMONIAL ASSETS:

(1) Matrimonial Home

Address of matrimonial home: _____

Current value: _____

(Estimated Value/Valuation Report Value)

Outstanding loan amount: _____

CPF - Plaintiff _____ (Principal) _____ (Interest) = _____ (Total)

CPF - Defendant _____ (Principal) _____ (Interest) = _____ (Total)

- (2) **Direct financial contributions towards purchase, mortgage, renovations, property tax, conservancy, maintenance, repairs:**

- (3) **Indirect contributions:**

State other payments made (e.g. towards household bills, groceries, children's expenses): _____

- (4) **Length of marriage:** _____ years _____ months

- (5) **Proposal for Division:** _____

- (6) **Other Assets**

State other assets and nature of claim: _____

State what percentage or monetary amount or claim this party wants as regards above assets:

C. MAINTENANCE

State occupation: _____

State income (nett): _____

- (1) **Maintenance of children**

State expenses and amount claimed/proposed: _____

- (2) **Maintenance of wife**

State expenses and amount claimed/proposed: _____

- (3) **Maintenance of incapacitated husband**

State expenses and amount claimed/proposed: _____

D. OTHER ISSUES (IF ANY)

Family Justice Courts

Form 192

Para 14

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Suit)
No. of 20)

Between

(NRIC NO. _____)

...Plaintiff

And

(NRIC No. _____)

...Defendant

CONSENT TO GRANT JUDGMENT ON THREE YEARS' SEPARATION

I, _____ (NRIC No. _____) of _____ (*address*) am the Defendant and confirm that I have lived separate and apart from the Plaintiff for a continuous period of at least 3 years immediately preceding the filing of this Writ, i.e. since _____ (date) and I consent to an Interim Judgment being granted.

Signed by the abovenamed _____)
 (name))
 On this (date) _____)

Before me,

Commissioner for Oaths

Form 193

Para 15

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Suit)
No. of 20)

Between

(NRIC NO. _____)

...Plaintiff

And

(NRIC No. _____)

...Defendant

DEFENDANT'S CONSENT TO SIMPLIFIED DIVORCE PROCEEDINGS

I, _____ (NRIC No. _____) of _____ (address) am

the Defendant and confirm that I agree to the following:-

- a) the Plaintiff filing a Writ for divorce on the ground as stated in the draft Interim Judgment duly signed by me within ____ (to state period) of the date of this Consent;
- b) the divorce being granted by the Court based on the ground as stated in draft Interim Judgment duly signed by me; and
- c) dispensation of service of the Writ for Divorce and other commencement documents.

Signed by the abovenamed _____)
 _____ (*name*))
 On this (*date*) _____)

Before me,

Commissioner for Oaths

Form 194

Para 16

**REQUEST FOR CHECKING ELIGIBILITY OF PROPOSED
PURCHASER(S)/TRANSFEREE(S) UNDER OPTIONS 4 & 5 OF THE AGREED
MATRIMONIAL PROPERTY PLAN**

Important: To be completed by the proposed purchaser/transferee.

No space is to be left blank. The word "Nil" or "NA" should be filled where appropriate.

I ADDRESS OF FLAT: _____

☐

Option 4 of the Agreed Matrimonial Property Plan is selected: the Plaintiff's share in the flat will be sold/transferred* to the Defendant and/or others.

☐

Option 5 of the Agreed Matrimonial Property Plan is selected: the Defendant's/ share in the flat will be sold/transferred* to the Plaintiff and/or others.

II PARTICULARS OF PROPOSED PURCHASER(S)/TRANSFEREE(S)

	Name	NRIC/ FIN	Relationship	Marital Status	Date of Birth	Age (Years)	Citizen- ship	Occupation	Gross Monthly Income	Contact No
1			Self							
2										
3										
4										

III PARTICULARS OF PROPOSED OCCUPIER(S) IN THE FLAT

	Name	NRIC/ FIN	Relationship	Marital Status	Date of Birth	Age (Years)	Citizen- ship	Occupation	Gross Monthly Income	Contact No
5										
6										
7										
8										

IV OTHER INFORMATION

a Do you have the sole custody of the child, or if joint custody is agreed upon, the care and control of the child?

Yes

☐

No

☐

b Do you or any person listed above own or have any share or interest in any HDB flat and/or private property# (whether in Singapore or overseas)? (If so state address, property type, share and value):

☐
☐

c Have you or any person listed above disposed of any private property# (whether in Singapore or overseas) within the last 30 months? (If so state address, property type, share and value)

☐
☐

d Have you or any person listed above previously sold two or more HDB flats in the open market?

☐
☐

Includes HUDC and Executive Condominiums
* *Delete where inapplicable.*

Signature of Plaintiff/Defendant *

Form 195

[deleted]

Form 196

[deleted]

Form 197

Para 16

STANDARD QUERY TO THE CENTRAL PROVIDENT FUND BOARD

(Applicable for CPF Members aged 55 and above only)

Name: _____

Address : _____

*(Please specify the name and address of the CPF member or his/her solicitors.
The reply from the CPF Board will be sent to this address.)*

PART A *(To be completed by CPF Member or his/her solicitors.)*

Name of CPF member:	
CPF Account No:	
Name of CPF member's spouse:	
CPF Account No. of CPF member's spouse:	
Date of Birth of CPF member:	
Age of CPF member:	
The HDB matrimonial asset ("the flat")	☐ <u>(state address)</u> ☐ The CPF member has an agreement for lease with the HDB and has not taken possession of the flat.
Name and address of CPF member's solicitors	

Date

Name and Signature of CPF member/solicitors

PART B *(To be completed by the CPF Board)*

CPF Account Number: _____

Query 1 Were CPF funds used for the purchase of the flat or for financing the purchase of the flat or for the payment of approved upgrading works carried out by HDB? If yes, what is the principal sum utilised and accrued interest on the principal sum utilised?

Answer: No.

☐

Yes, as at (*specify date*): _____

☐

Principal sum utilised

Amount
\$ _____

Accrued interest on the principal sum utilised

\$ _____

Query 2 Did the CPF member pledge the flat to secure withdrawal of any monies from his/her CPF Retirement Account? If yes, what is the amount pledged?

Answer: No.

☐

Yes, as at (*specify date*): _____

☐

Principal amount pledged

Amount
\$ _____

[Applicable for CPF members who turned age 55 before 1 July 1995]:

Accrued interest on the principal amount pledged:

\$ _____

Query 3 Upon transfer, sale or otherwise disposal of the flat, is there any portion of the refunds that has to be transferred from the CPF member's Ordinary and/or Special Account(s) to his/her Retirement Account in order to meet the required Retirement Sum? If yes, what is the amount required to be set aside or topped up in the CPF member's Retirement Account to meet the Retirement Sum?

Answer: No.

☐

Yes, as at (*specify date*): _____

☐

Amount required to be transferred to the CPF
member's Retirement Account

Amount
\$ _____

Query 4 Certain CPF members (i.e. those who have received certain housing grants designated by HDB) will have a portion of the refunds credited to their Retirement Account and/or Special Account and Medisave Account directly ("Grant Members")

Is the CPF member a Grant Member? If yes, what is the amount that the CPF member is required to set aside or top-up in his/her Retirement Account and Medisave Account?

Answer: No.

☐

Yes, as at (*specify date*): _____

☐

Amount required to be set aside/topped up in the
CPF member's Retirement Account (up to the
Retirement Sum applicable to the CPF member,
and any excess amount will be credited to the CPF
member's Special Account)

Amount
\$ _____

Amount required to be set aside/topped up in the
CPF member's Medisave Account

\$ _____

⊗Notes:

1. Generally, when a CPF member transfers, sells or otherwise disposes of his/her flat bought using CPF savings, he/she is required to refund the principal sum utilised and the accrued interest on the principal sum utilised.
2. If the CPF member has pledged the flat to withdraw his/her CPF Retirement Account savings in cash, he/she will also need to refund the pledged amount withdrawn and interest if applicable.
3. The refunds will be first used to top up the CPF member's Retirement Account up to the Retirement Sum he/she needs to set aside. Any remaining balance will then be paid to the CPF member.
4. Members who received certain types of housing grants may need to refund part of their housing refund into their Retirement Accounts and/or Special Accounts and Medisave Accounts. The remaining part of the housing refund will be credited into their Ordinary and/or Special Accounts in proportion to the amount withdrawn from those accounts.
5. On the refund requirements upon the sale of HDB flats, please refer to sections 15 and 21B of the Central Provident Fund Act (Cap. 36), the Central Provident Fund (New Retirement Sum Scheme) Regulations (Rg. 31), Central Provident Fund (Revised Retirement Sum Scheme) Regulations (Rg. 2), Central Provident Fund (Retirement Sum Scheme) Regulations (Rg. 16) and the relevant regulations of the Central Provident Fund (Approved Housing Schemes) Regulations (Rg. 13).
6. Please obtain fresh statements from the CPF Board on the amount to be refunded into the CPF member's CPF account when the date of sale/transfer/assignment/otherwise disposal of the flat has been finally determined. A CPF member may obtain his/her CPF statements by logging on at www.cpf.gov.sg using his/her SingPass. Please note the information is correct as at the date it is viewed.

Other comments

Name and designation of CPF Board officer

Date

Signature of CPF Board officer

Form 198

Para 17

FIRST STATUS CONFERENCE NOTICE TO PLAINTIFF

Date:

To: Plaintiff's Solicitors

STATUS OF [*case number*]

1. You are directed to set down the above case for hearing by [*date*] if pleadings are closed² by then.
2. If pleadings are not likely to be closed by [*date*], you must inform the Court of the status of the case within 7 days of this Registrar's Notice. Please use the standard status form as prescribed in Form 199 of the Family Justice Courts Practice Directions.

Registrar

cc Defendant /Defendant's counsel

² i.e. when all the written statements regarding the parties' claims/defences have been filed.

Form 199

Para 17

**INFORMATION FROM PLAINTIFF TO FAMILY JUSTICE COURTS
ON STATUS OF WRIT**

To: Registrar
Family Justice Courts

INFORMATION ON STATUS OF WRIT	
Case Number:	D No.
Date:	
The status of the case is as follows: ☐ We are attempting personal service of the papers on _____ (name). We will complete our service attempts by _____ (date). ☐ We will file our application for substituted service/dispensation of service by _____ (date). ☐ Our application for substituted service/dispensation of service has been fixed for hearing on _____ (date). ☐ We are negotiating a settlement. ☐ We seek a mediation / counselling / joint conference* date. We have exchanged settlement proposals and the parties agree to attend mediation / counselling / joint conference *. ☐ The parties are attempting reconciliation. ☐ Others (please specify details): _____	

Signature of solicitor

Name of Solicitor for Plaintiff:

Name of Law Firm:

cc Defendant / Defendant's solicitors

** Delete where inapplicable*

Form 200

Para 17

**SECOND STATUS CONFERENCE NOTICE TO PLAINTIFF
(WHERE THERE IS NO REPLY FROM PLAINTIFF)**

Date:

To: Plaintiff's Solicitors

STATUS OF [CASE NUMBER]

1. We refer to the Registrar's Notice dated _____ where you were directed to set down the above case for hearing by *[date]*.
2. We note that the case has not been set down for hearing and you have also not replied to us in the form as directed by the Registrar's Notice.
3. You are directed to set down the said case for hearing by *[date]*, failing which you are required to attend a Status Conference on *[date, time, chamber]*.

Registrar

cc Defendant / Defendant's counsel

Form 201

Para 18, 19

**AFFIDAVIT OF EVIDENCE IN CHIEF
(FOR PLAINTIFF PROCEEDING ON THE STATEMENT OF CLAIM IN
UNCONTESTED MATRIMONIAL PROCEEDINGS)**

(Title as in action)

I, [state *name, address and description of deponent*], make oath/affirm* and say as follows:

1. I am the Plaintiff in this action.
2. Where the facts set out in this affidavit are within my personal knowledge, they are true. Where they are not within my personal knowledge, they are true to the best of my knowledge, information and belief.
3. I crave leave of this Court to refer to the Statement of Claim and Statement of Particulars filed in this action.
4. I now confirm that the facts pleaded in the Statement of Claim and Statement of Particulars are true and correct.

[Sworn (or affirmed) as in Form 132 in Appendix A of the Practice Directions.]

Form 202

Para 18, 19

**AFFIDAVIT OF EVIDENCE IN CHIEF
(FOR DEFENDANT PROCEEDING ON THE COUNTERCLAIM IN
UNCONTESTED MATRIMONIAL PROCEEDINGS)**

(Title as in action)

I, [state *name, address and description of deponent*], make oath/affirm* and say as follows:

1. I am the Defendant in this action.
2. Where the facts set out in this affidavit are within my personal knowledge, they are true. Where they are not within my personal knowledge, they are true to the best of my knowledge, information and belief.
3. I crave leave of this Court to refer to the Counterclaim filed in this action.
4. I now confirm that the facts pleaded in the Counterclaim are true and correct.
5. Annexed hereto as “A” is a copy of the Marriage Certificate. (*only applicable if proceeding on the Counterclaim solely*)

[Sworn (or affirmed) as in Form 132 in Appendix A of the Practice Directions.]

Para 18

**REQUEST FOR DISPENSATION OF PARTIES' ATTENDANCE AT THE
UNCONTESTED DIVORCE HEARING**

Date

To: Registrar
Family Justice Courts, Singapore

DIVORCE SUIT NO. _____ OF _____
TITLE AS IN ACTION

**REQUEST FOR DISPENSATION OF PARTIES' ATTENDANCE AT THE
UNCONTESTED DIVORCE HEARING**

- 1 a) We act for the Plaintiff in the above proceedings. M/s _____ acts for the Defendant or Defendant acts in person*. We write to confirm that the above divorce will proceed on an uncontested basis as *(please tick all the applicable paragraphs)*
- (i) ☐ the Defendant has filed an Memorandum of Appearance indicating the Defendant is not contesting the divorce; or
 - (ii) ☐ an Order for Dispensation of Service on the Defendant was granted on _____; or
 - (iii) ☐ Acknowledgment of Service/Affidavit of Service* has been filed on _____ and Defendant did not enter appearance; or
 - (iv) ☐ Defendant had failed to file the Defence within the timelines stated in the Family Justice Rules; or
 - (v) ☐ both parties have agreed that the divorce will proceed on an uncontested basis on the Claim/and Counterclaim*. The Defence & Counterclaim/Reply and Defence to Counterclaim/Reply to Defence to Counterclaim* has/have been withdrawn on *(insert date)*.

(to use the following paragraph if proceeding on the Counterclaim only)

- b) We act for the Defendant in the above proceedings. M/s _____ acts for the Plaintiff or Plaintiff acts in person*. We write to confirm that the above divorce shall proceed on an uncontested basis as:-
- (i) ☐ both parties have agreed that the divorce will proceed on an uncontested basis on the Counterclaim. The Statement of Particulars/Defence/Reply and Defence to Counterclaim/Reply to Defence to Counterclaim* has/have been withdrawn on *(insert date)*.; or
 - (ii) ☐ the Plaintiff has failed to file the Defence to Counterclaim within the timelines stated in the Family Justice Rules

2 We confirm as follows:

(a) Facts relied on for Divorce:

- (i) ☐ adultery by Plaintiff and/or Defendant*
- (ii) ☐ unreasonable behaviour by Plaintiff and/or Defendant*
- (iii) ☐ 2 years' desertion by Plaintiff/Defendant*
- (iv) ☐ 3 years' separation with consent
- (v) ☐ 4 years' separation
- (vi) ☐ mutual agreement.

Ancillary Matters

- (b) (i) ☐ There are no ancillary matters to be adjourned to be heard in Chambers.
- (ii) ☐ All of the ancillary matters have been agreed and the Draft Consent Order has been filed on _____ (date).
- (iii) ☐ Some of the ancillary matters have been agreed and the Draft Consent Order has been filed on _____ (date) and Prayers () to () of the Statement of Claim/Counterclaim are to be adjourned to be heard in Chambers. We request for:-
 - _____ weeks to file and exchange the Affidavit of Assets and Means and a Case Conference to be fixed; or
 - A mediation session as both parties have agreed to attend.
- (iv) ☐ The ancillary matters have not been agreed and Prayers () to () of the Statement of Claim/Counterclaim are to be adjourned to be heard in Chambers. We request for:-
 - _____ weeks to file and exchange the Affidavit of Assets and Means and a Case Conference to be fixed; or
 - A mediation session as both parties have agreed to attend.

3 We confirm that parties will not be making any further applications (e.g. abridgment of time, cost, withdrawal or amendment of pleadings etc.).

4 Parties understand that the Court may not make the required orders as requested if any of the papers are not in order, in which case a further hearing (in open court or in chambers with counsels present) will be scheduled.

Signature

Name of Solicitor for the Plaintiff/Defendant*

Name of Law Firm

cc Solicitor for the Defendant/Plaintiff or Defendant-in-person/Plaintiff-in-person*

*Delete where inapplicable

Form 204

Para 18, 19

**REQUEST FOR UNCONTESTED DIVORCE HEARING
IN OPEN COURT**

Date

To: Registrar
Family Justice Courts, Singapore

DIVORCE SUIT NO. _____ OF _____
TITLE AS IN ACTION

**REQUEST FOR SETTING DOWN ACTION FOR TRIAL ON AN UNCONTESTED
BASIS (FOR HEARING IN OPEN COURT)**

1. We refer to the above divorce which will be heard on an uncontested basis.
2. Parties are proceeding with a nullity hearing in Open Court*/wish to apply for an exemption pursuant to Paragraph 18 of the Family Justice Courts Practice Directions.
 - (a) The special grounds in support of our client's application for exemption are as follows:-
 - (b) The supporting documents (if any) are as follows and attached herein:-
 - (c) Please approve the aforesaid application and fix the matter for Hearing in Open Court.

Signature
Name of Solicitor for the Plaintiff/Defendant*
Name of Law Firm

cc Solicitor for the Defendant/Plaintiff or Defendant-in-person/Plaintiff-in-person*

*Delete where inapplicable

For official use: Approved/Not approved
Signed:
Date:

Form 205

Para 20, 90

INDEX TO AGREED BUNDLE OF DOCUMENTS

No. (To be numbered serially)	Description	Original/ Copy	Scope of agreement	Page

Para 21

AFFIDAVIT OF ASSETS AND MEANS

(Title as in action)

A. Party Swearing or Affirming this Affidavit:

Name:

Age:

Address:

Contact Number:

I am the Plaintiff/Defendant* in the above matter. I *[make oath and say/affirm that*]* the contents of this Affidavit of Assets and Means are true and correct to the best of my knowledge, information and belief. All the information stated in this Affidavit of Assets and Means is accurate as at *[to state date]*. I have made full and frank disclosure of my assets and means in this Affidavit of Assets and Means, to the best of my knowledge, information and belief, and have no other assets and means aside from what has been disclosed in this Affidavit.

Summary of Relevant Information on Ancillary Matters**1. Minor Child(ren) – Please list down the names and ages of all your minor child(ren)**

Name of Child(ren)	Age of Child(ren)

2. Income and Occupation – Please state your occupation and average monthly income

Occupation	
Average monthly income	

3. List of Assets – Please list all your assets and their value (in Singapore dollars). If you do not know the value, please provide an estimate of the value.

Assets	Value (in Singapore dollars)
	Total:

4. List of Liabilities – Please list all your liabilities and the amount (in Singapore dollars). If you do not know the amount, please provide an estimate of the amount.

Liabilities	Amount (in Singapore dollars)
	Total:

B. Financial Issues

I. Assets and Means

1. I am/am not* an undischarged bankrupt.

[If you are an undischarged bankrupt, state the date of the bankruptcy order, and the bankruptcy number.]

Work Particulars

2. My occupation is:

3. I am an employee*.

[State the following information in respect of each employer.]

- (a) The name and address of my employer is:

- (b) My designation is:

- (c) My gross monthly income (including salary, allowances, commissions and bonuses) is:

- (d) My take-home monthly income (including salary, allowances, commissions and bonuses) is:

4. I am self-employed*.

[State the following information in respect of each of your businesses.]

- (a) The name and address of my business is:

- (b) It is a sole proprietorship/partnership*.

- (c) Nature of business:

- (d) My monthly income is:

- (e) The estimated value of my business is:

5. I am unemployed*.

- (a) Before becoming unemployed, I was an employee.
- (i) My last drawn gross monthly income (including salary, allowances, commissions, benefits and bonuses) on [*to state date*] was:
- (ii) The name and address of my previous employer is:
- (b) Before becoming unemployed, I was self-employed*.
- (i) The name and address of my business was:
- (ii) It was a sole proprietorship/partnership*.
- (iii) Nature of business:
- (iv) Status of business [*e.g. whether business terminated at Accounting and Corporate Regulatory Authority (ACRA), and if so, to state date of termination*]:
- (v) My monthly income on [*to state date*] was:

6. Aside from my income from my employment/business*, I have the following/I do not have any additional* sources of income³:

S/No.	Source of Income	Amount (S\$)

Particulars of my immovable properties situated in Singapore or overseas.

7. I own the following/do not own any* immovable properties:

[State in relation to each property]

- (a) Address of property owned:
- (b) Whether title to the land is registered or unregistered, and if registered, the Certificate of Title (CT/SSCT/SCT*) number
- (c) Names of joint-owners (if any) and the manner in which the property is held, i.e. whether as joint tenants or tenants in common:
- (d) Names of mortgagee/chargee (if any), and amounts outstanding to each mortgagee/chargee

³ This would include rental income from any immovable property owned by you.

- (e) Value/Estimated value* of property as at [*to state date*]:
- (f) Amount of monthly mortgage payment and how payment is made (i.e. CPF or cash):

Particulars of motor vehicles in Singapore or overseas*

8. I own a/do not own any* motor vehicle/more than one motor vehicle. The particulars of the motor vehicle(s) are as follows:

[State in relation to each motor vehicle.]

- (a) The registration number and make of the motor vehicle is:
 - (b) The motor vehicle(s) is/are* on hire purchase.
 - (c) The name of the hire purchase company is:
 - (d) The estimated value of the motor vehicle as at [*to state date*] is:
 - (e) The amount outstanding on the hire purchase agreement is:
9. The motor vehicle is no longer in my possession*. The reason is that:

Particulars of my insurance policies in Singapore or overseas*

10. I have the following/do not have any* insurance policies:

[State in relation to each insurance policy.]

- (a) Name of insurer:
- (b) Type of policy:
- (c) Policy Number:
- (d) Amount insured:
- (e) The beneficiary or beneficiaries under the insurance policy is/are*:
- (f) Surrender value (if any) as at [*to state date*]:

Particulars of my shares, unit trusts, etc. in Singapore or overseas*:

11. I own/do not own* shares, warrants, bonds, stock options, and/or* unit trusts.

- (a) Shares (including shares purchased with Central Provident Fund monies), warrants, bonds, stock options, etc.

The name(s) of the company/companies* in which I hold shares, warrants, bonds or stock options, and the amount of shares, warrants, bonds or stock options which I hold are as follows:

S/No.	Company Name	No. of Shares, warrants, bonds, stock options, etc.	Estimated value as at: <i>[to state date]</i>

(b) Unit Trusts

The name of the unit trusts, the financial institution managing them and the number of units I hold are as follows:

S/No.	Unit Trust	Financial Institution	No. of Units	Estimated value as at: <i>[to state date]</i>

Particulars of my bank accounts in Singapore or overseas*

12. I have the following/do not have any* bank accounts (held solely and/or jointly) and/or* safe deposit boxes:

S/No.	Bank Name and Account Number	Account Type ²	Balance as at <i>[to state date]</i>	Joint Account Holder's Name (if any)

² i.e. Savings, Current, Fixed Deposit, Overdraft, Safe Deposit Box, etc.

Particulars of my Central Provident Fund (“CPF”) monies

13. I have the following/do not have any* amounts in my CPF account as at *[to state date]*:
- (a) Ordinary account:
 - (b) Medisave account:
 - (c) Special account:
14. The details of the amount utilised from my CPF account towards the purchase of immovable property are as follows:
- (a) Address of immovable property:
 - (b) Amount withdrawn as at *[to state date]*:
 - (i) Principal:
 - (ii) Interest:

Other Assets

15. I own the following/do not own any* other assets:
- [(a) If you own any other assets, savings or investments not listed thus far (e.g. retirement/superannuation/gratuity benefits that you did or are likely to receive, antiques, collectibles, jewellery, paintings), please state the same and the estimated value.*
 - [(b) If you are a member (whether in Singapore or overseas) of any golf, social or recreational clubs of value, please state the same and the estimated value.]*

My Monthly Expenses

16. I have the following personal expenses each month (for example):
- (a) Food:
 - (b) Transport:
 - (c) Utilities (water, gas and electricity):
 - (d) Telephone/Internet/mobile phone/pager charges:
 - (e) Rent:
 - (f) Others (please specify):
17. My monthly expenses for the children who are dependent on me are as follows:
- [State in relation to each child.]*
- (a) Name of Child:
 - (b) Age of Child:
 - (c) Food:

- (d) School Fees:
- (e) Transport:
- (f) Others (please specify):

18. I have the following persons who are financially dependent on me (excluding my children):

[State in relation to each dependent.]

- (a) Name of dependent:
- (b) Age:
- (c) Relationship:
- (d) Amount set aside each month for dependent:
- (e) Reason for dependency:
- (f) Names of other persons supporting my dependents:

Particulars of my Creditors (i.e. people whom I owe money to)

19. My creditors³ are as follows/I do not have any creditors*:

[State in relation to each creditor.]

- (a) Name of creditor:
- (b) Amount owed as at *[to state date]*:

20. Legal proceedings have been commenced against me by the following creditors:

[State in relation to each creditor.]

- (a) Name of creditor:
- (b) Suit No.:
- (c) Status of action:

II. Contributions to the Matrimonial Assets

Direct financial contributions

21. I have made the following/I have not made any* direct financial contributions towards the acquisition or improvement of the matrimonial asset(s):

[State in relation to each matrimonial asset.]

Indirect contributions

³ Your creditors include government bodies such as the Inland Revenue Authority of Singapore (IRAS), the Central Provident Fund Board (CPF), the Housing Development Board (HDB), etc.

22. I have made the following/I have not made any* indirect financial and non-financial contributions towards the family during the course of the marriage:

[State the nature of the indirect financial and non-financial contributions made.]

III. Proposal Regarding the Division of Matrimonial Assets and Maintenance

Division of Housing Development Board Flat (if applicable) (only to be filled in if you have not filed a Proposed Property Plan, or if you would like to change your proposal from what you have originally set out in your Proposed Property Plan.)

23. My proposal for the division of the matrimonial HDB flat is as follows:

- ☐ Option 1: The flat will be surrendered to the HDB.
- ☐ Option 2: The Agreement for Lease with the HDB will be terminated.
- ☐ Option 3: The flat will be sold in the open market.
- ☐ Option 4: The other party's share in the flat will be sold/transferred* to:
 - Myself
 - Myself and *[state name and relationship with yourself]*:
 - A third party *[state name and relationship with yourself/the other party]*:
- ☐ Option 5: My share in the flat will be sold/transferred* to:
 - The other party
 - The other party and *[state name and relationship with the other party]*:
 - A third party *[state name and relationship with the other party/yourself]*:
- ☐ Option 6: Others (please state brief details)

Particulars of my proposal are attached to this Affidavit of Means.

[To fill in Option 1, 2, 3, 4, 5 and/or 6 as set out in Form 13 of Appendix A of Practice Directions, and to remove the relevant pages and attach the same to this Affidavit of Means.]*

Division of the matrimonial assets

24. My proposal on the division of the matrimonial assets is as follows/There are no matrimonial assets:

[State proposal on the division of the matrimonial assets, giving reasons, if any.]

Proposal on Maintenance

25. My proposal on maintenance is as follows:

[State proposal on maintenance for wife/incapacitated husband and/or children, giving reasons, if any.]

IV. Any Other Issues/Information

26. *[State any further issues and information.]*

C. Children's Issues

27. [State issues and information on custody, care and control of and access to the child/children.]

D. Supporting Documents

28. I am exhibiting the following documents in support of my affidavit⁴:

[Circle the relevant items and state the relevant exhibit number for each item.]

- ☐ Pay-slips for *[state time frame]*
- ☐ Contract of employment/Letter from employer confirming salary
- ☐ Notices of Assessment from the Inland Revenue Authority of Singapore (IRAS) dated *[to state date]*
- ☐ ACRA search dated *[to state date]* (in respect of the business(es) I own)
- ☐ Valuation report(s) for immovable property/properties (in respect of properties listed in paragraph 7 above)
- ☐ Tenancy agreement(s)
- ☐ Hire purchase agreement(s) (in respect of the vehicles listed in paragraph 8 above)
- ☐ Insurance policies/letters from insurance companies showing the surrender values of the insurance policies (in respect of insurance policies listed in paragraph 10 above)
- ☐ Central Depository (Pte) Ltd (CDP) statement(s) dated *[to state date]*
- ☐ Central Provident Fund (CPF) Investment account statement(s) dated *[to state date]*
- ☐ Bank statement(s) for *[state time frame]*
- ☐ CPF statement(s) dated *[to state date(s)]* on contribution to purchase of immovable property
- ☐ CPF statement(s) dated *[to state date(s)]* on balances in Special, Medisave and Ordinary Accounts
- ☐ Renovation receipt(s)

⁴ Please note that the list of documents in this section is intended as a guide only. It is not intended to set a minimum standard, nor to be an exhaustive list, in relation to each party's duty to disclose all relevant information and documents in this matter. The extent of disclosure which must be made in each case will depend on the facts of that case. Parties must exercise their own minds regarding the extent of disclosure to be made in the light of these facts, and in accordance with their duty of disclosure under Rules 63 and 69 of the Family Justice Rules*.

- ☐ Receipt(s) evidencing payment for furnishings
- ☐ Receipts supporting expenses, e.g. utilities bills, telephone bills, conservancy charges, school fees, etc.
- ☐ [In the case of a maintenance claim by an incapacitated husband] Medical report required under rule 87A of the Family Justice Rules.
- ☐ Others (please specify)

VI. Affidavit**

Sworn/Affirmed* at Singapore on *[to state date]* by *[to state name and NRIC Number]* through the interpretation of*: *[to state name]* in *[to state language]*

Before me,

Signed:

Commissioner for Oaths

*Delete where inapplicable

** The form of the jurat should follow the appropriate form in Form 132 of Appendix A of the Practice Directions

Form 207

R. 131A(5)(a)
Para 24A

**CONSENT FOR SERVICE BY WAY OF EMAIL OR MOBILE PHONE NUMBER FOR
SUMMONSES MADE UNDER SECTION 71 AND SECTION 72 OF THE WOMEN'S
CHARTER (CAP. 353)**

To: The Registrar, Family Justice Courts

A maintenance order has been made in _____ [state case number] dated _____ [insert date].

I hereby consent to receiving any summons filed against me under section 71 (for enforcement of the maintenance order) or section 72 (for rescission or variation of the maintenance order) ("the Summons") in the following manner:⁴

- *(a) by way of email to my email address at _____ [insert email address]; *and/or
- *(b) by way of multimedia messaging service or other messaging communication at my mobile telephone number at _____ [insert mobile telephone number].

(*to delete if not applicable)

Service in the above manner shall constitute good and sufficient service of the Summons on me. In this regard, I understand that the Court is at liberty to effect service of any summons under section 71 or section 72 on me in accordance with the modes of service permitted at law, and is not limited to effecting service by email and/or messaging communication at my mobile phone number.

I further acknowledge that:

- 1) It is my responsibility to inform the Court of any changes in my contact details. In the event that there is a change to my email address or my mobile telephone number, I will notify the Court within seven (7) days of such change by writing in to FJC_MAINTPOS@judiciary.gov.sg.
- 2) I understand that this consent continues to be valid until and unless it is revoked. If I wish to revoke my consent, I will inform the Court by writing in to FJC_MAINTPOS@judiciary.gov.sg. If there is revocation of consent, the date of revocation shall be taken to be the date of the email unless it is otherwise specified to take effect on a later date. Unless my consent is revoked in the manner provided, the Court is entitled to rely on this consent for purposes of serving the Summons on me.

Name of consenting party:

Signature of consenting party:

Date:

Interpreted by (if required): [State Name of court interpreter or consenting party's solicitor]

⁴ Section 72 of the Women's Charter does not apply to the variation or rescission of a maintenance order made in nullity, divorce, judicial separation or originating summons proceedings.

Form 208

[deleted]

Form 209

Para 25

[For applications under section 65 of the Women's Charter]

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Summons No . SS ____ of 20__

Between

_____ Complainant

And

_____ Respondent

COMPLAINANT'S AFFIDAVIT

I, Name and NRIC of Address am the complainant in this matter.

2 On date, I lodged a Magistrate Complaint against the Respondent for family violence for the purpose of obtaining a Personal Protection Order and Domestic Exclusion Order* against the Respondent in favour of:

- a) myself
- b) my child or children of the marriage, namely
 - a. Name of child, born on Date of Birth
 - b. Name of child, born on Date of Birth
- c) others: Indicate relationship

3a* The Respondent was married to me at Place of Marriage on date*.

3b* The Respondent is related to me. *[Please explain relationship between the respondent and the "others" seeking protection (if any)]**

4 The respondent and I are currently living/not living* together.

Incidents relied upon in support of application

5 *(Please set out the date/time and the sequence of events of the latest incident you are relying on in support of your application)*

6 *(Please set out the past history of family violence and narrate them according to the date/time the incident occurred, as well as the sequence of events)*⁵

7 I ask that a Personal Protection Order and a Domestic Exclusion Order* be issued against the Respondent.

Signature

Date (DD/MM/YYYY)

* Delete as applicable.

[For applications under section 69 of the Women's Charter]

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Maintenance Summons No MSS _____ of 20__

Between

_____ Complainant

And

_____ Respondent

COMPLAINANT'S STATEMENT (1)

I, Name and NRIC of Address am the complainant in this matter.

2a* I am married to the respondent at place of marriage (e.g. Singapore Registry of Marriages, Singapore Registry of Muslim Marriages) and am applying for maintenance for myself.

2b* I am married to the respondent at place of marriage (e.g. Singapore Registry of Marriages, Singapore Registry of Muslim Marriages) and am applying for maintenance for myself and the child/children* namely:

(a) Name of child, born on Date of Birth

(b) Name of child, born on Date of Birth

2c* I am married to the respondent at place of marriage (e.g. Singapore Registry of Marriages, Singapore Registry of Muslim Marriages) and am applying for maintenance for the child/children* namely:

(a) Name of child, born on Date of Birth

(b) Name of child, born on Date of Birth

3 There is currently no divorce proceedings/divorce proceedings pending in state Divorce Case Number / Syariah Court Divorce Number*.

3(a) *(Where there are divorce proceedings pending and for Civil marriage)* The writ was filed on date. Interim judgement has/has not* been granted. The next PTC/ hearing date* for the divorce is on date.

(b) *(Where there are divorce proceedings pending for Muslim marriages)* The application for divorce was filed on date.

4 The respondent has neglected/refused* to provide reasonable maintenance since date.

4(a)* (If applicable) Currently, the respondent is paying for:

☐	Utilities bills	:	\$
☐	Mortgage loan	:	\$
☐	Children's pocket money	:	\$
☐	Others (please indicate)	:	\$

Complainant's Background

5 I am currently working as a Occupation of Complainant at Employer's name and address. My Gross Income is \$state amount whilst my net income or take home pay is \$state amount.

6 I have attached to this Statement as Exhibit C1, the following documents:

- a) Salary Slip (latest 6 months) or statement detailing income
- b) Income Tax Returns (past 3 years)
- c) CPF statements (past 3 years)
- d) Bank /financial statements (past 6 months)
- e) Any other documents relevant to determine your income and financial resources such as Letter of Employment/Termination/ Retrenchment/Resignation/Proof of Efforts to seek employment or and others.

7 My other sources of income come from state other source and amount/I do not have any other sources of income*.

8 My monthly expenses are

* as follows (*Set out Particulars of monthly expenses if you are not attaching the List of Expenses, together with supporting receipts such as bills/receipts (utilities, town council, credit cards, etc.) / tenancy agreement*)

* as shown in the List of Expenses Form at Exhibit C2 ,together with supporting receipts such as bills/receipts (utilities, town council, credit cards, etc.) / tenancy agreement

9 *The children's monthly expenses are

*as follows (*Set out Particulars of monthly expenses if you are not attaching the List of Expenses, together with supporting receipts*)

* as shown in the List of Expenses Form at Exhibit C3, together with supporting receipts.

10 I would like the Court to take into account the following:

(To state here any special needs or circumstances such as health, disability etc., if applicable).

The documentary evidence is at Exhibit C4.

Other information

11 *(Please set out what other relevant information you wish to inform the Court.)*

12 I am claiming maintenance from the respondent as follows:

- a) For myself; the amount of \$state maintenance amount with effect from date of default;
- b) For my child/children: the amount of \$state maintenance amount (State Amount) with effect from date of default;
- c) Payment to be made to my designated Bank account: state Bank and Account Number

Signature

Date (DD/MM/YYYY)

[For an application by an incapacitated husband under section 69(1A) of the Women's Charter]

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Maintenance Summons No MSS_____ of 20__

Between

_____ Complainant

And

_____ Respondent

COMPLAINANT'S STATEMENT

I, Name and NRIC of Address am the complainant in this matter.

2 I am married to the respondent at place of marriage (e.g. Singapore Registry of Marriages,) and am applying for maintenance for myself.

3 There is currently no divorce proceedings/divorce proceedings pending [state Divorce Case Number] *.

3(a) *(Where there are divorce proceedings pending)* The writ was filed on date. Interim judgement has/has not* been granted. The next PTC/ hearing date* for the divorce is on date.

4 On or about <date>, I was or became incapacitated from earning a livelihood by a disability/illness* and since <date>, I have been and continue to be unable to maintain myself. The respondent has neglected/refused* to provide reasonable maintenance for me since date.

4(a)* (If applicable) Currently, the respondent is paying for:

- ☐ Utilities bills : \$ _____
- ☐ Mortgage loan : \$ _____
- ☐ Children's pocket money : \$ _____
- ☐ Others (please indicate) : \$ _____

**Complainant's
Background**

5 My last job/employment was as Occupation of Complainant at Employer's name and address. My Gross Income was \$state amount whilst my net income or take home pay was \$state amount.

6 I have attached to this Statement as Exhibit C1, the following documents:

- a) Medical report required under rule 87A of the Family Justice Rules.
- b) Salary slips (latest 6 months) or statements detailing income including supporting documentary evidence of my last job/employment and the income and take home pay as set out in paragraph 5.
- c) Income Tax Returns (past 3 years)
- d) CPF statements (past 3 years)
- e) Bank /financial statements (past 6 months)
- f) Any other documents relevant to determine your income and financial resources such as Letter of Employment/Termination/ Retrenchment/Resignation/Proof of Efforts to seek employment or and others.

7 My other sources of income come from state other source and amount/I do not have any other sources of income*.

8 My monthly expenses are

* as follows (*Set out Particulars of monthly expenses if you are not attaching the List of Expenses, together with supporting receipts such as bills/receipts (utilities, town council, credit cards, etc.) / tenancy agreement*)

* as shown in the List of Expenses Form at Exhibit C2 ,together with supporting receipts such as bills/receipts (utilities, town council, credit cards, etc.) / tenancy agreement

9 I would like the Court to take into account the following:

(*To state here any other special needs or circumstances, if applicable*).

The documentary evidence is at Exhibit C4.

Other information

10 (*Please set out what other relevant information you wish to inform the Court.*)

11 I am claiming maintenance from the respondent as follows:

- d) For myself; the amount of \$state maintenance amount with effect from date of default;

e) Payment to be made to my designated Bank account: state Bank and Account Number

Signature

Date (DD/MM/YYYY)

[For applications under section 71 of the Women's Charter]

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Maintenance Summons No MSS_____ of 20__

Between

_____ Complainant

And

_____ Respondent

COMPLAINANT'S STATEMENT

I, Name and NRIC of Address am the complainant in this matter.

2. Under a Court Order state Maintenance Order Number / Variation Order Number etc dated date, the Respondent was ordered to pay

a) state maintenance amount towards maintenance for myself with effect from date

b) state maintenance amount towards maintenance for my child/children with effect from date.
The child/children is/are*:

i) Name of child, born on Date of Birth

ii) Name of child, born on Date of Birth

c) *(if applicable)* Other Orders:

A copy of the Order of Court is attached as C1 to this statement.

3 The Respondent is in arrears of state arrears amount as at date. I attach as Exhibit C2, the Computation of Arrears.

Supporting Evidence of Non-payment

4a The respondent was ordered to pay the maintenance into a designated account state Bank and Account Number. I attach as C3 documents to prove that payment has not been made. (Complainant to attach a copy of the relevant entries in the Bank Book to show payments received to date or non-payment.)*

4b I attach documents as evidence of non-payment* (If payment is to be made direct)

5. I now seek enforcement of the above order.

Signature

Date (DD/MM/YYYY)

** Delete as applicable*

Form 209A

Para 25A

**REQUEST BY MAINTENANCE RECORD OFFICER FOR PARTY'S DOCUMENTS
UNDER RULE 114B(3) OF THE FAMILY JUSTICE RULES**

(Title as in action)

I, (name) (NRIC No.) of (address) ,
the maintenance record officer for (case number) , hereby request the Court to
order (name of party required to produce the documents) (NRIC No.)
to provide 4 sets of the following documents:-

(Describe and list the documents requested)

S/No	Title or description of document	Period for which the document is required (eg. from January 2017 to April 2017)	Reasons why the document is required	Reasons for belief that the party has the document

Dated day of 20 .

Signature of party

Form 209B

Para 25A

REQUEST TO EXAMINE THE MAINTENANCE RECORD OFFICER

(Title as in action)

I, (name of party making the request) , being the [applicant/respondent*]
hereby request to examine the maintenance record officer (MRO) at the hearing on [date and
time] for the purpose of examining him/her on the following matters:

S/No.	Matter to be examined, including paragraph number in the MRO's report, where relevant	Reasons for examining the MRO on this matter

Dated this day of 20 .

Signature of party

**Delete accordingly*

Form 210

Para 30

**COVER LETTER FOR SUBMISSION OF
ORIGINAL BIRTH CERTIFICATE IN ADOPTION PROCEEDINGS**

To: OFFICER-IN-CHARGE
ADOPTION SECTION

ADOPTION ORIGINATING SUMMONS NO. _____ OF _____

Please find enclosed the original birth certificate of the infant in the above matter.

2 The matter has been fixed for hearing as follows:

Date: _____
Time: _____

Signature
Name of Solicitor for the Petitioner
Name of Law Firm

Para 26K, 33, 71C

Collection Time: Mondays to Fridays – 9.00 am to 1:00pm & 2.00pm to 5.00pm

1. All requests for copies of the records of any court proceedings are subject to the approval of the court.
2. Once the request has been approved and the applicant has been informed on the availability of the requested document(s) and the cost (where applicable), the said documents will be available for collection for a period of 21 days. Any document(s) not collected within the stipulated period will be destroyed and a fresh request must be submitted thereafter if the applicant still requires the document(s).
3. An application for copies of the records of any criminal proceedings will only be processed after the stipulated payment has been made.

Prescribed Fees

4. The fees payable are as follows:

Document Type	Fee Amount	Remarks
Complaint Form	\$5 for each type of document requested in the application and \$0.50 per page thereof, subject to a minimum of \$15 per document.	Payable upon Application
Notes of Evidence & other documents for maintenance (MSS), family violence (SS) and Vulnerable Adults Act 2018 (VAA) Proceedings in non-appeal cases	\$5 for each type of document requested in the application and \$0.50 per page thereof, subject to a minimum of \$15 per document.	Minimum of \$15 (per document) payable upon Application <i>*Any additional amount (based on number of pages) may be payable before collection of the document(s).</i>
For judgement orders (plain copies) for MSS, SS and VAA Proceedings in non-appeal cases.	\$5 plus \$0.15 per page	
Notes of Evidence & other documents for CPO and BPC Proceedings in Youth Courts in non-appeal cases	\$5 plus \$0.50 per page thereof, subject to a minimum of \$15 per document.	
Notes of Evidence & other documents (certified true copies) for MSS, SS and VAA Proceedings in non-appeal cases	\$8 plus \$5 per page	
For judgment orders (certified true copies) for MSS, SS and VAA Proceedings in non-appeal cases	\$8 plus \$5 per page	

Refund of Fees Paid

5. The applicant must furnish the photocopies of the applicant's NRIC or Passport.

Payment Modes

6. Local Applicants: Cash, NETS or Ez-Link
7. Overseas Applicants: Bank Draft in Singapore Currency (payable to "Registrar Supreme Court/AG")
Payment should also include all bank charges.

Contact Us

- For enquiries pertaining to family & youth matters, please email to us at FJC_MAINTPOS@judiciary.gov.sg or contact us at (65) 6435 5471.

Form 212

Para 42

**NOTING OF APPEARANCE OF
ADVOCATES/PROSECUTORS**

FAMILY JUSTICE COURTS – COURT NO: ____	
Case No: MSS/SS/ JAC	
Solicitor's Name/ Prosecutor's Name	
Solicitor's Firm/ Prosecutor's Dept	
Telephone No:	
Fax No:	
Name of Accused/Party he represents:	1. 2. 3.

Form 213

Para 44

**ORIGINATING SUMMONS FOR PROCEEDINGS UNDER SECTION 8 OF THE
INTERNATIONAL CHILD ABDUCTION ACT**

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

OSF. No.)
of 20)

In the Matter of Section 8 of the International Child Abduction Act
(Cap. 143C)

And

In the Matter of [*name of child*]
(ID No.:)

Between

(ID No.:) ... Plaintiff/Applicant*

And

(ID No.:) ... Defendant*

ORIGINATING SUMMONS

To : The Defendant(s)
 [*Name*]
 of [*Address*] *

Let all parties concerned attend before the Judge on (date/time), on the hearing of an
application by the plaintiff/applicant* that:-

1. That [*name of child*] be returned to the child's place of habitual residence which is
 [*country*];
2. That the defendant/[*name of person*]* do hand over the child to the plaintiff/applicant* or
 his or her appointed representative, [*name of representative*], or [*person ordered by the*
 court] within ____ days from the date of this order;

3. That the defendant/[*name of person*]* do hand over the child and the child's passport and all relevant travelling documents to the plaintiff/applicant* or his or her appointed representative, [*name of representative*], or [*person ordered by the court*] within ____ days from the date of this order;
4. Any such further or other order as this Honourable Court deems fit;
5. Costs.

Dated this day of 20

Registrar

Memorandum to be subscribed on the summons

1. This summons is taken out by _____ of _____ solicitor for the said plaintiff/applicant* whose address is _____ (or where the plaintiff/applicant* sues in person) This summons is taken out by the said plaintiff/applicant* who resides at _____ and is (stated occupation) and (if the plaintiff/applicant* does not reside within the jurisdiction) whose address for service is _____
2. If you intend to contest the application or any part of it, you are required to file an affidavit stating the grounds of your objection within 14 days of service after the date on which you were served with this summons.
3. If you do not attend personally or by your counsel or solicitor at the time and place stated in this summons, such order may be made as the Court may think just and expedient.
4. This summons may not be served more than 6 months after the above date unless renewed by order of the Court.
5. Where the plaintiff/applicant* intends to adduce evidence in support of an originating summons he must do so by affidavit, and must file the affidavit or affidavits and serve a copy thereof on every defendant together with the service of the originating summons.

*Delete where inapplicable.

Form 214

Para 44

**ORIGINATING SUMMONS FOR PROCEEDINGS UNDER SECTION 14 OF THE
INTERNATIONAL CHILD ABDUCTION ACT**

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

OSF. No.)
of 20)

In the Matter of Section 14 of the International Child Abduction Act
(Cap. 143C)

And

In the Matter of [*name of child*] (ID No.:)

Between

(ID No.:) ... Plaintiff/Applicant*

And

(ID No.:) ... Defendant*

ORIGINATING SUMMONS

To : The Defendant(s)
 [*Name*]
 of [*Address*]*

Let all parties concerned attend before the Judge on (date/time), on the hearing of an
application by the plaintiff/applicant* for:-

1. A declaration that the removal of [*name of child*] from Singapore or the retention of [*name of child*] outside Singapore was wrongful within the meaning of the Convention on the Civil Aspects of International Child Abduction (“the Convention”);
2. Any such further or other order as this Honourable Court deems fit; and
3. Costs

Dated this day of 20

Registrar

Memorandum to be subscribed on the summons

1. This summons is taken out by _____ of _____ solicitor for the said plaintiff/applicant* whose address is _____ (or where the plaintiff/applicant* sues in person) This summons is taken out by the said plaintiff/applicant* who resides at _____ and is (stated occupation) and (if the plaintiff/applicant* does not reside within the jurisdiction) whose address for service is _____
2. If you intend to contest the application or any part of it, you are required to file an affidavit stating the grounds of your objection within 14 days of service after the date on which you were served with this summons.
3. If you do not attend personally or by your counsel or solicitor at the time and place stated in this summons, such order may be made as the Court may think just and expedient.
4. This summons may not be served more than 6 months after the above date unless renewed by order of the Court.
5. Where the plaintiff/applicant* intends to adduce evidence in support of an originating summons he must do so by affidavit, and must file the affidavit or affidavits and serve a copy thereof on every defendant together with the service of the originating summons

**Delete where inapplicable.*

Form 215

Para 44

**PLAINTIFF/APPLICANT'S AFFIDAVIT FOR PROCEEDINGS UNDER SECTION 8
OF THE INTERNATIONAL CHILD ABDUCTION ACT**

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

OSF. No.)
of 20)
(Seal))

In the Matter of Section 8 of the International Child Abduction Act
(Cap. 143C)

And

In the Matter of [*name of child*]
(ID No.:)

Between

(ID No.:) ... Plaintiff/Applicant*

And

(ID No.:) ... Defendant*

AFFIDAVIT

I, [*Name of deponent*], of [*address of deponent*], do make oath (or affirm)* and say as follows:

1. I am the Plaintiff/Applicant* and I make this affidavit in support of my application.

Details concerning the child

2. The child, [*full name*], was born on [*date*].
3. The habitual residence of the child immediately prior to the removal or retention of the child was , a convention country.
4. The child has been wrongfully removed or retained from the country referred to in Paragraph 3.

5. The child is now residing with [full name], [relationship, if any, to child], at [address].

Details of parties

6. [Please state the details of parties and the relationship between the parties and the child.]

Details concerning child's custodian

7. The plaintiff/applicant* has rights of custody in respect of the child by reason of the following factual and legal circumstances :

[Include details of any custody order.]

8. The child was removed or retained on [date] in the following circumstances:

[Include details of removal or retention.]

9. The following are particulars of pending court proceedings concerning the child :

[Set out brief particulars of any court proceedings (including proceedings outside Singapore and concluded proceedings, whether in or outside Singapore) relating to the child and of any orders made in any such proceedings (including interim orders) and the court in which the proceedings are conducted.]

Or

There are no pending court proceedings concerning the child.

Attachments

10. I attach herewith a copy of the request for the return of the child filed with the Central Authority of Singapore marked “ ”.

11. I also attach herewith the following documents in support of my application:-

[Identify, attach and mark relevant documents:

(a) certified copy of relevant order or judgment concerning rights of custody, care and control;

(b) certified copy of any relevant agreement relating to the custody of the child;

(c) certificate or affidavit as to the applicable law;

(d) any other documents relating to the child.]

If the child has been removed or retained for more than 12 months

12. The child was removed or retained more than 12 months ago. The reason for the delay in this application is as follows:

[State reasons.]

13. I hereby undertake to serve a copy of my application and all orders made pursuant to my application on the Central Authority.

14. I am praying for order in terms of the prayers sought in my application.

SWORN (or AFFIRMED)* by the)
Plaintiff/Applicant* at)
on the day of)
20)

Through the interpretation of (name and)
designation of person who interpreted) in)
(language of interpretation)*)

Before me,

A Commissioner for Oaths

**Delete where inapplicable*

Form 216

Para 44

**PLAINTIFF/APPLICANT'S AFFIDAVIT FOR PROCEEDINGS UNDER SECTION
14 OF THE INTERNATIONAL CHILD ABDUCTION ACT**

**PLAINTIFF/APPLICANT'S AFFIDAVIT FOR PROCEEDINGS UNDER SECTION 14 OF
THE INTERNATIONAL CHILD ABDUCTION ACT**

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

OSF. No.)
of 20)
(Seal))

In the Matter of Section 14 of the International Child Abduction Act
(Cap. 143C)

And

In the Matter of [*name of child*] (ID No.:)

Between

(ID No.:) ... Plaintiff/Applicant*

And

(ID No.:) ... Defendant*

AFFIDAVIT

I, [Name of deponent], of [address of deponent], do make oath (or affirm)* and say as follows:

1. I am the Plaintiff/Applicant* and I make this affidavit in support of my application.

Details concerning the child

2. The child, (full name), was born on [*date*].
3. The habitual residence of the child immediately prior to the removal or retention of the child was , a convention country.

4. The child has been wrongfully removed or retained from the country referred to in Paragraph 3.
5. The child is now residing with [full name], [relationship, if any, to child], at [address].

Details of parties

6. [Please state the details of the parties and the relationship between the parties and the child.]

Details concerning child's custodian

7. The plaintiff has rights of custody in respect of the child by reason of the following factual and legal circumstances :

[Include details of any custody order.]

8. The child was removed or retained on [date] in the following circumstances :

[Include details of removal or retention.]

9. The following are particulars of pending court proceedings concerning the child:

[Set out brief particulars of any court proceedings (including proceedings outside Singapore and concluded proceedings, whether in or outside Singapore) relating to the child and of any orders made in any such proceedings (including interim orders) and the court in which the proceedings are conducted.]

Or

There are no pending court proceedings concerning the child.

Attachments

10. I attach herewith a copy of the request made by the requesting judicial or administrative authorities referred to in Articles 15 of the Convention marked “ ”.

11. I also attach herewith the following documents in support of my application:-

[Identify, attach and mark relevant documents:

- (a) certified copy of relevant order or judgment concerning rights of custody care and control;
- (b) certified copy of any relevant agreement relating to the custody of the child;
- (c) any other documents relating to the child.]

12. I undertake to serve a copy of my application and all orders made pursuant to my application on the Central Authority.

13. I am praying for order in terms of the prayers sought in my application.

SWORN (or AFFIRMED) by the)
Plaintiff/Applicant* at)
on the day of)
20)

Through the interpretation of (name and)
 designation of person who interpreted) in)
 (language of interpretation)*)

Before me,

A Commissioner for Oaths

**Delete where inapplicable*

Form 217

Para 54

ORIGINATING SUMMONS FOR MENTAL CAPACITY PROCEEDINGS

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

OSM No.)
of 20)
(Seal))

In the Matter of Section [section no] of the Mental Capacity
Act (Cap 177A)

And

In the Matter of [*name of person alleged to lack capacity*](ID
No.:), a person alleged to lack capacity (“P”)

Between

(Name and ID No.:) ... Plaintiff⁺

And

(Name and ID No.:) ... Defendant[#]

To THE DEFENDANT(S) [name]
of [address][#]

ORIGINATING SUMMONS

The plaintiff/applicant* prays for the following orders:-

[Please select the relevant prayer(s) or add prayers as required.]

1. Permission

The plaintiff/applicant* be permitted to make this application to the Court.

2. Dispensation

The Court dispenses with the following:

- (i) Notification of *[Name of P]* ("P") of this application and of the date of the hearing for its final disposal.

[Note: There is a general requirement to notify P. As such, if the applicant or plaintiff seeks dispensation of notification, an explanation as to why dispensation is sought has to be included in the supporting affidavit.]

- (ii) Attendance of the following persons at all hearings for this application:

a. P;

b. Dr *[state name of doctor]* (ID No. *[state number]*) of *(state address)*.

- (iii) Service of this application on *[state names and ID Numbers]*.

3. That the Court be satisfied that:

- (i) *[Name of P]* ("P") is unable to make various decisions for himself/herself* in relation to a matter or matters concerning P's personal welfare/property and affairs/personal welfare and property and affairs because of an impairment of, or a disturbance in the functioning of, P's mind or brain;

- (ii) The purpose for which the order is needed cannot be as effectively achieved in a way that is less restrictive of P's rights and freedom of action.

4. That the Court orders as follows:-

(1) **Appointment of Deputy/Deputies***

- (a) *[State name]* (ID No. *[state number]*) of *[state address]* is/are* appointed as deputy/deputies* to make decisions on behalf of P that P is unable to make for

himself/herself* in relation to his/her* personal welfare/property and affairs/personal welfare and property and affairs* subject to any conditions or restrictions set out in this order.

- (b) The appointment will last until further order.
- (c) [The deputies shall act jointly/jointly and severally* in all matters]*

[Note: To also include whether or not the deputies act jointly/jointly and severally at the appropriate paragraphs on the deputies' authority and powers in this Originating Summons.]

- (d) The deputy/deputies* must apply the principles set out in section 3 of the Mental Capacity Act (Cap. 177A) ("MCA") and have regard to the guidance in the Code of Practice to the MCA.
- (e) The deputy/deputies* does/do* not have authority to make a decision on behalf of P in relation to a matter if the deputy/deputies* know(s) or has/have* reasonable grounds for believing that P has capacity in relation to the matter.
- (f) In the event the deputy or any of the deputies (where two or more deputies are appointed) dies, becomes a bankrupt (for a property and affairs deputy) or lacks mental capacity to act as deputy, the following are appointed to succeed that deputy in the stated order:
 - (i) [State name] (ID No. [state number]) of [state address].
 - (ii) [State name] (ID No. [state number]) of [state address] etc.
- (g) Upon the happening of such an event in paragraph (f), the surviving deputy or remaining deputy together with the successor deputy are to inform the Office of the Public Guardian and to apply to Court providing evidence of the event for the Court to confirm the appointment of the successor deputy.

[Note: The prayer for successor deputy or deputies should only be included if there is a need for a successor deputy or deputies to be appointed, for example, if the proposed deputy is likely to predecease P.]

(2) Authority of Deputy/Deputies* in respect of P's personal welfare:

- (a) The Court grants authority to the deputy/deputies* to make the following decisions on behalf of P, that P is unable to make for himself/herself* when the decision needs to be made:
 - (i) where P should live;
 - (ii) with whom P should live;
 - (iii) consenting to medical or dental examination and treatment on P's behalf;
 - (iv) making arrangements for the provision of care services; and
 - (v) complaints about P's care or treatment.
 - (vi) [to state any other matters for which power is sought for deputy/deputies* to make decision]
- (b) For the purpose of giving effect to any decision, the deputy/deputies* may execute or sign any necessary deeds or documents.

- (c) The deputy/deputies* does/do* not have the authority to make the following decisions or to do the following things in relation to P:
 - (i) to prohibit any person from having contact with P;
 - (ii) to direct a person responsible for P's health care to allow a different person to take over that responsibility;
 - (iii) to consent to specific treatment if P has made a valid and applicable advance decision to refuse that specific treatment; and
 - (iv) to do an act that is intended to restrain P otherwise than in accordance with the conditions specified in the MCA.

(3) Authority of Deputy/Deputies* in respect of the property and affairs of P

- (a) The deputy/deputies is/are authorised to do all such acts as may be necessary or expedient for giving effect to the decisions made in respect of P's property and affairs pursuant to this Order of Court including, but not limited to the authority to:
 - (i) execute and sign any necessary deeds or documents;
 - (ii) take control of the property and affairs of P; and
 - (iii) exercise the same powers of management as P has as beneficial owner.
- (b) The deputy/deputies* is/are* authorised to do the following:
[Note: To include here the relevant powers sought]

(4) Authority of Deputy/Deputies* in respect of CPF monies and accounts of P [where applicable]

[Note: Please refer to the sample CPF orders on the website of the Family Justice Courts]

(5) Costs and Expenses

- (a) The deputy/deputies* is/are* authorised to make payment of reasonable legal costs and disbursements of and incidental to these proceedings from P's estate.

(6) Reports

- (a) The deputy/deputies* is/are* (jointly) required to keep a record of any decisions made or acts done for the personal welfare of P pursuant to this order and the reasons for making or doing them.
[For example, a decision that P will not undergo a medical procedure is to be recorded and the reason to be provided.]
- (b) The deputy/deputies* is/are* (jointly) required to keep statements, vouchers, receipts and other financial records in the administration of P's property and affairs. The deputy/deputies* is/are* also (jointly) required to keep a record of decisions made or acts done relating to P's property and affairs.
[For example, a decision not to expend monies for a medical procedure for P which is medically indicated is to be recorded and the reason to be provided.]

- (c) The deputy/deputies* must (jointly) complete and file an annual report relating to P's personal welfare and property and affairs to the Public Guardian and further reports at any time as may be required by the Public Guardian.
 - (d) Reports to the Public Guardian must contain such information and be in such form as may be required by the Public Guardian and must contain (but are not limited to) the following:
 - (i) a record of any decisions made or acts done for the personal welfare of P and the reasons for making or doing them;
 - (ii) a record of decisions made or acts done relating to P's property and affairs;
 - (iii) an inventory of the assets belonging to P and the value and location of the assets; and
 - (iv) statements, vouchers, receipts and other financial records in the administration of P's property and affairs.
- (7) There be liberty to apply.

Memorandum to be subscribed on the summons[#]

1. *If you intend to contest the application or any part of it, you are required to file an affidavit stating the grounds of your objection within 21 days of service after the date on which you were served with this summons.*
2. *If you do not attend personally or by your counsel or solicitor at the time and place stated in this summons, such order may be made as the Court may think just and expedient.*
3. *This summons is filed by [name of firm], the solicitor for the said plaintiff whose address is [address].*

(or where the plaintiff sues in person)

This summons is filed by the said plaintiff who resides at [address] and is (state occupation) and (if the plaintiff does not reside within the jurisdiction) whose address for service is [address].

4. *This summons may not be served more than 6 months after the above date unless renewed by order of the Court.*
5. *Unless otherwise provided in any written law, where the plaintiff intends to adduce evidence in support of an originating summons he must do so by affidavit, and must file the affidavit or affidavits and serve a copy thereof on every defendant not later than 7 days after the service of the originating summons.*

⁺ To use "Applicant" if this is an ex parte application.

[#] To delete if this is an ex parte application.

*Delete where inapplicable.

Form 218

Para 54

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

OSM No.)
of 20)

In the Matter of Section 20 of the Mental Capacity
Act (Cap 177A)

And

In the Matter of _____
[*name of person alleged to lack capacity*]
(NRIC/FIN/Passport No.: _____), a person
alleged to lack capacity (“P”)

[*name of applicant*]
(NRIC/FIN/Passport No.: _____) *Applicant*

AFFIDAVIT

I, _____ [name of Applicant], of _____ [address of Applicant], do make oath / affirm* and say as follows:

1. I am the Applicant and I make this affidavit in support of my application.
2. The facts contained in this affidavit are within my personal knowledge or are based on documents in my possession.
3. I confirm that the information set out in this affidavit is true and correct.
4. **APPLICANT'S PARTICULARS**

(a) Full name:

(b) NRIC/FIN/Passport no.:

(c) Date of birth (DD/MM/YYYY):

(d) Age:

(e) Gender: ☐ Male ☐ Female

(f) Telephone number:

(g) Occupation:

(h) Name and address of employer:

(i) Monthly income:

Source of Income (eg. Salary, insurance, government payouts, ental etc.)	Value
TOTAL	

(j) Relationship to P (i.e. the person alleged to lack capacity):

- ☐ Spouse
- ☐ Child
- ☐ Parent
- ☐ Sibling
- ☐ Friend
- ☐ Others – please specify: _____

5. **INFORMATION ABOUT APPLICANT**

- (a) **Please indicate which options are applicable to you**
- ☐ I am not an undischarged bankrupt
 - ☐ I am not facing any bankruptcy actions
 - ☐ I have not been appointed as a Donee or Deputy for someone else

- (b) **Please indicate which option is applicable to you**
- ☐ I declare that I do not have any outstanding loans or debts at all
 - ☐ I declare that I do not have any outstanding loans or debts except for the following loans / debts, and I further declare that I am able to pay my loans and debts as and when they become due and payable.

Information about loan / debt (e.g. creditor, reason for loan/debt etc.)	Amount owed

6. **INFORMATION ABOUT P**

(a) P's Full name:

(b) P's NRIC/FIN/Passport no.:

(c) P's Date of birth (DD/MM/YYYY):

(d) P's Age:

(e) P's Gender: ☐ Male ☐ Female

(f) **P's Marital status:**

- ☐ Single
- ☐ Married
- ☐ Divorced
- ☐ Separated
- ☐ Widowed
- ☐ Unknown

(g) **Address at which P is currently residing:**

(h) **Is P living in a nursing home?** ☐ Yes ☐ No

If "Yes", please state which nursing home:

(i) **Do you confirm that, to the best of your knowledge and belief, P's incapacity is as set out in the doctor's affidavit(s) and medical report(s) filed in support of your application?**

☐ Yes ☐ No

(j) **P's current care arrangements and main caregiver(s):**
(Please provide information about how P is currently being cared for and who is P's main caregiver(s))

(k) **P's expenses:**
(Please include any expenses which P currently does not have but is expected to incur in future and indicate these with an '')*

Type / Frequency <i>(e.g. food/monthly, insurance/annually)</i>	Amount
--	--------

TOTAL	

- (l) **P's monthly income and sources of such income:**
(Please include any income which P currently does not have but is expected to receive in future and indicate these with an '')*

Source of Income <i>(eg. Salary, insurance, government payouts, ental etc.)</i>	Value
TOTAL	

- (m) **P's assets and up to date value (to the best of your knowledge) of these assets:**

Assets <i>(e.g. bank accounts, CPF accounts, insurance policies, stocks and shares, property etc.)</i>	Value
TOTAL	

- (n) **Please indicate which options are applicable and provide details where applicable**

- ☐ P has no outstanding debts or liabilities
- ☐ P's debts or liabilities are as follows:

Information about loan / debt (e.g. creditor, reason for loan/debt etc.)	Amount owed

- ☐ P has not received and is not going to receive any form of compensation or award of damages
- ☐ P has received or is going to receive the following compensation or award of damages:

Information about compensation (e.g. nature of claim etc.)	Amount

(o) **LASTING POWER OF ATTORNEY**

(Please indicate which of the following is applicable)

- ☐ P made a Lasting Power of Attorney and the Registration No. is:

- ☐ P made an instrument intended to create a Lasting Power of Attorney but it has not been registered yet
- ☐ P has not made a Lasting Power of Attorney and, as far as I am aware, P has not make an instrument intended to create a Lasting Power of Attorney

- (p) Has P made a will? ☐ Yes ☐ No ☐ I do not know

(q) **PREVIOUS LEGAL APPLICATIONS CONCERNING P**

(Please indicate which of the following is applicable)

☐ There has been no application or order made relating to P under the Mental Capacity Act as well as the repealed Mental Disorders and Treatment Act

☐ There was an application or order made relating to P under the Mental Capacity Act or the repealed Mental Disorders and Treatment Act in case no. _____

☐ Have the Applicant(s) and/or P been involved in any kind of court proceedings (e.g. criminal, tribunal, civil or family proceedings)?

☐ Yes

☐ No

If yes, please provide details below:

7. **INFORMATION ABOUT RELEVANT PERSONS**

(Please do not leave any blanks. Please state "Nil" if there is no one in the category in question. If a Relevant Person has passed away, please state the person's name and indicate "(deceased)" after the name. Please list all of P's relatives in the categories set out below even if you are of the view that some or all of them are not, by definition, Relevant Persons. If you feel that certain relatives are not Relevant Persons, please set out your reasons in the space provided below.)

(a) P'S SPOUSE		
Full name	NRIC/FIN/Passport No.	Age

(b) P'S PARENTS		
Full name	NRIC/FIN/Passport No.	Age

(c) P'S CHILDREN		
Full name	NRIC/FIN/Passport No.	Age

(d) P'S SIBLINGS		
Full name	NRIC/FIN/Passport No.	Age

(e) OTHER RELEVANT PERSONS WHO ARE LIKELY TO HAVE AN INTEREST IN AN APPLICATION CONCERNING P (e.g. persons who have a close relationship with P, persons who have a legal duty to support P, persons who will benefit from P's estate, persons who are responsible for P's care)			
Full name	NRIC/FIN/Passport No.	Age	Relationship to P

(f) Have you obtained the consent of the Relevant Persons named above? ☐ Yes ☐ No You will normally have to obtain the consent of the Relevant Persons named above. If you have not done so, please explain why.
--

8. **INFORMATION ABOUT ORDERS REQUESTED**

(a) Of all relevant persons, why are you best suited to be appointed the Deputy/Deputies for the patient?

(Please state the reasons why you believe the Court should appoint you as Deputy/Deputies)

(b) What is your proposed plan for the care of P? (“care arrangements”)

(c) What is your proposed plan for the management of P’s property and affairs? (“financial management plan”)

(d) Why do you require an Order under the Mental Capacity Act at this point in time?

(Please state the circumstances that may have required or led to this application being filed.)

9. I confirm that:

- (a) there are no other relevant persons who may be interested in this application;
- (b) there are no other relatives or friends who have a close relationship with P;
- (c) there are no other persons who have a legal duty to support P;
- (d) there are no other persons who will benefit from P’s estate; and
- (e) there are no other persons who are responsible for P’s care.

10. I declare and undertake as follows:

- (a) I understand my responsibilities if I am appointed as Deputy or Successor Deputy. In particular, I understand that I must act with honesty and integrity and ensure that my personal interests do not conflict with my duties as P’s deputy, and I will not use my position for any personal benefit.

- (b) I will have regard to the Mental Capacity Act Code of Practice and act in accordance with the principles of the Mental Capacity Act. In particular, I will act and make decisions for P in P's best interests.
- (c) I will inform the Public Guardian if I have any reason to believe that P no longer lacks capacity and may be able to make his own decisions about the matters for which a deputy is sought to be appointed. I understand that I will not have the power to make a decision on P's behalf in relation to a matter if I know or have reasonable ground for believing that P has capacity in relation to the matter.

11. I confirm that the documents exhibited herein and marked as "A" are true copies of the originals.

12. Upon the Court declaring that P lacks capacity to make decisions about the matters set out in the Applicant's Form, I seek an order in terms of my application.

Sworn (or affirmed) by)
the abovenamed on)
this day of 20)
at Singapore)

Before me,

Commissioner for Oaths

This is the exhibit marked "A" referred to in the affidavit of
_____ [*name of applicant*] and
sworn / affirmed before me on this _____ [*date on*
which the affidavit is sworn or affirmed].

Before me,

A Commissioner for Oaths

TABLE OF CONTENTS

Document	Page No.
Documents that prove the applicant's relationship to P (e.g. Birth Certificate, Marriage Certificate, Adoption Order etc.)	
Documents relating to P's assets (e.g. bank statements, CPF statements, CDP statements, insurance documents, title search documents etc.)	
Office of the Public Guardian search result showing if P has registered a Lasting Power of Attorney	
Office of the Public Guardian search result showing if there is a past Mental Capacity Act or Mental Disorders And Treatment Act Order in respect of P	
Wills Registry search result showing if P has registered a Will	
A copy of P's will	
Other documents	

Note: Please exhibit the documents in the order listed above

Form 219

Para 54

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

OSM No.)
of 20)

In the Matter of Section 20 of the Mental Capacity Act
(Cap 177A)

And

In the Matter of _____
[*name of person alleged to lack capacity*]
(NRIC/FIN/Passport No.: _____), a person
alleged to lack capacity ("P")

[*name of applicant*]
(NRIC/FIN/Passport No.: _____)
Applicant

AFFIDAVIT

I, _____ [*name of Applicant*], of _____ [*address of Applicant*], do make oath / affirm* and say as follows:

1. I am the Applicant and I make this affidavit in support of my application.
2. The facts contained in this affidavit are within my personal knowledge or are based on documents in my possession.
3. I confirm that the information set out in this affidavit is true and correct.

4. **APPLICANT'S PARTICULARS**

(a) **Full name:**

(b) **NRIC/FIN/Passport no.:**

(c) **Age:**

(d) **Telephone number:**

(e) **Occupation:**

(f) **Name and address of employer:**

(g) **Relationship to P (i.e. the person alleged to lack capacity):**

5. **INFORMATION ABOUT P**

(a) **P's Full name:**

(b) **P's NRIC/FIN/Passport no.:**

(c) **P's Date of birth (DD/MM/YYYY):**

(d) P's Age:

(e) P's Gender: ☐ Male ☐ Female

(f) P's Marital status:

- ☐ Single
- ☐ Married
- ☐ Divorced
- ☐ Separated
- ☐ Widowed
- ☐ Unknown

(g) Address at which P is currently residing:

(h) Is P living in a nursing home? ☐ Yes ☐ No

If "Yes", please state which nursing home:

(i) Do you confirm that, to the best of your knowledge and belief, P's incapacity is as set out in the doctor's affidavit(s) and medical report(s) filed in support of your application?

- ☐ Yes ☐ No

(j) Details in respect of P's medical / nursing home bills and recurrent expenses:

(k) P's monthly income and sources of such income (to the best of your knowledge):

- (l) **P's assets and up to date value (to the best of your knowledge) of these assets:**

Assets <i>(e.g. bank accounts, CPF accounts, insurance policies, stocks and shares, property etc.)</i>	Value
TOTAL	

- (m) **Please indicate which options are applicable and provide details where applicable (to the best of your knowledge)**

- ☐ P has no outstanding debts or liabilities
☐ P's debts or liabilities are as follows:

Information about loan / debt <i>(e.g. creditor, reason for loan/debt etc.)</i>	Amount owed

- (n) **Please indicate which options are applicable and provide details where applicable (to the best of your knowledge)**

- ☐ P has not received and is not going to receive any form of compensation or award of damages
☐ P has received or is going to receive the following compensation or award of damages:

Information about compensation <i>(e.g. nature of claim etc.)</i>	Amount

- (o) **LASTING POWER OF ATTORNEY**

(Please indicate which of the following is applicable)

☐ **P made a Lasting Power of Attorney and the Registration No. is:**

☐ **P made an instrument intended to create a Lasting Power of Attorney but it has not been registered yet**

☐ **P has not made a Lasting Power of Attorney and, as far as I am aware, P has not make an instrument intended to create a Lasting Power of Attorney**

(p) Has P made a will? ☐ Yes ☐ No ☐ I do not know

- (q) **PREVIOUS LEGAL APPLICATIONS CONCERNING P**
(Please indicate which of the following is applicable)
- ☐ There has been no application or order made relating to P under the Mental Capacity Act as well as the repealed Mental Disorders and Treatment Act
- ☐ There was an application or order made relating to P under the Mental Capacity Act or the repealed Mental Disorders and Treatment Act in case no. _____

6. **INFORMATION ABOUT RELEVANT PERSONS**

(Please do not leave any blanks. Please state "Nil" if there is no one in the category in question. If a Relevant Person has passed away, please state the person's name and indicate "(deceased)" after the name.)

(a) P'S SPOUSE		
Full name	NRIC/FIN/Passport No.	Age

(b) P'S PARENTS		
Full name	NRIC/FIN/Passport No.	Age

(c) P'S CHILDREN		
Full name	NRIC/FIN/Passport No.	Age

(d) P'S SIBLINGS		
Full name	NRIC/FIN/Passport No.	Age

(e) OTHER RELEVANT PERSONS WHO ARE LIKELY TO HAVE AN INTEREST IN AN APPLICATION CONCERNING P (e.g. persons who have a close relationship with P, persons who have a legal duty to support P, persons who will benefit from P's estate, persons who are responsible for P's care)			
Full name	NRIC/FIN/ Passport No.	Age	Relationship to P

7. I confirm that I am authorised to make this application and the declarations contained herein on behalf of _____ [*name of P's hospital / nursing home*] and I further confirm that the aforesaid institution undertakes to make the requisite refunds to P in the event of a wrongful payment and/or overpayment.
8. I confirm that the documents exhibited herein and marked as "A" are true copies of the originals.
9. Upon the Court declaring that P lacks capacity to make decisions about the matters set out in the Applicant's Form, I seek an order in terms of my application.

Sworn (or affirmed) by)
the abovenamed on)
this day of 20)
at Singapore)

Before me,
Commissioner for Oaths

This is the exhibit marked “A” referred to in the affidavit of
_____ [*name of applicant*] and
sworn / affirmed before me on this _____ [*date on*
which the affidavit is sworn or affirmed].

Before me,

A Commissioner for Oaths

TABLE OF CONTENTS

Document	Page No.
Documents relating to P's assets (where available) (e.g. bank statements, CPF statements, CDP statements, insurance documents, title search documents etc.)	
Documents relating to P's medical / nursing home expenses (e.g. invoices etc.)	
Office of the Public Guardian search result showing if P has registered a Lasting Power of Attorney	
Office of the Public Guardian search result showing if there is a past Mental Capacity Act or Mental Disorders And Treatment Act Order in respect of P	
Wills Registry search result showing if P has registered a Will	
Other documents	

Note: Please exhibit the documents in the order listed above.

Form 220

Para 54

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

OSM No.)
of 20)

In the Matter of Section 20 of the Mental Capacity
Act (Cap 177A)

And

In the Matter of _____
[*name of person alleged to lack capacity*]
(NRIC/FIN/Passport No.: _____), a person
alleged to lack capacity ("P")

[*name of applicant*]
(NRIC/FIN/Passport No.: _____) *Applicant*

AFFIDAVIT

I, _____ *[name of Successor Deputy]*, of
_____ *[address of Successor Deputy]*,
do make oath / affirm* and say as follows:

1. I am the Successor Deputy proposed to be appointed to make decisions and act on P's behalf.
2. The facts contained in this affidavit are within my personal knowledge or are based on documents in my possession.
3. I confirm that the information set out in paragraphs 4, 5 and 6 below is true and correct.
4. **SUCCESSOR DEPUTY'S PARTICULARS**

(a) **Full name:**

(b) **NRIC/FIN/Passport no.:**

(c) **Date of birth (DD/MM/YYYY):**

(d) **Age:**

(e) **Gender:** ☐ Male ☐ Female

(f) **Telephone number:**

(g) **Occupation:**

(h) **Name and address of employer:**

(i) Monthly income:

Source of Income <i>(eg. Salary, insurance, government payouts, ental etc.)</i>	Value
TOTAL	

(j) Relationship to P (i.e. the person alleged to lack capacity):

- ☐ Spouse
- ☐ Child
- ☐ Parent
- ☐ Sibling
- ☐ Friend
- ☐ Others – please specify: _____

5. **INFORMATION ABOUT SUCCESSOR DEPUTY**

(a) Please indicate which options are applicable to you

- ☐ I am not an undischarged bankrupt
- ☐ I am not facing any bankruptcy actions
- ☐ I have not been appointed as a Donee or Deputy for someone else

(b) Please indicate which option is applicable to you

- ☐ I declare that I do not have any outstanding loans or debts at all
- ☐ I declare that I do not have any outstanding loans or debts except for the following loans / debts, and I further declare that I am able to pay my loans and debts as and when they become due and payable.

Information about loan / debt	Amount owed
--------------------------------------	--------------------

<i>(e.g. creditor, reason for loan/debt etc.)</i>	

(c) PREVIOUS LEGAL APPLICATIONS CONCERNING APPLICANT(S) AND/OR P

(Please indicate which of the following is applicable)

☐ **Have you and/or P been involved in any kind of court proceedings (e.g. criminal, tribunal, civil or family proceedings)?**

☐ **Yes** ☐ **No**

If yes, please provide details below:

6. INFORMATION ABOUT P

(a) P's Full name:

(b) P's NRIC/FIN/Passport no.:

7. I understand the nature of the order which is applied for in these proceedings.

- (b)** I have read and understood all the contents of the Originating Summons and the supporting affidavits.
- (c)** I consent to the Originating Summons filed in these proceedings.
- (d)** I consent to the dispensation of service of the Originating Summons, supporting affidavits and all subsequent documents filed in these proceedings on me*. *(please delete if not applicable)*

8. I declare and undertake as follows:
 - (a) I understand my responsibilities if I am appointed as Successor Deputy. In particular, I understand that I must act with honesty and integrity and ensure that my personal interests do not conflict with my duties as P's deputy, and I will not use my position for any personal benefit.
 - (b) I will have regard to the Mental Capacity Act Code of Practice and act in accordance with the principles of the Mental Capacity Act. In particular, I will act and make decisions for P in P's best interests.
 - (c) I will inform the Public Guardian if I have any reason to believe that P no longer lacks capacity and may be able to make his own decisions about the matters for which a deputy is sought to be appointed. I understand that I will not have the power to make a decision on P's behalf in relation to a matter if I know or have reasonable ground for believing that P has capacity in relation to the matter.
9. I confirm that the documents exhibited herein and marked as "A" are true copies of the originals.

Before me,

Commissioner for Oaths

This is the exhibit marked “A” referred to in the affidavit of
_____ [*name of successor deputy*]
and sworn / affirmed before me on this _____ [*date*
on which the affidavit is sworn or affirmed].

Before me,

A Commissioner for Oaths

TABLE OF CONTENTS

Document	Page No.
Documents that prove the successor deputy's relationship to P (e.g. Birth Certificate, Marriage Certificate, Adoption Order etc.)	
Other documents	

Note: Please exhibit the documents in the order listed above.

Form 221

Para 51, 53

**CONSENT TO ORIGINATING SUMMONS AND
DISPENSATION OF SERVICE OF DOCUMENTS**

IN THE FAMILY JUSTICE COURTS OF
THE REPUBLIC OF SINGAPORE

OSM No.)
of 20)
(Seal))

In the Matter of Section [section no] of the Mental Capacity
Act (Cap177A)

And

In the Matter of [*name of person alleged to lack capacity*](ID
No.:), a person alleged to lack capacity (“P”)

Between

(Name and ID No.:) ... Plaintiff⁺

And

(Name and ID No.:) ... Defendant

CONSENT

I [*name and ID number of relevant person*], of [*state address*] being the [*state nature of
relationship with P*] of P state as follows:

OR

We, as the relevant persons whose details are listed in the table below, state as follows:

Name	ID No.	Address	Nature of relationship to P

1. I/We* understand the nature of the order which is applied for in these proceedings.
2. I/We* have read, considered and understood all the contents of the Originating Summons and the supporting affidavits and I/we* consent to the Originating

Summons filed / to be filed* in these proceedings.

[If the relevant person(s) is/are only consenting to a part of the Originating summons, to state the prayers in the Originating Summons which the relevant person(s) is/are consenting to.]

3. I/We* consent to the dispensation of service of the Originating Summons, supporting affidavits and all subsequent documents filed in these proceedings on me/us.*
4. I/We* confirm that I am /we are* aware of my/our* right to seek independent legal advice.

Sworn (or affirmed) by the)
abovenamed on)
this day of 20)
at Singapore)

Through the interpretation of (name and
designation of person who interpreted) in
(language of interpretation)*

Before me,

Commissioner for Oaths

⁺ To use "Applicant" if this is an ex parte application

[#] To delete if this is an ex parte application.

*Delete where inapplicable.

Para 50

NOTICE TO RELEVANT PERSONS

To: [Name of Relevant Person]
[Address of Relevant Person]

APPLICATION UNDER MENTAL CAPACITY ACT (CAP 177A)

1. You have been served with an Originating Summons and the supporting affidavits. The plaintiff/applicant* is making an application for [*state nature of application*].
2. If you consent to the application, you should sign a written consent in Form 221 in Appendix A of these Practice Directions before a solicitor, a Commissioner for Oaths, a notary public or any person for the time being authorised by law in the place where the document is executed to administer oaths. You should then return the completed and signed consent form to the plaintiff/applicant* or the plaintiff's /applicant's* solicitors.

[Note: *If the relevant person is an organisation providing residential accommodation to P, the above paragraph 2 is to be deleted and substituted with the following paragraph:-*

If you wish to furnish any relevant information for the Court's consideration and determination of the application in the best interests of P, you may prepare a report through one of your representatives. The report shall be submitted to the Family Justice Courts with a cover letter addressed to the Registrar of the Family Justice Courts and stating clearly the Originating number (OSM No.) and the names of P and the plaintiff/applicant*. You must notify the Court by way of letter (stating clearly the Originating Summons number and the names of P and the plaintiff/applicant) within 8 days of the date on which you were served with this Originating Summons that you wish to submit such a report. If such a report is submitted, the Court may require and direct for the attendance of the maker of the report at the hearing of the Originating Summons.]

3. If you intend to contest the application or any part of it, you are required to file an application in Form 4 in Appendix A of these Practice Directions to seek the permission of the Court to be joined as a party to the proceedings. This application must be

supported by an affidavit stating your interest in the application and the grounds of your objection. The application must be filed using the Electronic Filing Service[#] within 21 days after the date on which you were served with this Originating Summons.

[Note: If the relevant person is an organisation providing residential accommodation to P, the above paragraph 3 is to be deleted.]

4. If you do not attend personally or by your solicitor at the time and place stated in the Originating Summons, such order may be made as the Court may think just and expedient.

[Note: If the relevant person is an organisation providing residential accommodation to P, the above paragraph 4 is to be deleted.]

5. This Originating Summons is filed by [name of firm], the plaintiff's/applicant's* solicitor whose address is [state address].

(or where the plaintiff/applicant* acts in person)

This Originating Summons is filed by the plaintiff/applicant* who resides at [address] and (if the plaintiff/applicant* does not reside within the jurisdiction) whose address for service is [state address within the jurisdiction].

Name and Signature

Plaintiff/Applicant* OR Solicitors for the Plaintiff/Applicant*

** To delete where inapplicable.*

[#] To file a document using the Electronic Filing Service, you may use any established or authorised service bureau. The operating hours, addresses and contacts of the service bureaux may be found at www.elitigation.sg.

Form 223

Para 52

(Title as in cause or matter.)

CERTIFICATE OF NOTIFICATION

I, [*name of person effecting the notification*] (ID No. _____), certify that I have notified the abovenamed P of this Originating Summons on [*date*] at [*address where notification took place*]. The notification complies with rule 181 of the Family Justice Rules and Paragraph 52 of these Practice Directions. In particular, P was notified of [*please specify the matters which P was notified of*].

Dated this day of 20

Signature and name of person effecting notification

Form 224

Para 54

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

OSM No.)
of 20)

In the Matter of Section 20 of the Mental
Capacity Act (Cap 177A)

And

In the Matter of _____
[*name of person alleged to lack capacity*]
(NRIC/FIN/Passport No.: _____), a
person alleged to lack capacity (“P”)

[*name of applicant*]
(NRIC/FIN/Passport No.: _____)
Applicant

AFFIDAVIT

I, _____ [*name of Doctor*], of
_____ [*address of Doctor*], do
make oath / affirm* and say as follows:

1. I am a registered medical practitioner in Singapore.
2. The facts contained in this affidavit and the medical report exhibited herein are within my personal knowledge or are based on documents in my possession.
3. I confirm that the medical report exhibited herein and marked as “A” is mine and that I accept full responsibility for the said report.
4. I am aware that my report is being adduced for the purpose of obtaining a declaration that the person who is the subject of this application, i.e. P, lacks capacity in relation to matters specified in the application.

Sworn (or affirmed) by)
the abovenamed on)
this day)
of 20)

at Singapore)

Before me,

Commissioner for Oaths

This is the exhibit marked “A” referred to in the affidavit
of _____ [*name of doctor*]
and sworn / affirmed before me on this _____
[*date on which the affidavit is sworn or affirmed*].

Before me,

A Commissioner for Oaths

MEDICAL REPORT

The entries in this form should be typed and not handwritten

SECTION 1: PATIENT'S PARTICULARS

Full name of patient:

NRIC/FIN/Passport no. of patient:

Age of patient:

SECTION 2: DOCTOR'S PARTICULARS

Full name of doctor:

NRIC/FIN/Passport no. of doctor:

MCR no. of doctor:

Hospital / Clinic name and address:

Doctor's qualifications and experience in this area of work:

Doctor-patient relationship:

Please state if you have been seeing the patient regularly over a period of time (if so, please state when you first started seeing the patient and how often you see the patient) or if you saw the patient specifically for this mental capacity assessment only.

SECTION 3: PATIENT'S MEDICAL INFORMATION**Patient's clinical history:**

Please note that you should provide sufficient detail to support your opinion in respect of P's mental capacity.

Please also state the source of the information (e.g. from medical records, from the patient, from the applicant etc.).

Findings from physical examination / mental state examination:

Please note that you should provide sufficient detail to support your opinion in respect of P's mental capacity.

Please also note that there should not be an overly long period between the date of examination of P and the date of this report.

Date of physical examination / mental state examination:

Relevant investigation results:

Diagnosis:

SECTION 4: OPINION ON PATIENT'S MENTAL CAPACITY

OPINION ON PATIENT'S MENTAL CAPACITY IN RELATION TO PERSONAL WELFARE

If you are unable to state "Yes" or "No" in respect of a particular question, please state your opinion of P in respect of that item and provide sufficient supporting information.

In your opinion, can the patient understand information relevant to a decision relating to his or her personal welfare?

☐ Yes ☐ No

In your opinion, can the patient retain information long enough to make a decision relating to his or her personal welfare?

☐ Yes ☐ No

In your opinion, can the patient weigh information as part of the process of making a decision relating to his or her personal welfare?

☐ Yes ☐ No

In your opinion, can the patient communicate his or her decision relating to his or her personal welfare?

☐ Yes ☐ No

Taking into consideration the above, in your opinion, does the patient have mental capacity in respect of personal welfare?

☐ Yes ☐ No

OPINION ON PATIENT'S MENTAL CAPACITY IN RELATION TO PROPERTY AND AFFAIRS

If you are unable to state "Yes" or "No" in respect of a particular question, please state your opinion of P in respect of that item and provide sufficient supporting information.

In your opinion, can the patient understand information relevant to a decision relating to his or her property and affairs?

☐ Yes ☐ No

In your opinion, can the patient retain information long enough to make a decision relating to his or her property and affairs?

☐ Yes ☐ No

In your opinion, can the patient weigh information as part of the process of making a decision relating to his or her property and affairs?

☐ Yes ☐ No

In your opinion, can the patient communicate his or her decision relating to his or her property and affairs?

☐ Yes ☐ No

Taking into consideration the above, in your opinion, does the patient have mental capacity in respect of property and affairs?

☐ Yes ☐ No

Please state the basis of your opinion above in respect of the patient's mental capacity:

PROGNOSIS

In your opinion, is the patient likely to regain mental capacity?

☐ Yes ☐ No ☐ Not Sure

If “Yes” or “Not Sure”, please suggest when another assessment of the patient’s mental capacity should be carried out:

In your opinion, would the patient understand if he/she were to be informed of this application?

☐ Yes ☐ No

Are you aware of any other doctor who holds a different professional opinion regarding the patient’s mental capacity? If so, please provide details:

SECTION 5: DECLARATION

I have read and understood the provisions in sections 3, 4 and 5 of the Mental Capacity Act.

I understand that my medical report has to contain sufficient detailed information about P's condition to support my opinion of P's mental capacity.

I believe in the correctness of the opinion set out herein.

I understand that in giving this report my duty is to the Court and I confirm that I have complied with this duty.

Signature: _____

Name: _____

Date: _____

Explanatory notes:

1. *“Personal welfare” refers to matters such as deciding where to live and consenting to medical and dental treatment.*
2. *“Property and affairs”, as the name implies, refers to matters concerning the patient’s financial affairs and property.*
3. *When giving your opinion on the patient’s mental capacity, please note that where it is not patently obvious from the clinical history and examination that the patient has or lacks capacity, you will need to explain the basis for your opinion.*

Section 3 of the Mental Capacity Act

- (1) *The following principles apply for the purposes of this Act.*

(2) A person must be assumed to have capacity unless it is established that he lacks capacity.

(3) A person is not to be treated as unable to make a decision unless all practicable steps to help him to do so have been taken without success.

(4) A person is not to be treated as unable to make a decision merely because he makes an unwise decision.

(5) An act done, or a decision made, under this Act for or on behalf of a person who lacks capacity must be done, or made, in his best interests.

(6) Before the act is done, or the decision is made, regard must be had to whether the purpose for which it is needed can be as effectively achieved in a way that is less restrictive of the person's rights and freedom of action.

Section 4 of the Mental Capacity Act

(1) For the purposes of this Act, a person lacks capacity in relation to a matter if at the material time he is unable to make a decision for himself in relation to the matter because of an impairment of, or a disturbance in the functioning of, the mind or brain.

(2) It does not matter whether the impairment or disturbance is permanent or temporary.

(3) A lack of capacity cannot be established merely by reference to —

(a) a person's age or appearance; or

(b) a condition of his, or an aspect of his behaviour, which might lead others to make unjustified assumptions about his capacity.

(4) In proceedings under this Act (other than proceedings for offences under this Act), any question whether a person lacks capacity within the meaning of this Act must be decided on the balance of probabilities.

(5) Subject to section 21, no power which a person ("D") may exercise under this Act —

(a) in relation to a person who lacks capacity; or

(b) where D reasonably thinks that a person lacks capacity, is exercisable in relation to a person below 21 years of age.

Section 5 of the Mental Capacity Act

- (1) *For the purposes of section 4, a person is unable to make a decision for himself if he is unable —*

 - (a) *to understand the information relevant to the decision;*
 - (b) *to retain that information;*
 - (c) *to use or weigh that information as part of the process of making the decision; or*
 - (d) *to communicate his decision (whether by talking, using sign language or any other means).*
- (2) *A person is not to be regarded as unable to understand the information relevant to a decision if he is able to understand an explanation of it given to him in a way that is appropriate to his circumstances (using simple language, visual aids or any other means).*
- (3) *The fact that a person is able to retain the information relevant to a decision for a short period only does not prevent him from being regarded as able to make the decision.*
- (4) *The information relevant to a decision includes information about the reasonably foreseeable consequences of —*

 - (a) *deciding one way or another; or*
 - (b) *failing to make the decision.*

Form 225

Para 63

SUPPORTING AFFIDAVIT FOR APPLICATION FOR GRANT

(Title as in the action)

SUPPORTING AFFIDAVIT

I/We*, (name(s) of applicants)) (ID No.) of (address(es) of applicant(s)), Singapore, do make oath (or affirm) and say as follows:

- (1) The Statement exhibited as “A” is the same Statement that was generated by the Electronic Filing Service and no changes have been made. The contents entered into the Electronic Filing Service, which now appear in the Statement, are true and accurate to the best of my/our* knowledge and belief.
- (2) The documents exhibited and marked “B” have been accepted by the Court and the contents of the documents are to the best of my/our* knowledge and belief in all respects true.

Sworn (or affirmed) by the)
abovenamed on)
this day of 20)
at Singapore)

Through the interpretation of (name and
designation of person who interpreted) in
(language of interpretation)*

Before me,

Commissioner for Oaths

**Delete where inapplicable*

Form 226

SCHEDULE OF ASSETS

Para 67

[FOR DEATH ON OR AFTER 15 FEBRUARY 2008]¹

(Title as in the action)

SCHEDULE OF ASSETS

A. Deceased's Property in Singapore	Market Value as at Date of Death (S\$) <i>(without deducting the debts due or owing from the deceased)</i>
Gross value²	
B. Outstanding Debts in Singapore which are Secured by Mortgage <i>(For immovable property only)</i>	Amount
Net Estate Value³	
C. Deceased's Property outside Singapore <i>(for deceased person domiciled in Singapore at date of death)</i>	Market Value as at Date of Death (S\$)

¹ This form is to be annexed to an affidavit and filed separately with the Courts as well. It will be annexed to the grant of representation

² Please state the total for Section A.

³ Please deduct the amount for Section B from the total for Section A.

Form 227

Para 74

**ORIGINATING SUMMONS FOR LEAVE UNDER SECTION 121D OF
THE WOMEN'S CHARTER (CHAPTER 353)**

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

OSF. No.)
of 20)

In the Matter of Section 121D of the Women's
Charter (Chapter 353)

Between

(ID No.:) ... Plaintiff

And

(ID No.:) ...

Defendant

EX PARTE ORIGINATING SUMMONS

To : The Defendant(s)
 [Name]
 of [Address]

The Plaintiff applies for the following orders :

1. That leave be granted to the Plaintiff to file an application for financial relief against the Defendant under Section 121B of the Women's Charter;
2. Any such further or other order as this Honourable Court deems fit;
3. Costs.

Dated this day of 20

Registrar

Note:

1. Unless otherwise provided in any written law, the applicant intending to adduce evidence in support of the hearing of the originating summons must do so by affidavit or affidavits, and such affidavit(s) must be filed with the Court at the time of filing of the originating summons.

Form 228

Para 74

**PLAINTIFF'S AFFIDAVIT FOR LEAVE UNDER SECTION 121D OF
THE WOMEN'S CHARTER (CHAPTER 353)**

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

OSF. No.)
of 20)

In the Matter of Section 121D of the Women's
Charter (Chapter 353)

Between

(ID No.:) ... Plaintiff

And

(ID No.:) ... Defendant

AFFIDAVIT

I, (Name of deponent), of (address of deponent), do make oath (or affirm)* and say as follows:

1. I am the Plaintiff and I make this affidavit in support of my application for leave to file an application for financial relief under Section 121B of the Women's Charter.

Parties' particulars (including details of marriage)

2. (Please provide parties' particulars and details of their marriage, including date and place of marriage).

Particulars relating to divorce, annulment or judicial separation

3. (Please provide particulars relating to the divorce, annulment or judicial separation and evidence that the divorce, annulment or judicial separation is recognised as valid in Singapore under Singapore law).

Particulars of children (if any)

4. (Please provide particulars of children including age, gender, and whether children are schooling or working).

Grounds on which the Court has jurisdiction to hear the application

5. (Please state which of the parties was domiciled in Singapore on the date of this application or which of the parties was domiciled in Singapore on the date the divorce, annulment or judicial separation was granted in the foreign country. Alternatively, which of the parties was habitually resident in Singapore for a continuous period of 1 year immediately preceding the date of filing this application or was resident in Singapore for a continuous period of 1 year immediately preceding the date on which the foreign divorce, annulment or judicial separation was granted.)

Foreign orders made and financial relief received by plaintiff and children

6. (Please state if there are any orders or agreements relating to financial relief made in relation to the foreign divorce, annulment or judicial separation and the details of the orders or agreements).
7. (Please state the extent to which the order or agreement has been complied with by the defendant).
8. (Please state if the plaintiff or a child of the marriage has received or is likely to receive any financial benefit in consequence of the divorce, annulment or judicial separation, by virtue of any agreement or the operation of the law of a foreign country and the details of the financial benefit)

Financial relief which had not been dealt with by the foreign order

9. (Please state if there are any rights of the plaintiff which has been omitted in the foreign order and the reason for the omission.)
10. (Please state the availability in Singapore of any matrimonial asset in respect of which an order under section 121G of the Women's Charter in favour of the applicant could be made).

Grounds for application

11. (Please state the grounds for application).

Attachments

12. I also attach herewith the following documents in support of my application:
 - a. a draft copy of the application to be filed under Section 121B;
 - b. a copy of the foreign decree of divorce or annulment of marriage or judicial separation;
 - c. any relevant decision or order made by the foreign court requiring any party to the marriage to make payment to the other party or transfer any matrimonial asset to either of the parties or to a child of the marriage; and
 - d. any relevant agreement relating to financial relief between the parties.I am praying for order in terms of the prayers sought in my application.

Form 229

Para 74

**PLAINTIFF'S AFFIDAVIT FOR APPLICATION UNDER SECTION
121B OF THE WOMEN'S CHARTER (CHAPTER 353)**

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

OSF. No.)
of 20)

In the Matter of Section 121B of the Women's
Charter (Chapter 353)

Between

(ID No.:) ... Plaintiff

And

(ID No.:) ... Defendant

AFFIDAVIT

I, [Name of deponent], of [address of deponent], do make oath (or affirm)* and say as follows:

1. I am the Plaintiff and I make this affidavit in support of my application.

Parties' particulars (including details of marriage)

2. (Please provide parties' particulars and details of their marriage (including date and place of marriage)).

Particulars relating to divorce, annulment or judicial separation

3. (Please provide particulars relating to the divorce, annulment or judicial separation).

Particulars of children (if any)

4. (Please provide particulars of children including age, sex, whether children are schooling or working).

Connection to Singapore

5. (Please state connection which the parties to the marriage have with Singapore).

*Connection with country in which marriage was dissolved or annulled or in which
judicial separation was obtained*

6. (Please state the connection between parties and the country in which the marriage was dissolved or annulled or judicial separation was obtained).

Connection that parties have with any other foreign country

7. (Please state the parties' connection with any other foreign country).

Foreign orders made and financial relief received by plaintiff and children

8. (Please state if there are any orders or agreements relating to financial relief made in relation to the foreign divorce, annulment or judicial separation and the details of the orders or agreements).
9. (Please state the extent to which the order or agreement has been complied with by the defendant).
10. (Please state if the applicant or a child of the marriage has received or is likely to receive any financial benefit in consequence of the divorce, annulment or judicial separation, by virtue of any agreement or the operation of the law of a foreign country and the details of the financial benefit)

Financial relief which had not been dealt with by the foreign order

11. (Please state if there are any rights of the plaintiff which has been omitted in the foreign order.)
12. (Please state the availability in Singapore of any matrimonial asset in respect of which an order under section 121G in favour of the applicant could be made).

Extent to which any order under Section 121G is likely to be enforceable

13. (Please state the extent to which any order under Section 121G is likely to be enforceable).

Length of time elapsed

14. (Please state the length of time which has elapsed since the date of the foreign divorce, annulment or judicial separation and the reason for the time taken for this application).

Grounds for application

15. (Please state the grounds for application).

Attachments

16. I also attach herewith the following documents in support of my application:-
- a. a copy of the foreign decree of divorce or annulment of marriage or judicial separation;
 - b. any relevant decision or order made by the foreign court requiring any party to the marriage to make payment to the other party or transfer any matrimonial asset to either of the parties or to a child of the marriage; and
 - c. any relevant agreement relating to financial relief between the parties.
17. I am praying for order in terms of the prayers sought in my application.

SWORN (or AFFIRMED) by the)
Plaintiff at)

on the day of 20)

Before me,

A Commissioner for Oaths

**Delete where inapplicable*

Form 230

[deleted]

Form 231

Para 80

**NOTICE TO PRODUCE DOCUMENTS REFERRED TO
IN PLEADINGS OR AFFIDAVITS**

(Title as in action)

Take notice that the Plaintiff/Defendant/Other party [*to specify*]* requires you to produce for his inspection, the following documents referred to in your pleading (or affidavit) namely:

(Describe documents required and set them out in a table).

S/No.	Document	Filing date, name of pleading/ deponent of affidavit and number of affidavit in relation to the deponent*, in which document is referred to	Page and paragraph number of pleading/affidavit* where reference to document is made

*Delete where inapplicable

Dated this day of 20 .

Solicitor for the

To the Solicitor for

Form 232

Para 80

NOTICE WHERE DOCUMENTS MAY BE INSPECTED

(Title as in action)

Take notice that the following documents mentioned in your notice of [*to state date*] may be inspected at [*to state place of inspection*] on the [*to state date*] between the hours of [*to state times*].*

(Describe documents which may be inspected and set them out in table form.)

S/No.	Document	Filing date, name of pleading/ deponent of affidavit and number of affidavit in relation to the deponent*, in which document is referred to	Page and paragraph number of pleading/affidavit* where reference to document is made

Take notice that the Plaintiff/Defendant/Other Party [*to specify*]* objects to giving inspection of the following documents mentioned in your notice of [*to state date*].*

(Describe documents in respect of which inspection is objected to, and set them out in table form, setting out the grounds of objection in respect of each document).

S/No.	Document	Filing date, name of pleading/ deponent of affidavit and number of affidavit in relation to the deponent*, in which document is referred to	Page and paragraph number where reference to pleading/ affidavit is made	Reasons for objection to inspection

*Delete where inapplicable

Dated this day of 20 .

Solicitor for the

To the Solicitor for

Form 233

Para 80

REQUEST FOR DISCOVERY

(Title as in action)

The Plaintiff/Defendant/Other Party [*to specify*]* is requested to state, pursuant to Rule 63(4) of the Family Justice Rules**, in respect of each of the following documents, whether he is willing and able to provide discovery of the same, and, if so, to specify in what mode he is willing to provide such discovery (for example, by exhibiting the documents in an affidavit to be filed in court, by forwarding copies of the documents to the other party, by making the documents available to the other party for inspection):

(Describe the documents required and set them out in table form.)

S/No.	Document	Time-frame for which documents are requested (where applicable)	Reason for request	Paragraph(s) and page(s), filing date, deponent of affidavit (which relates to the request) and number of affidavit in relation to the deponent (where applicable)

*Delete where inapplicable

Dated this day of 20 .

Solicitor for the

To the Solicitor for

Form 234

Para 80

NOTICE IN RESPONSE TO REQUEST FOR DISCOVERY

(Title as in action)

The Plaintiff/Defendant/Other Party [*to specify*]* is willing and able to provide discovery of the following documents:*

(Describe the documents to be discovered and set them out in table form.)

S/No.	Document	Time-frame (where applicable)	Mode in which discovery will be provided

The Plaintiff/Defendant/Other Party [*to specify*]* is not willing and/or not able to provide discovery of the following documents*:

(Describe the documents which the party is not willing and/or not able to provide discovery of and set them out in table form.)

S/No.	Document	Time-frame (where applicable)	Reason for not being willing and/or able to provide discovery

*Delete where inapplicable

Dated this day of 20 .

Solicitor for the

To the Solicitor for

Form 235

Para 80

REQUEST FOR INTERROGATORIES

(Title as in action)

The Plaintiff/Defendant/Other Party [*to specify*]* is requested to answer the following interrogatories on affidavit, to the best of his knowledge, information and belief, pursuant to Rule 69 of the Family Justice Rules:

(Set out the interrogatories in the form of concise questions. Each interrogatory is to be set out in a separate paragraph and numbered consecutively, in table form.)

S/No.	Interrogatory	Reason for Interrogatory	Paragraph(s) and page(s), filing date, deponent of affidavit (which relates to the request) and number of affidavit in relation to the deponent (where applicable)

*Delete where inapplicable

Dated this day of 20 .

Solicitor for the

To the Solicitor for

Form 236

Para 80

NOTICE IN RESPONSE TO REQUEST FOR INTERROGATORIES

(Title as in action)

*The Plaintiff/Defendant/Other Party [*to specify*]* will answer the following interrogatories on affidavit, to the best of his knowledge, information and belief:

Items [*to specify*] listed in your request for interrogatories dated [*to state date*].

*The Plaintiff/Defendant/Other Party [*to specify*]* objects to answering the following interrogatories:

(Set out the interrogatories objected to, in table form.)

S/No.	Interrogatory	Reason for objection to the interrogatory

*Delete where inapplicable

Dated this day of 20 .

Solicitor for the

To the Solicitor for

Form 237

Para 80

APPLICATION FOR DISCOVERY

(Title as in action)

SUMMONS

1. [Format as in Form 4 of Appendix A of Practice Directions**]

2. Orders Applied For

(a) That the Plaintiff/Defendant/Other Party [to specify]* be required :

- (i) To state on affidavit, pursuant to Rule 63(1) of the Family Justice Rules**, in respect of each of the following documents, whether the same is in his possession, custody or power, and if not then in his possession, custody or power, when he parted with it and what has become of it;
- (ii) To exhibit in the affidavit a copy of each of the said documents stated to be in his possession, custody or power, pursuant to paragraph (a)(i) above; and
- (iii) In respect of each of the said documents stated not to be in his possession, custody or power, pursuant to paragraph (a)(i) above, to state the reasons why, together with supporting documentation for the explanation (if any).

(b) That the affidavit under paragraph (a) above is to be filed and served by [to state date].

(Describe the documents required and set them out in table form).

S/No.	Document	Time-frame for which documents are requested (where applicable)	Reason for request	Paragraph(s) and page(s), filing date, deponent of affidavit (which relates to the request) and number of affidavit in relation to the deponent (where applicable)

3. Etc. *[Format as in Form 4 of Appendix A of Practice Directions**]*

Dated this day of 20 .

Solicitor for the

To the Solicitor for

*Delete where inapplicable

Form 238

Para 80

APPLICATION FOR INTERROGATORIES

(Title as in action)

SUMMONS

1. *[Format as in Form 4 of Appendix A of Practice Directions**]*
2. Orders Applied For
 - (a) That the Plaintiff/Defendant/Other Party *[to specify]** be required to answer the following interrogatories on affidavit, to the best of his knowledge, information and belief, pursuant to Rule 69 of the Family Justice Rules.
 - (b) That the affidavit under paragraph (a) above is to be filed and served by *[to state date]*.

(Set out the interrogatories in the form of concise questions. Each interrogatory is to be set out in a separate paragraph and numbered consecutively, in table form.)

S/No.	Interrogatory	Reason for Interrogatory	Paragraph(s) and page(s), filing date, deponent of affidavit (which relates to the request) and number of affidavit in relation to the deponent (where applicable)

3. Etc. *[Format as in Form 4 of Appendix A of Practice Directions]*

Dated this day of 20 .

Solicitor for the

To the Solicitor for

*Delete where inapplicable

Form 239

Para 84

**INJUNCTION PROHIBITING DISPOSAL OF ASSETS WORLDWIDE
IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE**

Suit No.

Between

[Intended] Plaintiff

And

[Intended] Defendant

BEFORE THE HONORABLE JUSTICE/DISTRICT JUDGE*
_____ IN CHAMBERS

**INJUNCTION PROHIBITING DISPOSAL
OF ASSETS WORLDWIDE**

IMPORTANT:-

NOTICE TO THE DEFENDANT

- (1) This order prohibits you from dealing with your assets up to the amount stated. The order is subject to the exceptions stated at the end of the order. You should read all the terms of the order very carefully. You are advised to consult a solicitor as soon as possible. You have a right to ask the Court to vary or discharge this order.**
- (2) If you disobey this order you will be guilty of contempt of Court and may be sent to prison or fined.¹**

¹ This notice is not a substitute for the endorsement of a penal notice.

THE ORDER

An application was made today [date] by counsel for ... the plaintiff to Justice/District Judge* [] by way of ex-parte summons no. _____ of _____. Justice/District Judge* [] heard the application and read the affidavit(s) of [name] filed on [date].

As a result of the application **IT IS ORDERED** by Justice/District Judge* [] that:

Disposal of assets

- 1 (1) The defendant must not (i) remove from Singapore any of his assets which are in Singapore whether in his own name or not and whether solely or jointly owned up to the value of \$ _____ or (ii) in any way dispose of or deal with or diminish the value of any of his assets whether they are in or outside Singapore whether in his own name or not and whether solely or jointly owned up to the same value. This prohibition includes the following assets in particular:-
 - (a) the property known as ... or the net sale money after payment of any mortgages if it has been sold;
 - (b) the property and assets of the defendant's business known as ... (or carried on at ..) or the sale money if any of them have been sold; and
 - (c) any money in the accounts numbered at
- (2) If the total unencumbered value of the defendant's assets in Singapore exceeds \$ _____ the defendant may remove any of those assets from Singapore or may dispose of or deal with them so long as the total unencumbered value of his assets still in Singapore remains above \$ _____. If the total unencumbered value of the defendant's assets in Singapore does not exceed \$ _____, the defendant must not remove any of those assets from Singapore and must not dispose of or deal with any of them, but if he has other assets outside Singapore the defendant may dispose of or deal with those assets so long as the total unencumbered value of all his assets whether in or outside Singapore remains above \$ _____.

Disclosure of information

- 2 (1) The defendant must inform the plaintiff in writing at once of all his assets whether in or outside Singapore and whether in his own name or not and whether solely or jointly owned, giving the value, location and details of all such assets.
- (2) The information must be confirmed in an affidavit which must be served on the plaintiff's solicitors within ... days after this order has been served on the defendant.

EXCEPTIONS TO THIS ORDER

- (1) This order does not prohibit the defendant from spending \$ a week towards his ordinary living expenses and also \$ a week [or a reasonable sum] on legal advice and representation. But before spending any money the defendant must tell the plaintiff's solicitors where the money is to come from.
- (2) This order does not prohibit the defendant from dealing with or disposing of any of his assets in the ordinary and proper course of business. The defendant shall account to the plaintiff [state interval] for the amount of money spent in this regard.
- (3) The defendant may agree with the plaintiff's solicitors that the above spending limits should be increased or that this order should be varied in any other respect but any such agreement must be in writing.

EFFECT OF THIS ORDER

- (1) A defendant who is an individual who is ordered not to do something must not do it himself or in any other way. He must not do it through others acting on his behalf or on his instructions or with his encouragement.
- (2) A defendant which is a corporation and which is ordered not to do something must not do it itself or by its directors, officers, employees or agents or in any other way.

THIRD PARTIES

- (1) Effect of this order
It is a contempt of Court for any person notified of this order knowingly to assist in or permit a breach of the order. Any person doing so may be sent to prison or fined.
- (2) Effect of this order outside Singapore

The terms of this order do not affect or concern anyone outside the jurisdiction of this Court until it is declared enforceable or is enforced by a Court in the relevant country and then they are to affect him only to the extent they have been declared enforceable or have been enforced **UNLESS** such person is:

- (a) a person to whom this order is addressed or an officer or an agent appointed by power of attorney of such a person; or
- (b) a person who is subject to the jurisdiction of this Court and (i) has been given written notice of this order at his residence or place of business within the jurisdiction of this Court and (ii) is able to prevent acts or omissions outside the jurisdiction of this Court which constitute or assist in a breach of the terms of this order.

(2A) Assets located outside Singapore

Nothing in this order will, in respect of assets located outside Singapore, prevent any third party from complying with:

- (a) what it reasonably believes to be its obligations, contractual or otherwise, under the laws and obligations of the country or state in which those assets are situated or under the proper law of any contract between itself and the defendant; and
- (b) any orders of the Courts of that country or state, provided that reasonable notice of any application for such an order is given to the claimant's solicitor.

(3) Set off by banks

This injunction does not prevent any bank from exercising any right of set off it may have in respect of any facility which it gave to the defendant before it was notified of the order.

(4) Withdrawals by the defendant

No bank need enquire as to the application or proposed application of any money withdrawn by the defendant if the withdrawal appears to be permitted by this order.

SERVICE OUT OF THE JURISDICTION AND SUBSTITUTED SERVICE

- (1) The plaintiff may serve the writ of summons on the defendant at ... by [mode of service].
- (2) If the defendant wishes to defend the action he must enter an appearance within days of being served with the writ of summons.]

UNDERTAKINGS

The plaintiff gives to the Court the undertakings set out in Schedule 1 to this order.

DURATION OF THIS ORDER

This order will remain in force until the trial or further order.

VARIATION OR DISCHARGE OF THIS ORDER

The defendant (or anyone notified of this order) may apply to the Court at any time to vary or discharge this order (or so much of it as affects that person), but anyone wishing to do so must inform the plaintiff's solicitors.

NAME AND ADDRESS OF PLAINTIFF'S SOLICITORS

The plaintiff's solicitors are:-

[Name of lawyer(s) having conduct of action or charge of matter.]

[Name of law firm.]

[Address of law firm.]

Tel: [Contact telephone number.]

Fax: [Contact facsimile number.]

Ref: [File reference of law firm.]

INTERPRETATION OF THIS ORDER

- (1) In this order references to "he", "him" or "his" include "she" or "her" and "it" or "its".
- (2) Where there are 2 or more defendants then (unless the context indicates differently)
 - (a) References to "the defendants" mean both or all of them;
 - (b) An order requiring "the defendants" to do or not to do anything requires each defendant to do or not to do the specified thing; and
 - (c) A requirement relating to service of this order, or of any legal proceedings, on "the defendants" means service on each of them.]

Dated this ____ day of ____, 20 ____ .

Registrar

SCHEDULE 1

Undertakings given to the Court by the plaintiff

- (1) If the Court later finds that this order has caused loss to the defendant, and decides that the defendant should be compensated for that loss, the plaintiff shall comply with any order the Court may make.
- (2) The plaintiff, in respect of any order the Court may make pursuant to paragraph (1) above, will:
 - (a) on or before [date] provide to the defendant security in the sum of [\$] by causing [payment to be made into Court / a bond to be issued by an insurance company with a place of business within Singapore / a written guarantee to be issued from a bank with a place of business within Singapore / payment to the plaintiff's solicitor to be held by the solicitor as an officer of the Court pending further order]*; and
*(*Delete where appropriate)*
 - (b) cause evidence of the provision of security to be extended to the defendant immediately after the security has been put up.
- (3) As soon as practicable the plaintiff shall [issue and] serve on the defendant [a] [the] writ of summons [in the form of the draft writ produced to the Court] [claiming appropriate relief] together with this order.
- (4) The plaintiff shall cause an affidavit to be sworn and filed [substantially in the terms of the draft affidavit produced to the Court] [confirming the substance of what was said to the Court by the plaintiff's solicitors].
- (5) As soon as practicable the plaintiff shall serve on the defendant a copy of the affidavits and exhibits containing the evidence relied on by the plaintiff.
- (6) Anyone notified of this order will be given a copy of it by the plaintiff's solicitors.
- (7) The plaintiff shall pay the reasonable costs of anyone other than the defendant which have been incurred as a result of this order including the costs of ascertaining whether that person holds any of the defendant's assets and if the Court later finds that this order has caused such person loss, and decides that such person should be compensated for that loss, the plaintiff will comply with any order the Court may make.
- (8) If this order ceases to have effect, the plaintiff will immediately take all reasonable steps to inform in writing anyone to whom he has given notice of this order, or who he has reasonable grounds for supposing may act upon this order, that it has ceased to have effect.
- (9) The plaintiff shall not without the leave of the Court begin proceedings against the defendant in any other jurisdiction or use information obtained as a result of an order of the Court in this jurisdiction for the purpose of civil or criminal proceedings in any other jurisdiction.

- (10) The plaintiff shall not without the leave of the Court seek to enforce this order in any country outside Singapore [or seek an order of a similar nature including orders conferring a charge or other security against the defendant or the defendant's assets].

Para 84

**INJUNCTION PROHIBITING DISPOSAL OF ASSETS IN SINGAPORE
IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE**

Suit No.

Between

[Intended] Plaintiff

And

[Intended] Defendant

BEFORE THE HONORABLE JUSTICE/DISTRICT JUDGE* _____ IN
CHAMBERS

**INJUNCTION PROHIBITING DISPOSAL OF ASSETS
IN SINGAPORE**

IMPORTANT:-

NOTICE TO THE DEFENDANT

- (1) This order prohibits you from dealing with your assets up to the amount stated. The order is subject to the exceptions stated at the end of the order. You should read all the terms of the order very carefully. You are advised to consult a solicitor as soon as possible. You have a right to ask the Court to vary or discharge this order.
- (2) If you disobey this order you will be guilty of contempt of Court and may be sent to prison or fined.⁷

⁷ This notice is not a substitute for the indorsement of a penal notice

THE ORDER

An application was made today [date] by counsel for ... the plaintiff to Justice/District Judge* [] by way of ex-parte summons no. _____ of _____. Justice/District Judge* [] heard the application and read the affidavit(s) of (name) filed on (date).

As a result of the application IT IS ORDERED by Justice/District Judge* [] that:

Disposal of assets

- 1 (1) The defendant must not remove from Singapore in any way dispose of or deal with or diminish the value of any of his assets which are in Singapore whether in his own name or not and whether solely or jointly owned up to the value \$. This prohibition includes the following assets in particular
 - (a) the property known as ... or the net sale money after payment of any mortgages if it has been sold;
 - (b) the property and assets of the defendant's business known as ... (or carried on at ..) or the sale money if any of them have been sold; and
 - (c) any money in the accounts numbered at
- (2) If the total unencumbered value of the defendant's assets in Singapore exceeds \$, the defendant may remove any of those assets from Singapore or may dispose of or deal with them so long as the total unencumbered value of his assets still in Singapore remain above \$.

Disclosure of information

- 2 The defendant must inform the plaintiff in writing at once of all his assets in Singapore whether in his own name or not and whether solely or jointly owned, giving the value, location and details of all such assets. The information must be confirmed in an affidavit which must be served on the plaintiffs solicitors within ... days after this order has been served on the defendant.

EXCEPTIONS TO THIS ORDER

- (1) This order does not prohibit the defendant from spending \$ a week towards his ordinary living expenses and also \$ a week [or a reasonable sum] on legal advice and representation. But before spending any money the defendant must tell the plaintiff's solicitors where the money is to come from.
- (2) This order does not prohibit the defendant from dealing with or disposing of any of his assets in the ordinary and proper course of business. The defendant shall account to the plaintiff [state interval] for the amount of money spent in this regard.
- (3) The defendant may agree with the plaintiff's solicitors that the above spending limits should be increased or that this order should be varied in any other respect but any such agreement must be in writing.

EFFECT OF THIS ORDER

- (1) A defendant who is an individual who is ordered not to do something must not do it himself or in any other way. He must not do it through others acting on his behalf or on his instructions or with his encouragement.
- (2) A defendant which is a corporation and which is ordered not to do something must not do it itself or by its directors, officers, employees or agents or in any other way.

THIRD PARTIES

- (1) Effect of this order
It is a contempt of Court for any person notified of this order knowingly to assist in or permit a breach of the order. Any person doing so may be sent to prison or fined.
- (2) Set off by banks
This injunction does not prevent any bank from exercising any right of set off it may have in respect of any facility which it gave to the defendant before it was notified of the order.
- (3) Withdrawals by the defendant
No bank need enquire as to the application or proposed application of any money withdrawn by the defendant if the withdrawal appears to be permitted by this order.

[SERVICE OUT OF THE JURISDICTION AND SUBSTITUTED SERVICE]

- (1) The plaintiff may serve the writ of summons on the defendant at ... by (mode of service).
- (2) If the defendant wishes to defend the action he must enter an appearance within days of being served with the writ of summons.]

UNDERTAKINGS

The plaintiff gives to the Court the undertakings set out in Schedule 1 to this order.

DURATION OF THIS ORDER

This order will remain in force until the trial or further order.

VARIATION OR DISCHARGE OF THIS ORDER

The defendant (or anyone notified of this order) may apply to the Court at any time to vary or discharge this order (or so much of it as affects that person), but anyone wishing to do so must inform the plaintiff's solicitors.

NAME AND ADDRESS OF PLAINTIFF'S SOLICITORS

The plaintiff's solicitors are:-

[Name of lawyer(s) having conduct of action or charge of matter.]

[Name of law firm.]

[Address of law firm.]

Tel: [Contact telephone number.]

Fax: [Contact facsimile number.]

Tlx: [Contact telex number and answer back code.]

Ref: [File reference of law firm.]

[INTERPRETATION OF THIS ORDER]

- (1) In this order references to “he”, “him” or “his” include “she” or “her” and “it” or “its”.
- (2) Where there are 2 or more defendants then (unless the context indicates differently)
 - (a) References to “the defendants” mean both or all of them;
 - (b) An order requiring “the defendants” to do or not to do anything requires each defendant to do or not to do the specified thing; and

- (c) A requirement relating to service of this order or of any legal proceedings on “the defendants” means service on each of them.]

Dated this day of , 20 .

Registrar

SCHEDULE 1

Undertakings given to the Court by the plaintiff

- (1) If the Court later finds that this order has caused loss to the defendant, and decides that the defendant should be compensated for that loss, the plaintiff shall comply with any order the Court may make.
- [(2) The plaintiff, in respect of any order the Court may make pursuant to paragraph (1) above, will:
 - (a) on or before [date] provide to the defendant security in the sum of [\$] by causing [payment to be made into Court / a bond to be issued by an insurance company with a place of business within Singapore / a written guarantee to be issued from a bank with a place of business within Singapore / payment to the plaintiff's solicitor to be held by the solicitor as an officer of the Court pending further order]*; and
(*Delete where appropriate)
 - (b) cause evidence of the provision of security to be extended to the defendant immediately after the security has been put up.]
- (3) As soon as practicable the plaintiff shall [issue and] serve on the defendant [a] [the] writ of summons [in the form of the draft writ produced to the Court] [claiming appropriate relief] together with this order.
- (4) The plaintiff shall cause an affidavit to be sworn and filed [substantially in the terms of the draft affidavit produced to the Court] [confirming the substance of what was said to the Court by the plaintiff's solicitors].
- (5) As soon as practicable the plaintiff shall serve on the defendant a copy of the affidavits and exhibits containing the evidence relied on by the plaintiff.
- (1) Anyone notified of this order shall be given a copy of it by the plaintiff's solicitors.
- (2) The plaintiff shall pay the reasonable costs of anyone other than the defendant which have been incurred as a result of this order including the costs of ascertaining whether that person holds any of the defendant's assets and if the Court later finds that this order has caused such person loss, and decides that such person should be compensated for that loss, the plaintiff will comply with any order the Court may make.
- (3) If this order ceases to have effect, the plaintiff will immediately take all reasonable steps to inform in writing anyone to whom he has given notice of this order, or who he has reasonable grounds for supposing may act upon this order, that it has ceased to have effect.

Form 241

Para 86

NOTICE OF PRE-TRIAL CONFERENCE

(Title as in action or proceedings)

To

Take notice that you are required to attend before the Judge (or Registrar) on (date/time) for a pre-trial conference.

And further take notice that you are required to comply with the following directions:

Dated this day of 20 .

Registrar.

Form 242

Para 86

ANCILLARY MATTERS FACT AND POSITION SHEET

(Title as in action)

Party Filing this Ancillary Matters Fact and Position Sheet: Plaintiff/Defendant*

A. DIVISION OF MATRIMONIAL ASSETS

I. Matrimonial Home (See Annex A for Other Real Property)

Address of matrimonial home:

[to specify]

S/No.	Item	Information	Affidavit reference or supporting document
1	Valuation/Surrender value		<i>[In this column, state exactly where the document may be found, giving the page number of the relevant affidavit or bundle of documents, as appropriate.]</i>
2	Current outstanding loan (state amount and date on which that amount is outstanding)		
3	Plaintiff's total CPF contributions	Principal: Interest: Total:	
4	Defendant's total CPF contributions	Principal: Interest: Total:	
5	Plaintiff's total cash contributions towards purchase		
6	Defendant's total cash contributions towards purchase		
7	Any other contributions towards this property by Plaintiff, e.g. renovations, furniture, etc.		

S/No.	Item	Information	Affidavit reference or supporting document
8	Any other contributions towards this property by Defendant, e.g. renovations, furniture, etc.		

State what party wants in respect of the matrimonial home, and how sale proceeds, if any, are to be split between parties:
[to specify]

II. Other Property Owned By This Party (Excluding Real Property)

S/No.	Item	Value of property	Affidavit reference or supporting document
	<i>[In this column, state the nature of the property: i.e. CPF monies in the party's CPF Accounts, insurance policies, retirement/gratuity benefits etc. For example, ABC Bank account no. 1111111.]</i>	<i>[In this column, also state the date for which the value of the property is given. For example, S\$400 as at 1 January 2006.]</i>	<i>[In this column, state exactly where the document may be found, giving the page number of the relevant affidavit or bundle of documents, as appropriate.]</i>

State what this party wants as regards above assets:
[to specify]

III. Other Property Owned By the Other Party (Plaintiff/Defendant*)

S/No.	Item	Value of property	Affidavit reference or supporting document
	<i>[In this column, state the nature of the property: i.e. CPF monies in party's Ordinary Account, insurance policies, etc. For example, ABC Bank account no. 1111111.]</i>	<i>[In this column, also state the date for which the value of the property is given. For example, S\$400 as at 1 January 2006.]</i>	<i>[In this column, state exactly where the document may be found, giving the page number of the relevant affidavit or bundle of documents, as appropriate.]</i>

State what this party wants as regards the other party's above assets:
[to specify]

B. MAINTENANCE

S/No.	Item	Information	Affidavit reference or supporting document
1	Party's income		<i>[In this column, state exactly where the document may be found, giving the page number of the relevant affidavit or bundle of documents, as appropriate.]</i>
2	Party's occupation		
3	Party's total monthly expenses		<i>[State where the breakdown of the party's expenses can be found.]</i>
4	Children's total monthly expenses	<i>[State sub-total for each child, followed by the total amount for all children.]</i>	<i>[State where the breakdown of the children's expenses can be found.]</i>
5	Existing maintenance order/existing voluntary payment for wife/incapacitated husband*		
6	Existing maintenance order/existing voluntary payment for children*		
7	Existing maintenance order/existing voluntary payment for household*		

I. Maintenance of children

State how the children's total expenses should be divided (i.e. whether parties are to bear them equally, whether one party is to bear all the expenses, whether the expenses are to be divided 70:30, etc.):

[to specify]

II. Maintenance of wife/incapacitated husband*

State the amount the wife/incapacitated husband is asking for maintenance: *[to specify]*

State the amount being offered (if any) for the wife's/incapacitated maintenance: *[to specify]*

C. ISSUES RELATING TO THE CHILDREN

Number of children: *[to specify]*

Names and ages of each child:

Name of child	Age

I. Custody

State what this party wants regarding custody: *[to specify]*

II. Care and Control

State what this party wants regarding care and control: *[to specify]*

III. Access

1. State what this party wants regarding access if:

a. he/she* is the parent with care and control

School term access:

School holiday access:

Public holiday access:

Others:

b. he/she* is not the parent with care and control

School term access:

School holiday access:

Public holiday access:

Others:

2. Proposed handover venue and person to hand over the children: *[to specify]*

3. State the terms of any interim custody and access order/who presently has care and control of children and any existing access arrangements*: *[to specify]*

* *Delete where inapplicable*

Annex A - Other Real Property

State, in respect of each property:

Address:

Valuation/Surrender value:

S/No.	Item	Information	Affidavit reference or supporting document
1	Valuation/Surrender value		<i>[In this column, state exactly where the document may be found, giving the page number of the relevant affidavit or bundle of documents, as appropriate.]</i>
2	Current outstanding loan (state amount and exact date on which that amount is outstanding)		
3	Plaintiff's total CPF contributions	Principal: Interest: Total:	
4	Defendant's total CPF contributions	Principal: Interest: Total:	
5	Plaintiff's total cash contributions towards purchase		
6	Defendant's total cash contributions towards purchase		
7	Any other contributions towards this property by Plaintiff, e.g. renovations, furniture, etc.		
8	Any other contributions towards this property by Defendant, e.g. renovations, furniture, etc.		

State what this party wants in respect of the property, and how sale proceeds, if any, are to be divided between parties:

Form 243

Para 86(5)(b)

JOINT SUMMARY
(of parties' respective positions as at DDMMYY)
(TITLE AS IN ACTION)

Section 1: Background information

S/No	Particulars	Husband	Wife	Remarks
1.	Current age of parties (birth date in brackets)			
2.	Date of Marriage			
3.	Date of Interim Judgment - including period of separation (if applicable)			
4.	Occupation and educational /professional qualifications where applicable			
5.	Monthly Income (based on average annual income of SGD ____ including bonuses based on latest Notice of Assessment)			(include Pg Ref to CB if applicable)

Section 2: Children's issues**2a. Details of children:**

Full Name	Birth date	Age (this calendar year)	Remarks (include educational/ professional qualifications where applicable)

2b. Proposals: (State each party's position on the issues; if grandparents are involved in the care plan, please state age of grandparents and details of involvement)

	Husband's position on custody, care and control and access
(i)	
	Wife's position on custody, care and control and access
(ii)	

Section 3: Division of Assets

The full address of each immovable property (including the matrimonial home and all other properties) is to be listed. The date of purchase and purchase price, and if sold, the date of sale and sale price should be listed in the “applicable “remarks” column.

A liability which is related to an asset must be reflected together with the asset. An example is the mortgage loan.

A standalone liability must be stated as a negative value. An example is a personal loan.

An asset/liability should only be stated once in Section 3 and should not be duplicated in multiple sections. For example, a mortgage loan related to the matrimonial home should not be reflected separately as a standalone liability.

State only quantifiable assets in Sections 3a to c. Quantifiable assets include assets where a party asserts/claims to be of an ascertainable value. Please refer to examples in Section 3b.

State all non-quantifiable claims (unknown value or assertion of adverse inference) in Section 3e.

Any asset disputed to be a matrimonial asset should be included in this section, with the parties’ positions reflected under ‘Remarks’.

All references should be to the Core Bundle only.

Preliminary

Item	H’s position		W’s position	
Date for ascertaining pool of assets				
Date for determining value of assets				
Exchange rate to be applied (State if there is any dispute and the basis of dispute)	Currency	Rate to 1 SGD	Currency	Rate to 1 SGD
	<i>For e.g. USD</i>	<i>0.74</i>		
	<i>For e.g. RM</i>	<i>2.9</i>		

3a. Joint Assets (Quantifiable)

S/n	Asset (with related liability)	H's Value / date of valuation	Pg Ref to CB	Remarks	W's value / date of valuation	Pg Ref to CB	Remarks
(i)	<i>For e.g. Property ABC (with outstanding mortgage)</i>	<i>Gross value (-liability) NET VALUE /As at DDMMYY</i>	<i>CB pg x</i>	<i>For e.g. Purchased prior to the marriage</i>	<i>Gross value (-liability) NET VALUE /As at DDMMYY</i>	<i>CB pg x</i>	
(ii)	<i>For e.g. Company XYZ</i>	<i>Yyy / As at DDMMYY</i>	<i>CB pg x</i>		<i>Yyy / As at DDMMYY</i>	<i>CB pg x</i>	
	<u>Sub-total</u>						

3b. Husband's assets (Quantifiable)

S/n	Asset (with related liability)	H's Value / date of valuation	Pg Ref to CB	Remarks	W's value / date of valuation	Pg Ref to CB	Remarks
(iii)	<i>For e.g. CPF accounts</i>	<i>Xxx / As at DDMMYY</i>	<i>CB pg x</i>		<i>Xxx / As at DDMMYY</i>	<i>CB pg x</i>	
(iv)	<i>For e.g. Bank Account 123</i>	<i>Yyy / As at DDMMYY</i>	<i>CB pg x</i>		<i>Yyy / As at DDMMYY</i>	<i>CB pg x</i>	
(v)	<i>For e.g. Car</i>	<i>Gross value (-liability) NET VALUE</i>	<i>CB pg x</i>		<i>Gross value (-liability) NET VALUE /As at</i>	<i>CB pg x</i>	

		/As at DDMMYY			DDMMYY		
	<u>Sub-total</u>						

3c. Wife's assets (Quantifiable)

S/n	Asset (with related liability)	H's Value / date of valuation	Pg Ref to CB	Remarks	W's value / date of valuation	Pg Ref to CB	Remarks
(vi)	For e.g. CPF accounts	Xxx / As at DDMMYY	CB pg x		Xxx / As at DDMMYY	CB pg x	
(vii)	For e.g. Bank Account 123	Yyy / As at DDMMYY	CB pg x		Yyy / As at DDMMYY	CB pg x	
	<u>Sub-total</u>						

3d. Direct contributions

State parties' respective direct financial contributions to the assets stated in Sections 3a to 3c, and whether this is disputed or agreed. The s/n of each item in this section must match with the s/n of the corresponding item in Sections 3a to 3c.

S/n	Item (in accordance with 3a–3c)	H's position		Pg Refs to CB	W's position		Pg Refs to CB
		H's Direct Contributions	W's Direct Contributions		H's Direct Contributions	W's Direct Contributions	
(i)	For e.g. CPF Property ABC (with outstanding mortgage)	For e.g. 123	For e.g. 456	CB pg x	For e.g. Agreed	For e.g. Agreed	CB pg x
	For e.g. Cash downpayment Property ABC	For e.g. 123	For e.g. 456	CB pg x	For e.g. Agreed	For e.g. Agreed	CB pg x
(ii)	For e.g. Cash downpayment Company XYZ	For e.g. 123	For e.g. 456	CB pg x	For e.g. 789	For e.g. 123	CB pg x
(iii)	For e.g. Husband's CPF accounts	For e.g. 123	For e.g. 456	CB pg x	For e.g. 789	For e.g. 123	CB pg x
(iv)	For e.g. Husband's Bank Account 123	For e.g. 123	For e.g. 456	CB pg x	For e.g. Agreed	For e.g. Nil	CB pg x
(v)	For e.g. Car	For e.g. 123	For e.g. 456	CB pg x	For e.g. Agreed	For e.g. Nil	CB pg x
(vi)	For e.g. Wife's CPF accounts	For e.g. 123	For e.g. 456	CB pg x	For e.g. Agreed	For e.g. Agreed	CB pg x

(vii)	<i>For e.g. Wife's Bank Account 123</i>	<i>For e.g. 123</i>	<i>For e.g. 456</i>	<i>CB pg x</i>	<i>For e.g. Agreed</i>	<i>For e.g. Agreed</i>	<i>CB pg x</i>
(viii)	<i>Renovation</i>	<i>For e.g. 123</i>	<i>For e.g. 456</i>	<i>CB pg x</i>	<i>For e.g. Agreed</i>	<i>For e.g. Agreed</i>	<i>CB pg x</i>
	<u>Sub- total</u>						
	<u>Ratio (%)</u> <i>(This should form the basis of the ratio of direct contributions in Section 3f below)</i>						

3e. Parties' position on unquantifiable assets (if any)

State parties' positions on unquantifiable assets (if any). Include assets which value is unknown to both parties and any assertion of non-disclosure.

Ensure 'Remarks' (if any) are summarised succinctly with relevant page references to the CB where applicable.

Assertion by Husband				
S/n	Asset	H's Value	Pg Ref to CB	Remarks
(i)	<i>For e.g. W's ABC Bank account</i>	<i>For e.g. xxx</i>	<i>CB pg x</i>	
(ii)	<i>For e.g. W's ABC Company</i>	<i>For e.g. unknown</i>	<i>CB pg x</i>	
	<u>Conclusion</u>	<u>To adjust average ratio by yyy%</u>		

Assertion by Wife				
	Asset	W's value	Pg Ref to CB	Remarks
(iii)	<i>For e.g. H's ABC Bank account</i>	<i>For e.g. xxx</i>	<i>CB pg x</i>	
(iv)	<i>For e.g. H's ABC Company</i>	<i>For e.g. unknown</i>	<i>CB pg x</i>	
	<u>Conclusion</u>	<u>To adjust average ratio by yyy%</u>		

3f. Proposed structured approach ratios

State the proposed ratios, if applicable.

	Husband's Position	Wife's Position
--	--------------------	-----------------

	Husband	Wife	Husband	Wife
A. Direct Contributions	<i>For e.g. 20%</i>	<i>For e.g. 80%</i>	<i>For e.g. 0%</i>	<i>For e.g. 100%</i>
B. Indirect Contributions	<i>For e.g. 80%</i>	<i>For e.g. 20%</i>	<i>For e.g. 50%</i>	<i>For e.g. 50%</i>
C. Average Ratio	<i>For e.g. 50%</i>	<i>For e.g. 50%</i>	<i>For e.g. 25%</i>	<i>For e.g. 75%</i>
D. Final Ratio <i>(inclusive of adjustment or changes due to weightage, if any)</i>	<i>For e.g. <u>60%</u></i>	<i>For e.g. <u>40%</u></i>	<i>For e.g. <u>25%</u></i>	<i>For e.g. <u>75%</u></i>

Section 4. Maintenance for children

4a. Main proposals

	Husband's claim/offer for maintenance for the children
(i)	
	Wife's claim/offer for maintenance for the children
(ii)	

4b. Parties' positions on the children's estimated expenses

State all items indicated in both parties' affidavits without duplication.

State if each item is disputed on principle or quantum, or both, as applicable.

State clearly if the list of expenses is for each child or all children.

S/n	Item	Disputed on principle (Y/N)		Remarks	Disputed on quantum	
		H	W		Husband's estimate	Wife's estimate
(i)	<i>For e.g. Toys</i>				<i>For e.g. 500</i>	<i>For e.g. 100</i>
(ii)						
(iii)						
	<u>Total</u>					

Section 5. Maintenance for Wife / Incapacitated Husband (delete as applicable)**5a. Main proposals**

	Position of receiving spouse	Position of paying spouse
Lump sum (Multiplier x Multiplicand)		
(or) Monthly periodic sum		

5b. Parties' respective positions on the spouse's estimated expenses

State all items indicated in both parties' affidavits without duplication.

State if each item is disputed on principle or quantum, or both, as applicable.

S/n	Item	Disputed on principle (Y/N)		Remarks	Disputed on quantum	
		Y	N		Receiving spouse's estimate	Paying spouse's estimate
(i)	<i>For e.g. Clothes</i>				<i>For e.g. 500</i>	<i>For e.g. 50</i>
(ii)						
(iii)						
	<u>Total</u>					

The parties understand that the Court will rely on the parties' respective positions in this Joint Summary when determining the ancillary matters. Where this Joint Summary discloses material facts or questions of law which are agreed between the parties, the Court may make such orders on the agreed facts or questions of law.

The Plaintiff accepts the Joint Summary to be his/her binding position.

The Defendant accepts the Joint Summary to be his/her binding position.

Signed by: the Plaintiff

Dated:

Signed by: the Defendant

Dated:

Form 244

Para 86

LETTER FOR NOTIFICATION OF SYARIAH COURT PROCEEDINGS

Date

To: Officer-in-charge
Originating Summons Section
Family Justice Courts

ORIGINATING SUMMONS NO _____ OF _____
(Plaintiff) v (Defendant)
HEARING ON _____ AT _____

Pursuant to Paragraph 86(6) of the Practice Direction, I hereby inform the Registry that:-

- () No proceedings for divorce between the Plaintiff and the Defendant in the above application have been commenced in the Syariah Court.
- () Proceedings for divorce between the Plaintiff and the Defendant in the above application have been commenced in the Syariah Court on _____. The summons number is _____.
- () A decree or order for divorce between the Plaintiff and the Defendant in the above application has been made by the Syariah Court on _____.
- () A divorce between the Plaintiff and the Defendant in the above application has been registered under section 102 of the Administration of Muslim Law Act on _____.

Signature

Name of Solicitor for Plaintiff/Defendant

Name of Law Firm

Form 245

[deleted]

Form 246

Para 113

**NOTICE OF OBJECTIONS TO CONTENTS OF AFFIDAVITS OF
EVIDENCE-IN-CHIEF**

(Title as in cause or matter).

Take notice that the (plaintiff or defendant or as the case may be) intends to object to the contents of the several affidavits hereunder specified (or the identified portions thereof) at the trial or hearing of the cause or matter for which these were filed for the reasons stated below.

1. The first (or second or as the case may be) affidavit of (name of deponent) filed on (date) on behalf of the (plaintiff or defendant or as the case may be).

OR

1. Paragraphs 1, 2 and 3, and exhibits AB-1 and AB-2 of the first (or second or as the case may be) affidavit of (name of deponent) filed on (date) on behalf of the (plaintiff or defendant or as the case may be).

The grounds for this objection are (state the grounds).

Dated this day of , 20 .

Solicitors for

Form 246A

Para 116

Checklist For Consent Orders For Disposal or Transfer of Properties

Funded With CPF Moneys

How To Use This Checklist:

1. You will have to sign this Checklist if:
 - a) You or the other party are going to apply for a **consent order** (“**Order**”) dealing with changes in ownership (e.g. sell, transfer etc.)¹ of a property (the “**Property**”) under section 112 or 121G of the Women’s Charter ; **and**
 - b) Central Provident Fund (“**CPF**”) moneys have been withdrawn from any CPF account(s) in respect of the Property and/or the Property has been pledged to make up your or the other party’s applicable retirement sum (applicable only if you are aged 55 and above).
2. You do **not** need to sign this Checklist if the order is for the Property to be transferred (other than by way of sale) with **partial or no CPF** refunds.
3. The signed Checklist must be submitted to the courts at the same time as when you are submitting the draft consent order.

Important Notes:

- A. Once the Court has granted the Order, it should be promptly served on the Central Provident Fund Board² (the “**CPF Board**”) before the change in ownership of the Property.
- B. Changes in ownership of any HDB Flats will be subject to HDB rules and regulations.
- C. For more options on the division of CPF-related matrimonial assets, e.g. transferring a property (other than by way of sale) with partial or no refunds, please refer to the CPF Board’s Suggested Clauses in Order of Court available at the Family Justice Courts’ website.

¹ Including sale, surrender, assignment, transfer other than by way of sale, compulsory acquisition and other changes in ownership of the Property.

² Please refer to:

- (a) Regulation 7 of the CPF (Division of Fund-Related Assets in Matrimonial Proceedings) Regulations; and
- (b) Regulation 13 of the CPF (Lifelong Income Scheme) Regulations.

Parties/lawyers are required to serve the sealed copy of the order of court on the CPF Board in the manner stated in the Regulations. Please also refer to the CPF Board’s online service for “Submit court order for division of matrimonial assets”.

Checklist

1. I understand that the required CPF refunds must be made according to CPF laws dealing with refund of CPF moneys <u>at the time of completion of the transaction leading to the change in ownership of the Property</u>.	☐
2. I understand that the <u>transaction leading to the change in ownership</u> of the Property cannot be completed if the required CPF refunds have <u>not</u> been made. If the proceeds are not enough to make the refunds, any shortfall must be topped up in <u>one lump sum in cash</u> on the date of completion of the Property transaction.	☐
3. I understand that the total amount to be refunded upon sale of the Property, or transfer of the Property other than by way of sale with full CPF refunds, will generally be: a) the total amount(s) of CPF moneys used to buy the Property together with accrued interest; and b) any amount(s) for which the Property is pledged (if applicable) in order to make up the applicable retirement sum³. <i>Notes:</i> i) <i>If the Property is sold at or above market value and the sales proceeds after paying the outstanding housing loan (and HDB resale levy if applicable) are not enough to refund (a) plus (b), the shortfall need not be topped up in cash.</i> ii) <i>The amount of required CPF refunds may differ depending on the transaction leading to change in ownership of the Property. For information on the required CPF refunds from sale of part share of the Property or other Property transactions not stated here (e.g. surrender, compulsory acquisition etc.), please refer to the CPF Board's website or contact the CPF Board.</i>	☐
4. I have checked⁴ and I know the following: a) the total amount(s) of CPF moneys used to buy the Property together with accrued interest; b) any amounts for which the Property is pledged (if applicable) in order to make up the applicable retirement sum; and c) that I have to share CPF information with the other party as required by the Family Justice Act, Family Court Practice Directions and the courts.	☐
5. I know that until the date of <u>the transaction leading to the change in ownership</u> of the Property: a) the amount of CPF moneys used for the Property may increase due to more CPF withdrawals being made or decrease due to voluntary housing refunds being made; b) interest will continue to accrue until the date of <u>completion of the transaction leading to the change in ownership</u>; and	☐

³ The Property may have been pledged under the CPF Act to make up the applicable retirement sum. Please check with the other co-owners and the CPF Board as to whether any CPF refunds need to be made in respect of the pledge.

⁴ Parties should frequently check their updated CPF Information in their CPF account(s) as all such information would be current at the date of viewing. Hence, the amounts may change over time.

c) there may be refunds from financiers if excess CPF moneys have been paid to them.	
--	--

As a result, the amount to be refunded may be different on the date of completion of the transaction leading to the change in ownership as compared to the amount calculated as at the date I signed this Checklist	
---	--

IMPORTANT: Please note that every case depends on its facts and is subject to prevailing laws, including CPF rules and regulations, as may be amended from time to time. If you are in doubt, please contact the CPF Board for clarifications on CPF-related matters.

I have read and I understand this Checklist.
--

 Party's Signature

Name:

NRIC / Passport no.:

Date:

Form 247

Para 121

REQUEST FOR ATTENDANCE OF THE BAILIFF

[Title as in cause or matter]

I, [name of party making request], being [the plaintiff or the defendant or the plaintiff's employee or as the case may be (or the solicitor for the plaintiff or the defendant or the plaintiff's employee as the case may be)], hereby request that the Bailiff do attend at [the address for the attendance] on [the desired date and time of attendance] for the purpose of [the reason for the attendance].

I undertake to pay the fees prescribed by Part 19 of the Family Justice Rules in respect of the attendance requested above.

Date this day of 20 .

(Signature of declarant)
(Name of firm of solicitors)
(if declarant is a solicitor)

Form 248

Para 122

(Title as in the action)

**QUESTIONNAIRE FOR THE EXAMINATION OF (NAME OF
INDIVIDUAL JUDGMENT DEBTOR)**

Please be informed that you, (name of judgment debtor), have been summoned by the abovementioned judgment creditor to attend at the Family Justice Courts on (date and time) to —

- (a) provide answers to the questions set out herein; and
- (b) produce documents set out below:
 - (i) your bank statements for the past 6 months;
 - (ii) your payslips for the past 3 months;
 - (iii) your income tax returns and Form IR8A for the last period of assessment;
 - (iv) your last 3 statements from the Central Provident Fund (CPF) Board;
 - (v) your last 3 statements from the Central Depository (CDP) and/or your securities broker or fund manager in respect of your shares, bonds and/or unit trusts;
 - (vi) your motor vehicle log card/printout of your vehicle registration details and hire purchase agreement in respect of your motor vehicle;
 - (vii) your lease agreements, title deeds or certificates of title in respect of your properties, or your rental agreements.

Please answer these questions carefully as the Court will require you to confirm on oath that your answers are true to the best of your knowledge, information and belief. Please bring this completed questionnaire and the documents with you at the Court hearing.

IMPORTANT NOTICE: You are required to attend the hearing unless you have obtained the consent of the judgment creditor to dispense with your attendance in Court or to discharge the Order requiring your attendance. If you fail to attend the hearing without obtaining the consent of the judgment creditor, the judgment creditor may commence committal proceedings against you for your failure to attend Court. The penalty that may be imposed by Court for such failure is fine and/or imprisonment.

You may therefore wish to contact the solicitor for the judgment creditor (name of law firm and solicitor having conduct of the case) at (address and telephone contact no.) to obtain the consent of the judgment creditor for the necessary dispensation and discharge. You may also choose to engage your own solicitor to advise you on your rights and duties in relation to these proceedings.

Personal particulars

1.	Full Name:
2.	NRIC/Passport No.:
3.	Home Address:
4.	Mobile Number:
5.	Email Address:

Work particulars

6.	Occupation:
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7	If you are an employee, please state the following:
(a)	the name and address of your employer;
(b)	your monthly income; and
(c)	when your monthly income is paid to you and how you are paid (whether by GIRO or otherwise).

 Income includes salary, allowances, commissions and bonuses

8.	If you are self-employed, please state the following:
(a)	the name and address of your business (sole proprietorship or partnership);
(b)	the nature of the business; and
(c)	your monthly income including salary, allowances, commissions and bonuses.

9. Aside from your income from your employment, please state all your other sources of income and the amount received.

 Sources of income includes rental, dividends, royalties from intellectual property.

Particulars of your Debtors

10. Please state whether you have any debtors.
Yes / No. If yes, please provide the details in Annex A

 Debtors are people who owe you money.

Particulars of your immovable properties situated locally or overseas

11. Please state the following if you own any immovable property locally or overseas:

(a) the address(es) of property owned;

(b) the names of joint-owners (if any); and

(c) the names of mortgagee/chargee (if any) and the amount outstanding.

 Immoveable property means houses, apartments etc.

12. Please state if you are leasing any immovable property.

Yes / No. If yes, please provide the details in Annex B.

13. Please state if you have any tenants/subtenants in respect of your owned or leased properties.

Yes/No. If yes, please provide the details in Annex B.

Particulars of your motor vehicles

14.	Please state if you own a motor vehicle.
Yes/No.	If yes, please provide the details in Annex B.

Particulars of your bank accounts

15.	Please state the following if you have any bank accounts or safe deposit boxes:
(a)	name and branch of the Bank where your account or safe deposit box is maintained;
(b)	the account number;
(c)	type of account held (e.g. current, savings, fixed deposit, overdraft);
(d)	name of joint account holder (if any);
(e)	the balance due to you at this date (for fixed deposits, please state the date of maturity and the amount due to you at that date)

 Bank accounts include accounts held in your sole name or jointly with others.

Particulars of your other assets

16.	Please state if you have any insurance policies.
Yes/No.	If yes, please provide details in Annex C
17.	Please state if you own any shares and/or unit trusts.
Yes/No.	If yes, please provide details in Annex C
18.	Please state if you are a beneficiary under any trust, will or estate in intestacy.
Yes/No.	If yes, please provide details in Annex C
19.	Please state if you are a member (whether in Singapore or overseas) of any country clubs, timeshare holiday clubs.
Yes/No.	If yes, please provide details in Annex C

20. Please state if you own any other assets, savings or investments not listed thus far (e.g. antiques, collectibles, jewellery, paintings).

Yes/No. If yes, please provide details in Annex C

21. What offer of repayment do you wish to make to the judgment creditor?

Additional questions by the judgment creditor

22. (Please state additional questions if any.)

Confirmation statement

I, _____ (name of judgment debtor and NRIC No.) confirm that my answers to the questions above are true to the best of my knowledge, information and belief.

(Signature of judgment debtor)

Dated this day of 20

ANNEX A

Particulars of Debtors and Creditors

(From Question 10)

- (1) Please list the names of your **debtors** (i.e. people who owe you money) as follows:

<u>Name</u>	<u>Contact Particulars</u>	<u>Amount owed</u>	<u>Due date for payment</u>	<u>How did the debt arise?</u>

- (2) Please state the following if you have commenced legal proceedings against your **debtors** to recover your debt:

<u>Name of Debtor</u>	<u>MC/DC/Suit No.</u>	<u>Amount claimed</u>	<u>Status of action</u>

ANNEX B

Particulars of Property Owned or Rented

(From question 12)

Please provide details of the immoveable property that you have leased out:

- (3) Name of landlord:
- (4) Address of rented property:
- (5) Period of tenancy:
- (6) Amount of monthly rental paid and due date of rental:
- (7) Whether there is any written tenancy agreement:

(From question 13)

Please provide details of the tenancy of any immoveable property that you own:

- (8) Name of tenant:
- (9) Address of tenanted property:
- (10) Period of tenancy:
- (11) Amount of monthly rental received and due date of rental:
- (12) Whether there is any written tenancy agreement:

(From question 14)

Please provide details of any motor vehicles that you own:

- (13) The registration number of the motor vehicle(s):
- (14) The colour and make of the motor vehicle(s):
- (15) Whether the motor vehicle(s) is/are on hire purchase:
- (16) If on hire purchase, the name of the finance company and the amount outstanding under the hire purchase agreement:

ANNEX C

Particulars of Other Assets

Insurance Policies (From Question 16)

<u>Name of Insurer</u>	<u>Type of policy/ Policy No.</u>	<u>Amount insured</u>	<u>Monthly premium payable</u>

- (17) Please identify the beneficiaries under your insurance policies apart from yourself:
- (18) If applicable, please state the dates when each of your insurance policies will mature and the surrender value as at this date:

Shares (From Question 17)

- (19) If you own shares, please state the name of the company and the number of shares held. If you use a securities broker, please give particulars:
- (20) If you own unit trusts, please state the name of the bank/financial institution managing your unit trusts:
- (21) Please state the estimated value of the shares/unit trusts:

Beneficiary of trust, will or estate in intestacy (From Question 18)

- (22) Please state the name of the person managing your beneficial interest i.e. your trustee, executor (where the deceased left a will) or administrator (where the deceased left no will):
- (23) Please state the name of the party leaving you the beneficial interest:
- (24) Please state the value of your interest:
- (25) If probate or letters of administration have been granted, please state the case no. for the grant:

Other Assets (From Question 20)

- (26) Please provide details of the assets listed in Question 20 and state the estimated value of each asset and the basis for the estimation:

Form 249

Para 122

(Title as in the action)

**QUESTIONNAIRE FOR THE EXAMINATION OF (NAME OF
OFFICER OF JUDGMENT DEBTOR)**

Please be informed that you, (name of officer of judgment debtor), have been summoned by the abovementioned judgment creditor to attend at the Family Justice Courts on (date and time) to:

- (a) provide answers to the questions set out herein; and
- (b) produce documents set out below:
 - (i) the Company's bank statements for the past 6 months;
 - (ii) the Company's audited returns for the last period of assessment;
 - (iii) the Company's last 3 statements from the Central Provident Fund (CPF) Board;
 - (iv) the Company's last 3 statements from the Central Depository (CDP) and/or its securities broker or fund manager in respect of its shares, bonds and/or unit trusts;
 - (v) the Company's motor vehicle log card/printout of its motor vehicle registration details and hire purchase agreement in respect of the Company's motor vehicle;
 - (vi) the Company's lease agreements, title deeds or certificates of title in respect of its properties, or its rental agreements.

Please answer these questions carefully as the Court will require you to confirm on oath that your answers are true to the best of your knowledge, information and belief. Please bring this completed questionnaire and the documents with you at the Court hearing.

IMPORTANT NOTICE: You are required to attend the hearing unless you have obtained the consent of the judgment creditor to dispense with your attendance in Court or to discharge the Order requiring your attendance. If you fail to attend the hearing without obtaining the consent of the judgment creditor, the judgment creditor may commence committal proceedings against you for your failure to attend Court. The penalty that may be imposed by Court for such failure is fine and/or imprisonment.

You may therefore wish to contact the solicitor for the judgment creditor (name of law firm and solicitor having conduct of the case) at (address and telephone contact no.) to obtain the consent of the judgment creditor for the necessary dispensation and discharge. You may also choose to engage your own solicitor to advise you on your rights and duties in relation to these proceedings.

Personal particulars

1.	Full Name:
2.	NRIC/Passport No.:
3.	Home Address:
4.	Mobile Number:
5.	Email Address:

6.	Please state the position you are holding in the Judgment Debtor (“the Company”).
----	---

Company particulars

7.	Please state if the Company is still carrying on business:
(a)	Yes/No. If yes, please state:
(i)	the business that the Company is presently engaged in;
(ii)	the present location of the Company’s business operations; and
(iii)	whether the Company is making trading profits or losses.

8. Please state whether the Company declared any dividends this year or the last year:

Yes/ No. If yes, please state when the dividends were declared, and how much was declared.

Remuneration

9. Please state if the officers of the Company, including yourself, receive remuneration for work done for the Company (i.e. salary or director's fees).

Yes/No. If yes, please state how much remuneration each officer receives.

Auditors

10. Please state the name and address of the accountants and auditors of the Company.

11. Please state the date when the accounts of the Company were last audited.

12. Please state the date when the Company last filed its Annual Returns with the Accounting and Corporate Regulatory Authority.

Particulars of the Company's Debtors

13. Please state whether anyone owes the Company money.

Yes / No. If yes, please provide the details in Annex A

14. Please state whether the Company has taken any steps to apply or is it in the process of applying to Court for a Scheme of Arrangement to compromise its debts with its creditors under the Companies Act.

Yes/No. If yes, please state particulars.

Particulars of immovable properties situated locally or overseas

15. Please state whether the Company owns any immovable property locally or overseas.

Yes/No. If yes, please provide details in Annex B.

 Immoveable property means houses, apartments etc.

16. Please state the following if the Company is leasing any immovable property:

(a) name of landlord and address of rented property;

(b) period of tenancy, amount of monthly rental paid and due date of rental; and

(c) whether there is any written tenancy agreement.

17. Please state whether the Company has any tenants/subtenants in respect of the owned or leased properties.

Yes/No. If yes, please provide details in Annex B.

Particulars of the Company's motor vehicles

18. Please state if the Company owns any motor vehicle.

Yes/No. If yes, please provide the details in Annex B.

Particulars of the Company's bank accounts

19.	Please state the following if the Company has any bank accounts (held solely and/or jointly) or safe deposit boxes:
(a)	name and branch of the Bank where the account or safe deposit box is maintained;
(b)	the account number;
(c)	type of account held (e.g. current, savings, fixed deposit, overdraft);
(d)	name of joint account holder (if any);
(e)	the balance due to the Company at this date (for fixed deposits, please state the date of maturity and the amount due to the Company at that date)

Particulars of the Company's other assets

20.	Please state if the Company has any insurance policies. Yes/No. If yes, please provide details in Annex C
21.	Please state if the Company owns any shares and/or unit trusts, Yes/No. If yes, please provide details in Annex C
22.	Please state if the Company owns any other assets, savings or investments not listed thus far. Yes/No. If yes, please provide details in Annex C

 Assets include antiques, collectibles, jewellery, paintings, royalties from intellectual property, club membership etc.]

Other Matters

23.	Are there any goods on the Company's premises that do not belong to the Company but belong to other people or are jointly owned with others? If so, please list the goods and how such ownership can be established.
-----	--

24.	What offer of repayment do you wish to make to the judgment creditor?
-----	---

Additional questions by the judgment creditor

25. (Please state additional questions if any.)

Confirmation statement

I, _____ (name of officer of judgment debtor and NRIC No.) confirm that my answers to the questions above are true to the best of my knowledge, information and belief.

(Signature of officer of judgment debtor)

Dated this day of 20

ANNEX A

Particulars of Debtors

(From Question 13)

- (1) Please list the names of the Company's **debtors** (i.e. people who owe the Company money):

<u>Name</u>	<u>Contact Particulars</u>	<u>Amount owed</u>	<u>Due date for payment</u>	<u>How did the debt arise?</u>

- (2) Please state the following if the Company has commenced legal proceedings against its debtors to recover its debt:

<u>Name of debtor</u>	<u>MC/DC/Suit No.</u>	<u>Amount claimed</u>	<u>Status of action</u>

ANNEX B

Particulars of Property Owned or Leased

(From Question 15)

- (3) Please provide details of the properties owned by the Company:
- (a) Addresses of properties owned:
 - (b) Names of joint-owners (if any):
 - (c) Names of mortgagee/chargee (if any) and amount outstanding:

(From Question 17)

- (4) Please provide details of the tenancy of any immoveable property that the Company owns:
- (a) Name of tenant and address of tenanted property:
 - (b) Period of tenancy, amount of monthly rental received and due date of rental:
 - (c) Whether there is any written tenancy agreement:

(From Question 18)

- (5) Please provide details of the vehicles the Company owns:
- (a) The registration number, make and colour of the motor vehicle(s):
 - (b) Whether the motor vehicle(s) is/are on hire purchase:
 - (c) If on hire purchase, the name of the finance company and the amount outstanding under the hire purchase agreement:

ANNEX C

Particulars of Other Assets

Insurance Policies (From Question 20)

<u>Name of insurer</u>	<u>Type of policy/ Policy No.</u>	<u>Amount insured</u>	<u>Monthly premium payable</u>

- (6) Please identify the beneficiaries under the policies apart from the Company.
- (7) If applicable, please state the dates when each of the Company's policies will mature and the surrender value as at this date.

Shares/Unit Trusts (From Question 21)

- (8) If the Company owns shares in another company, please state the name of the company and the number of shares held. If the Company has a securities broker, please provide particulars of the same:
- (9) If the Company owns unit trusts, please state the name of the bank/financial institution managing the unit trusts:
- (10) Please state the estimated value of the shares/unit trusts and the basis for estimation:

Other Assets (From Question 22)

- (11) Please provide details of the assets listed in Question 22 and state the estimated value of each asset and the basis of the estimation.

Form 250

Para 129

AFFIDAVIT VERIFYING FORM SHOWING LACK OF MEANS

I, of holder of *Singapore NRIC/Passport No.* make oath/affirm and say that the particulars contained in the Form Showing Lack of Means dated in relation to my request for waiver/deferment* and signed by me are true and complete to the best of my knowledge and belief.

Sworn/Affirmed at)
this day of20...)

Before me

.....
Commissioner for Oaths

* Delete where applicable

Note: Please note that the affidavit is to be sworn/affirmed in accordance with Form 132 of Appendix A of the Practice Directions and the above is only an illustration.

Form 251

Para 129

[Title in action]

FORM SHOWING LACK OF MEANS

NOTE: You should check if you qualify for Legal Aid (see <https://www.mlaw.gov.sg/content/lab/en/eligibility/do-i-qualify-for-legal-aid.html>) before filling this form. If you qualify for Legal Aid, you can only use this form if you have applied for Legal Aid and your application has been rejected.

Section 1

Name of applicant:

Occupation:

Contact Address:

Contact phone numbers:

Section 2

This application relates to court fees for [e.g., the filing of a notice of appeal] in the sum of S\$ _____

Please state if you are applying for waiver or deferment. [A waiver or deferment of appeal court fees will only be granted in exceptional circumstances]:

- ☐ a full waiver;
- ☐ a partial waiver of _____; or
- ☐ the payment to be deferred until _____
Date

Confirm your application status:

- ☐ I have not previously applied for a waiver or deferment

Or

☐ I applied for a waiver or deferment on _____
Date

Please confirm if you qualify for Legal Aid: ☐ Yes ☐ No

If you do not qualify for Legal Aid, briefly state the reasons why this is so:

If you qualify for Legal Aid, please confirm if you have made an application with the Legal Aid Bureau:

☐ Yes ☐ No

If you have made an application with the Legal Aid Bureau, was your application successful:

☐ Yes ☐ No

If your application with the Legal Aid Bureau was not successful, briefly state the reasons why this is so:

Section 3

Please provide the reasons for your request (for example, details of any undue financial hardship which may be suffered by you if you had to pay the court fee):

[Applicant to provide details]

Please provide information on your personal financial circumstances:

- ☐ I am not employed.
- ☐ I am employed and my total monthly income for the last 3 months is \$_____.
- ☐ I run my own business and my total monthly income is \$_____.
- ☐ I am a bankrupt and my bankruptcy number is _____.

Please attach the necessary documentation to support the information provided in this form, in particular:

- (a) To include a recent copy of your CPF Statement of Account, pay advice and a copy of your latest notice of income tax assessment; and
- (b) Please answer the following questions and support your answers with the relevant documents:
- (i) *Are you on any government financial assistance plan? If yes, please state type of assistance.*
- (ii) *Are you gainfully employed? If yes, state what your monthly income for the past 3 months is. If no, state when you were last gainfully employed and who is supporting you now.*
- (iii) *Are you suffering from any medical condition that requires long term medication or treatment? If yes, please provide us with a note from a doctor confirming that you require long term medication or treatment.*
- (iv) *Do you have any outstanding conservancy, rental, utilities or medical bills, or any other outstanding legal liabilities? If yes, please provide evidence of your liabilities.*

Please state the source(s) of your income:

- ☐ Wages or salary: _____
- ☐ Other source. (Please provide details.)

Please state other funds which you have:

Please state the assets in your ownership (e.g., house, other property, car, boat, shares):

Please state your debts and liabilities (e.g., mortgage, hire purchase, repayment of loans) below and attach the necessary documentation in support at the back of this form.

Please state the number of dependents which you have: _____

Please state your monthly living expenses:

Mortgage/rent	\$ _____
Food/groceries	\$ _____
Electricity bills	\$ _____
Phone/internet	\$ _____
Petrol/travel	\$ _____
Insurance	\$ _____
Hire purchase	\$ _____
Loan repayment	\$ _____
Others, e.g., medical	\$ _____
Total monthly expenses	\$ _____

Please state how much income the other members of your household contribute to meeting these monthly living expenses:

Please state if you are able to raise the monies from other sources, and provide details of your efforts in seeking funding.

If you are the appellant, please describe the appeal. Briefly explain the grounds of the appeal.

Name of applicant

Signature

Date

Form 252

Para 131

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Suit No. of 20

Bill of Costs No. of 20

GST Reg. No. (solicitors for *[state the party]*): *[Set out the GST number]*

GST Reg. No. (*state the party*): *[Indicate the GST number or "No GST No." and the percentage of input tax applicable to each party entitled to costs.]*

Between

..... Plaintiff(s)

And

..... Defendant(s)

BILL OF COSTS FOR CONTENTIOUS BUSINESS - TRIALS

Applicant: *[State the party for whom the bill is filed.]*

Nature of bill: *[State whether the bill is a party-and-party or solicitor-and-client bill.]*

Basis of taxation: *[State the basis of taxation, that is, standard or indemnity basis.]*

Basis for taxation: Judgment dated _____ ordering *[set out the order on costs under which the bill is to be taxed, including such details as the party who is ordered to pay costs and the party entitled to claim costs.]*

Section 1: Work done other than for taxation

No.	Item	Description	Remarks
1.	The claim		
1.1	Nature of claim	<i>[Give a brief description of the nature of claim.]</i>	
2.	Pleadings		
2.1	Writ & statement of claim	<i>[Set out the number of pages in each pleading.]</i>	

<i>No.</i>	<i>Item</i>	<i>Description</i>	<i>Remarks</i>
2.2	Defence & counterclaim	[Set out the number of pages in each pleading.]	
2.3	Reply & defence to counterclaim	[Set out the number of pages in each pleading.]	
2.4	Relief claimed	[Set out succinctly the reliefs claimed in the statement of claim and counterclaim, if any.]	
2.5	Affidavits deemed or ordered to stand as pleadings	[Set out the number of pages in each affidavit.]	
3.	Interlocutory attendances		
3.1	Interlocutory applications - costs fixed by court	[Set out in relation to each interlocutory application, the application number, the nature of the application, the number of affidavits filed, the orders made on costs and the amount of costs awarded.]	[Set out the amount of time taken for the hearing and other relevant information.]
3.2	Interlocutory applications – costs not fixed by court	[Set out in relation to each interlocutory application, the application number, the number of affidavits filed, the nature of the application and the orders made on costs.]	[Set out the amount of time taken for the hearing and such other information as will enable the court to determine the costs to award for the application.]

<i>No.</i>	<i>Item</i>	<i>Description</i>	<i>Remarks</i>
3.3	Appeals to District Judge in chambers	<i>[Set out in relation to each appeal, the appeal number, the nature of the appeal, the orders made on costs and the amount of costs awarded, if any.]</i>	<i>[Set out the amount of time taken for the hearing and such other information as will enable the court to determine the costs to award for the appeal.]</i>
3.4	Pre-trial conferences	<i>[Set out the dates of the PTCs.]</i>	<i>[Provide details if a substantial application is heard during a PTC and the amount of time taken.]</i>
3.5	Other attendances	<i>[Set out the dates and the nature of hearings if there are other attendances in court which should be taken into consideration.]</i>	<i>[Set out the amount of time taken for the hearing and such other relevant information as will enable the court to determine the costs to award for the hearing.]</i>
4.	Discovery		
4.1	Number of lists of documents	<i>[Set out the number of lists of documents, including supplementary lists, filed by each party.]</i>	
4.2	Total number of documents disclosed	<i>[Set out the number of documents, with the total number of pages, disclosed by each party.]</i>	<i>[Provide such information as is relevant, such as the number of pages that overlap.]</i>

<i>No.</i>	<i>Item</i>	<i>Description</i>	<i>Remarks</i>
5.	Trial		
5.1	Opening statement	<i>[Set out the number of pages of opening statement filed by each party.]</i>	
5.2	Number of days and date(s) of trial	<i>[Indicate the total number of days fixed for trial, the actual number of days taken and the date(s) of the trial.]</i>	<i>[Provide such information as is relevant, such as whether digital or mechanical recording was used during the trial.]</i>
5.3	Part heard	<i>[Set out the period of time between each tranche of hearing, if any.]</i>	
5.4	Affidavits of evidence in chief – text and exhibits	<i>[Set out the number of affidavits filed by each party and the total number of pages of text and exhibits of all affidavits filed.]</i>	
5.5	Bundle of documents	<i>[Set out the number of volumes and the total number of pages in each bundle filed in respect of the trial.]</i>	
5.6	Witnesses at trial	<i>[Set out the number of witnesses of fact and expert witnesses for each party.]</i>	
5.7	Closing submissions and authorities cited	<i>[Set out the number of pages and authorities cited in the closing submissions, if any, of each party.]</i>	
5.8	Submissions in reply and authorities cited	<i>[Set out the number of pages and authorities cited in the reply submissions, if any, of each party.]</i>	
5.9	Orders made at trial	<i>[Set out succinctly the orders made.]</i>	
5.10	Other post-trial filings/matters	<i>[Set out the number of pages and authorities cited in any other documents filed by each party.]</i>	
6.	Complexity of case		

<i>No.</i>	<i>Item</i>	<i>Description</i>	<i>Remarks</i>
6.1	Legal issues	<i>[Set out succinctly all the legal issues raised.]</i>	
6.2	Factual issues	<i>[Set out succinctly all the factual issues raised.]</i>	
6.3	Complexity	<i>[Set out succinctly the matters that affect the complexity of the case.]</i>	
6.4	Grounds of decision	<i>[Set out the number of pages in the grounds of decision and highlight the paragraph(s) where the court commented on the complexity of the case or the novelty of the issues raised.]</i>	
7.	Urgency and importance to client		
7.1	Urgency	<i>[Set out the factors that rendered the suit one of urgency for the party entitled to claim costs.]</i>	
7.2	Importance to client	<i>[Set out the factors that rendered the suit one of importance for the party entitled to claim costs.]</i>	
8.	Time and labour expended		
8.1	Number of letters/ faxes/emails exchanged between the parties	<i>[Set out the total amount of correspondence exchanged between the parties and also between the parties and the court.]</i>	
8.2	Number of letters/ faxes/emails to client	<i>[Set out the total amount of correspondence between the party entitled to claim costs and counsel.]</i>	
8.3	Meetings with opposing counsel	<i>[Set out the total number of meetings, and the time taken for them.]</i>	
8.4	Time spent	<i>[Set out the total number of hours spent on the case by each counsel or solicitor.]</i>	

<i>No.</i>	<i>Item</i>	<i>Description</i>	<i>Remarks</i>
8.5	Others	[Set out any other relevant factors for the court's consideration.]	
9.	Counsel and solicitors involved		
9.1	Counsel and solicitors	[List all the lawyers acting for each party and their seniority.]	
9.2	Certificate of more than 2 counsel	[Indicate if the court has certified that the costs of more than two counsel are allowed.]	
10.	Costs claimed		
10.1	Amount claimed	Amount claimed for [specify name of counsel or solicitor]: \$ [insert amount]. [Set out in relation to each counsel or solicitor, the amount of costs claimed for Section 1, with a breakdown of – (a) the amount claimed for work done by the counsel or solicitor; (b) the percentage of input tax for which a party entitled to claim costs is not entitled to credit; (c) the amount of input tax for which a party entitled to claim costs is not entitled to credit; and (d) the GST claimed for work done, in relation to the periods for which different rates of GST are applicable.]	
Section 2: Work done for taxation			

<i>No.</i>	<i>Item</i>	<i>Description</i>	<i>Remarks</i>
11.	Work done	<i>[Describe the work done for the preparation of the bill of costs and the taxation of the bill.]</i>	
12.	Amount claimed	Total amount claimed: \$ [insert amount]. <i>[Set out the amount of costs claimed for Section 2, with a breakdown of–</i> <i>(a) the amount claimed for work done for Section 2;</i> <i>(b) the percentage of input tax for which a party entitled to claim costs is not entitled to credit;</i> <i>(c) the amount of input tax for which a party entitled to claim costs is not entitled to credit; and</i> <i>(d) the GST claimed for work done.]</i>	
Section 3: Disbursements			

<i>No.</i>	<i>Date</i>	<i>Description and amount claimed</i>	<i>Remarks</i>
13.	<i>[Set out in different rows the dates or period of time when each disbursement is incurred.]</i>	<u>Disbursements on which GST is not chargeable</u> <i>[Set out the amount of each disbursement claimed.]</i> <u>Disbursements on which GST is chargeable</u> <i>[Set out the amount of each disbursement claimed.]</i>	

<i>No.</i>	<i>Date</i>	<i>Description and amount claimed</i>	<i>Remarks</i>
[]	-	Total amount claimed for disbursements on which GST is not chargeable: \$ [insert amount]. <i>[Set out the total amount of disbursements claimed for Section 3 on which GST is not chargeable.]</i> Total amount claimed for disbursements on which GST is chargeable: \$ [insert amount]. <i>[Set out the total amount of disbursements claimed for Section 3 on which GST is chargeable with a breakdown of –</i> <i>(a) the amount claimed for disbursements for Section 3;</i> <i>(b) the percentage of input tax for which a party entitled to claim costs is not entitled to credit;</i> <i>(c) the amount of input tax for which a party entitled to claim costs is not entitled to credit; and</i> <i>(d) the GST claimed for disbursements,</i> <i>in relation to the periods for which different rates of GST are applicable.]</i>	

Summary			
		Total claimed for bill: <u>Costs for work done other than for taxation:</u> Section 1: <i>[Insert sum claimed.]</i> GST on Section 1: <u>Costs for work done for taxation:</u> Section 2: <i>[Insert sum claimed.]</i> GST on Section 2: <u>Disbursements</u> Section 3 (Disbursements on which GST is not chargeable): <i>[Insert sum claimed.]</i> Section 3 (Disbursements on which GST is chargeable): <i>[Insert sum claimed.]</i> GST on Section 3:	

Dated this day of 20 .

Solicitors for
[State the party for whom the bill is filed].

To:

Form 253

Para 131

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

DC/MC No. of 20

Bill of Costs No. of 20

GST Reg. No. (solicitors for *[state the party]*): *[Set out the GST number]*

GST Reg. No. (*state the party*): *[Indicate the GST number or "No GST No." and the percentage of input tax applicable to each party entitled to costs.]*

Between

..... Plaintiff(s)

And

..... Defendant(s)

BILL OF COSTS FOR CONTENTIOUS BUSINESS OTHER THAN TRIALS

Applicant: *[State the party for whom the bill is filed.]*

Nature of bill: *[State whether the bill is a party-and-party or solicitor-and-client bill.]*

Basis of taxation: *[State the basis of taxation, that is, standard or indemnity basis.]*

Basis for taxation: Judgment dated _____ ordering *[set out the order on costs under which the bill is to be taxed, including such details as the party who is ordered to pay costs and the party entitled to claim costs.]*

Section 1: Work done other than for taxation

No.	Item	Description	Remarks
1.	The claim		
1.1	Nature of claim	<i>[Give a brief description of the nature of claim, such as whether the substantive claim is for breach of contract or negligence.]</i>	

<i>No.</i>	<i>Item</i>	<i>Description</i>	<i>Remarks</i>
2.	Application / Proceedings		
2.1	Nature of application or proceedings for taxation	<i>[Give a brief description of the nature of proceedings or application to which the bill relates, e.g., for an appeal or interlocutory application.]</i>	
3.	Interlocutory attendances		
3.1	Interlocutory applications - costs fixed by court	<i>[Set out in relation to each interlocutory application, the application number, the nature of the application, the number of affidavits filed, the orders made on costs and the amount of costs awarded.]</i>	<i>[Set out the amount of time taken for the hearing and other relevant information.]</i>
3.2	Interlocutory applications – costs not fixed by court	<i>[Set out in relation to each interlocutory application, the application number, the nature of the application, the number of affidavits filed and the orders made on costs.]</i>	<i>[Set out the amount of time taken for the hearing and such other information as will enable the court to determine the costs to award for the application.]</i>
3.3	Appeals to District Judge in chambers	<i>[Set out in relation to each appeal, the appeal number, the nature of the appeal, the orders made on costs and the amount of costs awarded, if any.]</i>	<i>[Set out the amount of time taken for the hearing and such other information as will enable the court to determine the costs to award for the appeal.]</i>

<i>No.</i>	<i>Item</i>	<i>Description</i>	<i>Remarks</i>
3.4	Other attendances	<i>[Set out the dates and the nature of hearings if there are other attendances in court which should be taken into consideration.]</i>	<i>[Set out the amount of time taken for the hearing and such other relevant information as will enable the court to determine the costs to award for the hearing.]</i>
4.	Hearing		
4.1	Number of days/hours and date(s) of hearing	<i>[Indicate the total number of days or hours fixed for the hearing, the actual number of days or hours taken and the date(s) of the hearing.]</i>	<i>[Provide such information as is relevant, such as whether digital or mechanical recording was used.]</i>
4.2	Documents (apart from written submissions and authorities)	<i>[Set out the number of volumes and the total number of pages in each bundle filed in respect of the hearing.]</i>	
4.3	Witnesses (if any)	<i>[Set out the number of witnesses of fact and expert witnesses for each party, if any.]</i>	
4.4	Written submissions	<i>[Set out the number of pages of the submissions, if any, filed by each party.]</i>	
4.5	Authorities cited	<i>[Set out the number of authorities cited by each party.]</i>	
4.6	Orders made	<i>[Set out succinctly the orders made.]</i>	
4.7	Other post-hearing filings	<i>[Set out the number of pages and authorities cited in any other documents filed by each party.]</i>	
5.	Complexity of case		

<i>No.</i>	<i>Item</i>	<i>Description</i>	<i>Remarks</i>
5.1	Legal issues	<i>[Set out succinctly all the legal issues raised.]</i>	
5.2	Factual issues	<i>[Set out succinctly all the factual issues raised.]</i>	
5.3	Complexity	<i>[Set out succinctly the matters that affect the complexity of the case.]</i>	
5.4	Grounds of decision	<i>[Set out the number of pages in the grounds of decision and highlight the paragraph(s) where the court commented on the complexity of the case or the novelty of the issues raised.]</i>	
6.	Urgency and importance to client		
6.1	Urgency	<i>[Set out the factors that rendered the suit one of urgency for the party entitled to claim costs.]</i>	
6.2	Importance to client	<i>[Set out the factors that rendered the suit one of importance for the party entitled to claim costs.]</i>	
6.3	Amount involved	<i>[Set out the amount involved in the substantive dispute between the parties.]</i>	
7.	Time and labour expended		
7.1	Number of letters/ faxes/emails exchanged between the parties	<i>[Set out the total amount of correspondence exchanged between the parties and also between the parties and the court.]</i>	
7.2	Number of letters/ faxes/emails to client	<i>[Set out the total amount of correspondence between the party entitled to claim costs and counsel.]</i>	
7.3	Meetings with opposing counsel	<i>[Set out the total number of meetings, and the time taken for them.]</i>	
7.4	Time spent	<i>[Set out the total number of hours spent on the case by each counsel or solicitor.]</i>	

<i>No.</i>	<i>Item</i>	<i>Description</i>	<i>Remarks</i>
7.5	Others	[Set out any other relevant factors for the court's consideration.]	
8.	Counsel and solicitors involved		
8.1	Counsel and solicitors	[List all the lawyers acting for each party and their seniority.]	
8.2	Certificate of more than 2 counsel	[Indicate if the court has certified that the costs of more than two counsel are allowed.]	
9.	Costs claimed		
9.1	Amount claimed	Amount claimed for [specify name of counsel or solicitor]: \$ [insert amount]. [Set out in relation to each counsel or solicitor, the amount of costs claimed for Section 1, with a breakdown of – (a) the amount claimed for work done by the counsel or solicitor; (b) the percentage of input tax for which a party entitled to claim costs is not entitled to credit; (c) the amount of input tax for which a party entitled to claim costs is not entitled to credit; and (d) the GST claimed for work done, in relation to the periods for which different rates of GST are applicable.]	
Section 2: Work done for taxation			
<i>No.</i>	<i>Item</i>	<i>Description</i>	<i>Remarks</i>

<i>No.</i>	<i>Item</i>	<i>Description</i>	<i>Remarks</i>
10.	Work done	<i>[Describe the work done for the preparation of the bill of costs and the taxation of the bill.]</i>	
11.	Amount claimed	Total amount claimed: \$ [insert amount]. <i>[Set out the amount of costs claimed for Section 2, with a breakdown of–</i> <i>(a) the amount claimed for work done for Section 2;</i> <i>(b) the percentage of input tax for which a party entitled to claim costs is not entitled to credit;</i> <i>(c) the amount of input tax for which a party entitled to claim costs is not entitled to credit; and</i> <i>(d) the GST claimed for work done.]</i>	
Section 3: Disbursements			

<i>No.</i>	<i>Date</i>	<i>Description and amount claimed</i>	<i>Remarks</i>
12.	<i>[Set out in different rows the dates or period of time when each disbursement is incurred.]</i>	<u>Disbursements on which GST is not chargeable</u> <i>[Set out the amount of each disbursement claimed.]</i> <u>Disbursements on which GST is chargeable</u> <i>[Set out the amount of each disbursement claimed.]</i>	

<i>No.</i>	<i>Date</i>	<i>Description and amount claimed</i>	<i>Remarks</i>
[]	-	Total amount claimed for disbursements on which GST is not chargeable: \$ [insert amount]. <i>[Set out the total amount of disbursements claimed for Section 3 on which GST is not chargeable.]</i> Total amount claimed for disbursements on which GST is chargeable: \$ [insert amount]. <i>[Set out the total amount of disbursements claimed for Section 3 on which GST is chargeable with a breakdown of –</i> <i>(a) the amount claimed for disbursements for Section 3;</i> <i>(b) the percentage of input tax for which a party entitled to claim costs is not entitled to credit;</i> <i>(c) the amount of input tax for which a party entitled to claim costs is not entitled to credit; and</i> <i>(d) the GST claimed for disbursements,</i> <i>in relation to the periods for which different rates of GST are applicable.]</i>	

Summary			
		Total claimed for bill: <u>Costs for work done other than for taxation:</u> Section 1: <i>[Insert sum claimed.]</i> GST on Section 1: <u>Costs for work done for taxation:</u> Section 2: <i>[Insert sum claimed.]</i> GST on Section 2: <u>Disbursements</u> Section 3 (Disbursements on which GST is not chargeable): <i>[Insert sum claimed.]</i> Section 3 (Disbursements on which GST is chargeable): <i>[Insert sum claimed.]</i> GST on Section 3:	

Dated this day of 20 .

Solicitors for
[State the party for whom the bill is filed].

To:

Form 254

Para 131

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Bill of Costs No. of 20

GST Reg. No. (solicitors for [state the party]): [Set out the GST number]

GST Reg. No. (state the party): [Indicate the GST number or “No GST No.” and the percentage of input tax applicable to each party entitled to costs.]

In the matter of ...

BILL OF COSTS FOR NON-CONTENTIOUS BUSINESS

Applicant: [State the party for whom the bill is filed].

Nature of bill: *Solicitor-and-client bill*

Basis of taxation: *Indemnity basis*

Basis for taxation: [Set out the basis under which the bill of costs may be taxed.]

Section 1: Work done other than for taxation

No.	Item	Description	Remarks
1.	The work done		
1.1	Nature of work	[Give a brief description of the nature of work to which the bill relates.]	
1.2	Scope of brief (including relevant court orders, if any)	[Give a brief description of the scope of the brief.]	
1.3	Period of work	[State the period(s) of time in which the work was done.]	
2.	Complexity of matter		

<i>No.</i>	<i>Item</i>	<i>Description</i>	<i>Remarks</i>
2.1	Legal issues	<i>[Set out succinctly all the legal issues raised.]</i>	
2.2	Factual issues	<i>[Set out succinctly all the factual issues raised.]</i>	
2.3	Complexity	<i>[Set out succinctly the matters that affect the complexity of the work.]</i>	
2.4	Amount involved	<i>[Set out the amount involved in relation to the work done.]</i>	
3.	Time and labour expended		
3.1	Number of letters/ faxes/emails exchanged with others	<i>[Set out the total amount of correspondence exchanged between the parties and also between the parties and the court.]</i>	
3.2	Number of letters/ faxes/emails to client	<i>[Set out the total amount of correspondence.]</i>	
3.3	Meetings with client	<i>[Set out the total number of meetings and the time taken.]</i>	
3.4	Meetings with other parties (by class)	<i>[Set out the total number of meetings and the time taken.]</i>	
3.5	Documents (including legal opinions)	<i>[Set out the total number of pages of documents perused and legal opinions rendered.]</i>	
3.6	Time spent	<i>[Set out the total number of hours spent on the case by each counsel or solicitor.]</i>	
3.7	Other relevant work	<i>[Set out any other relevant factors for the court's consideration.]</i>	
4.	Counsel and solicitors involved		
4.1	Solicitor	<i>[List all the lawyers acting for each party and their seniority.]</i>	

<i>No.</i>	<i>Item</i>	<i>Description</i>	<i>Remarks</i>
5.	Costs claimed		
5.1	Amount claimed	Amount claimed for <i>[specify name of counsel or solicitor]: \$ [insert amount].</i> <i>[Set out in relation to each counsel or solicitor, the amount of costs claimed for Section 1, with a breakdown of –</i> <i>(a) the amount claimed for work done by the counsel or solicitor;</i> <i>(b) the percentage of input tax for which a party entitled to claim costs is not entitled to credit;</i> <i>(c) the amount of input tax for which a party entitled to claim costs is not entitled to credit; and</i> <i>(d) the GST claimed for work done, in relation to the periods for which different rates of GST are applicable.]</i>	
Section 2: Work done for taxation			

<i>No.</i>	<i>Item</i>	<i>Description</i>	<i>Remarks</i>
6.	Work done	<i>[Describe the work done for the preparation of the bill of costs and the taxation of the bill.]</i>	

<i>No.</i>	<i>Item</i>	<i>Description</i>	<i>Remarks</i>
7.	Amount claimed	Total amount claimed: \$ [insert amount]. [Set out the amount of costs claimed for Section 2, with a breakdown of– (a) the amount claimed for work done for Section 2; (b) the percentage of input tax for which a party entitled to claim costs is not entitled to credit; (c) the amount of input tax for which a party entitled to claim costs is not entitled to credit; and (d) the GST claimed for work done.]	
Section 3: Disbursements			

<i>No.</i>	<i>Date</i>	<i>Description and amount claimed</i>	<i>Remarks</i>
8.	[Set out in different rows the dates or period of time when each disbursement is incurred.]	<u>Disbursements on which GST is not chargeable</u> [Set out the amount of each disbursement claimed.] <u>Disbursements on which GST is chargeable</u> [Set out the amount of each disbursement claimed.]	

<i>No.</i>	<i>Date</i>	<i>Description and amount claimed</i>	<i>Remarks</i>
[]	-	Total amount claimed for disbursements on which GST is not chargeable: \$ [insert amount]. <i>[Set out the total amount of disbursements claimed for Section 3 on which GST is not chargeable.]</i> Total amount claimed for disbursements on which GST is chargeable: \$ [insert amount]. <i>[Set out the total amount of disbursements claimed for Section 3 on which GST is chargeable with a breakdown of –</i> <i>(a) the amount claimed for disbursements for Section 3;</i> <i>(b) the percentage of input tax for which a party entitled to claim costs is not entitled to credit;</i> <i>(c) the amount of input tax for which a party entitled to claim costs is not entitled to credit; and</i> <i>(d) the GST claimed for disbursements,</i> <i>in relation to the periods for which different rates of GST are applicable.]</i>	

Summary			
		Total claimed for bill: <u>Costs for work done other than for taxation:</u> Section 1: <i>[Insert sum claimed.]</i> GST on Section 1: <u>Costs for work done for taxation:</u> Section 2: <i>[Insert sum claimed.]</i> GST on Section 2: <u>Disbursements</u> Section 3 (Disbursements on which GST is not chargeable): <i>[Insert sum claimed.]</i> Section 3 (Disbursements on which GST is chargeable): <i>[Insert sum claimed.]</i> GST on Section 3:	

Dated this day of 20 .

Solicitors for
[State the party for whom the bill is filed].

To:

Form 255

Para 133

**NOTICE OF DISPUTE
ON BILL OF COSTS**

**IN THE FAMILY JUSTICE COURTS
THE REPUBLIC OF SINGAPORE**

Suit No. of

Bill of Costs
No. of

Between

.... Plaintiff

And

.... Defendant

Take notice that the solicitors for the intend to dispute the bill of costs No. of lodged in the abovenamed cause or matter.

NOTICE OF DISPUTE

	ITEM	P/Q	GROUNDS OF DISPUTE
1.	<u>Section 1</u> (Party & Party) [List items disputed]		[Specify <u>grounds</u> of dispute for each item - Stating that 'amount claimed is excessive' is not sufficient.]
2.	<u>Section 2</u> (Work done for taxation)		
3.	<u>Section 3</u> (Disbursements) [List items disputed]		[Specify <u>grounds</u> of dispute for each item - Stating that 'amount claimed is excessive' is not sufficient.]

Dated this day of

ABC & CO.

(Address of Solicitors)

Form 256

Para 137

COSTS SCHEDULE

SUIT [STATE THE SUIT NUMBER]

Between

...Plaintiff

And

...Defendant

[State the party for whom the costs schedule is filed e.g., PLAINTIFF'S OR DEFENDANT'S] **COSTS SCHEDULE**

Stage of proceedings	Work done	Estimated party-and-party costs (Section I Costs)	Disbursements (Section III Costs)	Total
<i>[Give a brief description of the nature of claim, such as whether the substantive claim is for breach of contract or negligence].</i>				
<i>[Give a brief description of the nature of each stage of proceedings, e.g., close of pleadings and completion of general discovery]</i>	<i>[Give a brief description of the work done, the documents filed (including the affidavits filed), the number of each document filed, the amount of time taken for the hearing, and such other relevant information as will enable the Court to determine the costs to be awarded].</i>	<i>[Set out the estimated party-and-party costs to be claimed for each stage of proceedings if successful.]</i>	<i>[Set out the amount of disbursements incurred. There is no need for a breakdown of standard disbursements such as filing fees, service fees, transport charges, photocopying charges, telephone and facsimile charges. There should be a breakdown of expert fees, assessor fees, translator fees, hearing fees and such other non-standard items of disbursements as the Court may specify].</i>	
TOTAL				

COMPLETED INTERLOCUTORY APPLICATIONS/INTERLOCUTORY APPEALS WITH COSTS ORDERS MADE IN [State the party for whom the costs schedule is filed e.g., PLAINTIFF'S or DEFENDANT'S] FAVOUR

<i>Completed interlocutory applications with costs orders made and quantum fixed</i>				
Interlocutory Application	Work done	Quantum of costs order	Disbursements (Section III Costs)	Costs recovered or to be recovered
<i>[Set out in relation to each interlocutory application, the application number and the nature of the application, e.g., striking out.]</i>	<i>[Set out in relation to each interlocutory application, the documents filed (including the affidavits filed), the number of pages of each document filed, the amount of time taken for the hearing, and such other relevant information as enabled the Court to determine the costs awarded for the application].</i>	<i>[Set out in relation to each interlocutory application, the amount of costs awarded].</i>	<i>[Set out the amount of disbursements incurred. There is no need for a breakdown of standard disbursements such as filing fees, service fees, transport charges, photocopying charges, telephone and facsimile charges. There should be a breakdown of non-standard items of disbursements as the Court may specify].</i>	<i>[Set out the total amount of costs (inclusive of disbursements) recovered or to be recovered].</i>

<i>Completed interlocutory applications with costs orders made but quantum not fixed</i>				
Interlocutory Application	Work done	Estimated party-and-party costs	Disbursements (Section III Costs)	Estimated Costs to be recovered
<i>[Set out in relation to each interlocutory application, the application number and the nature of the application, e.g., striking out.]</i>	<i>[Set out in relation to each interlocutory application, the documents filed (including the affidavits filed), the number of pages of each document filed, the amount of time taken for the hearing, and such other relevant information as will enable the Court to determine the costs to be awarded for the application].</i>	<i>[Set out in relation to each interlocutory application, the party-and party costs to be claimed].</i>	<i>[Set out the amount of disbursements incurred. There is no need for a breakdown of standard disbursements such as filing fees, service fees, transport charges, photocopying charges, telephone and facsimile charges. There should be a breakdown of non-standard items of disbursements as the Court may specify].</i>	<i>[Set out the estimated total amount of costs (inclusive of disbursements) to be recovered].</i>
TOTAL				

♦ The figures in the tables above exclude GST (if applicable), costs of taxation, costs of any appeals (which have not taken place and which are not anticipated as at the date of this costs schedule) and costs of enforcing any judgment.

Para 143

**APPLICATION TO BE REGISTERED USER OF THE
ELECTRONIC FILING SERVICE**

[Letterhead of law firm or organisation]

[Date]

The Registrar
Supreme Court
1 Supreme Court Lane
Singapore 178879
(Attn: eLitigation Project Director)

Dear [Sir / Madam*]

**APPLICATION TO BE REGISTERED USER OF THE ELECTRONIC FILING
SERVICE**

- I, [name of managing partner/director etc of law practice], am the managing partner/director etc of [name of law practice], [law practice UEN], and I am duly authorised to make this application on behalf of [name of law practice].
2. The law practice of [name of law practice] hereby applies to be a registered user of the electronic filing service, eLitigation, established under Part 18 Division 68 of the Family Justice Rules.
 3. As required under Part 18 Division 68 of the Family Justice Rules, I hereby designate (name of appointed administrator), NRIC/FIN (NRIC/FIN number of appointed administrator), as an authorised user to administer the service on behalf of my law practice. The SingPass identification code of the said authorised user is his or her NRIC/FIN number.
 4. A recent business profile report from the Accounting and Corporate Regulatory Authority of [name of law practice], the duly completed application form and subscriber agreement with the designated electronic filing service provider, for the use of the electronic filing service, eLitigation, and the duly completed application form for interbank GIRO payment facilities for the payment of all fees and charges incurred by my law practice's use of the electronic filing service are annexed hereto.

Yours faithfully

[Signature of authorised signatory]
[Name and designation of authorised signatory]

*Delete as appropriate

For Official Use Only

☐ Approved | ☐ Rejected

Signature/Date

Name/Designation

Form 258

Para 157

REQUISITION FOR IMPRESSED STAMPS

FAMILY JUSTICE COURTS, SINGAPORE
REQUISITION FOR IMPRESSED STAMPS

Name of Applicant					Telephone No.	
Address						
Description of document(s) to be stamped	No. of documents	No. of pages (if applicable)	Duty on each document		Total	
			\$	C	\$	C
1						
2						
3						
4						
5						
6						
7						
8						
9						
10						
Total no. of documents			Total amount payable			

BANK:

CHEQUE NO.:

Receipt No.

Cashier

Date

Para 158

UNDERTAKING TO COURT TO E-FILE DOCUMENTS

1. I, (name of applicant/solicitor), of (address), do hereby undertake to the Court to file the following documents via the Electronic Filing Service (EFS)[#] by (date):

- (a) the Originating Summons*;
- (b) the Summons*;
- (c) the affidavit(s) of (name of deponent) affirmed on (date); and
- (d) the draft and final Order of Court if granted by the Court.

2. I understand that if I should fail to carry out my undertaking, I am liable to be punished for non-compliance with an order of the Court.

(Signature)

Name of Applicant / Applicant's solicitor

Date : _____

[#] For a non-eLitigation subscriber, the documents may be e-filed at any established or authorised service bureau.

The operating hours, addresses and contacts of the service bureaux may be found at www.elitigation.sg.

* Delete where inapplicable

Form 260

Para 158

**ORDER OF COURT TO PREVENT THE REMOVAL
OF A CHILD OUT OF JURISDICTION**

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Divorce Suit |
No. |
of |

Between

[*Plaintiff's Name*] (NRIC No.)... *Plaintiff*

And

[*Defendant's Name*] (NRIC No.)... *Defendant*

ORDER OF COURT

BEFORE THE DISTRICT JUDGE
[*Name*]

IN CHAMBERS

IMPORTANT:

Notice to the defendant/plaintiff*

This Order requires you to return one or more children to the custody of his/her/their lawful guardian/parent and prevents you from leaving Singapore with the child/children without the permission of the Court. You should read all the terms of this Order very carefully. You are advised to consult a solicitor as soon as possible. You have a right to apply to the Court to vary or discharge this Order. If you disobey this Order, you will be guilty of contempt of Court and may be sent to prison or fined. (This notice is not a substitute for the endorsement of a penal notice.)

THE ORDER

An application was made today [*date*] by [*Counsel for*] the plaintiff/defendant* to the District Judge [*name*] by way of ex-parte Originating Summons No. ____ of 20__. The District Judge [*name*] heard the application and read the affidavit(s) of [*name*] filed on [*date*].

As a result of the application —

IT IS ORDERED by the District Judge that:

- (a) the child/children [*names of child/children*] shall be returned to the custody of his/her lawful guardian/parent [*name*];
- (b) the defendant/plaintiff* shall hand over to the plaintiff/defendant* forthwith, the child/children's unexpired passport(s) of any country, visas, and other travel documents pending the outcome or further orders made on this application and/or these proceedings;
- (c) the defendant/plaintiff*, whether by herself/himself* or by her/his* servants or agents shall be restrained from removing [*name of child/children*] from Singapore pending the outcome or further orders made on this application and/or these proceedings; and
- (d) [*insert any other orders made by the Court in relation to the application*]

Effect of this Order

If you are required under this Order not to do something, you must not do it yourself or in any other way. You must not do it through others acting on your behalf or on your instructions or with your encouragement.

Third Parties

It is a contempt of Court for any person notified of this Order to knowingly assist in or permit a breach of the Order. Any person doing so may be sent to prison or fined.

Undertakings

The plaintiff / defendant* must give to the Court the undertakings set out in Schedule 1 to this order.

Duration of this Order

This Order shall remain in force until the trial or further order made by the Court.

Variation or discharge of this Order

The defendant / plaintiff* (or anyone notified of this order) may apply to the Court at any time to vary or discharge this Order (or so much of it as affects that person), but anyone wishing to do so must inform the plaintiff's/ defendant's* solicitors.

Dated the day of 20

REGISTRAR

Schedule 1

(Undertakings provided in writing by the plaintiff/defendant)*

1. If the Court later finds that this Order or the carrying out of this Order has caused loss to the plaintiff/defendant*, and decides that the plaintiff/defendant* should be compensated for that loss, the plaintiff / defendant* shall comply with any order that the Court may make with regard to the payment of such compensation.
2. The plaintiff/defendant* shall provide any form of security including a banker's guarantee for any sum as may be ordered by the Court for the purpose of securing against any loss caused to the plaintiff/defendant* arising from the Order or the carrying out of the said Order.
3. The plaintiff / defendant* shall pay the reasonable costs of anyone other than the plaintiff / defendant* which have been incurred as a result of this order and if the Court later finds that this order has caused such person loss, and decides that such person should be compensated for that loss, the plaintiff/defendant* shall comply with any order the Court may make.
4. At the same time this Order is served on the defendant/plaintiff*, the plaintiff/defendant* shall serve on the defendant/plaintiff* a copy of the application, supporting affidavits and exhibits containing the evidence relied on by the plaintiff/defendant*. If the application and supporting affidavits have not been filed, the plaintiff/defendant* shall serve the same within 1 working day from the filing of the application and supporting affidavits.

Form 261

Para 158

**ORDERS MADE UNDER SECTION 14 OF THE GUARDIANSHIP OF INFANTS
ACT**

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE
OSF No.

Between
[*Plaintiff's Name*] (NRIC No.) ... *Plaintiff*
And
[*Defendant's Name*] (NRIC No.) ... *Defendant*

ORDER OF COURT

BEFORE THE DISTRICT JUDGE
[*Name*]_____

IN CHAMBERS

IMPORTANT:

Notice to the defendant/plaintiff*

This Order requires you to return one or more children to the custody of his/her/their lawful guardian/parent and prevents you from leaving Singapore with the child/children without the permission of the Court. You should read all the terms of this Order very carefully. You are advised to consult a solicitor as soon as possible. You have a right to apply to the Court to vary or discharge this Order. If you disobey this Order, you will be guilty of contempt of Court and may be sent to prison or fined. (This notice is not a substitute for the endorsement of a penal notice.)

THE ORDER

An application was made today [*date*] by [*Counsel for*] the plaintiff/defendant* to the District Judge [*name*] by way of ex-parte Originating Summons No. ____ of 20___. The District Judge [*name*] heard the application and read the affidavit(s) of [*name*] filed on [*date*].

As a result of the application —

I. IT IS ORDERED by the District Judge that:

- (a) the child/children [*names of child/children*] shall be returned to the custody of his/her/their lawful guardian/parent [*name*];

- (b) the defendant/plaintiff* shall hand over to the plaintiff/defendant* forthwith, the child/children's unexpired passport(s) of any country, visas, and other travel documents pending the outcome or further orders made on this application and/or these proceedings;
- (c) the defendant/plaintiff*, whether by herself/himself* or by her/his* servants or agents shall be restrained from removing [*name of child(ren)*] from Singapore pending the outcome or further orders made on this application and/or these proceedings;
- (d) for the purposes of enforcing this Order, the Bailiff be hereby directed to seize the person(s) of the child/children [*name*] at the place of execution at [*name specific address of execution*] and the child/children be delivered into the custody of his/her/their lawful guardian/parent [*name*]; and
- (e) [*insert any other orders made by the Court in relation to the application*]

II. IT IS FURTHER ORDERED by the District Judge that —

- (a) the plaintiff/defendant* shall accompany the Bailiff to the place of execution to identify the child/children [*name*];
- (b) the Bailiff shall also be accompanied by the following persons to the place of execution:
 - (i) the plaintiff/defendant*;
 - (ii) the plaintiff's/defendant's* Counsel;
 - (iii) an auxiliary police officer engaged by the plaintiff/defendant* at the plaintiff's/defendant's* cost, subject to the condition that where the person against whom the execution is to be carried out or the child/any of the children concerned is a female, the auxiliary police officer to be engaged shall be a female officer.
- (c) as far as is practicable, the child/children shall be handed over to the plaintiff/defendant* at the place of execution;
- (d) the plaintiff/defendant* or the plaintiff's/defendant's* Counsel shall pay to the Court prior to the enforcement of this Order a deposit of S\$300 by cheque made payable to "Registrar, Supreme Court/AG";
- (e) the Bailiff shall have the absolute discretion to do any or all of the following without having to give any reasons:
 - (i) take all necessary measures to ensure the personal safety of all persons (including the child/children or the Bailiff) involved in the execution;

- (ii) postpone the execution or any part thereof; and
- (f) nothing in this Order shall be construed to empower the Bailiff to effect entry into any building or break open any outer or inner door or window of the building or any receptacle therein.

Effect of this Order

If you are required under this Order not to do something, you must not do it yourself or in any other way. You must not do it through others acting on your behalf or on your instructions or with your encouragement.

Third Parties

It is a contempt of Court for any person notified of this Order to knowingly assist in or permit a breach of the Order. Any person doing so may be sent to prison or fined.

Undertakings

The plaintiff/defendant* must give to the Court the undertakings set out in Schedule 1 to this Order. The plaintiff's Counsel/defendant's Counsel* must give to the Court the undertakings set out in Schedule 2 to this Order.

Duration of this Order

This Order will remain in force until the trial or further order made by the Court.

Variation or discharge of this Order

The defendant/plaintiff* (or anyone notified of this order) may apply to the Court at any time to vary or discharge this Order (or so much of it as affects that person), but anyone wishing to do so must inform the plaintiff's/ defendant's solicitors.

Dated the day of 20

REGISTRAR

Schedule 1

(Undertakings provided in writing by the plaintiff/defendant)*

1. If the Court later finds that this Order or the carrying out of this Order has caused loss to the plaintiff/defendant*, and decides that the plaintiff/defendant* should be compensated for that loss, the plaintiff/defendant* shall comply with any order that the Court may make with regard to the payment of such compensation.
2. The plaintiff/defendant* shall provide any form of security including a banker's guarantee for any sum as may be ordered by the Court for the purpose of securing against any loss caused to the plaintiff / defendant* arising from the Order or the carrying out of the said Order.
3. The plaintiff/defendant* shall pay the reasonable costs of anyone other than the plaintiff/defendant* which have been incurred as a result of this order and if the Court later finds that this order has caused such person loss, and decides that such person should be compensated for that loss, the plaintiff/defendant* shall comply with any order the Court may make.
4. At the same time this Order is served on the defendant/plaintiff*, the plaintiff/defendant* shall serve on the defendant/plaintiff* a copy of the application, supporting affidavits and exhibits containing the evidence relied on by the plaintiff/defendant*. If the application and supporting affidavits have not been filed, the plaintiff/defendant* shall serve the same within 1 working day from the filing of the application and supporting affidavits.
5. The plaintiff/defendant* shall indemnify the Family Justice Courts and the Bailiffs and keep them indemnified at all times against —
 - (a) all claims and payments for which the Family Justice Courts or the Bailiffs may, in the course of executing this Order, be rendered legally liable, and
 - (b) all actions, suits, proceedings, claims, demands, costs and expenses whatsoever which may be taken or made against the Family Justice Courts or the Bailiffs or incurred or become payable by the Family Justice Courts or the Bailiffs in the course of executing this Order.
6. The plaintiff/defendant* shall pay the costs, expenses and charges which may have to be incurred by the Court and/or the Bailiffs in connection with this Order, including the execution thereof.
7. As and when required by the Court or the Bailiffs, the plaintiff/defendant* shall provide sufficient funds to the Court or the Bailiffs to meet the costs, expenses and charges which may have to be incurred by the Court and/or the Bailiffs in connection with this Order, including the execution thereof.

Schedule 2

(Undertakings provided in writing by the plaintiff's/defendant's Counsel)*

1. The plaintiff's/defendant's* Counsel shall personally ensure that this Order is executed in a calm and orderly manner respectful of the circumstances of the case.
2. The plaintiff's/defendant's* Counsel shall pay the costs, expenses and charges which may have been incurred by the Court and/or the Bailiffs in connection with this Order, including the execution thereof, if such costs, expenses and charges are not fully paid by the plaintiff/defendant*.
3. As and when required by the Court or the Bailiffs, the plaintiff's/defendant's Counsel shall provide sufficient funds to the Court or the Bailiffs to meet the costs, expenses and charges which may have to be incurred by the Court and/or the Bailiffs in connection with this Order, including the execution thereof.

Para 158

OSF No.

[Name] ...Plaintiff

[Name] ...Defendant

To the Bailiff

You are directed to seize the person of the infant [...] and the infant be delivered into the custody of his/her lawful guardian.

Registrar

Form 263

Para 158

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

OSF No.

Between

[Name] ...Plaintiff

And

[Name] ...Defendant

REQUEST FOR WRIT FOR SEIZURE

Name of person entitled to execution (applicant) :

Address of applicant :

Name of Solicitor for applicant :

Address of the Solicitor for applicant :

Hereby request the Registrar to issue a Writ for Seizure to be executed at the Address of Execution to seize the person of the infant [*name of infant*] and the infant be returned to the custody of his/her lawful guardian.

Name of person subject to execution (respondent):

Address of Execution :

Attached herewith is a copy of the Order of Court duly sealed.

UNDERTAKING AND DECLARATION

1. I/We hereby undertake to pay all your charges. Please appoint a suitable date to execute the Writ for Seizure.
2. I/We hereby declare that as at the date of this Request, the person of the infant [*name of infant*] is not subject to any other execution or order issued by the Family Court or the Family Division of the High Court.
3. I/We hereby declare that, as at the date of this declaration, I/we have reason to believe that the person subject to execution will be at the Address of Execution together with the infant [*name of infant*].

(State the grounds of belief)

NAME OF DECLARANT :

Date of filing :

Form 264

Para 158

APPLICANT'S LETTER OF INDEMNITY

Date:

The Bailiff

Dear Sir

1. I confirm that I have obtained a Court Order under section 14 of the Guardianship of Infants Act (Cap. 122).

2. I confirm that I have placed a deposit of \$300 by cheque no. _____ made payable to "Registrar, Supreme Court/AG" * as part of the Bailiff's expenses in executing the Order.

OR

I undertake to place a deposit of \$300 by cheque made payable to "Registrar, Supreme Court/AG"* by _____ (date) _____ as part of the Bailiff's expenses in executing the Order.

3. I understand and agree that should the bailiff's expenses of execution exceed \$300, I shall, as and when required by the Court or the Bailiff, provide sufficient funds to the Court or the Bailiff to meet the shortfall.

4. I shall pay all the costs, expenses and charges which may have to be incurred by the Court and or the Bailiff in connection with this Order including the execution thereof.

5. I shall indemnify and keep the Family Justice Courts and the Bailiffs indemnified at all times hereinafter against —

(a) all claims and payments for which the Family Justice Courts or the Bailiffs may, in the course of executing this Order, be rendered legally liable; and

(b) all actions, suits, proceedings, claims, demands, costs and expenses whatsoever which may be taken or made against the Family Justice Courts or the Bailiffs or incurred or become payable by the Family Justice Courts or the Bailiffs in the course of executing this Order.

(Signature)

Name of plaintiff/defendant*

*Delete if inapplicable

Form 265

Para 158

**UNDERTAKING TO PAY COMPENSATION/DAMAGES TO THE
PLAINTIFF/DEFENDANT/OTHER PERSON* AND TO SERVE DOCUMENTS**

I, _____ (*name of plaintiff / defendant*), of _____ (*address*), do hereby undertake to the Court as follows:

1. If the Court later finds that the Order dated _____ or the carrying out of the said Order has caused loss to the plaintiff / defendant,* and decide that the defendant / plaintiff* should be compensated for that loss, I shall comply with any order that the Court may make with regard to the payment of such compensation.
2. I shall provide any form of security including a Banker's Guarantee for any sum as may be ordered by the Court for the purpose of securing against any loss caused to the plaintiff / defendant* arising from the Order or the carrying out of the said Order.
3. If the Court later finds that this Order has caused loss to anyone other than the plaintiff / defendant* as a result of this order and decides that such person should be compensated for that loss, I shall comply with any order the Court may make with regard to the payment of such compensation and shall pay the reasonable costs of such a person.
4. At the same time this Order is served on the defendant / plaintiff*, I shall serve on the defendant / plaintiff* a copy of the application, supporting affidavits and exhibits containing the evidence relied on by the plaintiff / defendant*. If the application and supporting affidavits have not been filed, I shall serve the same within 1 working day from the filing of the application and supporting affidavits.

I understand that if I should fail to carry out my undertaking, I am liable to be punished for non-compliance with an order of the Court.

(*Signature*)

Name of plaintiff / defendant*

Date : _____

*Delete if inapplicable

Form 266

Para 158

**UNDERTAKINGS TO BE PROVIDED BY THE PLAINTIFF'S/DEFENDANT'S*
COUNSEL**

I *[name of counsel]* of *[name of law firm]* hereby undertake as follows:

1. To personally ensure that this order is executed in a calm and orderly manner respectful of the circumstances of the case.
2. To pay the costs, expenses and charges which may have been incurred by the Court and/or the Bailiff in connection with this Order including the execution thereof, if such costs, expenses and charges are not fully paid by the plaintiff / defendant*.
3. To provide as when required by the Court or the Bailiff, sufficient funds to the Court or the Bailiff to meet the costs, expenses and charges which may have to be incurred by the Court and/or the Bailiff in connection with this Order, including the execution thereof.

(Signature)

Name of Plaintiff's/Defendant's* counsel

Date : _____

*Delete if inapplicable

Form 266A

Para 161A

**Application to Use the Video Conference Facilities or
Mobile Infocomm Technology Facilities (MIT facilities)**

Date:

To: 1. The Registrar
Supreme Court
1 Supreme Court Lane
Singapore 178879

2. The Registrar
Family Justice Courts
3 Havelock Square
Singapore 059725

[In cases involving alternative dispute resolution, to provide the information set out below:

Through: Please specify the relevant person-in-charge at the organisation at which the dispute resolution process is carried out, such as Registrar, Singapore International Arbitration Centre or the Executive Director, Singapore Mediation Centre.]

Part I

Application by : ☐ Law Firm ☐ Individual

Name of applicant/law firm : _____

Name of lawyer/secretary-in-charge
of matter : _____

Address : _____

E-mail address : _____

Telephone and mobile numbers : _____

Case number : _____

Name of Parties : _____

Date(s) of hearing : From _____ to _____

Part II

Application for the use of: ☐ VC Facilities ☐ MIT facilities
In respect of : ☐ Court Proceedings ☐ Alternative Dispute Resolution

(a) Date(s) and time when use of VC Facilities is required:

Dates of scheduled use:

Total No. of days:

Start date and time (1st scheduled day of use):

End date and time (last scheduled day of use):

Facility (Tick box)	
Video-Conferencing system (State the country, state and city)	

(b) Date(s) and time when use of MIT facilities are required:

Dates of scheduled use:

Total No. of days:

Start date and time (1st scheduled day of use):

End date and time (last scheduled day of use):

Facility (Tick box)	
1. Interactive Display Board with HD display	
(a) 65" HD touch-screen display	
(b) Internet access via browser	
(c) Recording of voices and actions (e.g., annotations on image or on google maps)	
(d) Multi-format disc player (which allows the playback of DVD-audio, DVD-video, DVD-RAM, DVD-R, CD, CD-R/RW and SVCD media)	
2. Audio Visual Projection Facility	
3. Other Audio Visual Equipment*	
(a) Multi-format disc player (which allows the playback of DVD-Audio, DVD-Video, DVD-RAM and DVD-R)	
(b) Visualiser	
(c) Others (please list)**	

** Subject to availability of such equipment

We undertake to compensate the Supreme Court and the Family Justice Courts for all damage caused to the equipment, furniture or fittings in connection with the hearing.

*[The Plaintiff/Defendant or the solicitors for the
Plaintiff/Defendant as the case may be]*

Form 267

[deleted]

Form 268

[deleted]

Form 269

[deleted]

Form 270

Para 159A

Request for Urgent Hearing before Judge

Case Number(s) and Case Name(s)	
Sub-Case Number(s) (if applicable)	
Name(s) of Applicant(s)	
Details of Applicant(s)	(Plaintiff / Defendant / Third Party)
Counsel for Applicant(s) (if represented)	(Name(s) of counsel and Law Practice)
Contact Number(s) of Counsel for Applicant(s) (if represented) or of Applicant(s) (if unrepresented)	
Name(s) of Respondent(s)	
Counsel for Respondent(s) (if represented)	(Name(s) of counsel and Law Practice)
Contact Number(s) of Counsel for Respondent(s) (if represented) or of Respondent(s) (if unrepresented)	
Summary of relief sought	(E.g. Mareva injunction)

Estimated duration of the hearing	(E.g. 1 hour or less, Half-day, Full-day)
Summary of relevant facts: <i>(Maximum 500 words)</i>	
Reason(s) for urgency: <i>(Maximum 300 words)</i>	
Have all requisite Court papers been filed and are they in order?	
Is this an <i>ex parte</i> application?	
Does paragraph 83 of the Family Justice Courts Practice Directions on <i>ex parte</i> applications for injunctions apply?	(If yes, please state whether the directions set out in paragraph 83 have been complied with. If the directions under paragraph 83(2) on giving of notice of the application to the other concerned parties prior to the hearing have been complied with, please state the date, time and manner in which notice was given. If those directions have not been complied with, please state whether and when notice will be given and, if not, the reasons for not giving notice.)
Has/Have the Applicant(s) notified the Respondent(s) of the attendance before the Judge?	(If not, please state the reason(s) why.)
Has there been any previous request for an urgent hearing of the application(s)?	(If yes, please state the date and outcome of each previous request, and the reason(s) for making this request.)
Skeletal Submissions* (please select the applicable option): ☐ I confirm that the skeletal submissions have been filed together with this Form.	

☐ The skeletal submissions could not be filed together with this Form, but will be filed as soon as possible and, in any event, no later than the next working day after the attendance before the Judge, unless the Court directs otherwise.

☐ Due to the extreme urgency, the skeletal submissions cannot be filed or provided in hard copy by the time of the hearing before the Judge, and I wish to seek a dispensation of this requirement. My reasons for seeking dispensation are set out below:

(Please state your reasons to support your request for dispensation of filing or providing the skeletal submissions by the time of the hearing.)

Signature of Counsel for Applicant or of Applicant:

Name:

Date:

** The skeletal submissions must comply with the requirements stated in paragraphs 159A(6) and (7) of the Family Justice Courts Practice Directions.*

Form 271

R.55A
Para 14(6)(e), 14(9)

AGREEMENT THAT MARRIAGE HAS IRRETRIEVABLY BROKEN DOWN

Important Notes:

You and your spouse will have to sign this Form if the both of you are applying for divorce or judicial separation on the basis that the both of you agree that the marriage has irretrievably broken down.

The signed Form must be annexed to the Statement of Particulars or the Counterclaim.

Please provide all the necessary details, as the Court cannot accept the agreement if it considers, in all the circumstances of the case, that there remains a reasonable possibility of reconciliation.

To avoid doubt, parties are not required to state communications that are made without prejudice or are otherwise protected by privilege.

1. We are the Plaintiff and the Defendant.
2. We agree that the marriage has irretrievably broken down.
3. We conclude that our marriage has irretrievably broken down for the following reasons:

(Please note that you must set out in detail the reasons leading the both of you to conclude that your marriage has broken down irretrievably. A bare agreement without explanation is not enough. You must provide sufficient particulars that would allow the court to assess whether there is any basis for your conclusion that your marriage has broken down irretrievably.)

--

4. We have made the following efforts to reconcile:

(Please provide details of efforts made, such as the number or frequency of such attempts, the nature of such efforts, and whether and what external help (professional or otherwise) was sought.)

--

5. We conclude that further efforts will not lead to a reasonable possibility that we may reconcile for the following reasons:

(Please state whether there are other options for reconciliation (such as seeking external help) that remain unexplored and explain why, considering the efforts you have made to reconcile, you believe that further attempts are not likely to succeed.)

6. We have given consideration to the arrangements to be made in relation to our financial affairs:

(Please describe the consideration that the both of you have given to the issue relating to the division of assets and the outcome of such consideration, which may include any matters that have been agreed.)

(Please describe the consideration that the both of you have given to the issue of spousal maintenance and the outcome of such consideration, which may include any matters that have been agreed.)

7. We have given consideration to the arrangements to be made in relation to the child(ren) of the marriage (to be filled in only if there are children under 21 to the marriage):

(Please describe the consideration that the both of you have given to the issue of custody, care and control and access to the child(ren) and the outcome of such consideration, which may include any matters that have been agreed.)

(Please describe the consideration that the both of you have given to the issue of maintenance for the child(ren) and the outcome of such consideration, which may include any matters that have been agreed.)

--

I agree that the marriage has irretrievably broken down and acknowledge that I have considered the issues stated in this Form. I am also aware of my right to seek independent legal advice.

Signature

Name:
NRIC/FIN/Passport Number:
Date:

I agree that the marriage has irretrievably broken down and acknowledge that I have considered the issues stated in this Form. I am also aware of my right to seek independent legal advice.

Signature

Name:
NRIC/FIN/Passport Number:
Date:

Para 13A(2)(a) PD 2024

JOINT CONSENT FOR FAMILY NEUTRAL EVALUATION

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Case No.:

Between

[Plaintiff's name]

[ID No.]

... Plaintiff(s)

And

[Defendant's name]

[ID No.]

... Defendant(s)

CONSENT FOR FAMILY NEUTRAL EVALUATION

1. We confirm that our respective lawyers have explained to us the available Alternative Dispute Resolution options, including Family Neutral Evaluation ("FNE"), and we are aware of the benefits of an amicable resolution of our case.
2. We agree that:
 - (a) we will submit our dispute(s) on the following matters to a **non-binding** FNE at the Family Justice Courts ("FJC"):
 - ☐ Division of Matrimonial Home
 - ☐ Division of Other Matrimonial Assets (other than Matrimonial Home)
 - ☐ Maintenance for wife / incapacitated husband
 - ☐ Maintenance for child(ren)
 - (b) we will provide all facts and circumstances, information and documents relevant and/or material for the evaluation of the dispute(s),
 - (c) we will participate in the FNE in good faith and abide by the Guidelines on Family Neutral Evaluation issued by FJC, and
 - (d) we will keep confidential, treat as "without prejudice" and shall not disclose to (or use as evidence in proceedings before) the Court dealing with any of the ancillary matters of our divorce or in any other proceedings:

- (i) all communications made during the FNE, including the Evaluator's evaluation, and
 - (ii) all documents and materials prepared, submitted and/or exchanged in the course of and for the FNE.
- 3. For the removal of doubt, we further confirm and agree that the following shall *not* be confidential:
 - (a) consent orders of court,
 - (b) directions given by the Evaluator/Judge after the conclusion of the FNE for the purpose of case management (including directions for the filing and exchange of affidavits), and
 - (c) documents and materials prepared, submitted and/or exchanged in the course of and for the FNE that would in any event have been discoverable in other proceedings.

Signed by:

Signed by:

Name of Plaintiff: Enter name here.
Date: Enter date here.

Name of Defendant: Enter name here.
Date: Enter date here.

Form 273

Para 13A(3)(b) PD 2024

STATEMENT FOR FAMILY NEUTRAL EVALUATION

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Case No.:

Between

[Plaintiff's name]

[ID No.]

... Plaintiff(s)

And

[Defendant's name]

[ID No.]

... Defendant(s)

☐ PLAINTIFF'S ☐ DEFENDANT'S STATEMENT¹

Section A: Particulars

- | | | |
|----|---|--|
| 1. | Age (birth date in brackets): | <u>Enter age here. (Enter birth date here.)</u> |
| 2. | Date of Marriage: | <u>Enter date here.</u> |
| 3. | Date of Interim Judgement - including period of separation (if applicable): | <u>Enter date here.</u> |
| 4. | Occupation & educational /professional qualifications (where applicable): | <u>Enter your occupation here.</u>
<u>Enter your educational or professional qualifications here.</u> |
| 5. | Monthly Income:
(based on average annual income of SGD [Enter your average annual income here] including bonuses based on latest Notice of Assessment) | <u>Enter your monthly income here.</u> |

¹ The completed Form is to be emailed to FJC (refer to paragraph 13A of the Family Justice Courts Practice Directions 2015). Do not file this Form via eLitigation.

Section B: Division of Matrimonial Assets

Note:

- (a) The full address of each immovable property (including the matrimonial home and all other properties) is to be listed. The date of purchase and purchase price, and if sold, the date of sale and sale price should be listed in the applicable “*Remarks*” column.
- (b) A liability which is related to an asset must be reflected together with the asset. An example is the mortgage loan.
- (c) A standalone liability must be stated as a negative value. An example is a personal loan.
- (d) An asset/liability should only be stated once in Section B and should not be duplicated in multiple sections. For example, a mortgage loan related to the matrimonial home should not be reflected separately as a standalone liability.
- (e) State only quantifiable assets in Section B2. Quantifiable assets include assets where a party asserts/claims to be of an ascertainable value. Please refer to examples in Section B2(B).

Section B1: Plaintiff's / Defendant's Position

This is the ☐ Plaintiff's ☐ Defendant's position.

1. I propose division of the matrimonial home as follows:

Enter details here, e.g. what you want in respect of the matrimonial home, and how the sale proceeds, if any, are to be split between parties.

2. I propose division of any other immovable matrimonial property as follows:

Enter details here, e.g. what you want in respect of the real property and how sale proceeds, if any, are to be split between parties.

3. I propose division of the other matrimonial assets as follows:

Enter details here.

Section B2: List of Matrimonial Assets

A. Joint Assets (Quantifiable)				
S/n	Asset (with related liability, if any)	Value	As At	Remarks (if any)
1	<i>For e.g. Property ABC (with outstanding mortgage).</i>	<i>Gross value (- liability) NET VALUE</i>	Enter date here.	Enter details here.
2	<i>For e.g. Company XYZ.</i>	<i>Gross value (- liability) NET VALUE</i>	Enter date here.	Enter details here.
	Sub-total	Enter sub-total here.		

B. Assets under own name (Quantifiable)				
S/n	Asset (with related liability, if any)	Value	As At	Remarks (if any)
1	<i>For e.g. CPF accounts.</i>	<i>Gross value (- liability) NET VALUE</i>	Enter date here.	Enter details here.
2	<i>For e.g. Bank Account 123.</i>	<i>Gross value (- liability) NET VALUE</i>	Enter date here.	Enter details here.
3	<i>For e.g. Car.</i>	<i>Gross value (- liability) NET VALUE</i>	Enter date here.	Enter details here.
	Sub-total	Enter sub-total here.		

C. Assets under your spouse's name (Quantifiable)				
S/n	Asset (with related liability, if any)	Estimated Value	As At	Remarks (if any)
1	<i>For e.g. CPF accounts.</i>	Enter current estimated value here.	Enter date here.	Enter details here.
2	<i>For e.g. Bank Account 123.</i>	Enter current estimated value here.	Enter date here.	Enter details here.
	Sub-total	Enter sub-total here.		

Section B3: Contribution towards Matrimonial Assets

A. Direct Financial Contributions		
<i>(State your direct financial contributions to the assets stated in Section B2 above.)</i>		
S/n	Item (in accordance with Section B2(A) to (C) above)	Amount
1	<i>For e.g. Property ABC – CPF.</i>	Enter amount here.
	<i>For e.g. Property ABC - Cash downpayment.</i>	Enter amount here.
	<i>For e.g. Property ABC – Renovations.</i>	Enter amount here.
2	<i>For e.g. Company XYZ.</i>	Enter amount here.
3	<i>For e.g. H's CPF accounts.</i>	Enter amount here.
4	<i>For e.g. H's Bank Account.</i>	Enter amount here.
5	<i>For e.g. Car.</i>	Enter amount here.
6	<i>For e.g. W's CPF accounts.</i>	Enter amount here.
7	<i>For e.g. W's Bank Account.</i>	Enter amount here.
	Sub- total	Enter sub-total here.

B. Indirect Contributions		
	Plaintiff	Defendant
I propose the following ratio for Indirect Contributions:	<i>For e.g. 60%.</i>	<i>For e.g. 40%.</i>

I. Indirect Financial Contributions
--

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For Family Neutral Evaluation Only

S/N	Description	Estimated amount / frequency	Remarks (if any)
	<i>State payments made other than the Direct Financial Contributions set out above (for example, towards household bills, groceries, children's expenses, etc).</i>	Enter amount/frequency here.	Enter details here.
	Sub-Total	Enter sub-total here.	

II. Indirect Non-Financial Contributions

S/N	Description
	<i>State in point form the indirect non-financial contributions made towards the family (for example, caring for the children, etc). The summary should not exceed 1 page.</i>

Section C: Maintenance of Wife / Incapacitated Husband

Maintenance of ☐ Wife ☐ Incapacitated husband:

Description	Amount	Remarks (if any)
Is there an existing maintenance order or existing voluntary payment for spouse? ☐ No. <i>Proceed to Section C1.</i> ☐ Yes. <i>Provide details in the next column.</i>	<i>For e.g. \$500</i>	Enter details here.
Is there an existing maintenance order or existing voluntary payment for household? ☐ No. <i>Proceed to Section C1.</i> ☐ Yes. <i>Provide details in the next column.</i>	<i>For e.g. \$500</i>	Enter details here.

Section C1: Plaintiff's / Defendant's Position

This is the ☐ Plaintiff's ☐ Defendant's position.

I ☐ claim ☐ propose the following expenses for the maintenance of ☐ wife ☐ incapacitated husband:

State quantum of spousal maintenance claimed / offered and how the amount is calculated (i.e., Lumpsum (Multiplier x Multiplicand) (or) Monthly periodic sum).

Section C2: Paying spouse's / Receiving spouse's estimated expenses

☐ Paying spouse's ☐ Receiving spouse's estimated expenses:

S/n	Item		Amount	Remarks (if any)
1	Mortgage Loan	Cash	Enter amount here.	Enter details here.
		CPF	Enter amount here.	Enter details here.
2	Rental		Enter amount here.	Enter details here.
3	Telephone (Residence & Mobile)		Enter amount here.	Enter details here.
4	Electricity / Water / Gas		Enter amount here.	Enter details here.
5	Conservancy Charges		Enter amount here.	Enter details here.
6	Cable TV / Internet		Enter amount here.	Enter details here.
7	Food / Groceries		Enter amount here.	Enter details here.
8	Eating Out		Enter amount here.	Enter details here.
9	Clothing		Enter amount here.	Enter details here.
10	Personal Insurance		Enter amount here.	Enter details here.
11	Medical		Enter amount here.	Enter details here.
12	Vehicle Loan		Enter amount here.	Enter details here.
13	Motor Insurance and Road Tax		Enter amount here.	Enter details here.
14	Public Transport		Enter amount here.	Enter details here.
15	Domestic Servant	Levy \$	Enter amount here.	Enter details here.
		Salary \$	Enter amount here.	Enter details here.
16	Allowance for Parents		Enter amount here.	Enter details here.
17	Entertainment, Hobbies and Sports		Enter amount here.	Enter details here.
18	Tour and Family Outings		Enter amount here.	Enter details here.
19	Others		Enter amount here.	Enter details here.
	Total		Enter total amount here.	

Section D: Maintenance of Child(ren)

Description	Amount	Remarks (if any)
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Without Prejudice
For Family Neutral Evaluation Only

Is there an existing maintenance order or existing voluntary payment for children? ☐ No. <i>Proceed to Section D1.</i> ☐ Yes. <i>Provide details in the next column.</i>	Enter amount here.	Enter details here.
Is there an existing maintenance order/existing voluntary payment for household? ☐ No. <i>Proceed to Section D1.</i> ☐ Yes. <i>Provide details in the next column.</i>	Enter amount here.	Enter details here.

Section D1: Plaintiff's / Defendant's Position

This is the ☐ Plaintiff's ☐ Defendant's position.

I ☐ claim ☐ propose the following expenses for the Child(ren):

State quantum of maintenance of children claimed / offered and how the children's total expenses should be divided (i.e. whether parties are to bear them equally, whether one party is to bear all the expenses, whether the expenses are to be divided 70:30, etc.).

Section D2: Position on the Child(ren)'s estimated expenses

S/n	Item	Amount	Remarks (if any)
1	Food / Groceries	Enter amount here.	Enter details here.
2	Clothing / Diaper	Enter amount here.	Enter details here.
3	Medical	Enter amount here.	Enter details here.
4	Personal Insurance	Enter amount here.	Enter details here.
5	School Expenses (Books/Stationery)	Enter amount here.	Enter details here.
6	Transport	Enter amount here.	Enter details here.
7	Pocket Money	Enter amount here.	Enter details here.
8	School Fees	Enter amount here.	Enter details here.
9	Childcare	Enter amount here.	Enter details here.
10	Enrichment / Tuition	Enter amount here.	Enter details here.
11	Entertainment, Hobbies and Sports	Enter amount here.	Enter details here.
12	Tour and Family Outings	Enter amount here.	Enter details here.
13	Others	Enter amount here.	Enter details here.
	Total	Enter total amount here.	

Section D3: Plaintiff's / Defendant's estimated expenses

☐ Plaintiff's ☐ Defendant's estimated expenses:

Note: To be completed only if Section C2 on spousal maintenance has not been filled.

S/n	Item		Amount	Remarks (if any)
1	Mortgage Loan	Cash	Enter amount here.	Enter details here.
		CPF	Enter amount here.	Enter details here.
2	Rental		Enter amount here.	Enter details here.
3	Telephone (Residence & Mobile)		Enter amount here.	Enter details here.
4	Electricity / Water / Gas		Enter amount here.	Enter details here.
5	Conservancy Charges		Enter amount here.	Enter details here.
6	Cable TV / Internet		Enter amount here.	Enter details here.
7	Food / Groceries		Enter amount here.	Enter details here.
8	Eating Out		Enter amount here.	Enter details here.
9	Clothing		Enter amount here.	Enter details here.
10	Personal Insurance		Enter amount here.	Enter details here.
11	Medical		Enter amount here.	Enter details here.
12	Vehicle Loan		Enter amount here.	Enter details here.
13	Motor Insurance and Road Tax		Enter amount here.	Enter details here.
14	Public Transport		Enter amount here.	Enter details here.
15	Domestic Servant	Levy \$	Enter amount here.	Enter details here.
		Salary \$	Enter amount here.	Enter details here.
16	Allowance for Parents		Enter amount here.	Enter details here.
17	Entertainment, Hobbies and Sports		Enter amount here.	Enter details here.
18	Tour and Family Outings		Enter amount here.	Enter details here.
19	Others		Enter amount here.	Enter details here.
	Total		Enter total amount here.	

Section E: Confirmation

I confirm that the information set out above is correct and accurate. I understand that the Evaluator will be relying on the information set out above for the Family Neutral Evaluation.

Signature

Name of ☐ Plaintiff ☐ Defendant: Enter name here.

Date: Enter date here.

Section F: Supporting Documents²

S/N	Description	Page No
1	Pay-slips for [state time frame]	Enter page no.
2	Contract of employment/Letter from employer confirming salary	Enter page no.
3	Notices of Assessment from the Inland Revenue Authority of Singapore (IRAS) dated [Enter date here]	Enter page no.
4	ACRA search dated [Enter date here] (in respect of the business(es) I own)	Enter page no.
5	Valuation report(s) for immovable property/properties	Enter page no.
6	Tenancy agreement(s)	Enter page no.
7	Hire purchase agreement(s)	Enter page no.
8	Insurance policies/letters from insurance companies showing the surrender values of the insurance policies	Enter page no.
9	Central Depository (Pte) Ltd (CDP) statement(s) dated [Enter date here]	Enter page no.
10	Central Provident Fund (CPF) Investment account statement(s) dated [Enter date here]	Enter page no.
11	Bank statement(s) for [state time frame]	Enter page no.
12	CPF statement(s) dated [Enter date here] on contribution to purchase of immovable property	Enter page no.
13	CPF statement(s) dated [Enter date here] on balances in Special, Medisave and Ordinary Accounts	Enter page no.
14	Renovation receipt(s)	Enter page no.
15	Receipt(s) evidencing payment for furnishings Receipts supporting expenses, e.g. utilities bills, telephone bills, conservancy charges, school fees, etc.	Enter page no.
16	Others: Please specify	Enter page no.

² Please note that the list of documents in this section is intended as a guide only. It is not intended to set a minimum standard, nor to be an exhaustive list, in relation to each party's duty to disclose all relevant information and documents for the purposes of the neutral evaluation. The extent of disclosure which must be made in each case will depend on the facts of that case. Parties must exercise their own minds regarding the extent of disclosure to be made in the light of these facts, and in accordance with their discovery / interrogatories obligations under the Family Justice Rules 2014.

Form 274

Para 13A(8)(b) PD 2024

JOINT STATEMENT FOR FAMILY NEUTRAL EVALUATION

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Case No.:

Between

[Plaintiff's name]

[ID No.]

... Plaintiff(s)

And

[Defendant's name]

[ID No.]

... Defendant(s)

JOINT STATEMENT FOR FAMILY NEUTRAL EVALUATION
(of parties' respective positions as at [Enter date here])¹

¹ The completed Form is to be emailed to FJC (refer to paragraph 13A of the Family Justice Courts Practice Directions 2015). Do not file this Form via eLitigation.

Without Prejudice for Family Neutral Evaluation Only

Case No.: Enter case no. here

Date: Enter date of FNE Hearing here.

Section 1: Background Information

Parties shall refer to their respective Statements for FNE as their Core Bundle (CB) in this Joint Statement. The Husband's CB shall be referred to as "HCB" and the Wife's CB as "WCB".

S/No	Particulars	Plaintiff Husband / Wife	Defendant Husband / Wife	Remarks
1.	Current age of parties (birth date in brackets)	Enter age here. (Enter birth date here.)	Enter age here. (Enter birth date here.)	
2.	Date of Marriage	Enter date here.		
3.	Date of Interim Judgment - including period of separation (if applicable)	Enter date here.		
4.	Occupation and educational /professional qualifications where applicable	Enter Plaintiff's occupation here. Enter Plaintiff's educational or professional qualifications here.	Enter Defendant's occupation here. Enter Defendant's educational or professional qualifications here.	
5.	Monthly Income	Enter Plaintiff's monthly income here. (based on average annual income of SGD [Enter Plaintiff's average annual income here] (including bonuses	Enter Defendant's monthly income here. (based on average annual income of SGD [Enter Defendant's average annual income here] (including bonuses	<i>include Pg Ref to WCB/HCB if applicable.</i>

Without Prejudice for Family Neutral Evaluation Only

Case No.: Enter case no. here

Date: Enter date of FNE Hearing here.

		based on latest Notice of Assessment)	based on latest Notice of Assessment)	
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Section 2: Child(ren)'s Details

Full Name	Current Age (birth date in brackets)	Parenting Arrangements (i.e. Custody / care and control / access)	Remarks (include educational/ professional qualifications where applicable / whether child has special needs)
Enter full name as per NRIC/Passport here.	Enter age here. (Enter birth date here.)	Enter details here.	Enter details here.

Section 3: Division of Assets

Where parties are in dispute over an item, parties are to set out their positions and reasons with references to their respective supporting documents (eg. HCB pg x, WCB pg x).

Where parties agree on the value of an item, to set out the agreed value and valuation date, with references to the supporting documents.

Section 3A: Joint Assets (Quantifiable)

Without Prejudice for Family Neutral Evaluation Only

Case No.: Enter case no. here

Date: Enter date of FNE Hearing here.

S/n	Asset (with related liability)	Husband's Position	Wife's Position
1	<i>For e.g. Property ABC (with outstanding mortgage).</i>	<i>For e.g. Market value (-outstanding loan) NET VALUE / As at DDMMYY [HCB pg x]</i>	<i>For e.g. Agreed NET VALUE / As at DDMMYY</i>
2	<i>For e.g. Company XYZ.</i>	<i>For e.g. Market value (-outstanding loan) NET VALUE / As at DDMMYY [HCB pg x]</i>	<i>For e.g. Agreed NET VALUE / As at DDMMYY</i>
	Sub-total	Enter sub-total here.	Enter sub-total here.

Section 3B: Husband's Assets (Quantifiable)

S/n	Asset (with related liability)	Husband's position	Wife's position
3	<i>For e.g. CPF accounts.</i>	<i>For e.g. Xxx /As at DDMMYY</i>	<i>For e.g. Disputed Yxx/As at DDMMYY [set out reasons, with reference to supporting documents in WCB]</i>
4	<i>For e.g. Bank Account.</i>	<i>For e.g. Xxx /As at DDMMYY</i>	<i>For e.g. Agreed</i>
5	<i>For e.g. Car.</i>	<i>For e.g. Xxx /As at DDMMYY</i>	<i>For e.g. Agreed</i>

Without Prejudice for Family Neutral Evaluation Only

Case No.: Enter case no. here

Date: Enter date of FNE Hearing here.

	Sub-total	Enter sub-total here.	Enter sub-total here.

Section 3C: Wife's Assets (Quantifiable)

S/n	Asset (with related liability)	Husband's Position	Wife's Position
6	<i>For e.g. CPF accounts.</i>	<i>For e.g. Disputed Yxx/As at DDMMYY [set out reasons, with reference to supporting documents in HCB]</i>	<i>For e.g. Xxx /As at DDMMYY</i>
7	<i>For e.g. Bank Account.</i>	<i>For e.g. Agreed</i>	<i>For e.g. Xxx /As at DDMMYY</i>
	Sub-total	Enter sub-total here.	Enter sub-total here.

Section 3D: Parties' position on unquantifiable assets (if any)*To note:*

- (a) State parties' positions on unquantifiable assets (if any).*
- (b) Include assets which value is unknown to both parties and any assertion of non-disclosure.*
- (c) Ensure 'Reasons' are summarised succinctly with relevant page references to the HCB/WCB where applicable.*

S/n	Asset	Husband's Value	Reasons
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Without Prejudice for Family Neutral Evaluation Only

Case No.: Enter case no. here

Date: Enter date of FNE Hearing here.

1			
2			
	Submission	To adjust average ratio by y%	

S/n	Asset	Wife's value	Reasons
1			
2			
	Submission	To adjust average ratio by y%	

Section 3E: Direct contributions

State parties' respective direct financial contributions to the assets stated in Sections 3A to 3C, and whether this is disputed or agreed. The s/n of each item in this section must match with the s/n of the corresponding item in Sections 3A to 3C.

S/n	Item (in accordance with 3a–3c)	Husband's position		Pg Refs	Wife's position		Pg Refs
		Husband's Direct Contributions	Wife's Direct Contributions		Husband's Direct Contributions	Wife's Direct Contributions	
1	<i>For e.g. Property ABC – CPF.</i>	<i>For e.g. 123</i>	<i>For e.g. 456</i>		<i>For e.g. Agreed</i>	<i>For e.g. Agreed</i>	
	<i>For e.g. Property ABC - Cash downpayment.</i>	<i>For e.g. 123</i>	<i>For e.g. 456</i>		<i>For e.g. Agreed</i>	<i>For e.g. Agreed</i>	
2	<i>For e.g. Company XYZ.</i>	<i>For e.g. 123</i>	<i>For e.g. 456</i>		<i>For e.g. 789</i>	<i>For e.g. 123</i>	
3	<i>For e.g. H's CPF accounts.</i>						
4	<i>For e.g. H's Bank Account.</i>						

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Case No.: Enter case no. here

Date: Enter date of FNE Hearing here.

5	<i>For e.g. H's Car.</i>						
6	<i>For e.g. W's CPF accounts.</i>						
7	<i>For e.g. W's Bank Account.</i>						
	Sub- total	Enter sub- total here.	Enter sub- total here.		Enter sub- total here.	Enter sub- total here.	
	Ratio (%) (This should form the basis of the ratio of Direct Contributions in Section 3G below)	Enter ratio of direct contributions here.	Enter ratio of direct contributions here.		Enter ratio of direct contributions here.	Enter ratio of direct contributions here.	

Section 3F: Indirect contributions*State parties' respective indirect contributions, and whether this is disputed or agreed.*

S/n	Item	Husband's position		Pg Refs	Wife's position		Pg Refs
		Husband's Contributions	Wife's Contributions		Husband's Contributions	Wife's Contributions	
1	Indirect Financial Contributions						
(i)	<i>Description of contributions</i>	<i>For e.g. 123</i>	<i>For e.g. 456</i>		<i>For e.g. 987</i>	<i>For e.g. Agreed</i>	
(ii)	<i>Description of contributions</i>	<i>For e.g. 123</i>	<i>For e.g. 456</i>		<i>For e.g. Agreed</i>	<i>For e.g. 987</i>	

Without Prejudice for Family Neutral Evaluation Only

Case No.: Enter case no. here

Date: Enter date of FNE Hearing here.

(iii)	<i>Description of contributions</i>	<i>For e.g. 123</i>	<i>For e.g. 456</i>		<i>For e.g. Agreed</i>	<i>For e.g. Agreed</i>	
	Sub-total	Enter sub-total here.	Enter sub-total here.		Enter sub-total here.	Enter sub-total here.	
2	Indirect Non-Financial Contributions			<i>See para xx of Plaintiff/Defendant's Statement</i>			<i>See para xx of Plaintiff/Defendant's Statement</i>
	Ratio (%) (This should form the basis of the ratio of Indirect Contributions in Section 3G below)	Enter ratio of indirect contributions here.	Enter ratio of indirect contributions here.		Enter ratio of indirect contributions here.	Enter ratio of indirect contributions here.	

Section 3G: Proposed structured approach ratios*State the proposed ratios, if applicable.*

	Husband's Position		Wife's Position	
	Husband	Wife	Husband	Wife
Direct Contributions	Enter ratio of direct contributions here.	Enter ratio of direct contributions here.	Enter ratio of direct contributions here.	Enter ratio of direct contributions here.

Without Prejudice for Family Neutral Evaluation Only

Case No.: Enter case no. here

Date: Enter date of FNE Hearing here.

Weightage for Direct Contributions	Enter weightage to be accorded to direct contributions here.		Enter weightage to be accorded to direct contributions here.	
Indirect Contributions	Enter ratio of indirect contributions here.	Enter ratio of indirect contributions here.	Enter ratio of indirect contributions here.	Enter ratio of indirect contributions here.
Weightage for Indirect Contributions	Enter weightage to be accorded to indirect contributions here.		Enter weightage to be accorded to indirect contributions here.	
Average Ratio	Enter average ratio based on weightage to direct contributions here.	Enter average ratio based on weightage to direct contributions here.	Enter average ratio based on weightage to indirect contributions here.	Enter average ratio based on weightage to indirect contributions here.
Adjustment to Ratio (if any) and brief reasons				
Final Ratio <i>(inclusive of adjustment or changes due to weightage, if any)</i>	Enter final ratio here.	Enter final ratio here.	Enter final ratio here.	Enter final ratio here.

Section 4: Maintenance of Wife / Incapacitated HusbandMaintenance for ☐ Wife ☐ Incapacitated Husband:

S/n	Item	Husband's estimate	Pg Refs	Wife's estimate	Pg Refs	Remarks
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Without Prejudice for Family Neutral Evaluation Only

Case No.: Enter case no. here

Date: Enter date of FNE Hearing here.

1	Is there an existing maintenance order or existing voluntary payment for spouse? ☐ No. ☐ Yes. <i>Provide details.</i>	<i>For e.g. \$500</i>		<i>For e.g. \$100</i>		Enter details here.
2	Is there an existing maintenance order or existing voluntary payment for household? ☐ No. ☐ Yes. <i>Provide details.</i>	<i>For e.g. \$500</i>		<i>For e.g. \$100</i>		Enter details here.
	Total	Enter total estimate here.		Enter total estimate here.		

Section 4A: Main proposals

	Position of receiving spouse	Position of paying spouse
Lump sum (Multiplier x Multiplicand) or Monthly periodic sum	Enter position of receiving spouse here.	Enter position of paying spouse here.

Section 4B: Parties' respective positions on the spouse's estimated expenses

Without Prejudice for Family Neutral Evaluation Only

Case No.: Enter case no. here

Date: Enter date of FNE Hearing here.

S/n	Item	Receiving spouse's estimate	Pg Refs	Paying spouse's estimate	Pg Refs	Remarks
1	<i>For e.g. clothes.</i>	<i>For e.g. \$500.</i>		<i>For e.g. \$100.</i>		<i>State the reasons for the dispute here (whether it is on principle or quantum or both, as applicable).</i>
2						
3						
	Total	Enter total estimate here.		Enter total estimate here.		

Section 5: Maintenance for Child(ren)

S/n	Item	Husband's estimate	Pg Refs	Wife's estimate	Pg Refs	Remarks
1	Is there an existing maintenance order or existing voluntary payment for children? ☐ No. ☐ Yes. <i>Provide details.</i>	<i>For e.g. \$500.</i>		<i>For e.g. \$100.</i>		Enter details here.
2	Is there an existing maintenance order or existing voluntary payment for household? ☐ No. ☐ Yes. <i>Provide details.</i>	<i>For e.g. \$500.</i>		<i>For e.g. \$100.</i>		Enter details here.
	Total	Enter total estimate here.		Enter total estimate here.		

Without Prejudice for Family Neutral Evaluation Only

Case No.: Enter case no. here

Date: Enter date of FNE Hearing here.

Section 5A: Main proposals

S/n	Husband's ☐ claim ☐ offer for maintenance for the children
1	<i>State how the children's total expenses should be divided (i.e. whether parties are to bear them equally, whether one party is to bear all the expenses, whether the expenses are to be divided 70:30, etc.) and the quantum of maintenance claimed / offered.</i>
	Wife's ☐ claim ☐ offer for maintenance for the children
2	<i>State how the children's total expenses should be divided (i.e. whether parties are to bear them equally, whether one party is to bear all the expenses, whether the expenses are to be divided 70:30, etc.) and the quantum of maintenance claimed / offered.</i>

Section 5B: Parties' positions on the children's estimated expenses*Use a separate table for each child if the list of expenses is not common for all children.*

S/n	Item	Husband's estimate	Pg Refs	Wife's estimate	Pg Refs	Remarks
1	<i>For e.g. Toys.</i>	<i>For e.g. \$500.</i>		<i>For e.g. \$100.</i>		<i>State the reasons for the dispute here (whether it is on principle or quantum or both, as applicable).</i>
2						
3						
	Total	Enter total estimate here.		Enter total estimate here.		

Without Prejudice for Family Neutral Evaluation Only

Case No.: Enter case no. here

Date: Enter date of FNE Hearing here.

Section 6: Declaration

The parties understand that the Evaluator will rely on the parties' respective positions in this Joint Statement when evaluating the parties' dispute in respect of the ancillary matters referred for Family Neutral Evaluation. Where this Joint Statement discloses material facts or questions of law which are agreed between the parties, the Evaluator may rely on the agreed facts or questions of law when making his/her evaluation.

The Plaintiff accepts the Joint Statement to be his/her final position for the purposes of the Family Neutral Evaluation.

Signature

Name of Plaintiff: Enter name here.

Date: Enter date here.

The Defendant accepts the Joint Statement to be his/her final position for the purposes of the Family Neutral Evaluation.

Signature

Name of Defendant: Enter name here.

Date: Enter date here.

Para 13A(7) PD 2024

AGREEMENT FOR BINDING FAMILY NEUTRAL EVALUATION
IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Case No.:

Between

[Plaintiff's name]

[ID No.]

... Plaintiff(s)

And

[Defendant's name]

[ID No.]

... Defendant(s)

AGREEMENT FOR BINDING FAMILY NEUTRAL EVALUATION

1. We confirm that we have been fully advised by our respective lawyers on the procedure and nature of the Family Neutral Evaluation process and we understand that the default position is that it would be non-binding.
2. However, in the interests of resolving the disputes between us amicably and without any further escalation of costs, we hereby confirm and agree to all the following:
 - (a) that the Family Neutral Evaluation ("FNE") on the matters set out below shall be final and binding on us:
 - ☐ Division of the Matrimonial Home: *To provide details.*
 - ☐ Division of Other Matrimonial Assets (other than Matrimonial Home)
 - ☐ Spousal Maintenance for: *To provide details of wife/incapacitated husband.*
 - ☐ Maintenance for Child(ren): *To provide details of the Child(ren).*
 - (b) that we have filed our ancillary affidavits and will provide all facts and circumstances, information and documents relevant and/or material for the binding evaluation of the above matters;
 - (c) that we will participate in the FNE in good faith and abide by the Guidelines on Family Neutral Evaluation issued by the Family Justice Courts, and

- (d) at the end of the FNE, we shall forthwith submit a draft consent order to the court for its approval to give effect to the written binding evaluation of the Evaluator ("Binding Evaluation").
3. We acknowledge and agree that if any party is in default of his/her obligations under paragraph 2(d) above ("defaulting party"), the other party ("non-defaulting party") may at the appropriate juncture make submissions to the court for costs to be awarded against the defaulting party. We understand that the court has full discretion to make any cost orders as it deems fit.
4. We further confirm and agree that all communications made and all documents and materials prepared, submitted and/or exchanged in the course of and for the FNE shall be confidential and on a without prejudice basis except for the following:
- (a) this Agreement and the Binding Evaluation;
 - (b) the consent orders of court;
 - (c) directions given by the Evaluator/Judge after the conclusion of the FNE for the purpose of case management (including directions for the filing and exchange of affidavits), and
 - (d) documents and materials prepared, submitted and/or exchanged in the course of and for the FNE that would in any event have been discoverable in other proceedings.

Signed by:

Signed by:

Name of Plaintiff: Enter name here.
Date: Enter date here.

Name of Defendant: Enter name here.
Date: Enter date here.

Appendix B

Discovery and Inspection of Electronic Documents

Part 1: Agreed electronic discovery protocol

(1) Scope of electronic discovery

- (a) General discovery of the following class or classes of electronically stored documents shall be given:
[eg Electronic mail, correspondence, letters, *etc.*]
- (b) The party giving discovery shall take reasonable steps to decrypt encrypted files or encrypted storage locations, media or devices in order to identify discoverable electronically stored documents. This may include taking reasonable steps to obtain the decryption code and/or using reasonable technical means to perform decryption of the encrypted files or encrypted storage locations, media or devices.
- (c) For the avoidance of doubt, electronically stored documents residing in folders or directories in storage locations, media or devices, including folders or directories where temporarily deleted files are located (for example the Recycle Bin folder or Trash folder) are within the scope of general discovery; deleted files or file fragments containing information which are recoverable through the use of computer forensic tools or techniques during a forensic inspection of the unallocated file space or file slack are **not** within the scope of general discovery.
- (d) **Reasonable search.** The search terms or phrases specified in the first column will be used in the conduct of a reasonable search for relevant electronically stored documents. The reasonable search will be limited by the scope described in the second column.

<i>Search term or phrase</i>	<i>Scope</i>
[Specify the keyword(s).]	[Describe the scope of the search by reference to physical or logical storage locations, media or devices, the period during which the requested electronically stored document was created, modified or received, <i>etc.</i>]

(2) Format of list

The list of documents shall categorise and list electronically stored documents separately from documents in printed or other form. The list of documents enumerating electronically stored documents shall include the following columns:

[eg description of the electronically stored document, the name of the corresponding soft copy file, the file format (and its version) of the electronic document, the hash value of the file, *etc.*]

An index of documents enumerated in the list of documents shall be provided in an electronic spreadsheet in the [eg Excel 2007 Binary (.xls), Comma Separated Value (.csv), *etc.*] file format.

(3) Review for privileged material

Nothing in this protocol shall prevent the party giving discovery from reviewing the documents in any list provided hereunder for the purpose of claiming privilege. If the party giving discovery claims privilege over any document or record, he shall list the electronic documents or class of electronic documents over which privilege is claimed in the list of documents.

(4) Inspection and copies

- (a) **Arrangements for inspection.** The place for inspection of discoverable electronic documents should be stated separately if it is different from the place for inspection of other discoverable documents. If the party entitled to inspect intends to inspect through or with the assistance of its appointed computer expert, such computer expert shall provide an undertaking of confidentiality to the party giving inspection before he commences his inspection.
- (b) **Supply of copies.** During inspection, copies shall not be taken. If copies are required, a request should be made. Electronic copies of discoverable documents will be supplied in their native format and in read-only optical discs upon request. Electronic copies of discoverable documents where privilege is claimed only with respect to their internally stored metadata information will be supplied in the Tagged Image File Format (or TIFF) with privileged metadata information removed. For each of the read-only optical discs supplied, a further list stating the storage format (and its version) of the optical disc and enumerating the list of electronic documents stored therein shall be provided.

(5) Inspection of computer databases and electronic media or recording devices

Parties agree that the protocol for inspection of computer databases and electronic media or recording devices (Appendix M Part 2) shall apply for the inspection of the following:
[List the computer databases, electronic media or recording devices]

(6) Inadvertent disclosure of privileged documents

Notwithstanding compliance with the procedures in this protocol, nothing in this protocol is intended to be or shall be taken to amount to a waiver of privilege.

(7) Discovery and production only if necessary

For the avoidance of doubt, nothing in this protocol shall compel any party to give discovery of any document or produce any document for inspection which is not otherwise discoverable under rules 468 or 474 of the Family Justice Rules.

Part 2: Protocol for Inspection of Computer Databases and Electronic Media or Recording Devices

(1) Appointment of computer experts

(a) Joint appointment.

The party producing the computer database, electronic medium or recording device for inspection (“**the Producing Party**”) and the party entitled to inspection of the computer database, electronic medium or recording device (“**the Inspecting Party**”), may jointly appoint a computer expert (“**the Joint Expert**”) for the purpose of making a forensic copy of such computer database, electronic medium or recording device (“**the Original Acquired Image**”). The Joint Expert’s role shall be restricted to the acquisition of the Original Acquired Image and the performance of a reasonable search on a copy of the Original Acquired Image in accordance with the terms of this protocol. Before the Joint Expert commences his appointment, he shall provide an undertaking of confidentiality to the Court and to all parties concerned in the inspection. He shall also procure a similar undertaking from each of his employees, representatives, agents or sub-contractors involved in the engagement.

(b) Costs and expenses of Joint Expert.

All costs and expenses relating to the appointment of the Joint Expert under this protocol shall initially be borne equally between the Producing Party and the Inspecting Party. Nothing in this protocol is intended to or shall be taken to prevent any party to the cause or matter from seeking the recovery of such costs and expenses in accordance with the Family Justice Rules.

(c) Individual appointments.

Nothing in this protocol shall prevent the Producing Party, the Inspecting Party and any other party concerned in the inspection from appointing his own computer expert.

(2) Acquisition of the Original Acquired Image

(a) Where Joint Expert appointed.

The Joint Expert shall acquire the Original Acquired Image under the supervision of all parties concerned in the inspection, their representatives or computer experts. Sufficient copies of the Original Acquired Image shall be made as necessary in order that the Producing Party and each Inspecting Party may be supplied with an electronic copy of the Original Acquired Image. The Joint Expert shall provide sufficient information with the copy of the Original Acquired Image to enable the party’s computer expert to access the copy supplied. The Original Acquired Image shall be sealed and delivered to the custody of the Producing Party, who shall enumerate it in a list of documents to be filed under Part 18 Division 19 of the Family Justice Rules.

(b) Where Joint Expert not appointed.

The Producing Party’s computer expert shall be responsible for acquiring the Original Acquired Image under the supervision of all parties concerned in the inspection, their representatives or computer experts. Sufficient copies of the Original Acquired Image shall be made as necessary for the purposes of inspection and reasonable search to be provided under this protocol. The Original Acquired Image shall be sealed and delivered to the custody of the Producing Party, who shall enumerate it in a list of documents to be filed under Part 18 Division 19 of the Family Justice Rules.

(c) Original Acquired Image to be produced when ordered by Court.

The party to whose custody the sealed Original Acquired Image has been delivered shall not tamper with or break the seal, and shall produce the Original Acquired Image to the Court or such other person(s) as the Court may direct.

(3) Safeguards for reasonable search

This paragraph applies in situations where a reasonable search is conducted on the contents of a copy of the Original Acquired Image.

Where Joint Expert appointed

(a) Conduct of reasonable search.

The Inspecting Party shall specify or describe the search terms or phrases to be used in a reasonable search to be conducted on the contents of a copy of the Original Acquired Image to the Producing Party and the Joint Expert.

If the Producing Party does not object to the search terms or phrases so specified or described, he shall communicate his consent to the Joint Expert and the Inspecting Party. The Joint Expert shall make arrangements for the conduct of the reasonable search on a copy of the Original Acquired Image under the supervision of all parties concerned in the inspection, their representatives or computer experts. If the Producing Party objects to any or all of the search terms or phrases so specified or described, he shall forthwith inform the Joint Expert. The parties shall resolve such objections before any further steps are taken for the conduct of the reasonable search. The Joint Expert shall not take any further steps for the conduct of the reasonable search until:

- (i) he is informed by the Producing Party of his consent to the original search terms or phrases; or
- (ii) the Inspecting Party specifies or describes a new set of search terms or phrases and to which the Producing Party provides his consent in accordance with this sub-paragraph.

A copy of the documents or records that are the results of the reasonable search (“**the Search Results**”) shall be made and released to the Producing Party.

(b) Review for privileged material.

The Producing Party shall be at liberty to review the Search Results for the purpose of claiming privilege. If the Producing Party claims privilege over any document or record from the Search Results, he shall list the electronic documents or records over which privilege is claimed.

(c) Release for inspection.

Thereafter, the Joint Expert shall remove copies of any documents or records over which privilege is claimed from the Search Results (“**the Redacted Search Results**”). The Joint Expert may maintain a separate privilege log which records the documents or records which are thus removed and the reasons given for doing so. For the avoidance of doubt, the privilege log shall not be included in the Joint Expert’s report but the Joint Expert shall produce the privilege log to the Court if so directed by the Court. The Redacted Search Results shall be released to the Inspecting Party for inspection together with the list of electronic documents or records over which privilege is claimed.

Where Joint Expert not appointed

(d) Conduct of reasonable search.

The Inspecting Party shall specify or describe the search terms or phrases to be used in a reasonable search to be conducted on the contents of a copy of the Original Acquired Image to the Producing Party. If the Producing Party objects to any or all of the search terms or phrases so specified or described, parties shall resolve such objections before any further steps are taken for the conduct of the reasonable search. Upon resolution of any objections or if the Producing Party consents to the specified or described search terms or phrases, he shall make

arrangements for his computer expert to conduct the requested reasonable search on a copy of the Original Acquired Image under the supervision of all parties concerned in the inspection, their representatives or computer experts.

(e) **Review for privileged material.**

The Producing Party shall be at liberty to review the Search Results for the purpose of claiming privilege. If the Producing Party claims privilege over any document or record from the Search Results, he shall list the electronic documents or records over which privilege is claimed.

(f) **Release for inspection.**

Thereafter, the Producing Party shall remove copies of any documents or records over which privilege is claimed from the Search Results. The Redacted Search Results shall be released to the Inspecting Party for inspection together with the list of electronic documents or records over which privilege is claimed.

(4) **Safeguards for forensic examination**

This paragraph applies to the forensic examination of a copy of the Original Acquired Image for the purpose of identifying electronically stored documents thereon or for the recovery of deleted files or file fragments from the unallocated file space or file slack using computer forensic tools or techniques. A Joint Expert shall be appointed for the purpose of such forensic examination.

(a) **Conduct of forensic examination.** The Inspecting Party shall specify or describe the search terms or phrases to be used in the forensic examination to be conducted on the contents of a copy of the Original Acquired Image to the Joint Expert. The Joint Expert shall not at any time disclose to the Producing Party the search terms or phrases specified or described by the Inspecting Party and shall not include the search terms or phrases in his report. For the avoidance of doubt, the Joint Expert shall disclose the search terms or phrases to the Court if so directed by the Court. The Joint Expert shall make arrangements for the conduct of the forensic examination on a copy of the Original Acquired Image. Neither the Inspecting Party nor the Producing Party, or any of their solicitors, computer experts, employees, representatives or agents shall be present during the conduct of the forensic examination. A copy of the documents or records that are the results of the reasonable search (“the Search Results”) shall be made and released to the Producing Party. The Producing Party is not entitled to a copy, and shall not request the Joint Expert for a copy, of the search terms or phrases specified or described by the Inspecting Party.

(b) **Review for privileged material.**

The Joint Expert and the Producing Party shall jointly review the Search Results for the purpose of permitting the Producing Party to identify electronically stored documents, deleted files or file fragments over which he claims privilege. If the Producing Party claims privilege over any electronically stored documents, deleted files or file fragments from the Search Results, he shall identify them to the Joint Expert. The Producing Party shall list the electronic documents, deleted files or file fragments over which privilege is claimed.

(c) **Release for inspection.**

Thereafter, the Joint Expert shall remove copies of any electronic documents, deleted files or file fragments over which privilege is claimed from the Search Results (“the Redacted Search Results”). The Joint Expert may maintain a separate privilege log which records the electronic documents, deleted files or file fragments which are thus removed and the reasons provided for the removal. For the avoidance of doubt, the privilege log shall not be included in the Joint Expert’s report but the Joint Expert shall produce the privilege log to the Court if so directed by the Court. The Redacted Search Results shall be released to the Inspecting Party

for inspection together with the Producing Party's list of electronic documents, deleted files or file fragments over which privilege is claimed.

(5) **Inadvertent disclosure of privileged documents**

Notwithstanding compliance with the procedures in this protocol, nothing in this protocol is intended to be or shall be taken to amount to a waiver of privilege.

(6) **Discovery and production only if necessary**

For the avoidance of doubt, nothing in this protocol shall compel any party to give discovery of any document or produce any document for inspection which is not otherwise discoverable under rules 468 or 474 of the Family Justice Rules.

Part 3: Reasonably Usable Formats

File Format	Version
<i>Office Documents</i>	
Hypertext Markup Language	HTML 4.01 or ISO/IEC 15445:2000
Extensible Hypertext Markup Language	XHTML 2.0
Rich Text Format (RTF)	RTF 1.9.1
Plaintext Format	
Portable Document Format (PDF)	
Microsoft Office file formats	Word 97 - 2007 Binary File Format (.doc) Specification PowerPoint 97 - 2007 Binary File Format (.ppt) Specification Excel 97 - 2007 Binary File Format (.xls) Specification Excel 2007 Binary File Format (.xlsb) Specification Office Drawing 97 - 2007 Binary Format Specification
<i>Electronic Mail</i>	
Multipurpose Internet Mail Extension (MIME)	RFC 5322
.eml	Mozilla Thunderbird, Windows Mail and Microsoft Outlook Express e-mail messages
.msg	Microsoft Office Outlook e-mail messages
<i>Images</i>	
Joint Photographic Experts Group (JPEG)	ISO/IEC 10918-1
JPEG 2000	ISO/IEC 15444-1:2000
Portable Network Graphics (PNG)	ISO/IEC 15948:2004
Tagged Image File Format	TIFF or ISO 12639:1998
Portable Document Format	PDF 1.7 or ISO 32000-1:2008
<i>Audio</i>	
MPEG-1 Audio Layer 3 (MP3)	ISO/IEC 11172-3
Advanced Audio Coding (AAC)	ISO/IEC 14496-3:2001
<i>Video</i>	
Moving Picture Experts Group (MPEG-1)	ISO/IEC-11172
H.264	ITU-T H.264

MPEG-4 Part 10 or MPEG-4 AVC (Advanced Video Coding)	ISO/IEC 14496-10:2003
<i>Multimedia container formats</i>	
Audio Video Interleave	
QuickTime File Format	
MPEG-4 Part 14	ISO/IEC 14496-14:2003

Appendix C

Sample Bill of Costs

Sample A

Sample bill of costs for contentious business - trials

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

D No. of 20
Bill of Costs No. of 20

GST Reg. No. (solicitors for plaintiffs): 12345
GST Reg. No. (1st plaintiff): 67890 (20%)
2nd plaintiff: No GST Reg. No. (100%)

Between

AAA

..... Plaintiffs

And

CCC

..... Defendant

SAMPLE BILL OF COSTS FOR CONTENTIOUS BUSINESS - TRIALS

Applicant:	Solicitors for the plaintiff
Nature of bill:	Party and party
Basis of taxation:	Standard basis
Basis for taxation:	Judgment dated _____ ordering the defendant to pay plaintiffs' costs

Section 1: Work done other than for taxation

No.	Item	Description	Remarks
1.	The claim		
1.1	Nature of claim	Divorce	
2.	Pleadings		
2.1	Writ & statement of claim	Writ: 3 pages Statement of claim: 15 pages	
2.2	Defence & counterclaim	Defence: 10 pages Counterclaim: 2 pages	
2.3	Reply & defence to counterclaim	Reply: 5 pages Defence to counterclaim: 2 pages	
2.4	Relief claimed	Plaintiffs' claim: - divorce based on Defendant's unreasonable behaviour Defendant's counterclaim: - divorce based on Plaintiff's unreasonable behaviour	
2.5	Affidavits deemed or ordered to stand as pleadings	Not applicable	
3.	Interlocutory attendances		
3.1	Interlocutory applications - costs fixed by court	(1) SUM 123/14: Plaintiff's application for further and better particulars on [date]. 2 affidavits filed (total 25 pages including 4 exhibits). Costs awarded to plaintiff fixed at \$500. (2) SUM 234/14: Defendant's application for specific discovery. 1 affidavit filed (10 pages including 2 exhibits). No order on application with no order on costs.	20 F&BPs requested and 15 successful. Hearing before Assistant Registrar for 1 hour on [date]. Hearing before Assistant Registrar for 1 hour on [date].
3.2	Interlocutory applications – costs not fixed by court	(1) SUM 345/14: Plaintiff's <i>ex-parte</i> application for interlocutory injunction on [date]. 2 affidavits filed (total 100 pages including 10 exhibits). Written submissions of 20 pages with 7 cases cited. Order in terms with costs in the cause. (2) SUM 456/14: Plaintiff's summons for directions on discovery. Orders made.	Hearing before District Judge ABC from 5.15 to 6.30 p.m. on [date]. Heard together with PTC on [date].

<i>No.</i>	<i>Item</i>	<i>Description</i>	<i>Remarks</i>
3.3	Appeals to District Judge in chambers	RA 1/05: appeal on Plaintiff's discovery application. Appeal dismissed with costs fixed at \$800 to the Plaintiff.	Hearing before District Judge XYZ from 9.30 to 10.30 a.m. on [date].
3.4	Pre-trial conferences	4 PTCs on [dates]	By consent application for extension of time to exchange AEIC with costs in the cause heard during PTC on [date].
3.5	Other attendances	Not applicable.	
4.	Discovery		
4.1	Number of lists of documents	Not applicable.	
4.2	Total number of documents disclosed	Plaintiff: 55 documents, 800 pages Defendant: 40 documents, 300 pages	Overlap of 234 pages.
5.	Trial		
5.1	Opening statement	Plaintiff: 8 pages Defendant: 6 pages	
5.2	Number of days and date(s) of trial	Number of days fixed: 5 days Number of days of actual hearing: 4 days Dates of trial: 3-4 April 2014, 24-25 April 2014	Parties negotiated on the 1 st day and dispensed with 2 witnesses.
5.3	Part heard	2 week break after 2 nd day.	
5.4	Affidavits of evidence in chief – text and exhibits	Plaintiffs: 3 affidavits 50 pages of text 30 exhibits running to 500 pages Defendant: 2 affidavits 40 pages of text - No exhibits, affidavits cross-referenced to agreed bundle of documents; 20 documents referred to in the affidavits.	Overlap of 20 exhibits.
5.5	Bundle of documents	Core bundle: 1 volume, 150 pages Agreed bundle: 1 volumes, 200 pages Plaintiffs' bundle: 1 volume, 300 pages Defendant's bundle: Documents in agreed bundle	Exhibits P1 to P4 and D1 to D2 introduced during trial; 30 pages.

<i>No.</i>	<i>Item</i>	<i>Description</i>	<i>Remarks</i>
5.6	Witnesses at trial	Plaintiffs: 3 (2 of fact) Defendant: 3 (2 of fact)	2 of the Plaintiff's witnesses only spoke Thai. 1 of the Defendant's witnesses gave oral evidence.
5.7	Closing submissions and authorities cited	Plaintiffs: 40 pages and 10 cases Defendant: 30 pages and 6 cases	
5.8	Submissions in reply and authorities cited	Plaintiffs: 10 pages and 2 cases Defendant: 6 pages and 5 cases	
5.9	Orders made at trial	Interim Judgment granted to the Plaintiff. Counterclaim dismissed with costs.	
5.10	Other post-trial filings/matters	Not applicable.	
6.	Complexity of case		
6.1	Legal issues	(1) Whether behaviour after separation can be taken into account. (2) ...	
6.2	Factual issues	(1) Whether the defendant sent the email that is an admission to the allegations; (2) ...	
6.3	Complexity	- Novel point of law involving... [summary of the points]; - Consideration of multiple alternative defences; - Major factual disputes in respect of definition of confidential information.	
6.4	Grounds of decision	30 pages. In particular, District Judge commented on the complexity of case or novelty of issues at paragraph [highlight relevant paragraphs in the grounds of decision]. 5 authorities cited in the grounds.	
7.	Urgency and importance to client		
7.1	Urgency	Preparation for interlocutory injunction was made over the Chinese New Year.	
7.2	Importance to client	The Plaintiffs have invested approximately \$250,000 into research and it is critical that confidentiality of the information is maintained.	

<i>No.</i>	<i>Item</i>	<i>Description</i>	<i>Remarks</i>
8.	Time and labour expended		
8.1	Number of letters/ faxes/emails exchanged between the parties	Plaintiff to defendant: 50 Defendant to plaintiffs: 30 Plaintiffs to court: 3	
8.2	Number of letters/ faxes/emails to client	70	
8.3	Meetings with opposing counsel	3 meetings comprising in total approximately 10 hours during part-heard break between 2 nd and 3 rd day of trial.	
8.4	Time spent	100 hours	
8.5	Others	Not applicable.	
9.	Counsel and solicitors involved		
9.1	Counsel	Plaintiff: Mr ABC, 15 years standing Ms DEF, 2 years standing Defendant: Ms GHI, 10 years standing	
9.2	Certificate of more than 2 counsel	No.	
10.	Costs claimed		
10.1	Amount claimed	Work done on or before 1st January 2013: \$ <i>a</i> Work done on or after 1 January 2013 and before 1 January 2014: \$ <i>b</i> Work done on or after 1 January 2014: \$ <i>c</i> Percentage of input tax for which the 1st Plaintiff is not entitled to credit: 20%. Amount of input tax for which the 1st Plaintiff is not entitled credit in respect of – Work done on or before 1st January 2003: \$ <i>d</i> Work done on or after 1 January 2003 and before 1 January 2004: \$ <i>e</i> Work done on or after 1 January 2004: \$ <i>f</i>	

<i>No.</i>	<i>Item</i>	<i>Description</i>	<i>Remarks</i>
		Percentage of input tax for which the 2nd Plaintiff is not entitled to credit: 100%. Amount of input tax for which the 2nd Plaintiff is not entitled credit in respect of – Work done on or before 1st January 2003: \$ <i>g</i> Work done on or after 1 January 2003 and before 1 January 2004: \$ <i>h</i> Work done on or after 1 January 2004: \$ <i>i</i> GST for work done or before 1 January 2003: \$ <i>j</i> GST for work done on or after 1 January 2003 and before 1 January 2004: \$ <i>k</i> GST for work done on or after 2004: \$ <i>l</i>	

Section 2: Work done for taxation

<i>No.</i>	<i>Item</i>	<i>Description</i>	<i>Remarks</i>
11.	Work done	Drawing up bill of costs, perusing documents and vouchers, attending taxation and drawing up Registrar's certificate.	
12.	Amount claimed	\$ <i>p</i> Percentage of input tax for which the 1st Plaintiff is not entitled to credit: 20%. Amount of input tax for which the 1st Plaintiff is not entitled credit : \$ <i>q</i> Percentage of input tax for which the 2nd Plaintiff is not entitled to credit: 100%. Amount of input tax for which the 2nd Plaintiff is not entitled credit : \$ <i>r</i> GST for work done: \$ <i>s</i>	

Section 3: Disbursements

<i>No.</i>	<i>Date</i>	<i>Description and amount claimed</i>	<i>Remarks</i>
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<i>No.</i>	<i>Item</i>	<i>Description</i>	<i>Remarks</i>
13.	15/5/13	<u>Disbursements on which GST is not chargeable</u> Writ of summons (court fees): \$ xxx	
14.	3/6/13	Reply and defence to counterclaim (court fees): \$ yyy	
15.	3/6/13	SIC 123/05 (court fees): \$ zzz	
16.	xxxx	<u>Disbursements on which GST is chargeable</u> [State nature of each disbursement and the amount claimed.]	
17.	-	Total amount claimed for disbursements on which GST is not chargeable: \$ <i>t</i> Total amount claimed for disbursements on which GST is chargeable: \$ <i>u</i> Percentage of input tax for which the 1 st Plaintiff is not entitled to credit: 20%. Amount of input tax for which the 1 st Plaintiff is not entitled credit: \$ <i>v</i> Percentage of input tax for which the 2 nd Plaintiff is not entitled to credit: 100%. Amount of input tax for which the 2 nd Plaintiff is not entitled credit: \$ <i>w</i> GST claimed for disbursements on which GST is chargeable: \$ <i>x</i>	
Summary			

<i>No.</i>	<i>Item</i>	<i>Description</i>	<i>Remarks</i>
		Total claimed for bill: <u>Costs for work done other than for taxation:</u> Section 1: Work done on or before 1st January 2003: \$ <i>a</i> Work done on or after 1 January 2003 and before 1 January 2004: \$ <i>b</i> Work done on or after 1 January 2004: \$ <i>c</i> GST for work done or before 1 January 2003: \$ <i>j</i> GST for work done on or after 1 January 2003 and before 1 January 2004: \$ <i>k</i> GST for work done on or after 2004: \$ <i>l</i> <u>Costs for work done for taxation:</u> Section 2: \$ <i>p</i> GST on Section 2: <u>Disbursements</u> Section 3 (Disbursements on which GST is not chargeable): \$ <i>t</i> Section 3 (Disbursements on which GST is chargeable): \$ <i>u</i> GST on Section 3 (Disbursements on which GST is chargeable): \$ <i>x</i>	

Dated this day of 20 .

Solicitors for
[State the party for whom the bill is filed].

To:

Sample B
Sample bill of costs for contentious business other than trials

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

Originating Summons No. _____ of 20____
Bill of Costs No. _____ of 20____

GST Reg. No. (solicitors for plaintiff): 12345
GST Reg. No. (Plaintiff): 67890 (20%)

Between

AAA

..... Plaintiff

And

BBB

..... Defendant

SAMPLE BILL OF COSTS FOR CONTENTIOUS BUSINESS OTHER THAN TRIALS

Applicant: Solicitors for Plaintiff
Nature of bill: Party and party
Basis of taxation: Standard basis
Basis for taxation: Judgment dated _____ ordering Defendant to pay the Plaintiff's costs.

Section 1: Work done other than for taxation			
No.	Item	Description	Remarks
1.	The claim		
1.1	Nature of claim	For application under section 8 of ICAA	
2.	Application / Proceedings		
2.1	Nature of application or proceedings for taxation	Application for the return of an abducted child under section 8 of IAA	
3.	Interlocutory attendances		
3.1	Interlocutory applications - costs fixed by court	Not applicable.	
3.2	Interlocutory applications – costs not fixed by court	SUM 123/04: Plaintiff's application for substituted service. Order in terms with costs in the cause.	Order given on [date].

3.3	Appeals to District Judge in chambers	Not applicable.	
3.4	Other attendances	Not applicable.	
4.	Hearing		
4.1	Number of days/hours and date(s) of hearing	Number of days/hours fixed: Half day Number of days/hours of actual hearing: 3 hours Date of hearing: 23 May 2014	
4.2	Documents (apart from written submissions and authorities)	Plaintiff: 3 affidavits filed (total 60 pages including 10 exhibits). Defendant: 2 affidavits filed (total 30 ages including 6 exhibits).	
4.3	Witnesses (if any)	Not applicable.	
4.4	Written submissions	Plaintiff: 30 pages Defendant: 25 pages	
4.5	Authorities cited	Plaintiff: 8 cases Defendant: 4 cases	
4.6	Orders made	Order granted for the return of the child to Hong Kong	
4.7	Other post-hearing filings	Not applicable.	
5.	Complexity of case		
5.1	Legal issues	Whether the child was wrongfully removed from country of residence.	
5.2	Factual issues	Whether the child is an ordinary resident of Hong Kong.	
5.3	Complexity	Child has dual citizenship in Hong Kong and Australia	
5.4	Grounds of decision	30 pages. In particular, District Judge commented on the complexity of case or novelty of issues at paragraph [highlight relevant paragraphs in the grounds of decision]. 5 authorities cited in the grounds.	
6.	Urgency and importance to client		
6.1	Urgency	Abduction was made without consent and child is en-route to Australia	

6.2	Importance to client	To prevent child from being taken away	
6.3	Amount involved	Not applicable.	
7.	Time and labour expended		
7.1	Number of letters/faxes/emails exchanged between the parties	Plaintiff to Defendant: 15 Defendant to Plaintiff: 10 Plaintiff to court: 2	
7.2	Number of letters/faxes/emails to client	30	
7.3	Meetings with opposing counsel	Not applicable.	
7.4	Time spent	40	
7.5	Others	Not applicable.	
8.	Counsel and solicitors involved		
8.1	Counsel and solicitors	Plaintiff: Mr ABC, 15 years standing Defendant: Ms GHI, 10 years standing	
8.2	Certificate of more than 2 counsel	No.	
9.	Costs claimed		
9.1	Amount claimed	[Please refer to the sample used for trials and modify as appropriate.]	
Section 2: Work done for taxation			
<i>No.</i>	<i>Item</i>	<i>Description</i>	<i>Remarks</i>
10.	Work done	Drawing up bill of costs, perusing documents and vouchers, attending taxation and drawing up Registrar's certificate.	
11.	Amount claimed	[Please refer to the sample used for trials and modify as appropriate.]	
Section 3: Disbursements			

<i>No.</i>	<i>Date</i>	<i>Description and amount claimed</i>	<i>Remarks</i>
12.	15/5/04	<u>Disbursements on which GST is not chargeable</u> Originating Summons (court fee): \$ xxx	
13.	15/5/04	Affidavit (court fee): \$ yyy	
		<u>Disbursements on which GST is chargeable</u> [State nature of disbursement and amount claimed.]	
[]	xxxx	Total amount claimed for disbursements on which GST is not chargeable: \$ <i>aaa</i>. Total amount claimed for disbursements on which GST is chargeable: \$ <i>bbb</i> [Please refer to the sample used for trials and modify as appropriate.]	
Summary			
		Total claimed for bill: [Please refer to the sample used for trials and modify as appropriate.]	

Dated this day of 20 .

Solicitors for
[State the party for whom the bill is filed].

To:

IN THE FAMILY JUSTICE COURTS OF THE REPUBLIC OF SINGAPORE

In the matter of

SAMPLE BILL OF COSTS FOR NON-CONTENTIOUS BUSINESS

Applicant: Solicitors for ABC
Nature of bill: Solicitor and client
Basis of taxation: Indemnity basis
Basis for taxation: Pursuant to the written consent from the client vide letter dated []
annexed hereto under section 120(3) of the Legal Profession Act

Section 1: Work done other than for taxation			
No.	Item	Description	Remarks
1.	The work done		
1.1	Nature of work	Advice on client's claim for access to grandchild.	
1.2	Scope of brief (including relevant court orders, if any)	To ascertain the relationship and background between client and parents of child and to give advice on what remedies are available to client.	
1.3	Period of work	From 5 June 2014 to 30 August 2014.	
2.	Complexity of matter		
2.1	Legal issues	Whether client has a right claim for access.	
2.2	Factual issues	What was the longstanding arrangement and relationship between client and grandchild.	
2.3	Complexity	Mother of the child has a pending PPO application against the client.	
2.4	Amount involved	Not applicable	
3.	Time and labour expended		

3.1	Number of letters/ faxes/emails exchanged with others	4 letters to parents of the child 2 letters from parents of the child	
3.2	Number of letters/ faxes/emails to client	20 emails from applicant to client. 20 emails from client to applicant.	
3.3	Meetings with client	2 meetings: 1 hour on [date]. 2 hours on [date].	
3.4	Meetings with other parties (by class)	Not applicable.	
3.5	Documents (including legal opinions)	Draft Pleadings - 6 pages Opinion – 3 pages	
3.6	Time spent	10 hours	
3.7	Other relevant work	Not applicable.	
4.	Counsel and solicitors involved		
4.1	Solicitor	Mr GHI, 18 years standing	
5.	Costs claimed		
5.1	Amount claimed	\$ ____ [Please refer to the sample used for trials and modify as appropriate.]	
Section 2: Work done for taxation			
<i>No.</i>	<i>Item</i>	<i>Description</i>	<i>Remarks</i>
6.	Work done	Drawing up bill of costs, perusing documents and vouchers, attending taxation and drawing up Registrar's certificate.	
7.	Amount claimed	\$ ____ [Please refer to the sample used for trials and modify as appropriate.]	
Section 3: Disbursements			
<i>No.</i>	<i>Date</i>	<i>Description and amount claimed</i>	<i>Remarks</i>

APPENDIX D
[deleted]